U.P. Law Centennial Textbook Project

LEGAL METHOD ESSENTIALS 4.0

Dante B. Gatmaytan

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by

University of the Philippines
College of Law

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ISBN No. 978-971-15-0473-1

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Profile of the Author

Professor Dante Gatmaytan teaches Constitutional Law, Legal Method, and Local Government Law, among others at the University of the Philippines, College of Law. Before he entered the academe in 1998, he practiced law through public interest law offices working with rural poor communities involved in environment and natural resources law, indigenous peoples' rights, agrarian reform, and local governance issues.

He graduated with a Bachelor's Degree from the Ateneo de Manila (B.S. Legal Management) and a law degree (LL.B.) from the University of the Philippines. He holds Masters Degrees from Vermont Law School (*cum laude*) and the University of California, Los Angeles.

He is also a professorial lecturer of the Department of Constitutional Law at the Philippine Judicial Academy.

Professor Gatmaytan writes on the environment, gender, the judiciary, and the intersection of law and politics. His works have appeared in the Asian Journal of Comparative Law, the Oregon Review of International Law, the UCLA Pacific Basin Law Journal, the Georgetown International Environmental Law Review, and the Harvard Women's Law Journal, among others. He is the author of the two-volume Local Government Law and Jurisprudence, and Constitutional Law in the Philippines: Government Structure. His scholarship is collected in two books: More Equal than Others: Constitutional Law and Politics, and Underclass: Public Interest Law Practice Perspectives.

His primary research interests are concentrated on constitutional amendments, the interaction of law and politics, and comparative constitutionalism.

He has served as Head of the U.P. Law Centre's Information and Publication Division, and as Director of the Institute for the Administration of Justice.

Acknowledgments

I am indebted to a number of people for their help in producing this book. My thanks go to Professor Myrna S. Feliciano, the Dean of the Legal Method, who for decades trained students of the U.P. College of Law on the art of legal analysis. She herself is an institution in the academe and I am grateful for the training I received from her.

I especially want to thank Dean Pacifico Agabin and Professors Myrna Feliciano and Jay Batongbacal for reading and commenting on drafts of this book.

I also thank Supreme Court Associate Justice Marvic M.V.F. Leonen for initiating the U.P. Law Centennial Textbook Project and Dean Danilo L. Concepcion for his administration's continuing support.

I had the honor of working with excellent research assistants over the years—Maan Ballesteros, Claudette dela Cerna, Pia Rieza, and Sofia Guira who gathered and prepared the materials for my course in Legal Method. Lady Ivy Velasco, Francis Tiopianco, and Marijo Alcala all worked directly on the production of this book. Ms. Alcala also took time to proofread drafts of this book, to review the footnotes, and to prepare the table of cases. Rose Ann Gonzales, Carla Mapalo, Cari Mangalindan, Joy Reyes, and Beatriz Bayudan worked tirelessly on the revised editions of this book. I am grateful to the staff of the U.P. Law Center, in particular to Elsa Ochoa, Linda Lopez, Roshan Jose, and Jojo Malicdem, Jr. who worked at the design and layout of the book. I am grateful to Hannah Manaligod for rendering the cover of this edition.

I also thank my students, who over the years, through our interaction in class, helped shape the final outline for this book.

Finally, I want to thank Cielo Magno for her advice and assistance in the production of both the substance and form this book. Her ideas and comments, as always, improved my work immeasurably.

All shortcomings of the book are my sole responsibility.

Preface

Legal Method is the most important course in the law school curriculum. It is also the most misunderstood and unappreciated. I suspect this is the case because the course does not deal with substantive law such as Constitutional Law, Persons and Family Relations, or Criminal Law—weightier courses taught in the first semester of law school. These are also "bar subjects," thus students understandably focus on these courses.

Students often fail to appreciate legal method because it is a course on technique. It imparts skills needed by law students and lawyers alike. Substantive courses might teach these skills and techniques incidentally, but in the end, they impart doctrines. Legal method is the course that is devoted to learning a craft.

Legal Method has a greater purpose outside personal and professional competence. Taught correctly, it trains students of law to analyze the state of the legal system and to consider its consequences on Philippine society.

The fact is that legal method permeates every Supreme Court decision. Judges apply the lessons of legal method to establish the rights of parties to a contract and to determine liabilities arising from the commission of crimes or torts. Some legal issues affect the lives of every Filipino and even our relations with other nations. Judges determine the impact of new laws and the legal landscape, and consequently affect the course of Philippine society. Were the regimes of Corazon Aquino and Gloria Macapagal-Arroyo legal considering the fact that they were not elected Presidents? Can future generations sue to protect the environment? May foreign mining companies exploit our country's resources? May gays and lesbians enter into same sex marriages? How does the legal system address a territorial dispute with a neighboring country?

Substantive courses focus on the answers to these questions. On the other hand, Legal Method is concerned with how these questions are answered. How did the Justices of the Supreme Court arrive at its conclusions? How do we treat cases if the Supreme Court decisions are not unanimous? Are Supreme Court decisions final? Are dissenting opinions valuable? Can decisions in other countries be used in the resolution of local issues? What can citizens do when they disagree with the Supreme Court?

This book focuses on the Supreme Court for two reasons. The first reason is that the Supreme Court has a unique role in our system of government. As the ultimate guardian of the Constitution, it has "the distinguished but delicate duty of determining and defining constitutional meaning, divining constitutional intent, and deciding constitutional disputes."[1] The Supreme Court's word is typically the final word on legal issues. There are few options available to reverse its rulings: wait for a change in the composition of the Court, a constitutional amendment, or an impeachment of the Justices.

The second reason is that the Court's power is susceptible to abuse. A court that abandons the rule of law will produce dire consequences for society. The Supreme Court is "vested with the sovereign prerogative of passing judgment on the life, liberty or property of his fellowmen" and judges "must ultimately depend on the power of reason for sustained public confidence in the justness of his decision." [2]

The Court is a creature of the sovereign, not its master. The judiciary should inspire confidence or else Philippine society cannot survive. Through legal method, students of law become critical of Supreme Court decisions. Inconsistencies in the Court's decisions implicate profound issues such as our institutions' commitment to the rule of law. Inconsistencies can be an index of whether rent seekers hold sway over the courts. They can provoke questions about fundamental notions of fairness and the quality of justice in our country. It is through critical thinking that we see whether our public officials, both elected and appointed, are defying conventions. Hopefully we can take appropriate steps to set things right.

No other course in law school trains us for the duty to guard our government. For this reason, I am happy to make this small contribution to the study of legal method.

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1 Roque, Jr. v. Commission on Elections, G.R. No. 188456, September 10, 2009.
2 People v. Bugarin, G.R. Nos. 110817-22, June 13, 1997.

CHAPTER 1

Introduction

GENERATING LEGAL ISSUES

Most things we do implicate the law. Many times the role of the law is very clear. When two vehicles are involved in an accident, the law determines liability for damage to property, injury or death. A student who is to be expelled from school has remedies to ensure she was given an opportunity to present her defense. Opening and running a business entails a process in the local government level that includes a procedure for revocation of one's license. Prosecuting crimes, contracting marriages, titling properties, and paying taxes are all governed by law. At the moment of birth, the law operates and dictates the names we may legally receive. At death, law determines the rights of our descendants and the manner through which our properties are disposed.

Legal issues capture headlines all the time. Why file a criminal case against a 60-year-old singer who is in a romantic relationship with a 16-year-old girl?[1] Can the singer dodge criminal charges if he converts to Islam and marries the teenager?[2] May sanctions be imposed on a Mayor who drives out a Red Cross team bringing relief goods for earthquake victims?[3]

---

1 Rainier Allan Ronda, *DSWD to Step into Freddie's Love Affair*, The Philippine Star, October 21, 2013, http://www.philstar.com/headlines/2013/10/21/1247601/dswd-step-freddies-love-affair.

2 Allan Nawal, *Aguilar Weds Teenaged Girlfriend in Muslim Rites*, Philippine Daily Inquirer, November 22, 2013, http://entertainment.inquirer.net/121883/freddie-aguilar-converts-to-islam-marries-16-year-old-girlfriend.

3 Carmel Loise Matus & Tina G. Santos, *Bohol Mayor Drives Out Red Cross Team*, Philippine Daily Inquirer, October 23, 2013, http://newsinfo.inquirer.net/512307/bohol-mayor-drives-out-red-cross-team.

Our laws govern the acts of government leaders and regulate conflicts among the branches of government. The following excerpts from the Philippine Daily Inquirer[4] illustrate this point:

> In a dramatic airport showdown, President Benigno Aquino III's government stopped former President Gloria Macapagal-Arroyo and her husband Jose Miguel "Mike" Arroyo from boarding a Hong Kong-bound plane and leaving the country Tuesday night, despite a Supreme Court order allowing her to seek medical treatment abroad…
>
> Arroyo's lawyer, Ferdinand Topacio, said they would file contempt charges Wednesday against Justice Secretary Leila de Lima and others who stopped the Arroyos from leaving…
>
> Asked if the decision of the Bureau of Immigration to stop the Arroyos from leaving despite a high court order giving the Arroyos the green light amounted to a contemptuous act, Supreme Court spokesperson Jose Midas Marquez said: "Yes, it is, but we still have to look at the facts….
>
> Earlier Tuesday, Marquez warned De Lima and other government officials that they "might be held for contempt" if they insisted on preventing the Arroyos from leaving in defiance of the court's restraining order.
>
> "As we have seen in the past, once the TRO (temporary restraining order issued by the high court) is released, it takes effect immediately. We have to understand that TROs are just a provisional remedy for the time being," Marquez told the Inquirer.
>
> Speaking at a hastily called news conference at the Palace late Tuesday afternoon, De Lima said: "In the event the Arroyos appear at the airport and other ports of exit between now and up to the resolution of our motion for reconsideration, [authorities] need to bar them from leaving. The TRO is being stayed or deferred until the resolution of [our] motion for reconsideration….
>
> Asked if De Lima's order that the Arroyos be stopped from leaving was an act of contempt, Marquez said: "Let's see. I don't think there is defiance yet.

4 Christine O. Avendaño, et al., *Government Stops Arroyo Flight*, Philippine Daily Inquirer, November 15, 2011.

> "Maybe they were just surprised with what happened because they fought against it. But now that there's already a TRO, it's effective immediately.…
>
> De Lima said that as far as Malacañang was concerned, the Department of Justice's inclusion of the Arroyos in the watch list remained in effect because it had not yet received a copy of the TRO, which would pave the way for its filing of a motion for reconsideration at the high court.…
>
> De Lima said this was why she issued the directive to the BI and called on Transportation Secretary Manuel "Mar" Roxas II to order civil aviation authorities to stop the Arroyos and their "entourage" from leaving the country.…
>
> "The TRO cannot bind us if we are not yet of official receipt of [it]. It's our right to avail [ourselves] of the proper remedy—the motion for reconsideration," she said.…

The events above made for dramatic television and demonstrated the role of law on the then emerging conflict between two branches of government. The Secretary of Justice prevented a former president from leaving the country despite the Supreme Court having issued a Temporary Restraining Order suspending the operation of the Secretary's "hold departure order." These facts generate a number of questions that can be resolved by the application of the Philippine Constitution and various statutes. By what authority can the Secretary of Justice prevent a person from leaving the country? Does every Filipino enjoy the right to travel? Are there times when the State can place restrictions on travel? Is the Secretary bound by the Supreme Court's order? Can she claim that she is not bound by the order because she has not officially received a copy of the Order? Is this true even if the issuance of the Order was all over the evening news? Can the Secretary be sanctioned for her acts? Or was the Court's order inoperative because President Macapagal-Arroyo had not complied with its conditions? Who will resolve these issues?

The legality of the Order reached the Supreme Court and in 2018, it resolved this issue against the Secretary of Justice saying that "there is no law particularly providing for the authority of the Secretary of Justice to curtail the exercise of the right to travel, in the interest of national security, public safety or public health."[5]

5 Genuino v. De Lima, G.R. No. 197930, 199034 & 199046, April 17, 2018.

The purported basis for the order, the Administrative Code of 1987, did not provide a legal basis. According to the Court, a plain reading of the Administrative Code shows that the provisions relied upon by the Secretary of Justice "are mere general provisions designed to lay down the purposes of the enactment and the broad enumeration of the powers and functions of the DOJ. In no way can they be interpreted as a grant of power to curtail a fundamental right as the language of the provision itself does not lend to that stretched construction."[6]

The Court also held that the order was unconstitutional because it violated the due process clause and was a restraint on the right to travel (for grounds not sanctioned by the Constitution).[7]

To determine the legality of any law or administrative issuance, courts sift through a mass of materials that can sometimes seem contradictory. Sometimes much of what is read may no longer be "good law" or no longer the prevailing rule. A doctrine laid down by the Supreme Court may no longer be "good law" because Court changed its mind in a new decision. It may no longer be "good law" because Congress has enacted a new law that overrides the Court's earlier ruling. The resolution of the issues means marshalling these sources of law to determine what the law is on the specific issue at a specific time. Some previous decisions of the Supreme Court, for example, have discussed the parameters of the right to travel under the Constitution. Do they apply in the present controversy? Or will the Court carve out a new rule for a former president who is facing various criminal charges?

Judicial and quasi-judicial bodies engage in this task on a daily basis. They analyze facts giving rise to disputes, and then determine the law that applies to the controversy. There are techniques that are applied to this task. Judges follow rules to determine how to interpret and apply laws to disputes. These techniques include rules in interpreting statutes when they are unclear. They include rules on appreciating decisions—understanding what part is binding as precedents and which are simply *obiter dicta*. They determine whether doctrines adopted by the Supreme Court apply to a dispute or whether these have been abandoned. There is a process of arriving at the answers to legal questions. These are typically learned in a course called "Legal Method."

6 *Id.*
7 *Id.*

LEGAL METHOD

Legal method goes by a many names. In the United States it is sometimes called legal writing, lawyering skills, or legal process.[8] The design and structure may change among law schools but generally the students are taught the basics of legal analysis—how to read and think about the law, how to do legal research, and how to do legal writing.[9]

Legal methods differ in different legal systems. Within these different systems they are taught in different ways and in different places, either as theory or the practice of law.[10] In the University of the Philippines, College of Law, the course was taught in the past as "Legal Method and Research" and "Use of Law Books."[11] Today, the course is described briefly as "an introduction to legal analysis, research techniques, rules of legal construction, and other aspects of the legal process."

Legal Method is not concerned with the principles, doctrines and rules comprising substantive law in a specific field.[12] It concerns itself with the methodology used, principally by courts, to create, elaborate, and apply that substance. It is likened to the tools and the training needed to use these tools.[13] So broadly defined, such courses contain a variety of topics. Professor Richard Cappalli lists the following:

- techniques for extracting the holding of a case;
- the basic distinctions between "fact" and "law";
- understanding what a "material fact" is and its use in finding precedents "distinguishable" or "on point";
- the meaning and application of *stare decisis*;

8 The evolution of this course in the United States is presented in William N. Eskridge Jr. & Philip P. Frickey, *The Making of the Legal Process,* 107 Harv. L. Rev. 2031 (1994).

9 Verna C. Sanchez, *Legal Methods Teaching Programs*, 1 Mich. J. Race & L. 573 (1996).

10 James R. Maxeiner, *Integrating Practical Training and Professional Education*, 14 Ius Gentium 37, 43 (2008).

11 Jose B. L. Reyes, *Content of Legal Education*, Address at the Proceedings of the Conference on Effective Legal Education held at the University of the Philippines College of Law (January 9-10, 1961).

12 Richard B. Cappalli, *The Disappearance of Legal Method*, 70 Temp. L. Rev. 393-445 (1997).

13 *Id.*

- when and how courts should overrule precedents;
- the relative weight of legal authority;
- what is dicta, why it is not an authoritative source of law, and how to use it properly;
- the role of courts and legislatures in modernizing law and eliminating obsolete doctrines;
- when and how courts should advance the law through ground-breaking precedents;
- how doctrine, tradition, and accepted practices channel judicial action, controlling arbitrariness;
- how broad values like even-handedness and certainty are achieved in legal operations and how they interact with equity and individualized justice;
- why gaps in the law exist and how courts do and should fill them;
- the forms of legal reasoning (analogical, syllogistic, deductive, and inductive) and their proper uses in the creation, elaboration, and application of legal sources;
- the interplay of text and purpose in statutory interpretation;
- techniques for ascertaining legislative purpose;
- why and when judicial precedents are applied retroactively compared to the prospective application of legislation;
- the judicial stretching of legal categories or employment of fictions to accommodate new instances under established law;
- when is it preferable for law to evolve slowly and incrementally through case law compared to quickly and comprehensively through legislation;
- the distinction between "adjudicative" and "legislative" (or "policy") facts and their respective roles;
- the influence of custom in the creation of judicial law;
- the role of community understandings and expectations in the development of law;
- the distinctions between principles and policies and rules and standards;

- the relationship between the reasons judges advance in support of the rules they create and the scope of those rules;
- the relative content of *stare decisis* as applied in the precedent-setting court compared to those below it;
- the technique and uses of prospective overruling;
- the extent to which literal interpretation of statutory texts produces sound results;
- when and how judges should exercise their lawmaking function while respecting legislative prerogatives;
- identification and utilization of community standards in judicial lawmaking;
- the function and proper use of judicial dissents;
- areas of choice inherent in the judicial lawmaking process;
- the elements of legal craftsmanship in superior opinion and brief writing;
- what role, if any, a judge's personal views on social policy should play in his interpretation of statutes; and
- the proper role of theory imported from affiliated disciplines in solving legal problems.[14]

Instead of teaching substantive law, it illustrates what law is and how it is formed and shows that life situations and social settings influence the law through the intellectual efforts of attorneys, legislators, and judges who all play a role in determining the law's content.[15]

Legal Method has its share of controversies. Proponents of the course complain that the course is disappearing from American law schools due in part to intellectual politics; it has been crowded out, according to one study, by champions of new philosophies in law schools.[16]

14 *Id.* at 404-405.

15 John T. Gaubatz, *Of Moots, Legal Process, and Learning to Learn the Law*, 37 U. Miami L. Rev. 473 (1983).

16 Cappalli, *supra* note 9, at 434-438.

Furthermore, feminist theory questions the alleged neutrality of legal method.[17] Legal method is also viewed as a mechanism for indoctrination, and students are asked to be skeptical of the approaches to problem solving that the course offers.[18] David Kairys, for his part, illustrates how *stare decisis*—the idea that judges are subservient to prior decisions and thus limiting the influence of politics in decision-making—masks enormous discretion on the part of a judge and that the doctrine does not lead to continuity, predictability, rationality, or objectivity.[19] While some of these criticisms are raised at various points of the book, they are better discussed in courses on legal theory or history.

In any case, more recent studies scarcely detect any crease in the manner in which law has been taught in the United States for over a century despite the influx of new philosophies regarding the law. Both the law school curriculum and judicial opinions are unscathed by new philosophies about the law and legal training continues to use traditional methods of case study and doctrinal analysis to train students to become lawyers.[20]

In the Philippines, the Department of Education and Culture adopted a Model Law Curriculum in 1989. This is currently used in private law schools as well as in regional public schools, with additional courses to the core curriculum in some schools. Legal method is not one of the subjects listed in the model curriculum although some of the topics covered by the course may be covered by other courses such as Legal Writing, Legal Research, and Statutory Construction. An examination of the curricula of most law schools shows, in fact, that these schools only offer a course on statutory construction.

There is a difference between legal method and statutory construction. Statutory construction or interpretation is "the art or process of discovering and expounding

17 Katharine T. Bartlett, *Feminist Legal Methods*, 103 Harv. L. Rev. 829 (1990). Bartlett proposes feminist practical reasoning that builds upon the traditional mode of practical reasoning by bringing to it the critical concerns and values reflected in other feminist methods. Her view is that the classical exposition of practical reasoning takes for granted the legitimacy of the community whose norms it expresses, and for that reason tends to be fundamentally conservative. Feminist practical reasoning differs from other forms of legal reasoning because of its commitment to the notion that there are many overlapping communities to which one might look for reason. *Id.* at 854-5.

18 Carl F. Stychin & Linda Mulcahy, Legal Methods: Text and Materials 17-18 (1999).

19 David Kairys, *Legal Reasoning*, in The Politics of Law: A Progressive Critique 11, 15 (David Kairys ed., 1982).

20 *See* Steven B. Dow, *There's Madness in the Method: A Commentary on Law, Statistics, and the Nature of Legal Education*, 57 Okla. L. Rev. 579, 595-596 (2004).

the meaning and intention of the authors of the law with respect to its application to a given case, where that intention is rendered doubtful, amongst others, by reason of the fact that the given case is not explicitly provided for in the law."[21] It is a task made necessary because of some ambiguity in the drafting of primary sources of law. The interpretation of statutes, as the list of topics in legal method illustrates, however, is only one aspect of legal method.

Legal method is also distinguished from "Legal Bibliography" which, in the U.P. College of Law, is described as a course on the "development of skills in the use of legal materials and the law library."

Questions on the nature of law are discussed in legal theory courses, while the evolution of laws and legal systems are usually studied in legal history.

A NOTE ON THIS BOOK

This book covers only the essentials of the many issues typically covered by a course on legal method. It was not written to provide law students with an alternative to diligent study. This book is a starting point and is designed to encourage students to pursue the topics covered in this book by looking into the rich literature on the many facets of this course.[22]

21 Caltex v. Palomar, G.R. No. L-19650, September 29, 1966.

22 *See also* Almas Khan, *A Compendium of Legal Writing Sources*, 50 Washburn L.J. 395 (2011) and Donald J. Kochan, *Learning Research and Legal Education: A Brief Overview and Selected Bibliographical Survey*, 40 Sw. U. L. Rev. 449 (2011).

CHAPTER 2

Philippine History and the Legal System

A HYBRID SYSTEM

The Philippine legal system today is a mixture of civil law and common law regimes. This was the inevitable outcome of the successive colonization of the country by Spain and the United States. The civil and common law systems were introduced in Asia largely through colonization.[1]

Common law was introduced in British colonies, and it applies today in territories such as India, Malaysia and Singapore. The French and the Dutch spread civil law to territories like Indochina and Indonesia. The most fundamental difference between the two systems is that while civil law jurisdictions have comprehensive written codes, which are designed to cover every area of law, common law systems are based on judge-made law, which is developed on a case-by-case basis.[2] Legislation is the main source of law in both civilian and common law jurisdictions. However, while in civil systems jurisprudence plays a secondary role to codes (codes govern the law primarily in the area of private law) and statutes (which predominate in public law matters), in common law jurisdictions case law was historically—and theoretically the backbone of the system.[3]

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1 The following is a brief treatment of the development of law in the Philippines. For a more comprehensive account, see Pacifico A. Agabin, Mestizo: The Story of the Philippine Legal System (2011).

2 Margaret Fordham, *Comparative Legal Traditions Introducing the Common Law to Civil Lawyers in Asia*, 1 Asian Journal of Comparative Law, Art. 11, at 1 (2006), available at http://www.bepress.com/asjcl/vol1/iss1/art11.

3 *Id.* at 2.

The legal system of the Philippines is a mixture of Islamic law, indigenous systems, Spanish civil law and American common law.[4] The encounters between the indigenous populations, Muslim missionaries, and Spanish and American colonizers led to the fusion of these legal traditions. The Muslim influence was inevitable considering that the Philippines lay between the trade routes from Borneo to China. Many traders were settled in Sulu in the 13th century. By the 1520s an increasing number of preachers were arriving in the Philippines and by this time, Manila became a Muslim principality.[5]

The Philippines was occupied by Spain, England, the United States and Japan. While it presently has a form of government that was inspired, if not imposed, by the United States, it does not prevent the use of Muslim and indigenous laws. The legal history of the Philippines shows a tendency to acknowledge and accept the existence of customary laws that may have controlling force in certain situations.[6] Muslim personal laws have been recognized since 1977[7] and later, autonomous regions were sanctioned under the Constitution in predominantly Muslim areas.[8] An Autonomous Region now exists in these areas in Mindanao.[9] Indigenous laws may also be applied under various situations under the Indigenous People's Rights Act.[10]

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4 M.B. Hooker, *The Spanish-American Legal World: The Philippines*, in A Concise Legal History of South-East Asia 214 (1978).

5 Cesar Adib Majul, The Contemporary Muslim Movement in the Philippines 15-16 (1985). *See also* Anthony Reid, *The Islamization of Southeast Asia*, in Charting the Shape of Early Modern Southeast Asia 14-38 (1999)

6 Michael O. Mastura, *Legal Pluralism in the Philippines*, 28 Law & Soc'y Rev. (1994).

7 Presidential Decree No. 1083 (1977). For a critique of the application of this law, see Anshari P. Ali, *The Legal Impediments to the Application of Islamic Family Law in the Philippines,* 27:1 Journal of Muslim Minority Affairs 93-115 (2007).

8 Const., Art. X, § 16-21.

9 Republic Act No. 6734 (1989), as amended by Republic Act No. 9054 (2001).

10 Republic Act No. 8371 (1997). The following are instances when indigenous laws may be applied:

> Sec. 14. *Support for Autonomous Regions.* - The State shall continue to strengthen and support the autonomous regions created under the Constitution as they may require or need. The State shall likewise encourage other ICCs/IPs not included or outside Muslim Mindanao and the Cordillera to use the form and content of their ways of life as may be compatible with the fundamental rights defined in the Constitution of the Republic of the Philippines and other internationally recognized human rights.
>
> Sec. 15. *Justice System, Conflict Resolution Institutions and Peace Building Processes.* The ICCs/IPs shall have the right to use their own commonly accepted justice systems, conflict resolution institutions, peace building processes or mechanisms and other customary laws and practices within their

Spain arrived in the Philippines in 1521, established a colonial government in 1565, and administered the islands for more than three centuries. Generally, the Spanish version of Roman law replaced many indigenous regulations, but to avert native resistance, the colonial government permitted indigenous peoples to retain their laws as long as they did not conflict with Spanish traditions.[11]

> respective communities and as may be compatible with the national legal system and with internationally recognized human rights.
>
> Sec. 7. *Rights to Ancestral Domains.* - The rights of ownership and possession of ICCs/IPs to their ancestral domains shall be recognized and protected. Such rights shall include…
>
> > h. Right to Resolve Conflict. -Right to resolve land conflicts in accordance with customary laws of the area where the land is located, and only in default thereof shall the complaints be submitted to amicable settlement and to the Courts of Justice whenever necessary.
>
> Sec. 62. *Resolution of Conflicts.* - In cases of conflicting interest, where there are adverse claims within the ancestral domains as delineated in the survey plan, and which cannot be resolved, the NCIP shall hear and decide, after notice to the proper parties, the disputes arising from the delineation of such ancestral domains: Provided, That if the dispute is between and/or among ICCs/IPs regarding the traditional boundaries of their respective ancestral domains, customary process shall be followed. The NCIP shall promulgate the necessary rules and regulations to carry out its adjudicatory functions: Provided, further, That in any decision, order, award or ruling of the NCIP on any ancestral domain dispute or on any matter pertaining to the application, implementation, enforcement and interpretation of this Act may be brought for Petition for Review to the Court of Appeals within fifteen (15) days from receipt of a copy thereof.
>
> Sec. 63. *Applicable Laws.* - Customary laws, traditions and practices of the ICCs/IPs of the land where the conflict arises shall be applied first with respect to property rights, claims and ownerships, hereditary succession and settlement of land disputes. Any doubt or ambiguity in the application of laws shall be resolved in favor of the ICCs/IPs.
>
> Sec. 65. *Primacy of Customary Laws and Practices.*- When disputes involve ICCs/IPs, customary laws and practices shall be used to resolve the dispute.
>
> Sec. 66. *Jurisdiction of the NCIP.* - The NCIP, through its regional offices, shall have jurisdiction over all claims and disputes involving rights of ICCs/IPs; Provided, however, That no such dispute shall be brought to the NCIP unless the parties have exhausted all remedies provided under their customary laws. For this purpose, a certification shall be issued by the Council of Elders/Leaders who participated in the attempt to settle the dispute that the same has not been resolved, which certification shall be a condition precedent to the filing of a petition with the NCIP.

11 Amy Rossabi, *The Colonial Roots of Criminal Procedure in the Philippines,* 11 Colum. J. Asian L. 175 (1997).

Spain introduced a dispute resolution system. At the base of the system was a *gobernadorcillo* or village leader who could mediate and resolve conflicts on the local level without resorting to more formal proceedings. He had jurisdiction over civil cases and petty criminal disputes over land boundaries and ownership. Appeals were taken to the Spanish *alcaldes mayores*. The *alcaldes mayores* also presided over all initial criminal cases and civil suits involving substantial sums. Their decisions could, in turn, be appealed to the *Audiencia Territorial de Manila*, the Supreme Court of Manila.[12]

The United States took control of the Philippines in the aftermath of the Spanish-American War. In defeat, Spain ceded the Philippines and other colonies to the United States under the Treaty of Paris signed in December of 1898. It was at this time that the colonial administration promoted a gradual shift towards common law, while permitting certain aspects of Roman law and indigenous traditions to continue.[13]

The Americans initially permitted the Spanish court system to remain essentially untouched: Filipino justices of the peace presided over the local courts but the highest court of appeals was the United States Supreme Court instead of the Spanish Council of the Indies. Later, the Philippine Commission passed "The Judiciary Act"[14] which abolished the *Audiencia* and the courts of first instance. It established the Supreme Court, Courts of First Instance, Municipal Courts, and Courts of the Justice of the Peace, abrogating all Spanish courts. It is said that the most important single importation of the Americans was the introduction of a

12 The Audiencia was composed of one chief justice, two presidents of chambers (civil and criminal branches), eight associate justices, additional justices for vacancies and an attorney-general and other officials. The Audiencia reviewed all criminal cases, whether appealed or not, and all civil cases that were appealed. Presiding over the Audiencia, the Governor-General had the final say in all cases on appeal, a combination of the executive and the judicial branches of the government. As the Spanish system of justice in the Philippines became more dominant, Spanish officials separated the Audiencia into two branches, one for civil cases and the other for criminal cases. Each branch had separate justices headed by a President. The last body was the Council of the Indies in Spain. However, disputes among Filipinos rarely reached the Council, as the colonial government tried to dissuade the natives from wasting their time and money on what the Spanish generally thought to be minor disagreements. *Id.* at 179-180.

13 *Id.* at 185-186. It is possible that Spanish influence on the legal system was eased out because the Spain never really controlled the Philippines as a colony. Geography and the small size of the Spanish community in the Philippines radically restricted the extension of Spanish power. *See* Henry Kamen, Empire: How Spain Became a World Power, 1492-1763 197-238 (2002).

14 Act No. 136 (1911).

judicial system modeled in all its essential characteristics on the judicial system of the United States. [15]

But while the structure of the American judiciary was in place, the importation of American law in the Philippines did not go smoothly because "the powerful nationalistic movement in the Philippines embraced the retention of Spanish law as an instrument of protest." There was no overhaul but a "gradual decay" of the Spanish civil law.[16]

The Supreme Court of the Philippines initially respected the civil law tradition introduced by Spain. Early decisions of the Supreme Court held that neither the English common law nor American jurisprudence was in force in the Philippines. Later the Court held that American jurisprudence merited "profound respect and veneration" and that its influence was of "transcendental importance." The Court then concluded that what was happening in the Philippines was the creation of a Philippine common law composed of Anglo-American and Spanish principles and local complementary laws.[17] Ultimately, the Supreme Court, in interpreting laws and rendering decisions, "relies upon the theories and precedents of Anglo-American cases, subject to the limited exception of those instances where the remnants of the Spanish written law present well-defined civil law theories and of the few cases where such precedents are inconsistent with local customs and institutions."[18]

The Americans attempted to train the Filipinos to govern themselves, working to create a version of the American political structure in Asia.[19] Filipinos elected delegates to a convention that drafted a constitution approved by the United States President, which went into effect in 1935.[20] It was designed to prepare the country for an independent Republic of the Philippines in ten years time. The 1935 Constitution

15 M.B. Hooker, *The Spanish-American Legal World: The Philippines*, in A Concise Legal History of South-East Asia 214, 227-228 (1978).

16 José Trías Monge, *Legal Methodology in Some Mixed Jurisdictions*, 78 Tul. L. Rev. 333 (2003). By the 1930s, the Philippine Supreme Court was citing American authorities, which continues with less frequency today. Philippine law nevertheless was founded on a solid layer of civil law. The reform of the Philippine Civil Code carried out by the 1947 Commission produced a code of civil extraction, where principles derived from Philippine jurisprudence join others established in the civil codes of Germany, France, Italy, Switzerland, Argentina, and Mexico.

17 *Id.* at 348-349.

18 *In re* Application of Max Shoop for admission to practice law, November 29, 1920.

19 *See* Stanley Karnow, In Our Image: America's Empire in the Philippines (1989).

20 *See* Jose V. Abueva, *Philippine Ideologies and National Development*, in Government and Politics of the Philippines 18, 42-43 (Raul P. de Guzman & Mila A. Reforma eds., 1988).

continued in effect for 37 years until former President Ferdinand Marcos declared martial law on September 21, 1972.

In 1986, Ferdinand Marcos fled to Hawaii after attempting to steal an election that was intended to provide him with a new mandate to helm the Philippines. His opponent in that election, Corazon Aquino, assumed the presidency and established a revolutionary government. She abolished the National Legislature and replaced most of the members of the Supreme Court. The reorganized Supreme Court recognized the Aquino government as *de jure*, later referring to Aquino's government as a "revolutionary government."[21]

Aquino appointed a fifty-person commission to write a new constitution. Aquino's closest advisers selected its members—mostly lawyers close to the presidential camp. The Commission included two of the leaders of Aquino's campaign team, four members close to the President's family, and ten members of the 1971 Constitutional Convention. She reserved four slots for Marcos' New Society Movement and one for the pro-Marcos sect, the *Iglesia ni Cristo*. The final mix of former members of Congress, Supreme Court justices, representatives of the Catholic Church, and the business community guaranteed that the Commission would produce a document that adhered closely to the pre-martial law institutional framework.[22]

The Commission reflected the coalition that brought Aquino to power—civil-society actors working beside the familiar members of traditional political society. Nearly half of its members reported having participated in mass actions in areas such as land reform, ethnic conflicts, and gender issues. Now charged with the drafting of a new constitution, the Commission was eager to prevent "another Marcos." Their reforms included term limits and constraints on presidential power

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21 *See* Dante B. Gatmaytan, *It's All the Rage: Popular Uprisings and Philippine Democracy,* 15 Pac. Rim L. & Pol y J. 1 (2006). Aquino decided to discard the 1973 Constitution in part because of the manner it was adopted. Her decision also had practical consequences for her new administration. If Aquino retained the 1973 Constitution, all officials elected or appointed under its provisions would have been entitled to keep their offices. These would include members of Marcos KBL party that enjoyed a majority in the National Assembly and who could have stood in the way of her legislative program, and judges with tenure who could have blocked the confiscation of the ill-gotten wealth of Marcos and his cronies and who could have protected the Marcos subordinates accused of committing crimes. *See* Carl H. Landé and Richard Hooley, *Aquino Takes Charge*, 64 Foreign Affairs 1087 (1986). *See also* Dante B. Gatmaytan, *The Judicial Review of Constitutional Amendments: The Insurance Theory in Post-Marcos Philippines*, 1:1 Philippine Law and Society Review 74, 77-79 (2011).

22 J. Putzel, *Survival of an Imperfect Democracy in the Philippines*, 6 Democratization 198, 210 (1999).

to make it more difficult to declare martial law.[23] The Constitutional Commission convened on June 2, 1986 with members from various fields possessing divergent ideological beliefs. In a matter of months, it held public hearings, regional consultations, and spent two months on floor debates. The Commission finished a draft by October 15 and the plebiscite for the constitution's ratification was later held in February 1987.[24]

MUSLIM AUTONOMY

The creation of the Autonomous Regions was meant to accommodate the demands of Muslims for meaningful autonomy in the governance of their affairs. A similar remedy is available for the Cordillera Region where similar sentiments for autonomy exist but previous attempts to ratify the creation of an autonomous region in that region failed.[25]

The conflict in Mindanao is deeply rooted in history, beginning with the displacement of millions of indigenous peoples many of whom used to dominate Mindanao, Sulu, and Palawan. The displacement was complemented by a legal regime imposed by Spanish and American colonizers that did not recognize private ownership rights of indigenous communities. This regime continues to be implemented even after the Philippines became independent in 1946.[26]

Law-sanctioned land-grabbing was augmented by resettlement programs that began during the American colonial period and continued until the 1960s where lands were distributed as incentives for military careers, for land reform programs, for rebel returnees, and a host of other reasons. Muslim resentment turned into organized resistance after it was discovered that the military had killed dozens of

23 K. Eaton, *Restoration or Transformation? Trapos versus NGOs in the Democratization of the Philippines,* 62 Journal of Asian Studies 469, 476 (2003).

24 B. M. Villegas, *The Philippines in 1986: Democratic Reconstruction in the Post-Marcos Era,* 27 Asian Survey 194, 202 (1987). The Constitution was overwhelmingly ratified although scholars regularly claim that the campaign for the ratification centered more on President Aquino's popularity than on the merits of the draft charter. *See* Carolina G. Hernandez, T*he Philippines in 1987: Challenges of Redemocratization,* 28 Asian Survey 229-241 (1988).

25 *See* Ordillo v. Commission on Elections, G.R. No. 93054, December 4, 1990.

26 Astrid S. Tuminez, *This Land is Our Land: Moro Ancestral Domain and its Implication for Peace and Development in the Southern Philippines,* 27:2 SAIS Review of International Affairs, 77, 78-9 (2007).

Muslim trainees who were being prepared for an invasion of Sabah, Malaysia.[27] Muslims began to take up arms and the Moro National Liberation Front was formed to establish a Muslim state. Ferdinand Marcos cited this movement as one of the reasons why he imposed martial law in 1972.[28]

In 1976, the Philippine government entered into a peace treaty with the MNLF called the Tripoli Agreement. Marcos never implemented the Agreement. While Marcos carved out two autonomous regions in Mindanao, he never relinquished political control over these regions to the Muslims.[29] Nur Misuari, leader of the MNLF, denounced Marcos' actions and fighting resumed. It has been suggested that the Marcos government entered into the agreement only to stave off political pressure particularly from the Middle East, and to relieve itself of the economic strain brought on by war.[30]

The 1987 Constitution contains broad provisions on Muslim political autonomy. These provisions, however, are subject to a charter to be drafted by Congress and approval through a plebiscite. Initially, only four (Muslim dominated) provinces opted to join the Autonomous Region for Muslim Mindanao (ARMM). In the meantime, a split had occurred among the leaders of the MNLF. In 1984, the split became formal as the Moro Islamic Liberation Front broke away. The MILF took on a more uncompromising position and abandoned the more secular approach adopted by the MNLF.

The government of the Philippines succeeded in crafting the Final Peace Agreement with the MNLF in 1996. The agreement created transitional bodies such as the Southern Philippines Council for Peace and Development (SPCPD) to oversee economic development in Mindanao and the Special Zone for Peace and Development (SZOPAD). Both bodies ran into popular and congressional opposition and lacked support from the central government. Again, autonomy became illusory under the agreement. So the ARMM continued to be the government's main response to Muslim grievances but it had little support from Manila. Congress amended its charter without consulting the ARMM or Muslim leadership. ARMM remained largely dependent on grants from Manila that were irregular in amount and timing that reinforced Muslim dependency.[31]

27 *Id.* at 79-80.

28 *Id.*

29 *Id.* at 81.

30 Jacques Bertrand, *Peace and Conflict in the Southern Philippines: Why the 1996 Peace Agreement is Fragile*, 73:1 Pacific Affairs 37, 39 (2000).

31 Tuminez, *supra* note 26 at 82-83.

Since 2001, Malaysia officially facilitated the Government of the Republic of the Philippines-MILF talks, which began with a three-item agenda: 1) security, 2) rehabilitation, and 3) ancestral domain. Interim agreements were signed on the first two items, but ancestral domain proved thorny ground and remains unresolved. Ancestral domain demands include territory to constitute a Moro homeland, sufficient control over economic resources on that land, and a structure of governance consistent with Moro culture (with minimal interference from Manila).[32]

To prevent the collapse of talks with the MILF, a new framework was adopted: A GRP-MILF peace agreement would govern the enabling law for the Moro homeland, preventing Congress from emasculating Moro gains from negotiations. ARMM enlargement and the creation of a genuine Moro autonomy could theoretically happen without opposition from Congress or local anti-Moro groups.[33] The framework produced a document called the Memorandum of Agreement-Ancestral Domain (MOA-AD). Unfortunately, local governments challenged the constitutionality of the MOA-AD and prevailed in the Supreme Court.[34]

On March 27, 2014, the Government of the Philippines and the MILF signed the Comprehensive Agreement on the Bangsamoro (CAB), which ended decades of hostilities.[35] The CAB was supposed to be the basis for the Bangsamoro Basic Law that will then govern the Bangsamoro.[36] The Bangsamoro Basic Law, however, was not enacted during the 16th Congress.

On July 27, 2018, Congress enacted the "Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"[37] "to establish a political entity,

32 *Id.* at 83.

33 *Id.* at 85.

34 *See* Province of North Cotabato v. Government of the Republic of the Philippines Peace Panel on Ancestral Domain, G.R. No. 183591, October 14, 2008. *See also* Peter Kreuzer, *Protracted Civil War in Mindanao: Can Civil Society Help Cut the Gordian Knot?*, in The Politics of Change in the Philippines 313-335 (Yuko Kasuya & Nathan Gilbert Quimpo eds., 2010) on the human and social costs of the conflict in Mindanao.

35 Kristine Angeli Sabillo, *Bangsamoro Peace Pact Signed*, Philippine Daily Inquirer, March 27, 2014, http://newsinfo.inquirer.net/589568/bangsamoro-peace-pact-signed#ixzz2xCatYZIM.

36 A transition commission will submit a draft of the Bangsamoro Basic Law to Congress. Once enacted by Congress, the law will be subjected to a plebiscite in areas identified as core territory of the Bangsamoro in early 2015. Genalyn D. Kabiling & Edd K. Usman, *No More War,* Manila Bulletin, March 28, 2014, http://www.mb.com.ph/no-more-war/. For contrasting views on recent developments with the MILF, see Renato Cruz de Castro, *The Philippines in 2012*: *"Easygoing, Do-Nothing:" President Delivers,* 53:1 Asian Survey 109 116 (2013) and John T. Sidel, *The Philippines in 2013: Disappointment, Disgrace, Disaster*, 54:1 Asian Survey 64 70 (2014).

37 Rep. Act No. 11054 (2018).

provide for its basic structure of government in recognition of the justness and legitimacy of the cause of the Bangsamoro people and the aspirations of Muslim Filipinos and all indigenous cultural communities in the Bangsamoro Autonomous Region in Muslim Mindanao…"[38] It was enacted "to secure their identity and posterity, allowing for meaningful self-governance within the framework of the Constitution and the national sovereignty as well as territorial integrity of the Republic of the Philippines."[39]

THE PHILIPPINE SUPREME COURT IN HISTORY

The pre-Marcos Supreme Court was one of the world's most independent, important, and prestigious supreme courts. Authorities at various times in the pre-martial law period said that the Court had "the respect and confidence of the Philippine people" and was "one of the cohesive elements in the nation state that is being developed in the Philippines." It was "a special repository of the Filipino's faith in legitimacy and legality" and "the most important legitimizing institution in the Philippines."[40]

By the time the Marcos regime ended, the Supreme Court was regarded by many Filipinos as totally subservient to the President, and partial, narrow, and timid in its jurisprudence, at least where the interests of the Marcos regime were concerned.[41] The Supreme Court resolved all major legal challenges to the Marcos regime in favor of Mr. Marcos.[42] Even the Supreme Court acknowledged the "many judicial problems spawned by extended authoritarian rule which effectively eroded judicial independence and self-respect" that will require time and effort to repair.[43]

38 Rep. Act No. 11054 (2018).

39 Rep. Act No. 11054 (2018).

40 C. Neal Tate & Stacia L. Haynie, *Authoritarianism and the Functions of Courts: A Time Series Analysis of the Philippine Supreme Court,* 1961-1987, 27:4 Law & Soc y Rev. 707-708 (1993). An outline of the history of the Supreme Court from the Spanish colonization to the present may be found in The Philippine Judiciary Foundation, Inc., The History of the Supreme Court 3-158 (2011).

41 C. Neal Tate & Stacia L. Haynie, *The Philippine Supreme Court under Authoritarian and Democratic Rule: The Perception of the Justices,* 22:3 Asian Profile 209-224 (June 1994).

42 Stacia L. Haynie, *Paradise Lost: Politicisation of the Philippine Supreme Court in the Post Marcos Era*, 22:4 Asian Studies Review, 459, 461 (1998).

43 Animas v. Minister of National Defense, G.R. No. L-51747, December 29, 1986.

In February 1986, a revolutionary government under Corazon Aquino assumed power. President Aquino promulgated a Provisional Constitution which abrogated the 1973 Constitution but retained the Bill of Rights and power of judicial review. She appointed a commission to draft a new constitution, which was ratified by the people in a plebiscite held on February 2, 1987.[44]

The Philippine Constitution was patterned after the United States' Constitution. It distributes power among three branches (the executive, legislative, and judicial) that are co-equal and independent. It is important to stress that in response to the experience under the Marcos regime, the Constitution strengthened the judiciary to prevent its subservience to the other branches of government. After the ouster of Marcos, the Supreme Court's first task was to "recover the prestige it had lost and restore public confidence in its independence."[45] The 1987 Constitution facilitated this task.

The Constitution provides safeguards to ensure that judicial independence is protected and maintained:

The Constitution expressly prohibits Congress from depriving the Supreme Court of its jurisdiction, as enumerated in Section 5, Article VII of the Constitution, or from passing a law that undermines the security of tenure of the members of the judiciary. The Constitution also mandates that the judiciary shall enjoy fiscal autonomy, and grants the Supreme Court administrative supervision over all courts and judicial personnel. Jurisprudence has characterized administrative supervision as exclusive, noting that only the Supreme Court can oversee the judges and court personnel's compliance with all laws, rules and regulations. No other branch of government may intrude into this power, without running afoul of the doctrine of separation of powers.

> The Constitution protects as well the salaries of the Justices and judges by prohibiting any decrease in their salary during their continuance in office, and ensures their security of tenure by providing that "Members of the Supreme Court and judges of lower courts shall hold office during good

44 *See* Florentino P. Feliciano, *The Application of Law: Some Recurring Aspects of the Process of Judicial Review and Decision Making,* 37 Am. J. Juris. 17, 18-19 (1992).

45 Andres R. Narvasa, *The Judiciary: A Self-Assessment,* in The Post-EDSA Vice-Presidency, Congress, and the Judiciary (1986-1992) 153, 154 (Jose V. Abueva & Emerlinda R. Roman eds., 1998).

> behavior until they reach the age of seventy years or become incapacitated to discharge the duties of their office." With these guarantees, justices and judges can administer justice undeterred by any fear of reprisals brought on by their judicial action. They can act inspired solely by their knowledge of the law and by the dictates of their conscience, free from the corrupting influence of base or unworthy motives.[46]

It is easier now for the Supreme Court to declare a law unconstitutional because only a majority vote of those who deliberate on the issues of the case is needed for such declaration.[47] The previous constitutions required a vote of two-thirds of all the members of the Court,[48] or 10 votes[49] before the Supreme Court could declare a law unconstitutional. Under the present system, five of the fifteen Justices may declare a law unconstitutional if only eight Justices (a majority) took part in the deliberations of the issues in a case.[50]

The 1987 Constitution also introduced the Judicial and Bar Council.[51] Prospective members of the bench are now selected by the Council and nominated to the President for appointment. In theory, this insulates the appointment process

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46 *Re: COA Opinion on Computation of Appraised Value of Properties Purchased by Supreme Court Justices*, A.M. No. 11-7-10-SC, July 31, 2012.

47 Const., Art. VIII, § 4 (2). *See also* Irene R. Cortes, *The Supreme Court and the Political Departments*, 67 Phil. L. J. 293, 295 (1993).

48 Const. (1935), Art. VIII, § 10.

49 Const. (1973), Art. X, § 2.

50 *See* Pacifico A. Agabin, *Judicial Review of Economic Policy under the 1987 Constitution*, 72 Phil. L. J. 176, 189 (1997).

51 Const., Art. VIII, §§ 8-9 provide:

> Section 8. (1) A Judicial and Bar Council is hereby created under the supervision of the Supreme Court composed of the Chief Justice as ex officio Chairman, the Secretary of Justice, and a representative of the Congress as ex officio Members, a representative of the Integrated Bar, a professor of law, a retired Member of the Supreme Court, and a representative of the private sector.
>
> (2) The regular members of the Council shall be appointed by the President for a term of four years with the consent of the Commission on Appointments. Of the Members first appointed, the representative of the Integrated Bar shall serve for four years, the professor of law for three years, the retired Justice for two years, and the representative of the private sector for one year.
>
> (3) The Clerk of the Supreme Court shall be the Secretary ex officio of the Council and shall keep a record of its proceedings.

from politics because the appointees no longer require confirmation by the Commission of Appointments of Congress.[52]

THE BRANCHES OF GOVERNMENT AND THE JUDICIAL POWER

Under the 1987 Constitution of the Philippines, the judicial power is vested in one Supreme Court and such lower courts as may be established by law.[53]

Under the Constitution, the Philippines is a democratic and republican state; sovereignty resides in the people and all government authority emanates from them. It has a presidential type of government that distributes power among three co-equal branches: the Executive, the Legislative, and the Judicial departments. The distribution of powers is a fundamental maxim of constitutional law and essential to the separation of the three branches of government; separation, which, though incomplete, is one of the chief characteristics of our Constitution. In accordance with this principle, the Supreme Court is independent of executive or legislative control as the Executive and the Congress are of the Judiciary.[54]

The 1987 Constitution provides that "[t]he legislative power shall be vested in the Congress of the Philippines,"[55] "[t]he executive power shall be vested in the

> (4) The regular Members of the Council shall receive such emoluments as may be determined by the Supreme Court. The Supreme Court shall provide in its annual budget the appropriations for the Council.
>
> (5) The Council shall have the principal function of recommending appointees to the Judiciary. It may exercise such other functions and duties as the Supreme Court may assign to it.
>
> Section 9. The Members of the Supreme Court and judges of lower courts shall be appointed by the President from a list of at least three nominees prepared by the Judicial and Bar Council for every vacancy. Such appointments need no confirmation.
>
> For the lower courts, the President shall issue the appointments within ninety days from the submission of the list.

52 The Judicial and Bar Council, however, has been the subject of criticism. See Jan Willem Bakker, *Politics and the Independence of the Judiciary and the Bar*, in The Philippine Justice System 83-111 (1997) for anecdotal accounts on the weaknesses of the JBC. *See also* Dante B. Gatmaytan & Cielo Magno, *Averting Diversity: A Review of Nominations and Appointments to the Philippine Supreme Court (1988-2008)*, 6:1 Asian Journal of Comparative Law 1-18 (2011).

53 Const., Art. VIII, § 1.

54 Radiowealth, Inc. v. Agregado, G.R. No. L-3066, May 22, 1950.

55 Const., Art. VI, § 1.

President of the Philippines,"[56] and "[t]he judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law."[57] These provisions establish a separation of powers by actual division and confer plenary legislative, executive and judicial powers subject only to limitations provided in the Constitution.[58] This means that each of the three great government branches has exclusive cognizance of and is supreme in concerns falling within its own constitutionally allocated sphere.[59]

The principle of separation of powers may be violated when one branch of government interferes impermissibly with the other's performance of its constitutionally assigned function or when one branch assumes a function that is more entrusted to another. In other words, there is a violation of the principle when there is impermissible (a) interference with and/or (b) assumption of another branch's functions.[60]

The executive power is vested in the President of the Philippines. The President is assisted by cabinet secretaries in about nineteen line departments. The presidential power of control over the executive branch of government extends to all executive employees from Cabinet Secretary to the lowliest clerk. The constitutional vesture of this power in the President is self-executing and does not require statutory implementation, nor may its exercise be limited, much less withdrawn, by the legislature. There is only one Chief Executive who directs and controls the entire executive branch, and all other executive officials must implement in good faith his directives and orders. This is necessary to provide order, efficiency and coherence in carrying out the plans, policies and programs of the executive branch.[61]

The legislative power is vested in a bicameral Congress of the Philippines. The Senate is composed of twenty-four Senators elected at large by qualified registered voters of the country, while the House of Representatives is composed of not more

56 Const., Art. VII, § 1.

57 Const., Art. VIII, § 1.

58 Marcos v. Manglapus, G.R. No. 88211, September 15, 1989. The Supreme Court in that case held that while the 1987 Constitution imposes limitations on the exercise of specific powers of the President, it maintains intact what is traditionally considered as within the scope of executive power. The powers of the President, said the Court, cannot be said to be limited only to the specific powers enumerated in the Constitution. In other words, executive power is more than the sum of specific powers so enumerated.

59 Republic of the Philippines v. Bayao, G.R. No. 179492, June 5, 2013.

60 Belgica v. Executive Secretary, G.R. No. 208566, November 19, 2013.

61 National Electrification Administration v. Commission on Audit, G.R. No. 143481, February 15, 2002.

than two hundred fifty members elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area.[62] In addition, the Philippines has adopted a party-list system with representatives elected through a party-list of registered national, regional, and sectoral parties or organizations.

Only Congress, with its legislative power, can make laws and alter or repeal them. The Chief Executive, with all his vast powers, cannot suspend the operation of a statute[63] and he cannot exercise the greater power to amend or to revoke a statute.[64] The President cannot invalidate a Torrens Title because that act essentially constitutes a *judicial function*, or an *exercise of jurisdiction*— which is the power and authority to hear or try and decide or determine a cause.[65]

Under Article VIII, Section 1 of the Constitution, judicial power is vested in the courts. Judicial power includes the duty of the courts of justice to settle actual controversies involving rights that are legally demandable and enforceable and to determine whether or not there has been grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government. It is an antidote to and a safety net against whimsical, despotic and oppressive exercise of governmental power.[66]

Not all decisions of the Supreme Court, however, are decided by all fifteen members. The Court may sit in divisions of three, five, or seven members. Presently, the Court sits in three divisions that are made up of five Justices each. Only in certain cases does the Supreme Court sit *en banc*. The Internal Rules of the Supreme Court states that the Court *en banc* shall act on the following matters and cases:

1. cases in which the constitutionality or validity of any treaty, international or executive agreement, law, executive order, presidential decree, proclamation, order, instruction, ordinance, or regulation is in question;
2. criminal cases in which the appealed decision imposes the death penalty or *reclusion perpetua*;

62 The Constitution provides that Congress shall be composed of not more than two hundred fifty members unless *otherwise fixed by law*. The Constitution did not preclude Congress from increasing its membership by passing a law, other than a general reapportionment law. See Mariano v. Commission on Elections, G.R. No. 118577, March 7, 1995.

63 Philippine National Bank v. Bitulok Sawmill Inc., G.R. L-24177-85, June 29, 1968.

64 Adolfo v. Court of First Instance of Zambales, G.R. No. L-30650, July 31, 1970.

65 Tuason v. Register of Deeds, G.R. No. 70484, January 29, 1988.

66 Macabago v. Commission on Elections, G.R. No. 152163, November 18, 2002.

3. cases raising novel questions of law;
4. cases affecting ambassadors, other public ministers, and consuls;
5. cases involving decisions, resolutions, and orders of the Civil Service Commission, the Commission on Elections, and the Commission on Audit;
6. cases where the penalty recommended or imposed is the dismissal of a judge, the disbarment of a lawyer, the suspension of any of them for a period of more than one year, or a fine exceeding forty thousand pesos;
7. cases covered by the preceding paragraph and involving the reinstatement in the judiciary of a dismissed judge, the reinstatement of a lawyer in the roll of attorneys, or the lifting of a judge's suspension or a lawyer's suspension from the practice of law;
8. cases involving the discipline of a Member of the Court, or a Presiding Justice, or any Associate Justice of the collegial appellate court;
9. cases where a doctrine or principle laid down by the Court *en banc* or by a division may be modified or reversed;
10. cases involving conflicting decisions of two or more divisions;
11. cases where three votes in a division cannot be obtained;
12. division cases where the subject matter has a huge financial impact on businesses or affects the welfare of a community;
13. subject to Section 11 (b) of Rule 2 of A.M. No. 10-4-20-SC,[67] other division cases that, in the opinion of at least three Members of the Division who are voting and present, are appropriate for transfer to the Court *en banc*;
14. cases that the Court *en banc* deems of sufficient importance to merit its attention; and
15. all matters involving policy decisions in the administrative supervision of all courts and their personnel.[68]

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67 This Resolution embodies the Internal Rules of the Supreme Court, which were adopted in 2010. It governs the internal operations of the Court and guides the exercise of its judicial and administrative functions. It covers many topics such as the Court s operating structures, procedures for receiving pleadings and appeals, the manner of raffling cases to the Justices, rules for the Justices inhibition, the Court s sessions, hearings, and agenda among others.

68 *See* David Lu v. Paterno Lu Ym, Sr., G.R. No. 153690, February 15, 2011. The enumeration is a combination of Supreme Court Circular No. 2-89 (February 7, 1989), as amended by *En banc*

Although the Constitution gives the Supreme Court the discretion to sit either *en banc* or in divisions of three, five, or seven Members, the divisions are not considered separate and distinct courts. The Constitution does not establish a hierarchy of courts within the Supreme Court. The Court remains a unit even when it works in divisions. The actions taken and the decisions rendered by any of the divisions are those of the Court itself, because the divisions are not distinct courts but divisions of one and the same Court. The only thing that the Constitution allows the *banc* to do in this regard is to reverse a doctrine or principle of law laid down by the Court *en banc* or in division.[69]

The Supreme Court sitting *en banc* is not an appellate court for decisions of divisions, and it exercises no appellate jurisdiction over the latter. No division of the Court is inferior to the Court *en banc*, and sits veritably as the Court *en banc* itself. The only constraint is that any doctrine or principle of law laid down by the Court, either rendered *en banc* or in division, may be overturned or reversed only by the Court sitting *en banc*.[70]

It is possible for the Court's Divisions to render conflicting rulings and, in such cases, the Supreme Court *en banc* breaks the impasse and resolves the issues.[71]

For convenience, Article VIII of the Constitution on the Judicial Power is reproduced here.

Resolution of November 18, 1993, and the amplifications introduced by Resolution of January 18, 2000 in A.M. No. 99-12-08-SC with respect to administrative cases and matters.

69 Land Bank of the Philippines v. Suntay, G.R. No. 188376, December 14, 2011.

70 Visayas Geothermal Power Company v. Commissioner of Internal Revenue, G.R. No. 197525, June 4, 2014.

71 Cabuay, Jr. v. Malvar, G.R. No. 123780, September 24, 2002. The Internal Rules of the Supreme Court provide that the Court *En banc* shall act on cases involving conflicting decisions of two or more divisions. *See* Keppel Cebu Shipyard, Inc. v. Pioneer Insurance and Surety Corp., G.R. Nos. 180880-81, 180896-97, September 18, 2012. Similar problems arise with decisions of the various Divisions of the Court of Appeals. The Supreme Court has admonished the Court of Appeals to take the appropriate steps, including the adoption or amendment of the rules, to see to it that cases or petitions arising from the same questioned decision, order, or resolution are consolidated to steer clear of contrary or opposing decisions of the different CA Divisions and ensure that incidents of similar nature will not be replicated. See Celestial Nickel Mining Exploration Corp. v. Macroasia Corp., G.R. No. 169080, 172936, 176226 & 176319, December 19, 2007. The Supreme Court reiterated the need for courts to be constantly vigilant in extending their judicial gaze to cases related to the matters submitted for their resolution as to ensure against judicial confusion and [any] seeming conflict in the judiciary s decisions. (Pryce Corp. v. China Banking Corp., G.R. No. 172302, February 18, 2014).

ARTICLE VIII

JUDICIAL DEPARTMENT

Section 1. The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law.

Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.

Section 2. The Congress shall have the power to define, prescribe, and apportion the jurisdiction of the various courts but may not deprive the Supreme Court of its jurisdiction over cases enumerated in Section 5 hereof.

No law shall be passed reorganizing the Judiciary when it undermines the security of tenure of its Members.

Section 3. The Judiciary shall enjoy fiscal autonomy. Appropriations for the Judiciary may not be reduced by the legislature below the amount appropriated for the previous year and, after approval, shall be automatically and regularly released.

Section 4. (1) The Supreme Court shall be composed of a Chief Justice and fourteen Associate Justices. It may sit *en banc* or in its discretion, in division of three, five, or seven Members. Any vacancy shall be filled within ninety days from the occurrence thereof.

(2) All cases involving the constitutionality of a treaty, international or executive agreement, or law, which shall be heard by the Supreme Court *en banc*, and all other cases which under the Rules of Court are required to be heard *en banc*, including those involving the constitutionality, application,

or operation of presidential decrees, proclamations, orders, instructions, ordinances, and other regulations, shall be decided with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

(3) Cases or matters heard by a division shall be decided or resolved with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon, and in no case without the concurrence of at least three of such Members. When the required number is not obtained, the case shall be decided *en banc*: Provided, that no doctrine or principle of law laid down by the court in a decision rendered *en banc* or in division may be modified or reversed except by the court sitting *en banc*.

Section 5. The Supreme Court shall have the following powers:

(1) Exercise original jurisdiction over cases affecting ambassadors, other public ministers and consuls, and over petitions for *certiorari*, prohibition, *mandamus*, quo warranto, and *habeas corpus*.

(2) Review, revise, reverse, modify, or affirm on appeal or *certiorari*, as the law or the Rules of Court may provide, final judgments and orders of lower courts in:

(a) All cases in which the constitutionality or validity of any treaty, international or executive agreement, law, presidential decree, proclamation, order, instruction, ordinance, or regulation is in question.

(b) All cases involving the legality of any tax, impost, assessment, or toll, or any penalty imposed in relation thereto.

(c) All cases in which the jurisdiction of any lower court is in issue.

(d) All criminal cases in which the penalty imposed is *reclusion perpetua* or higher.

(e) All cases in which only an error or question of law is involved.

(3) Assign temporarily judges of lower courts to other stations as public interest may require. Such temporary assignment shall not exceed six months without the consent of the judge concerned.

(4) Order a change of venue or place of trial to avoid a miscarriage of justice.

(5) Promulgate rules concerning the protection and enforcement of constitutional rights, pleading, practice, and procedure in all courts, the admission to the practice of law, the integrated bar, and legal assistance to the under-privileged. Such rules shall provide a simplified and inexpensive procedure for the speedy disposition of cases, shall be uniform for all courts of the same grade, and shall not diminish, increase, or modify substantive rights. Rules of procedure of special courts and quasi-judicial bodies shall remain effective unless disapproved by the Supreme Court.

(6) Appoint all officials and employees of the Judiciary in accordance with the Civil Service Law.

Section 6. The Supreme Court shall have administrative supervision over all courts and the personnel thereof.

Section 7. (1) No person shall be appointed Member of the Supreme Court or any lower collegiate court unless he is a natural-born citizen of the Philippines. A Member of the Supreme Court must be at least forty years of age, and must have been for fifteen years or more, a judge of a lower court or engaged in the practice of law in the Philippines.

(2) The Congress shall prescribe the qualifications of judges of lower courts, but no person may be appointed judge thereof unless he is a citizen of the Philippines and a member of the Philippine Bar.

(3) A Member of the Judiciary must be a person of proven competence, integrity, probity, and independence.

Section 8. (1) A Judicial and Bar Council is hereby created under the supervision of the Supreme Court composed of the Chief Justice as ex officio

Chairman, the Secretary of Justice, and a representative of the Congress as ex officio Members, a representative of the Integrated Bar, a professor of law, a retired Member of the Supreme Court, and a representative of the private sector.

(2) The regular members of the Council shall be appointed by the President for a term of four years with the consent of the Commission on Appointments. Of the Members first appointed, the representative of the Integrated Bar shall serve for four years, the professor of law for three years, the retired Justice for two years, and the representative of the private sector for one year.

(3) The Clerk of the Supreme Court shall be the Secretary ex officio of the Council and shall keep a record of its proceedings.

(4) The regular Members of the Council shall receive such emoluments as may be determined by the Supreme Court. The Supreme Court shall provide in its annual budget the appropriations for the Council.

(5) The Council shall have the principal function of recommending appointees to the Judiciary. It may exercise such other functions and duties as the Supreme Court may assign to it.

Section 9. The Members of the Supreme Court and judges of the lower courts shall be appointed by the President from a list of at least three nominees prepared by the Judicial and Bar Council for every vacancy. Such appointments need no confirmation.

For the lower courts, the President shall issue the appointments within ninety days from the submission of the list.

Section 10. The salary of the Chief Justice and of the Associate Justices of the Supreme Court, and of judges of lower courts, shall be fixed by law. During their continuance in office, their salary shall not be decreased.

Section 11. The Members of the Supreme Court and judges of lower courts shall hold office during good behavior until they reach the age of seventy

years or become incapacitated to discharge the duties of their office. The Supreme Court *en banc* shall have the power to discipline judges of lower courts, or order their dismissal by a vote of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

Section 12. The Members of the Supreme Court and of other courts established by law shall not be designated to any agency performing quasi-judicial or administrative functions.

Section 13. The conclusions of the Supreme Court in any case submitted to it for decision *en banc* or in division shall be reached in consultation before the case is assigned to a Member for the writing of the opinion of the Court. A certification to this effect signed by the Chief Justice shall be issued and a copy thereof attached to the record of the case and served upon the parties. Any Members who took no part, or dissented, or abstained from a decision or resolution, must state the reason therefor. The same requirements shall be observed by all lower collegiate courts.

Section 14. No decision shall be rendered by any court without expressing therein clearly and distinctly the facts and the law on which it is based.

No petition for review or motion for reconsideration of a decision of the court shall be refused due course or denied without stating the legal basis therefor.

Section 15. (1) All cases or matters filed after the effectivity of this Constitution must be decided or resolved within twenty-four months from date of submission for the Supreme Court, and, unless reduced by the Supreme Court, twelve months for all lower collegiate courts, and three months for all other lower courts.

(2) A case or matter shall be deemed submitted for decision or resolution upon the filing of the last pleading, brief, or memorandum required by the Rules of Court or by the court itself.

(3) Upon the expiration of the corresponding period, a certification to this effect signed by the Chief Justice or the presiding judge shall forthwith be issued and a copy thereof attached to the record of the case or matter, and served upon the parties. The certification shall state why a decision or resolution has not been rendered or issued within said period.

(4) Despite the expiration of the applicable mandatory period, the court, without prejudice to such responsibility as may have been incurred in consequence thereof, shall decide or resolve the case or matter submitted thereto for determination, without further delay.

Section 16. The Supreme Court shall, within thirty days from the opening of each regular session of the Congress, submit to the President and the Congress an annual report on the operations and activities of the Judiciary.

THE JUDICIAL HIERARCHY

The Philippine judiciary consists of four levels.[72]

In the hierarchy of courts, the first level is comprised of the Metropolitan Trial Courts (MeTCs), which are created in each metropolitan area established by law; the Municipal Trial Courts in Cities (MTCCs), in every city which does not form part of the metropolitan area; the Municipal Trial Courts (MTCs) established in each of the other cities or municipalities; and the Municipal Circuit Trial Courts (MCTCs), created in each circuit comprising such cities and/or municipalities as grouped by law.

Shari'a Circuit Courts (SCC) are also among the first level courts. Shari'a Courts are established in Islamic regions and provinces to interpret and apply the Code of Muslim Personal Laws (Presidential Decree No. 1083). Their decisions may be appealed to the Shari'a District Court.[73]

72 *See* Supreme Court Public Information Office, Supreme Court Annual Report 2006 54-55 (2006), available at http://sc.judiciary.gov.ph/pio/annual%20reports/SC_Annual_06.pdf.

73 Both the effectiveness and legitimacy of the Shari'a Courts remain in question. Despite the presence of about 5 million Muslims in the Philippines, the Shari'a Court system faces shortfalls in both staffing and funding. Of the 2,290 judicial positions authorized in the Philippines, only 56 (or 2.5%) are slotted for positions in Shari'a Courts. A study in 2010 showed that all five of the district court judgeships are currently vacant, and eighteen of the

The second level consists of the Regional Trial Courts established in each of the thirteen regions in the Philippines. Each Regional Trial Court is composed of several branches. Regional Trial Courts act as trial courts and may receive evidence from the parties of the case. They also exercise appellate jurisdiction over decisions of the MeTCs, MTCCs, MTCs, and MCTCs in their respective territorial jurisdictions. Also at the same level are the Shari'a District Courts (SDC). Their decisions may be appealed to the Shari'a Appellate Court.

At the third level is the Court of Appeals, which exercises its powers, functions, and duties through twenty-three divisions of three members each. The CA's 18th, 19th, and 20th Divisions comprise the Court of Appeals Visayas, located in Cebu City; while the 21st, 22nd, and 23rd Divisions make up Court of Appeals Mindanao, situated in Cagayan de Oro City. The Court of Appeals is assigned to review cases elevated to it from the RTCs as well as quasi-judicial agencies such as the Civil Service Commission, Securities and Exchange Commission, National Labor Relations Commission, and the Land Registration Authority.

The Court of Appeals also reviews death penalty cases as well as decisions of the Office of the Ombudsman in administrative disciplinary cases. The Court of Appeals is a collegiate court and may sit *en banc* only for the purpose of exercising administrative, ceremonial, or other non-adjudicatory functions. Being essentially an appellate court, it generally resolves cases only on the basis of records, but in certain instances, it may also try cases, conduct hearings, and receive evidence.

The Philippine Judicial System also includes two special courts: the Sandiganbayan and the Court of Tax Appeals.

The Sandiganbayan is an anti-graft court that tries public officers—including their co-accused private persons—charged with criminal cases involving graft and corrupt practices, as well as corresponding civil cases for the recovery of civil liability. The Sandiganbayan is composed of a Presiding Justice and fourteen Associate Justices who sit in five divisions of three Justices each. Like the Court of Appeals, its decisions may be directly appealed to the Supreme Court.

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circuit court judgeships are vacant. The caseflow in the Shari'a Courts is a trickle compared to that of the civil courts. In 2008, 333,597 new cases were filed in the lower Philippine courts (including Shari'a District and Circuit Courts). Of these, only 263 originated in the Shari'a Courts. At the end of 2008, the docket of current and prior year active cases in the Shari'a system was 404 cases, a fragment of the 642,649 pending cases for all lower courts combined. See Justin Holbrook, *Legal Hybridity in the Philippines: Lessons in Legal Pluralism and the Sulu Archipelago*, 18 Tul. J. Int l & Comp. L. 403, 427 (2010).

The Court of Tax Appeals is composed of a Presiding Justice and five Associate Justices, and may sit *en banc* or in two divisions of three Justices each. Republic Act No. 9282, which took effect on March 30, 2004, has elevated the status of the CTA to that of the Court of Appeals. It has exclusive jurisdiction to review on appeal decisions in cases involving disputed assessments, refunds of internal revenue taxes, fees, or other charges, penalties in relation thereto, or other matters arising under the National Internal Revenue Code or Tariff and Customs Code. It also exercises original jurisdiction over all criminal offenses arising from violations of the Tax or Tariff Codes and other laws administered by the Bureau of Internal Revenue or the Bureau of Customs.

The Shari'a Appellate Court created under the Autonomous Region in Muslim Mindanao Organic Law (Republic Act No. 6734) has the power to exercise original jurisdiction over petitions for *certiorari*, prohibition, *mandamus*, *habeas corpus*, and other auxiliary writs and processes in aid of its appellate jurisdiction, and to exercise exclusive appellate jurisdiction over all cases tried in the Shari'a District Courts as established by law (Section 5). Its decisions are final and executory. But the Shari'a Appellate Court has yet to be organized[74] with the appointment of a Presiding Justice and two Associate Justices. Thus, until such time that the Shari'a Appellate Court shall have been organized, appeals or petitions from final orders or decisions of the Shari'a District Courts filed with the Court of Appeals shall be referred to a Special Division to be organized in any of the Court of Appeals stations preferably composed of Muslim Court of Appeals Justices. For cases where only errors or questions of law are raised or involved, the appeal shall be to the Supreme Court by a petition for review on *certiorari* under Rule 45 of the Rules of Court pursuant to Article VIII, Section 5 of the Constitution and Section 2 of Rule 41 of the Rules of Court.[75]

At the fourth tier is the Supreme Court. It is composed of a Chief Justice and fourteen Associate Justices who sit *en banc* or in divisions of three, five, or seven. It has the power to settle actual controversies involving rights that are legally demandable and enforceable, and to determine whether or not there has been grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the government.

74 Villagracia v. Fifth (5th) Shari'a District Court, G.R. No. 188832, April 23, 2014.

75 Tomawis v. Balindong, G.R. No. 182434, March 5, 2010.

The Supreme Court is considered "the court of last resort"[76] since no more appeal can be made from a judgment or decision on the merits rendered by this Court. A direct invocation of the Supreme Court's jurisdiction is allowed only when there are special and important reasons that are clearly and specifically set out in the petition. Practicality, an increasingly overcrowded docket, and the need to prioritize matters within the Supreme Court's jurisdiction, justify the "principle of hierarchy of courts." The principle requires that recourse must first be made to the lower-rank court exercising concurrent jurisdiction with a higher court.[77]

Following the hierarchy of courts is necessary in order to prevent inordinate demands upon the Supreme Court's time and attention, which are better devoted to those matters within its exclusive jurisdiction. It prevents over-crowding of the Court's docket.[78] In one case, the Court gave two reasons for following the hierarchy: (a) it would be an imposition upon the precious time of the Court; and (b) it would cause delay, whether intended or not, in the adjudication of cases. This is because the case may be remanded or referred to a lower court as the proper forum under the rules of procedure, or because these courts are better equipped to resolve the issues because they require the determination of facts.[79]

In another case, the Court added that the doctrine prevents further over-crowding of the Court's docket.[80] Strict adherence to the doctrine of hierarchy of courts is an effective mechanism to filter the cases which reach the Court. As of December 31, 2016, 6,526 new cases were filed with the Court. Together with the reinstated, revived, or reopened cases, the Court has a total of 14,491 cases in its docket. Of the new cases, 300 are raffled to the Court *En banc* and 6,226 to the three Divisions of the Court. The Court *En banc* disposed of 105 cases by decision

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76 Kabigting v. Acting Director of Prisons, G.R. No. L-15548, October 30, 1962 and Collantes v. Court of Appeals, G.R. No. 169604, March 6, 2007.

77 Bagabuyo v. Commission on Elections, G.R. No. 176970, December 8, 2008.

78 Catly v. Navarro, G.R. No. 167239, May 5, 2010. The Supreme Court cannot and should not be burdened with the task of dealing with causes in the first instance. *See* Garcia v. Miro, G.R. No. 167409, March 20, 2009.

79 Chamber of Real Estate and Builders Association, Inc. v. The Secretary of Agrarian Reform, G.R. No. 183409, June 18, 2010. The Supreme Court enforces the observance of the hierarchy of courts in order to free itself from unnecessary, frivolous, and impertinent cases, and thus afford time for it to deal with the more fundamental and more essential tasks that the Constitution has assigned to it. *See* Saint Mary Crusade to Alleviate Poverty of Brethren Foundation, Inc. v. Riel, G.R. No. 176508, January 12, 2015.

80 Gios-Samar, Inc. v. Department of Transportation and Communications, G.R. No. 217158, March 12, 2019.

or signed resolution, while the Divisions of the Court disposed of a total of 923 by decision or signed resolution.[81]

As a general rule, litigants should not immediately invoke the Supreme Court's jurisdiction after a setback in litigation. Rule 65 of the Rules of Civil Procedure provides that a petition for *certiorari* may be filed when "there is no appeal, nor any plain, speedy, and adequate remedy in the ordinary course of law." The "plain" and "adequate remedy" is a motion for reconsideration. Normally, a party should file a motion for reconsideration in the court where he or she lost before the filing of a special civil action for *certiorari*. Such rule gives the lower court the opportunity to correct itself.[82] This rule, however, may be dispensed with if the petition raises an issue of "significant national interest"[83] or "paramount importance and constitutional significance"[84] or there are "exceptional and compelling circumstances that justify the Supreme Court's exercise of jurisdiction. [85] In such cases, the Court recognizes an exception because "it was dictated by public welfare and the advancement of public policy, or demanded by the broader interest of justice, or the orders complained of were found to be patent nullities, or the appeal was considered as clearly an inappropriate remedy."[86]

The peculiar, unique, and unusual character of the facts and circumstances of a case may allow the flexible application of these established legal principles to achieve fair and speedy dispensation of justice.[87] A strict application of the rule is

81 *Id.*

82 National Association of Electricity Consumers for Reforms, Inc. v. Ilagan, G.R. No. 190795, July 6, 2011.

83 Ocampo v. Abando, G.R. No. 176830, February 11, 2014. Although the Supreme Court has concurrent jurisdiction with the Regional Trial Court and the Court of Appeals to issue writs of *certiorari*, the parties do not have the absolute and unrestrained freedom of choice of the court to which an application will be directed. Direct resort to the Supreme Court is allowed only if there are special, important and compelling reasons clearly and specifically spelled out in the petition. *See* Macapagal v. People of the Philippines, G.R. No. 193217, February 26, 2014.

84 Lim v. Executive Secretary, G.R. No. 151445, April 11, 2002.

85 Elma v. Presidential Commission on Good Government, G.R. No. 155996, June 27, 2012.

86 National Association of Electricity Consumers for Reforms, Inc. v. Ilagan, G.R. No. 190795, July 6, 2011. Errors of judgment, as distinguished from errors of jurisdiction, are not within the province of a special civil action for *certiorari*, which is confined to issues of jurisdiction or grave abuse of discretion. Grave abuse of discretion means such capricious and whimsical exercise of judgment as is equivalent to lack of jurisdiction, and it must be shown that the discretion was exercised arbitrarily or despotically. See Lirio v. Genovia, G.R. No. 169757, November 23, 2011.

87 Spouses Chua v. Ang, G.R. No. 156164, September 4, 2009.

not necessary when the cases brought before appellate courts do not involve factual but legal questions.[88]

The Supreme Court identified the following exceptions to following the hierarchy:

First, a direct resort to the Supreme Court is allowed when there are genuine issues of constitutionality that must be addressed at the most immediate time.

Second, when the issues involved are of transcendental importance.[89]

Third, cases of first impression warrant a direct resort to this court.

Fourth, when the constitutional issues raised are better decided by this court.

Fifth, the time element presented in the case cannot be ignored.

Sixth, the filed petition reviews the act of a constitutional organ such as the Commission on Elections.

Seventh, there was no other plain, speedy, and adequate remedy in the ordinary course of law that could free them from the injurious effects of respondents' acts in violation of their right to freedom of expression.

Eighth, the petition includes questions that are "dictated by public welfare and the advancement of public policy, or demanded by the broader interest of justice, or the orders complained of were found to be patent nullities, or the appeal was considered as clearly an inappropriate remedy."[90]

It is not necessary that all of these exceptions must occur at the same time to justify a direct resort to the Supreme Court.[91]

The exceptions reveal a common denominator—the issues for resolution of the Court are purely legal. The presence of one or more of the so-called "special and important reasons" is not the decisive factor considered by the Court in deciding whether to permit the invocation, at the first instance, of its original jurisdiction over the issuance of extraordinary writs. Rather, it is the *nature* of the question raised by

88 Sarsaba v. Vda. De Te, G.R. No. 175910, July 30, 2009.

89 The Supreme Court held that a case requires immediate resolution if city ordinances adversely affect the property interests of all paying constituents and served as a test case for the guidance of other local government units. Such a case is of transcendental importance and warrants a relaxation of the doctrine of hierarchy of courts. See Ferrer, Jr. v. Bautista, G.R. No. 210551, June 30, 2015.

90 The Diocese of Bacolod v. COMELEC, G.R. No. 205728, January 21, 2015.

91 *Id.*

the parties in those "exceptions" that enables the Court to allow the direct action before it.[92]

The doctrine of the hierarchy of courts is often invoked when litigants resort directly to the Supreme Court. This is why the exceptions to the rule are more tailored to the specific functions and discretion of the Supreme Court. It is doubtful whether the Court of Appeals could apply the same rationale when the doctrine of the hierarchy of courts is invoked. In any case, the Court of Appeals has full discretion on whether to give due course to any petition for *certiorari* directly filed before it.[93]

The judicial hierarchy also establishes rules for courts that are on the same level. The doctrine of judicial stability states that the judgment of a court of competent jurisdiction may not be interfered with by any court of concurrent jurisdiction. This is because a court that acquires jurisdiction over a case and renders judgment therein has jurisdiction over the same, to the exclusion of all other coordinate courts. This includes jurisdiction for its execution and over all its incidents, and the power to control, in furtherance of justice, the conduct of ministerial officers acting in connection with this judgment.[94] The doctrine is enforced to prevent unseemly, expensive, and dangerous conflicts of jurisdiction and processes[95] and it engenders the orderly administration of justice.[96]

THE SEPARATION OF POWERS

The principle of separation of powers ordains that each of the three branches of government has exclusive cognizance of and is supreme in matters falling within its own constitutionally allocated sphere. The principle means that legislation belongs to Congress, execution to the Executive, and settlement of legal controversies to the Judiciary. Each branch is prevented from invading the domain of the others.[97] The powers of government are divided to avoid concentration of these powers in any one

92 Gios-Samar, Inc. v. Department of Transportation and Communications, G.R. No. 217158, March 12, 2019.

93 Metropolitan Waterworks Sewerage System, G.R. No. 194388, November 7, 2018.

94 First Gas Power Corporation v. Republic of the Philippines, G.R. No. 169461, September 2, 2013.

95 Pacific Ace Finance Ltd. v. Yanagisawa, G.R. No. 175393, April 11, 2012.

96 See Cabili v. Balindong, A.M. No. RTJ-10-2225, September 6, 2011.

97 The Senate Blue Ribbon Committee v. Pimentel Jr., G.R. No. 136760, July 28, 2003.

branch. This would prevent any single branch from "lording its power over the other branches or the citizenry."[98]

Imbedded in this doctrine is the principle of non-delegation of powers which states that "what has been delegated, cannot be delegated." This doctrine is based on the principle that such delegated power constitutes not only a right but a duty to be performed by the delegate through the instrumentality of his own judgment and not through the intervening mind of another.[99]

The Supreme Court represents one of the three divisions of power in our government. It can only exercise judicial power. The Supreme Court should not and cannot be required to exercise any power or to perform any trust or to assume any duty not pertaining to or connected with the administering of judicial functions.[100]

The judiciary is tasked with administering justice, settling justiciable controversies or disputes involving enforceable and demandable rights, and affording redress of wrongs for the violation of said rights.[101] It must be allowed to decide cases independently, free of outside influence or pressure. An independent judiciary is essential to the maintenance of democracy, as well as of peace and order in society. Maintaining the dignity of courts and enforcing the duty of citizens to respect them are necessary adjuncts to the administration of justice.[102]

The judiciary is not a repository of remedies for all political or social ills. The Constitution has allocated the powers of government to three distinct and separate compartments: "The judicial interpretation has tended to the preservation of the independence of the three, and a zealous regard of the prerogatives of each, knowing full well that one is not the guardian of the others and that, for official wrong-doing, each may be brought to account, either by impeachment, trial or by the ballot box."[103]

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98 Re: COA Opinion on the Computation of the Appraised Value of the Properties Purchased by the Retired Chief/Associate Justices of the Supreme Court, A.M. No. 11-7-10-SC, July 31, 2012.

99 This principle admits of numerous exceptions, one of which is the delegation of legislative power to various specialized administrative agencies. See Bureau of Customs Employees Association v. Teves, G.R. No. 181704, December 6, 2011.

100 Manila Electric Company v. Pasay Transportation Company, Inc., G.R. No. L-37878, November 25, 1932.

101 Lopez v. Roxas, G.R. No. L-25716, July 28, 1966.

102 *In re:* Published Alleged Threats against Members of the Court in the Plunder Law Case Hurled by Atty. Leonard De Vera, A.M. No. 01-12-03-SC, July 29, 2002.

103 Vera v. Avelino, G.R. No. L-543, August 31, 1946.

The judiciary does not settle policy issues, which is the province of the legislative and executive branches of government.[104] The Court can only declare what the law is, and not what the law should be. Under our system of government, policy issues are within the domain of the political branches of the government, and of the people themselves as the repository of all State power.[105]

Courts do not create law. The courts interpret the law but do not enact them; otherwise they would violate the principle of separation of powers. The sole function of our courts is to apply or interpret the laws, particularly where gaps exist or where ambiguities becloud issues, but it will not arrogate unto itself the task of legislating.[106]

The judiciary interprets the laws and, if consistent with the Constitution, applies them. Members of the judiciary, as citizens or as judges, may regard a certain law as harsh, unwise or morally wrong, and may recommend to the authority or department concerned its amendment, modification, or repeal; still, as long as said law is in force, they must apply it and give it effect as decreed by the law-making body.[107] The fundamental duty of courts is to apply the law as they find it, not as they would like it to be. Courts are thus precluded from construction or interpretation of statutes, unless application is impossible or inadequate without it.[108] "The delicate task of ascertaining the significance that attaches to a constitutional statutory provision, an executive order, a procedural norm or a municipal ordinance is committed to the judiciary."[109]

CHECKS AND BALANCES

The three branches of government are separate and independent—they work within their own spheres—but the Constitution has also created a system of checks and balances that allows one branch to restrain abuse by another. The principle of separation of powers: (1) allows the "blending" of some of the executive, legislative, or judicial powers in one body; (2) does not prevent one branch of government

104 Electromat Manufacturing and Recording Corporation v. Lagunzad, G.R. No. 172699, July 27, 2011.

105 Valmonte v. Belmonte, G.R. No. 74930, February 13, 1989.

106 Pagpalain Haulers, Inc. v. Trajano, G.R. No. 133215, July 15, 1999.

107 *See* People v. Veneracion, G.R. Nos. 119987-88, October 12, 1995.

108 Resins, Inc. v. Auditor General of the Philippines, G.R. No. L-17888, October 29, 1968.

109 Barrera v. Barrera, G.R. No. L-31589, July 31, 1970.

from inquiring into the affairs of the other branches to maintain the balance of power; but (3) ensures that there is no encroachment on matters within the exclusive jurisdiction of the other branches.[110]

The Philippines' adherence to the principle of checks and balances was discussed in *Angara v. Electoral Commission*.[111] From that decision we find the following:

> The Constitution has provided for an elaborate system of checks and balances to secure coordination in the workings of the various departments of the government. For example, the Chief Executive under our Constitution is so far made a check on the legislative power that this assent is required in the enactment of laws. This, however, is subject to the further check that a bill may become a law notwithstanding the refusal of the President to approve it, by a vote of two-thirds or three-fourths, as the case may be, of the National Assembly. The President has also the right to convene the Assembly in special session whenever he chooses. On the other hand, the National Assembly operates as a check on the Executive in the sense that its consent through its Commission on Appointments is necessary in the appointment of certain officers; and the concurrence of a majority of all its members is essential to the conclusion of treaties. Furthermore, in its power to determine what courts other than the Supreme Court shall be established, to define their jurisdiction and to appropriate funds for their support, the National Assembly controls the judicial department to a certain extent. The Assembly also exercises the judicial power of trying impeachments. And the judiciary in turn, with the Supreme Court as the final arbiter, effectively checks the other departments in the exercise of its power to determine the law, and hence to declare executive and legislative acts void if violative of the Constitution.

In *Alejandrino v. Quezon*,[112] the Court explained that:

> It is peculiarly the duty of the judiciary to say what the law is, to enforce the Constitution, and to decide whether the proper constitutional sphere of a

110 Macalintal v. Commission on Elections, G.R. No. 157013, July 10, 2003.

111 G.R. No. 45081, July 15, 1936.

112 G.R. No. 22041, September 11, 1924.

> department has been transcended. The courts must determine the validity of legislative enactments as well as the legality of all private and official acts. To this extent, do the courts restrain the other departments.

In the exercise of judicial review, the Executive has no authority to set aside and overrule a decision of the Supreme Court.[113]

Congress checks the other branches of government primarily through its law-making powers. Congress can create administrative agencies, define their powers and duties, and fix the terms of officers and their compensation. It can also create courts, define their jurisdiction, and reorganize the Judiciary so long as it does not undermine the security of tenure of its members. The power of Congress does not end with the finished task of legislation. Connected with its principal power to legislate is the auxiliary power to ensure that the laws it enacts are faithfully executed.[114]

The Senate's treaty-concurring power is one form of check "indispensable toward our nation's pursuit of political maturity and growth."[115] The confirmation of some of the President's appointees by the Commission on Appointments "contemplates a system of checks and balances between the executive and legislative branches of government."[116]

Judicial review is intended to keep the administrative agency within its jurisdiction and to protect substantial rights of parties affected by its decisions. "It is part of the system of checks and balances which restricts the separation of powers and forestalls arbitrary and unjust adjudications."[117] The role of the judiciary in mapping the metes and bounds of powers of the different branches of government was redefined in the 1987 Constitution, which expanded the jurisdiction of the Court to include the determination of "grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government."[118]

113 Bengzon v. Drilon, G.R. No. 103524, April 15, 1992.

114 Macalintal v. Commission on Elections, G.R. No. 157013, July 10, 2003.

115 Bagong Alyansang Makabayan v. Executive Secretary, G.R. No. 138570, October 10, 2000.

116 Manalo v. Sistoza, G.R. No. 107369, August 11, 1999.

117 Mercado v. Board of Election Supervisors, G.R. No. 109713, April 6, 1995.

118 Grave abuse of discretion connotes judgment exercised in a capricious and whimsical manner that is tantamount to lack of jurisdiction. To be considered grave, discretion must be exercised in a despotic manner by reason of passion or personal hostility, and must be so patent and gross as to amount to an evasion of positive duty or to a virtual refusal to perform the duty enjoined by or to act at all in contemplation of law. Ramos v. BPI Family Savings Bank, Inc., G.R. No. 203186, December 4, 2013.

The expansion was made because of the dissatisfaction with the practice of the Court in frequently invoking the "political question" doctrine during the period of martial law to dodge its duty.[119]

Impeachment is another check that has become a popular remedy in the Philippines. It was used successfully against Joseph Estrada, although he was ultimately removed from office by massive protests. Former Ombudsman Merceditas Gutierrez and Chief Justice Renato Corona were also impeached and subsequently removed from office. Gutierrez, however, resigned rather than face trial in the Senate.

Threats of impeachment against members of the Supreme Court are often used as a response to a number of its decisions. When President Benigno Aquino III's Truth Commission was struck down as unconstitutional in *Biraogo v. The Philippine Truth Commission of 2010,*[120] administration allies in Congress immediately considered the filing of impeachment charges against the Chief Justice.[121] When the Supreme Court promulgated *De Castro v. Judicial and Bar Council,*[122] Nueva Ecija Representative Eduardo Nonato Joson said he would start a campaign in Congress to impeach the nine Supreme Court Justices who voted to allow President Gloria Macapagal-Arroyo to name the next Chief Justice despite an election season ban on appointments.[123]

Several members of Congress and some "comfort women"— women abducted to become sex slaves of Japanese soldiers During World War II[124] — filed an impeachment case against Associate Justice Mariano del Castillo "as a warning to the justices against tolerating dishonesty and injustices in the system"[125] after the

119 *See* Macalintal v. Commission on Elections, G.R. No. 157013, July 10, 2003 (Puno, J. concurring and dissenting).

120 G.R. No. 192935, December 7, 2010. The Court denied a motion for reconsideration on July 2011.

121 Joyce Pangco Pañares & Rey E. Requejo, *Aquino: House Allies Plan to Impeach Chief Justice,* Manila Standard, December 9, 2010, http://www.manilastandardtoday.com/ insideNews.htm?f=2010/december/9/news1.isx&d=2010/december/9.

122 G.R. No. 191002, March 17, 2010. Abandoning precedent, the Supreme Court ruled that President Gloria Macapagal-Arroyo was not prevented by the constitutional bar against midnight appointments in filling a vacancy two months before a Presidential election.

123 Gil C. Cabacungan Jr., *Lawmaker Starts Move to Impeach 9 SC Justices*, Philippine Daily Inquirer, March 21, 2010.

124 Suzanne M. Sable, Pride, *Prejudice, and Japan's Unified State*, 11 U. D.C. L. Rev. 71, 78 (2008).

125 Lira Dalangin-Fernandez, 11 *Solons File Impeach Rap vs SC Justice*, Philippine Daily Inquirer, December 14, 2010, http://newsinfo.inquirer.net/breakingnews/nation/view/20101214-308934/11-solons-file-impeach-rap-vs-SC-justice.

Supreme Court exonerated him[126] from charges that he plagiarized swaths of the Court's majority opinion in *Vinuya v. Executive Secretary*.[127]

Again, House Representatives revealed plans to impeach members of the Court when the Supreme Court cleared the way for the impeachment of the Ombudsman in *Gutierrez v. The House of Representatives Committee on Justice*,[128] after it was discovered that when the Court initially stopped the proceedings through a *Status Quo Ante* Order issued on September 14, 2010, members of the Court had not even read the Ombudsman's petition.[129]

The League of Cities said it would file an impeachment case against the seven Justices who voted in favor of the new cities[130] when the Court issued its latest ruling in *League of Cities of the Philippines v. Commission on Elections*,[131] which exempted these new cities from the income requirements under the Local Government Code.

These reactions culminated in the impeachment case against Chief Justice Renato Corona in December of 2011.[132] He was removed as Chief Justice after the Senate found him guilty of failing to declare all of his assets as required by law, making him the first public official to be removed by impeachment.[133]

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126 In the Matter of the Charges of Plagiarism, etc., Against Associate Justice Mariano C. del Castillo, A.M. No. 10-7-17-SC, October 12, 2010.

127 G.R. No. 162230, April 28, 2010.

128 G.R. No. 193459, February 15, 2011.

129 Rodolfo C. Fariñas, SC Justices Have Violated Public Trust–Fariñas, Newsbreak, February 25, 2011, http://www.newsbreak.ph/2011/02/25/sc-justices-have-violated-public-trust/. The *Status Quo Ante* Order itself generated threats of impeachment against the Justices. *See House Leader Threatens to Impeach Justices over Merci,* The Philippine Star, December 11, 2010.

130 Juancho Mahusay, Eva Visperas, and Paolo Romero, *SC Justices Who Flip-flopped on Cityhood Ruling to be Impeached*, The Philippine Star, March 16, 2011, http://www.philstar.com/Article.aspx?articleId=666624&publicationSubCategoryId=.

131 G.R. No. 176951, June 28. 2011.

132 There were two failed attempts at impeaching Supreme Court Justices. Former President Joseph E. Estrada filed an impeachment case against Chief Justice Hilario Davide and other Justices for their alleged role in unseating him as President in 2001. Another case was filed against Chief Justice Davide on the alleged misuse of the Judiciary Development Fund, but was subsequently declared unconstitutional by the Supreme Court. See Francisco v. House of Representatives, G.R. No. 160261, November 10, 2003.

133 Cathy C. Yamusan & Christian V. Esguerra, *Guilty: Corona Accepts Fate After Senate's 20-3 vote*, Philippine Daily Inquirer, May 30, 2012, http://newsinfo.inquirer.net/203217/guilty-corona-accepts-fate-after-senate%E2%80%99s-20-3-vote.

ADJUDICATION AND THE IDENTIFICATION OF RULES

MUNICIPAL LAW

When a court exercises its judicial function, it identifies the rules that apply to the cases before it. Every case implicates laws that can address the issues raised before the courts. The laws may be the Constitution, statutes enacted by Congress (designated as Presidential Decrees during the Marcos Regime, and Republic Acts thereafter),[134] administrative orders issued by department secretaries pursuant to statutes, local government ordinances, or issuances by the President pursuant to his or her ordinance power.

The Constitution is superior to a statute. It is the fundamental and organic law of the land to which every statute must conform and harmonize.[135] Legislative enactments must not be repugnant to the Constitution and if a law happens to infringe upon or violate the fundamental law, courts of justice may step in to nullify its effectiveness.[136] Statutes and treaties may be invalidated if they are in conflict with the Constitution.[137]

"The Constitution is the basic and paramount law to which all other laws must conform and to which all persons, including the highest official of this land, must defer."[138] The three branches of government must discharge their functions within the limits of authority conferred by the Constitution, thus: Congress is generally limited to the enactment of laws; the executive branch to the enforcement of laws; and the judiciary to their interpretation and application to cases and controversies. Courts have the duty of seeing to it that the officers in each branch of government do not go beyond their constitutionally allocated boundaries and that the entire government itself or any of its branches does not violate the basic liberties of the people.

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134 President Corazon Aquino issued Proclamation No. 3, March 25, 1986, establishing the Freedom Constitution which authorized her to promulgate laws until the members of Congress shall have been elected. In the exercise of her legislative powers, Aquino promulgated the Family Code (Executive Order No. 209 [1987]) and the Administrative Code of 1987 (Executive Order No. 292) among many others. Although designated as Executive Orders, these are in fact laws that can only be amended or repealed by statutes.

135 Aquino v. Commission on Elections, G.R. No. 120265, September 18, 1995.

136 Bitonio, Jr. v. Commission on Audit, G.R. No. 147392, March 12, 2004.

137 Secretary of Justice v. Lantion, G.R. No. 139465, January 18, 2000.

138 Bengzon v. Drilon, G.R. No. 103524, April 15, 1992.

The rules that apply to any given case may also come from the executive branch of government. While the making of laws is a non-delegable activity that corresponds exclusively to Congress, the latter may delegate authority to promulgate rules and regulations to implement a law and effect policies. This is allowed because the legislature often finds it impracticable (if not impossible) to anticipate and provide for the multifarious and complex situations that may be met in carrying the law into effect.[139] The rule-making power of a public administrative body is a delegated legislative power, which cannot be used to abridge the authority given it by Congress or the Constitution, or to enlarge its power beyond the scope intended. Constitutional and statutory provisions control what rules and regulations may be promulgated by such a body, as well as with respect to what fields are subject to regulation by it. It may not make rules and regulations that are inconsistent with the provisions of the Constitution or a statute, particularly the statute it is administering or that created it, or which are in derogation of, or defeat, the purpose of a statute.[140] Rules of administrative bodies must be in harmony with the provisions of the Constitution. They cannot amend or extend the Constitution.[141]

Acts of the executive branch must also conform to the Constitution. The President is granted an "Ordinance Power" under Chapter 2, Book III of Executive Order No. 292 (Administrative Code of 1987). The Code authorizes the President to issue any of the following:

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139 Free Telephone Workers Union v. Minister of Labor and Employment, G.R. No. L-58184, October 30, 1981.

140 United BF Homeowner's Association v. BF Homes, Inc., G.R. No. 124873, July 14, 1999. Regulations promulgated by administrative agencies are subordinate to legislation and in cases of conflict, the regulation will not prevail over the law. *See* Commissioner of Internal Revenue v. Bicolandia Drug Corporation, G.R. No. 148083, July 21, 2006.

141 Department of Agrarian Reform v. Sutton, G.R. No. 162070, October 19, 2005. An administrative agency also wields quasi-judicial or administrative adjudicatory power. They have the power to hear and determine questions of fact to which the legislative policy is to apply, and to decide in accordance with the standards laid down by the law itself in enforcing and administering the same law. The administrative body exercises its quasi-judicial power when it performs, in a judicial manner, an act which is essentially of an executive or administrative nature, where the power to act in such manner is incidental to or reasonably necessary for the performance of the executive or administrative duty entrusted to it. In carrying out their quasi-judicial functions, the administrative officers or bodies are required to investigate facts or ascertain the existence of facts, hold hearings, weigh evidence and draw conclusions from them as basis for their official action, and exercise discretion in a judicial nature. *See* Smart Communications, Inc. v. Pilipino Telephone Corporation, G.R. No. 151908, August 12, 2003.

> Sec. 2. *Executive Orders.* — Acts of the President providing for rules of a general or permanent character in implementation or execution of constitutional or statutory powers shall be promulgated in executive orders.
>
> Sec. 3. *Administrative Orders.* — Acts of the President which relate to particular aspect of governmental operations in pursuance of his duties as administrative head shall be promulgated in administrative orders.
>
> Sec. 4. *Proclamations.* — Acts of the President fixing a date or declaring a status or condition of public moment or interest, upon the existence of which the operation of a specific law or regulation is made to depend, shall be promulgated in proclamations which shall have the force of an executive order.
>
> Sec. 5. *Memorandum Orders.* — Acts of the President on matters of administrative detail or of subordinate or temporary interest which only concern a particular officer or office of the Government shall be embodied in memorandum orders.
>
> Sec. 6. *Memorandum Circulars.* — Acts of the President on matters relating to internal administration, which the President desires to bring to the attention of all or some of the departments, agencies, bureaus or offices of the Government, for information or compliance, shall be embodied in memorandum circulars.
>
> Sec. 7. *General or Special Orders.* — Acts and commands of the President in his capacity as Commander-in-Chief of the Armed Forces of the Philippines shall be issued as general or special orders.

The President's ordinance power is limited to the foregoing issuances. He cannot issue decrees similar to those issued by Former President Marcos under Presidential Proclamation No. 1081. Those presidential decrees were in the nature of laws, with the binding force of statutes because they were issued by the President in the exercise of his legislative power during the period of Martial Law under the 1973 Constitution.[142] In *Banda v. Ermita*,[143] the Court concluded that Executive Order

142 David v. Macapagal-Arroyo, G.R. No. 171396, May 3, 2006.
143 G.R. No. 166620, April 20, 2010.

No. 378, which purported to institute necessary reforms in government in order to improve and upgrade efficiency in the delivery of public services by redefining the functions of the National Printing Office and limiting its funding to its own income and to transform it into a self-reliant agency able to compete with the private sector, was well within the prerogative of President Arroyo under her continuing delegated legislative power to reorganize her own office.

As the Supreme Court has pointed out, jurisprudence is replete with decisions invalidating laws, decrees, executive orders, proclamations, letters of instructions and other executive issuances inconsistent with the Constitution. In *In the Matter of the Petition for Issuance of Writ of Habeas corpus of Camilo L. Sabio,* it cited:

> In *Pelaez v. Auditor General*, the Court considered repealed Section 68 of the Revised Administrative Code of 1917 authorizing the Executive to change the seat of the government of any subdivision of local governments, upon the approval of the 1935 Constitution. Section 68 was adjudged incompatible and inconsistent with the Constitutional grant of limited executive supervision over local governments. In *Islamic Da'wah Council of the Philippines, Inc., v. Office of the Executive Secretary*, the Court declared Executive Order No. 46, entitled "Authorizing the Office on Muslim Affairs to Undertake Philippine Halal Certification," void for encroaching on the religious freedom of Muslims. In *The Province of Batangas v. Romulo*, the Court declared some provisions of the General Appropriations Acts of 1999, 2000 and 2001 unconstitutional for violating the Constitutional precept on local autonomy. And in *Ople v. Torres*, the Court likewise declared unconstitutional Administrative Order No. 308, entitled "*Adoption of a National Computerized Identification Reference System*," for being violative of the right to privacy protected by the Constitution.[144]

144 In the Matter of the Petition for Issuance of Writ of *Habeas corpus* of Camilo L. Sabio, G.R. No. 174340, October 17, 2006.

The following is an example of an Executive Order:

MALACAÑAN PALACE

MANILA

BY THE PRESIDENT OF THE PHILIPPINES

EXECUTIVE ORDER NO. 30

This is the title of the Executive Order. This Order expressly repeals a prior order.

TRANSFERRING THE LAND REGISTRATION AUTHORITY (LRA) FROM THE DEPARTMENT OF ENVIRONMENT AND NATURAL RESOURCES (DENR) TO THE DEPARTMENT OF JUSTICE (DOJ), REPEALING FOR THE PURPOSE EXECUTIVE ORDER NO. 690, SERIES OF 2007

"Whereas clauses" usually contain the rationale for issuing the order.

WHEREAS, the Land Registration Authority (LRA) was transferred to the Department of Environment and Natural Resources (DENR) pursuant to Executive Order No. 690, dated December 28, 2007;

WHEREAS, the government is committed to pursue a more responsive and efficient bureaucracy by adopting homogenous grouping of functionally related government agencies;

WHEREAS, with due regard to the quasi-judicial functions being performed by the LRA in land registration cases, and given the present mandate, organizational capability, expertise and experience of the LRA and its Registries of Deeds throughout the country, it is more appropriate that the LRA and its Registries of Deeds continue to perform its land registration functions under the Department of Justice (DOJ);

WHEREAS, Section 31, Chapter 10, Title III, Book III of Executive Order No. 292, series of 1987, otherwise known as the "Administrative Code of 1987", provides that the President, subject to the policy in the Executive Office and in order to achieve simplicity, economy and efficiency, shall have continuing authority to reorganize the administrative structure of the Office of the President.

NOW, THEREFORE, I, BENIGNO S. AQUINO III, President of the Republic of the Philippines, by virtue of the powers vested in me by the Constitution and existing laws, do hereby order:

SECTION 1. *Transferring LRA from DENR to the DOJ.*— The LRA is hereby transferred from the DENR to the DOJ in order to ensure a more effective and efficient execution of laws relative to land registration.

SECTION 2. *Repealing Clause.* — All executive orders, including Executive Order No. 690, series of 2007, rules and regulation, and other issuances or parts thereof that are inconsistent with the provisions of this Executive Order, are hereby either revoked or modified accordingly.

This Order expressly repeals Executive Order No. 690 and impliedly repeals inconsistent orders.

SECTION 3. *Effectivity.* — This Executive Order shall take effect immediately upon publication in the Official Gazette or in a newspaper of general circulation.

DONE in the City of Manila, this 14th day of March, in the year of Our Lord, Two Thousand and Eleven.

Like statutes, Executive Orders may require publication to become effective.

(Sgd.) BENIGNO S. AQUINO III

By the President:

(Sgd.) PAQUITO N. OCHOA, JR.

Executive Secretary

The following is an example of a Presidential Proclamation:

MALACAÑAN PALACE

MANILA

BY THE PRESIDENT OF THE PHILIPPINES

PROCLAMATION NO. 303

DECLARING A STATE OF NATIONAL CALAMITY

WHEREAS, the devastating rains and floods caused by, typhoon "Sendong" (international codename: Washi) have brought death, destruction, and incalculable damage to the lives and properties of Filipinos;

WHEREAS, due to the severe gravity of the damage, particularly in Regions VII, IX, X, XI, and the CARAGA, the government is spearheading the entire nation's efforts to undertake immediate rescue, recovery, relief and rehabilitation;

WHEREAS, a declaration of a state of national calamity will hasten the rescue, relief and rehabilitation efforts of the government and the private sector, including any international humanitarian assistance, and will effectively control the prices of basic goods and commodities for the affected areas;

WHEREAS, this declaration also necessitates that the mechanisms for international humanitarian assistance are implemented pursuant to Republic Act No. 10121; and

WHEREAS, such declaration will further afford the local government units ample latitude to utilize their calamity

fund for the rescue, relief and rehabilitation of their constituents.

NOW, THEREFORE, I, BENIGNO S. AQUINO III, President of the Republic of the Philippines, by virtue of the powers vested in me by law, hereby declare a state of national calamity.

All departments and other government agencies concerned are hereby directed to implement and execute medical assistance, relief and rehabilitation work in accordance with existing operational plans and directives and orders issued in connection with the occurrence of calamities.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the seal of the Republic of the Philippines to be affixed.

DONE in the City of Manila, this 20th day of December, in the year of Our Lord, Two Thousand and Eleven.

(Sgd.) BENIGNO S. AQUINO III

By the President:

(Sgd.) PAQUITO N. OCHOA, JR.

Executive Secretary

LOCAL ORDINANCES

The power of local government units to legislate and enact ordinances and resolutions is merely a delegated power coming from Congress.[145] Local government units cannot undo the acts of Congress, from which they have derived their power in the first place, and negate, by mere ordinance, the mandate of the statute.[146] Local governments act only as agents of the national legislature and their acts must reflect and conform to the will of their principal. An ordinance, to be valid: 1) must not contravene the Constitution or any statute; 2) must not be unfair or oppressive; 3) must not be partial or discriminatory; 4) must not prohibit but may regulate trade; 5) must not be unreasonable; and 6) must be general and consistent with public policy.[147]

The Supreme Court has held that the right of the owner to fix a price at which his property shall be sold or used is an inherent attribute of the property itself and, as such, within the protection of the due process clause. A lawful business or calling may not, under the guise of regulation, be unreasonably interfered with even by the exercise of police power. A police measure for the regulation of the conduct, control and operation of a business should not encroach upon the legitimate and lawful exercise by the citizens of their property rights.[148]

The general rule is that where part of a statute is void, while another part is valid, the valid portion, if susceptible to being separated from the invalid, may stand and be enforced.[149]

INTERNATIONAL LAW

In its Declaration of Principles and State Policies, the Constitution "adopts the generally accepted principles of international law as part of the law of the land, and adheres to the policy of peace, equality, justice, freedom, cooperation and amity,

145 Lina v. Sangguniang Panlalawigan of Laguna, G.R. No. 129093, August 30, 2001.

146 Magtajas v. Pryce Properties Corp., G.R. No. 111097, July 20, 1994.

147 Solicitor General v. Metropolitan Manila Authority, G.R. No. 102782, December 11, 1991. See also United States v. Abendan, G.R. No. 7830, January 24, 1913 (An ordinance is valid, unless it contravenes the fundamental law of the Philippine Islands, or an Act of the Philippine Legislature, or unless it is against public policy, or is unreasonable, oppressive, partial, discriminating, or in derogation of common right.)

148 Balacuit v. Court of First Instance of Agusan Del Norte and Butuan City, G.R. No. L-38429, June 30, 1988. *See also* City of Manila v. Laguio, G.R. No. 118127, April 12, 2005 for an example of an unconstitutional ordinance.

149 Fernando v. St. Scholastica's College, G.R. No. 161107, March 12, 2013.

with all nations." By the doctrine of incorporation, the country is bound by generally accepted principles of international law, which are considered to be automatically part of our own laws.[150] Under this doctrine, such principles are deemed incorporated in the law of every civilized state as a condition and consequence of its membership in the society of nations. The state is automatically obligated to comply with these principles in its relations with other states.[151]

The principle of *pacta sunt servanda* demands the performance in good faith of treaty obligations on the part of the states that enter into the agreement. Every treaty in force is binding upon the parties, and obligations under the treaty must be performed by them in good faith. Treaties have the force and effect of law in this jurisdiction.[152]

In the resolution of legal disputes, courts also apply the sources of international law as listed under Article 38 of the Statute of the International Court of Justice (ICJ). These are: (1) international conventions, whether general or particular, establishing rules expressly recognized by the contesting states; (2) international custom, as evidence of a general practice accepted as law; (3) the general principles of law recognized by civilized nations; and (4) subject to the provisions of Article 59, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law.[153]

In *Republic of the Philippines v. Sandiganbayan*,[154] the Supreme Court held that the EDSA Revolution that took place on February 1986 leading to the removal of President Ferdinand Marcos from office produced a revolutionary government that was not bound by any constitutional or legal limitations "except treaty obligations that the revolutionary government, as the *de jure* government in the Philippines, assumed under international law."

150 Tañada v. Angara, G.R. No. 118295, May 2, 1997.

151 Wylie v. Rarang, G.R. No. 74135, May 28, 1992, citing United States of America v. Guinto, G.R. No. 76607, February 26, 1990.

152 *See* Deutsche Bank Ag Manila Branch v. Commissioner of Internal Revenue, G.R. No. 188550, August 19, 2013.

153 Bayan Muna v. Romulo, G.R. No. 159618, February 1, 2011.

154 G.R. No. 104768, July 21, 2003.

Illustration

Identifying the laws that apply can be a difficult task. The Court in *Pandi v. Court of Appeals*[155] applied as many as four different laws in determining the validity of three appointments to the Provincial Health Office of Lanao del Sur either by the Provincial Governor or the Secretary of Health of the Autonomous Region of Muslim Mindanao. On the basis of the time period of the respective appointments, the Court applied the Organic Act of 1989, the 1991 Local Government Code, the Local Government Code of the Autonomous Region of Muslim Mindanao, and the Organic Act of 2001 in ruling on the validity of two appointments and the invalidity of one. The Court reasoned as follows on ruling on the validity or invalidity of the officers' appointments:

> On this date [during the effectivity of the Organic Act of 1989] the provincial health officer of Lanao del Sur was still a national government official paid entirely from national funds. The provincial health officer was still appointed by the national Secretary of Health to a region and not to a province. The Secretary of Health exercised supervision and control over the provincial health officer. The Secretary of Health was also the official authorized by law to assign the provincial health officer to any province within the region.
>
> The Court continued that at a subsequent date,
>
> [t]he provincial health officer of Lanao del Sur became a provincial government official only after the effectivity of the ARMM Local Code, which was enacted by the Regional Assembly on January 25, 1994 and approved by the Regional Governor on March 3, 1994. Prior to the ARMM Local Code but after the issuance of Executive Order No. 133, the Regional Governor appointed the provincial health officer while the Regional Secretary of Health could assign the provincial health officer to any province within the ARMM. The Provincial Governor had no power to appoint or even designate the Officer-in-Charge of the provincial health office…
>
> [Subsequently] [t]he ARMM Local Code vests in the Provincial Governor the power to "exercise general supervision and control over all programs, projects, services, and activities of the provincial government." Upon the

155 G.R. No. 116850, April 11, 2002.

effectivity of the ARMM Local Code, the power of supervision and control over the provincial health officer passed from the Regional Secretary to the Provincial Governor. From then on the Provincial Governor began to exercise the administrative authority to designate an Officer-in-Charge in the provincial health office pending the appointment of a permanent provincial health officer.

CHAPTER *3*

The Constitution and Its Construction

WHAT IS THE CONSTITUTION?

A constitution is a system of fundamental laws for the governance and administration of a nation.[1] It is supreme, imperious, absolute and unalterable except by the authority from which it emanates. It has been defined as *the fundamental and paramount law of the nation.* It prescribes the permanent framework of a system of government, assigns to the different departments their respective powers and duties, and establishes certain fixed principles on which government is founded. The fundamental conception in other words is that it is a supreme law to which all other laws must conform and in accordance with which all private rights must be determined and all public authority administered. Under the doctrine of constitutional supremacy, if a law or contract violates any norm of the constitution, that law or contract, whether promulgated by the legislative or by the executive branch or entered into by private persons for private purposes, is null and void and without any force and effect. Thus, *since the Constitution is the fundamental paramount and supreme law of the nation, it is deemed written in every statute and contract.*

The Constitution is the basic law to which all laws must conform; no act shall be valid if it conflicts with the Constitution. All private rights must be determined and all public authority administered in accordance with the Constitution. Laws that do not conform to the Constitution shall be struck down for being unconstitutional.[2]

The Constitution is the expression of the sovereign will and governs the resolution of constitutional issues. It is respected because it is an express declaration of the

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1 Manila Prince Hotel v. GSIS, G.R. No. 122156, February 3, 1997.

2 Tawang Multi-Purpose Cooperative v. La Trinidad Water District, G.R. No. 166471, March 22, 2011.

people's will. The Court made this point clear in *Nitafan v. Commissioner of Internal Revenue.*[3] In that case, the Chief Justice issued a directive ordering the Commissioner of Internal Revenue and the Financial Officer of the Court to deduct withholding taxes from the salaries of the members of the judiciary. Judges questioned its validity as a diminution of their salaries which was prohibited under section 10, Article VIII of the 1987 Constitution.

The Supreme Court's ruling departed from its rulings in the earlier cases of *Perfecto v. Meer*[4] and *Endencia v. David,*[5] both of which were decided before the 1987 Constitution took effect. In those cases, the Court regarded the imposition of income taxes on the salary of judicial officers as a diminution of their salaries. In arriving at a different conclusion later, the Court perused the records of the Constitutional Commission of 1986 and concluded that the framers of the Constitution intended the salaries of the members of the Judiciary to be fixed during their continuance in office and beyond the whims and caprices of Congress. The discussions of the framers, however, show that the same salaries are properly subject to income tax. The Court accorded "due respect to the intent of the people, through the discussions and deliberations of their representatives, in the spirit that all citizens should bear their aliquot part of the cost of maintaining the government and should share the burden of general income taxation equitably."

CONSTITUTIONAL CONSTRUCTION

The basic democratic foundation of the constitutional order means that all organs of government, and even the People, read the fundamental law and are guided by it. When competing viable interpretations arise, a justiciable controversy may ensue requiring judicial intervention in order to arrive with finality at which interpretation shall be sustained. To remain true to its democratic moorings, however, judicial involvement must remain guided by a framework or deference and constitutional avoidance.[6]

Reading a constitutional provision requires awareness of its relation with the whole of the Constitution. A constitutional provision is a constituent of a greater

3 G.R. No. L-78780, July 23, 1987.

4 G.R. No. L-2348, February 27, 1950.

5 G.R. Nos. L-6355-56, August 31, 1953.

6 David v. Senate Electoral Tribunal, G.R. No. 221538, September 20, 2016.

whole. It is the framework of the Constitution that animates each of its components through the dynamism of these components' interrelations. What is called into operation is the entire document, not simply a peripheral item. The Constitution should, therefore, be read as a whole unit. Each provision must be understood and effected in a way that gives life to all that the Constitution contains, from its foundational principles to its finest fixings.[7]

Discerning constitutional meaning is an exercise in discovering the sovereign's purpose to identify which among competing interpretations of the same text is the more contemporarily viable construction. Primarily, the actual words (text) and how they are situated within the whole document (context) govern. Secondarily, when discerning meaning from the plain text fails, contemporaneous construction may settle what is more viable. Nevertheless, even when a reading of the plain text is already sufficient, contemporaneous construction may still be resorted to as a means for verifying or validating the clear textual or contextual meaning of the Constitution. [8]

Laurence H. Tribe identifies six modes of interpretations, stressing that "no one mode of interpretation can claim always to take priority or to be necessarily decisive as starting points, constituent parts of complex arguments, or concluding evocations."[9] The necessarily various ways by which to read the Constitution, however, does not serve to weaken the law but only to explain it more fully. Tribe explains:

> This does not mean that Constitutional law is simply a mish-mash. In whatever way the United States Constitution is pertinent in the particular instance, the subject and substance of Constitutional law in the end remains the language of the United States Constitution itself and the decisions and opinions of the United States Supreme Court. Modes of interpretation are means—however intricate—of explicating this subject and substance.

Such approaches are faithful to the document's language, structure, and history, while ensuring that it will retain its vitality over time. Tribe proposes to start with the

7 *Id.*

8 *Id.*

9 Laurence H. Tribe, *Approaches to Constitutional Analysis*, in American Constitutional Law (1988), *reprinted in* It is a Constitution We are Expounding: Collected Writings on Interpreting Our Founding Document at 20 (2009).

Constitution's text and history then on to examine a number of additional sources to explicate the Constitution's substance, such as its structure and organization; major developments in social and political history; values and ideals central to the nation's culture and heritage; and deeply established lines of judicial precedent.

The first mode of construction which he identifies is textualism, an approach to constitutional interpretation that consists of narrowly parsing the text of the document and nothing more, or of examining the words alone. The principle behind this mode is that text is the most obviously authentic embodiment of constitutional truth. Text is thus the primary and ultimate authority of interpretation in the sense that anything flatly contrary to it cannot stand, even if not as invariably *exhaustive* of the universe of constitutional meaning.

Nevertheless, text is not necessarily exclusive. While the Constitution's text is authoritative, according to Tribe, it is not exhaustive or, even within its sphere, necessarily self-defining. First, words and phrases of the Constitution are not definitive, are ambiguous, self-contradictory, and "anything but self-evident and are often endlessly contestable." Examples of such phrases are the concepts of equity and due process of law which are not defined in the Constitution. Second, textualism risks freezing the Constitution in an earlier century and rendering it obsolete. An example of a frozen concept is unreasonable searches and seizure that would be inapplicable to modern day wiretapping and electronic eavesdropping because there would be no invasion of physical space, as earlier required by the interpretation of the concept.

For Tribe, interpreting the Constitution's text requires close attention to linguistic *context*—that is, to surrounding language; to how the relevant word or phrase is used elsewhere in the document; and to how it was used, or what appeared in its stead, in prior drafts of the Constitution or, indeed, in the Articles of Confederation. An interpretation cannot be divorced entirely from values or influences extrinsic to the document being interpreted; any attempt to create a document fully containing within itself all rules for its own interpretation, including the values that are to guide interpretive choices, is bound ultimately to fail on some level, for the familiar reason that self-reference leads to infinite regress. Therefore, reliance on mere text is insufficient.

The second mode of construction is structural analysis or "reading across words" and looking at the physical arrangement of the Constitution's text. *Structure*, in the context of the Constitution, is that which the text shows but does not directly say (which distinction Tribe borrowed from Wittgenstein). The reason behind reliance

on structure is that diction, word repetitions, and documentary organizing forms (e.g., the division of the text into articles, or the separate status of the preamble and the amendments) all contribute to a sense of what the Constitution is about, and that is as obviously "constitutional" as are the Constitution's words as such. Tribe gave the example of the idea of "separation of powers" that is textually confirmed, literally, only in the Constitution's organization.

Structural analysis comes into play when the constitutional text is ambiguous or when the Constitution itself is silent on a particular issue. The Court has often had to rely then "on notions of a constitutional plan—the implicit ordering of relationships within the federal system necessary to make the Constitution a workable governing charter and to give each provision within that document the full effect intended by the Framers."[10] Justice Rehnquist in *Nevada v. Hall* said that such ordering are as much engrained in the fabric of the document as its express provisions, because without them the Constitution is denied force and often meaning." Justice Souter in *Washington v. Glucksberg*[11] also proposed that structure forms part of a "rational continuum"— and that it is the duty of courts in essence to connect the dots when deciding cases about aspects of liberty that do not fit precisely on the existing "chart" of freedoms.

The third mode of construction is *originalism*, or looking at the lawmakers' intent or applying the Constitution only in the ways that the framers consciously intended. It supplements the text and structure with the original meaning or "original intent" expressed by the framers or ratifiers, or with what a term or phrase or provision of the Constitution meant to those who wrote it, or to those who ratified it, or to the general populace of the time. As a frame of reference with which interpretation starts, originalism looks into what those provisions, or that design, meant at the time they were conceived and, later, at the time they became law. For Tribe, original meaning would at least establish a baseline and create a presumption to be overcome where absent some extremely persuasive justification, it would be nonsensical to begin by treating a phrase in the Constitution as meaning one thing when, to those who wrote or ratified or read it at the time, it would have meant something entirely different. The burden of justification should be placed on whoever seeks to argue for such a changed meaning.

10 Nevada v. Hall, 440 U.S. 410, 433 (1979) (Rehnquist, J., *dissenting*).

11 521 U.S. 702 (1997).

There are disadvantages to originalism, however. For one, it subordinates ratified and enacted constitutional text to the purely subjective and un-enacted intentions (or other mental states) of a group of people who have long been dead. Second, it focuses on abstract intentions rather than on concrete expectations. Third, the Constitution's framers, drafters, and ratifiers did not always share a single purpose or set of purposes for the language chosen. And fourth, the historical record of such intentions and aims as they did share is often dramatically inconclusive and at times downright contradictory.

The fourth approach is the *normative* and pragmatic approach, or the elucidation of meaning through attempts to discern which interpretation best accords with the ethos or moral and political character and identity of the nation. In *Marbury v. Madison*,[12] Chief Justice Marshall reminded that the Constitution is more than just another law, more even than the supreme law, for it is in a way 'the whole American fabric.' Any interpretive mode would be most convincing as a basis for construing the Constitution one way rather than another to the extent that it draws upon something deep in the nation's ethos that is reflected in, or that manifestly sheds light on, the Constitution.

The difficulty with this approach is its inappropriate subjectivity. Tribe justifies it by pointing out that the choice of any interpretive method necessarily reflects the embrace of some substantive values not necessarily and unambiguously enacted by the constitutional text and the rejection of others potentially consistent with that text. The approach also appeals to values and commitments that are not properly part of constitutional law unless they are ultimately translatable in a plausible way either into the language of constitutional provisions as such or into understandable characterizations of constitutional structure or history.

The fifth mode of interpretation is reliance on *stare decisis*, or on the judicial elaboration of decisional doctrine to derive answers to constitutional questions. In the case of *Marbury v. Madison*, Chief Justice Marshall ruled that "it is emphatically the province and duty of the judicial department to say what the law is." According to Tribe, constitutional law consists not only of the provisions of the Constitution, but also of the large number of opinions of the Supreme Court in which that Court brings to bear, and in the process interprets, those provisions. It is in this sense that judicial opinions are a second set of constitutional texts.

12 5 U.S. (1 Cranch) 137, 176 (1803).

The advantages of *stare decisis* are both its flexibility and stability. First, it has the ability to adapt to changes, where a constitutional text that the Supreme Court read one way during an earlier period may be read by the Court to say something different in a later period. "Corrections" of this sort do not revise the underlying constitutional provision or structure itself. As Tribe explains, they aim, instead, to preserve the basic meaning of the Constitution by improving one's reading of its terms. And in construing the Constitution, the courts must be constrained by the values of the rule of law, which means that courts must construe it through a process of reasoning that is replicable, that remains fairly stable, and that is consistently applied."[13] Second, the principle of *stare decisis* gives stability to the Constitution because it requires a judge to follow, and indeed to extend when principled adjudication so requires, constitutional precedents that the same judge would overrule if free to interpret text, draw inferences from structure and history, and pursue constitutional values, all unconstrained by the pull of previously decided cases. Thus, without *stare decisis*, the Constitution could not be translated into a working system of law, characterized by values of predictability, regularity, and stability that themselves have deep Constitutional roots.

Robert Post,[14] however, has observed that beginners in constitutional law are often amazed by how little of the Constitution they find in constitutional opinions, which tend to be filled with the elaboration and application of various doctrinal "tests" extracted from prior judicial decisions.

The sixth approach is the search for meaning through a deliberately eclectic combination of the above approaches.

In the Philippines, courts adhere to certain conventions when interpreting the Constitution. The fundamental principle in constitutional construction is that the primary source from which to ascertain the intent or purpose of the Constitution is the language of the provision itself. It is presumed that the words in which the constitutional provisions are written express the objectives the Constitution seeks to attain. This rule—*verba legis*—means that when the meaning of the words used in the Constitution are unclear, courts can rely on extraneous aids of construction and interpretation, such as the proceedings of the Constitutional Commission or Convention, to ascertain the intent or purpose of the provision being construed.[15]

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13 Robert C. Post, Constitutional Domains: Democracy, Community, Management 36 (1995).

14 *Id.*

15 Ang Bagong Bayani-OFW Labor Party v. Commission on Elections, G.R. No. 147589, June 26, 2001.

In *Francisco v. House of Representatives*,[16] the Supreme Court outlined a procedure for interpreting the Constitution. The first is *verba legis*. Whenever possible, the words used in the Constitution must be given their ordinary meaning except where technical terms are employed. The Court cited *J.M. Tuason & Co., Inc. v. Land Tenure Administration*[17] which also presented several rules in reading the Constitution:

- It is to be assumed that the words in which constitutional provisions are couched to express the objective sought to be attained.
- The words are to be given their ordinary meaning except where technical terms are employed in which case the latter meaning prevails.
- Because the Constitution is not primarily a lawyer's document, its language as much as possible should be understood in the sense they have in common use.
- The text of the provision to be construed compels acceptance and negates the power of the courts to alter it, on the premise that the framers and the people mean what they say.

Adherence to these rules reduces the need for construction. As the Court explained in another case, "[f]idelity to the Constitution requires commitment to its text."[18] In exercising its function as official interpreter of the Constitution, the Court should always bear in mind that judicial prudence means that it is safer to construe the Constitution from what appears upon its face.

Reading a certain text includes a consideration of jurisprudence that has previously considered that exact same text, if any. Jurisprudence is not an independent source of law. Nevertheless, judicial interpretation is deemed part of or written into the text itself as of the date that it was originally passed. This is because judicial construction articulates the contemporaneous intent that the text brings to effect. Nevertheless, one must not fall into the temptation of considering prior interpretation as immutable.[19]

16 G.R. No. 160261, November 10, 2003.

17 G.R. No. L-21064, February 18, 1970.

18 Ang Ladlad LGBT Party v. Commission on Elections, G.R. No. 190582, April 8, 2010.

19 David v. Senate Electoral Tribunal, G.R. No. 221538, September 20, 2016.

Interpretation grounded on textual primacy likewise looks into how the text has evolved. Unless completely novel, legal provisions are the result of the re-adoption — often with accompanying re-calibration — of previously existing rules. Even when seemingly novel, provisions are often introduced as a means of addressing the inadequacies and excesses of previously existing rules.[20]

One may trace the historical development of text: by comparing its current iteration with prior counterpart provisions, keenly taking note of changes in syntax, along with accounting for more conspicuous substantive changes such as the addition and deletion of provisos or items in enumerations, shifting terminologies, the use of more emphatic or more moderate qualifiers, and the imposition of heavier penalties. The tension between consistency and change galvanizes meaning.[21]

The second rule is that where there is ambiguity in the text, *ratio legis est anima* is applied. The words of the Constitution should be interpreted in accordance with the intent of its framers. The case that expounds on this rule is *Civil Liberties Union v. Executive Secretary*[22] where the Court held that:

> A foolproof yardstick in constitutional construction is the intention underlying the provision under consideration. Thus, it has been held that the Court in construing a Constitution should bear in mind the object sought to be accomplished by its adoption, and the evils, if any, sought to be prevented or remedied. A doubtful provision will be examined in the light of the history of the times, and the condition and circumstances under which the Constitution was framed. The object is to ascertain the reason which induced the framers of the Constitution to enact the particular provision and the purpose sought to be accomplished thereby, in order to construe the whole as to make the words consonant to that reason and calculated to effect that purpose.

The Court also cited *Nitafan v. Commissioner on Internal Revenue*[23] where the Court declared:

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20 David v. Senate Electoral Tribunal, G.R. No. 221538, September 20, 2016.

21 David v. Senate Electoral Tribunal, G.R. No. 221538, September 20, 2016.

22 G.R. No. 83896, February 22, 1991.

23 G.R. No. 78780, July 23, 1987.

> …The ascertainment of that intent is but in keeping with the fundamental principle of constitutional construction that the intent of the framers of the organic law and of the people adopting it should be given effect. The primary task in constitutional construction is to ascertain and thereafter assure the realization of the purpose of the framers and of the people in the adoption of the Constitution. It may also be safely assumed that the people in ratifying the Constitution were guided mainly by the explanation offered by the framers.

The third rule cited in *Chavez v. Judicial and Bar Council*[24] is *ut magis valeat quam pereat*. The Constitution is to be interpreted as a whole. The rule was enunciated in *Chiongbian v. De Leon*[25] thus:

> … [T]he members of the Constitutional Convention could not have dedicated a provision of our Constitution merely for the benefit of one person without considering that it could also affect others. When they adopted subsection 2,[26] they permitted, if not willed, that said provision should function to the full extent of its substance and its terms, not by itself alone, but in conjunction with all other provisions of that great document.

In *Civil Liberties Union v. Executive Secretary,*[27] the Supreme Court affirmed that:

> It is a well-established rule in constitutional construction that no one provision of the Constitution is to be separated from all the others, to be considered alone, but that all the provisions bearing upon a particular subject are to be brought into view and to be so interpreted as to effectuate the great purposes of the instrument. Sections bearing on a particular subject should be considered and interpreted

24 G.R. No. 202242, April 16, 2013.

25 G.R. No. L-2007, January 31, 1949.

26 Const., Art. IV, § 1, subsection 2.

SECTION 1. The following are citizens of the Philippines:

(2) Those born in the Philippine Islands of foreign parents who, before the adoption of this Constitution, had been elected to public office in the Philippine Islands.

27 G.R. No. 83896, February 22, 1991.

together as to effectuate the whole purpose of the Constitution and one section is not to be allowed to defeat another, if by any reasonable construction, the two can be made to stand together.

In other words, the court must harmonize them, if practicable, and must lean in favor of a construction which will render every word operative, rather than one which may make the words idle and nugatory.

If the plain meaning of the word is not evident, courts may resort to other aids. In *Civil Liberties Union v. Executive Secretary*, the Supreme Court explained that courts may consult the debates and proceedings of the constitutional convention "only when other guides fail as said proceedings are powerless to vary the terms of the Constitution when the meaning is clear." These proceedings of the constitutional convention can show "the views of the individual members, and as indicating the reasons for their votes, but they give us no light as to the views of the large majority who did not talk, much less of the mass of our fellow citizens whose votes at the polls gave that instrument the force of fundamental law." The proper interpretation depends more on how it was understood by the people adopting it than in the framers' understanding thereof.

The fundamental principle of constitutional construction is to give effect to the intent of the framers of the organic law and of the people adopting it. The intention to which force is to be given is that which is embodied and expressed in the constitutional provisions themselves.[28] In other jurisdictions, there is a distinction between statutory and constitutional construction[29] but the Philippine Supreme Court does not seem to make any distinction. The rules for the interpretation of statutes apply to the interpretation of the Constitution.[30]

Apart from the text and the intent of the framers of the Constitution, the Supreme Court also said that the interpretation of the Constitution "must take into account the complexities, realities and politics attendant to the operation of the political branches of government."[31]

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28 Gold Creek Mining Corporation v. Rodriguez, G.R. No. 45859, September 28, 1938.

29 *See for example* Kevin M. Stackc, T*he Divergence of Constitutional and Statutory Interpretation*, 75 U. Colo. L. Rev. 1 (2004).

30 *See* Macalintal v. Commission on Elections, G.R. No. 157013, July 10, 2003. There the Court said that the doctrine of necessary implication in statutory construction may be applied in construing constitutional provisions. Justice Isagani Cruz opined that the Constitution, like laws, should be read in accordance with the usual rules on interpretation and construction. *See also* Isagani Cruz, Constitutional Law 8 (1987 ed.).

31 Philippine Constitution Association v. Enriquez, G.R. No. 113105, August 19, 1994.

CONSTITUTION INTERPRETED AS A WHOLE

Constitution is to be interpreted as a whole, and one mandate should not be given importance over the other except where the primacy of one over the other is clear. In *Kida v. Senate of the Philippines,*[32] the Court held that synchronization of elections and autonomy are equally important principles enshrined in the Constitution and neither prevails over the other.

WORDS UNDERSTOOD AS THEY ARE COMMONLY USED

The same case of *Kida v. Senate of the Philippines* emphasized another basic rule in constitutional construction: the words used should be understood in the sense that they have in common use and given their ordinary meaning, except when technical terms are used in which case the meaning of the technical terms should govern.

Thus, in another case,[33] the Supreme Court held that the phrase *"recognized as a treaty"* in the Constitution[34] means that the other contracting party *accepts or acknowledges* the agreement as a treaty. There was no need to require the other party, the United States of America, to submit the Visiting Forces Agreement to the United States Senate for concurrence pursuant to the provisions of the United States Constitution as it would be a strict interpretation of its Constitution.

The Constitution is not primarily a lawyer's document, and its language should be understood in the sense that it may have in common use. Its words should be given their ordinary meaning except where technical terms are used. Following this rule, the Court held that no presidential action is necessary in order that any accused sentenced to the death penalty may avail of the benefit of Article III, Section 19 of the 1987 Constitution, which provides:

> Sec. 19. (1) Excessive fines shall not be imposed, nor cruel, degrading or inhuman punishment inflicted. Neither shall the death penalty be imposed, unless, for compelling reasons involving heinous crimes, the Congress hereafter provides for it. Any death penalty already imposed shall be reduced to *reclusion perpetua*.

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32 G.R. No. 196271, October 18, 2011.

33 Bagong Alyansang Makabayan v. Executive Secretary, G.R. No. 138570, October 10, 2000.

34 Const., Art. XVIII, § 25.

The accused, *ipso jure*, is entitled to a reduction of his sentence. While "to commute" requires presidential action, "to reduce" does not. The reduction of the penalty does not depend on a law, decree, condition, or period before Section 19 can be applied by the courts. It cannot be inferred from the words used in the provision or from the intention of the framers of the Constitution, that a death sentence should be brought to the Supreme Court for review within a certain time frame in order that it can be reduced to *reclusion perpetua*.[35]

In *Occena v. Commission on Elections*,[36] the Supreme Court held that "[t]he wordings of a constitutional provision do not have a narrow or contracted meaning, but are used in a broad sense, with a view of covering all contingencies."

PROSPECTIVE APPLICATION

In *Filoteo, Jr. v. Sandiganbayan*,[37] the defendant to a crime of hijacking a postal delivery truck of the Bureau of Posts and taking instruments representing an amount of PhP 253,728.29, questioned the prosecution's evidence consisting of their extra-judicial confession relating in detail their participation in the crime, pointing to the fact that it was executed without the assistance of counsel, as was the waiver of his right to counsel. The Court ruled against the defendant and noted a difference between the rights of the accused under the 1973 and the 1987 Constitutions, to wit:

> Any person under investigation for the commission of an offense shall have the right…to counsel. Any confession obtained in violation of this section shall be inadmissible in evidence." (Article IV, Section 20, 1973 Constitution)
>
> Any person under investigation for the commission of an offense shall have the right…to have competent and independent counsel preferably of his own choice…. These rights cannot be waived except in writing and in the presence of counsel." (Article III, Section 12, 1987 Constitution)

35 People v. Derilo, G.R. No. 117818, April 18, 1997.

36 G.R. No. 52265, January 28, 1980.

37 G.R. No. 79543, October 16, 1996.

The Court concluded that the waiver of the right to counsel must be made with the assistance of counsel *only* under the 1987 Constitution. The provision of the 1987 Constitution, specifically requiring that a waiver by an accused of his right to counsel during custodial investigation must be made with the assistance of counsel, may not be applied retroactively in cases where the extrajudicial confession was made prior to the effectivity of said Constitution. Thus, waivers of the right to counsel during custodial investigation without the benefit of counsel when the 1973 Constitution was in force should be admissible. The Court found the insistence of the defense to retroactively apply the 1987 Constitutional provision unmeritorious. It held that while penal laws may be given retroactive effect when in favor of the accused, provisions of the Constitution are to be prospectively applied, unless provided otherwise.[38]

LANGUAGE REQUIRES NO CONSTRUCTION

Where the words of a statute are clear, plain, and free from ambiguity, it must be given its literal meaning and applied without attempted interpretation. Interpretation should be used where a literal interpretation would be impossible, absurd, or unjust.[39] The rule is expressed through the maxim *verba legis non est recedendum, index animi sermo est*. It means that there should be no departure from the words of the statute, because speech is the index of intention.[40] The legislature is presumed to know the meaning of the words, to have used words advisedly, and to have expressed its intent by use of such words as are found in the statute.[41]

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38 The Court further explained that Article III, § 12 of the 1987 Constitution could not be given retroactive effect. While the Revised Penal Code provides that [p]enal laws shall have a retroactive effect insofar as they favor the person guilty of a felony who is not a habitual criminal, Filoteo involved a constitutional provision specifically contained in the Bill of Rights which is obviously not a penal statute. A bill of rights is a declaration and enumeration of the individual rights and privileges which the Constitution is designed to protect against violations by the government, or by individuals or groups of individuals. It is a charter of liberties for the individual and a limitation upon the power of the state. Penal laws are those imposing punishment for an offense committed against the state which the executive of the state has the power to pardon. In other words, a penal law denotes punishment imposed and enforced by the state for a crime or offense against its law. Filoteo, Jr. v. Sandiganbayan, G.R. No. 79543, October 16, 1996.

39 Vicencio v. Villar, G.R. No. 182069, July 3, 2012.

40 *See* Limson v. Wack Wack Condominium Corporation, G.R. No. 188802, February 11, 2011.

41 Review Center Association of the Philippines v. Executive Secretary, G.R. No. 180046, April 2, 2009.

The case of *J.M. Tuason & Co., Inc. v. Land Tenure Administration*[42] aptly demonstrates the Supreme Court's use of the language of the Constitution in resolving a constitutional issue. This case involved the validity of Republic Act No. 2616[43] which provided, among others, that "[t]he expropriation of the Tatalon Estate in Quezon

42 G.R. No. L-21064, February 18, 1970.

43 The entire Act is reproduced below:

REPUBLIC ACT NO. 2616

AN ACT PROVIDING FOR THE EXPROPRIATION OF THE TATALON ESTATE IN QUEZON CITY AND FOR THE SALE, AT COST, OF THE LOTS THEREIN TO THEIR PRESENT BONA FIDE OCCUPANTS, AND AUTHORIZING THE APPROPRIATION OF TEN MILLION PESOS FOR THE PURPOSE

SECTION 1. The expropriation of the Tatalon Estate in Quezon City jointly owned by the J. M. Tuazon and Company, Inc., Gregorio Araneta and Company, Inc., and Florencio Deudor, et al., is hereby authorized.

SECTION 2. Immediately upon the appropriation of funds by the Congress of the Philippines for the payment of just compensation for the said Tatalon Estate, the Solicitor General, or any other proper Government authority shall institute the necessary expropriation proceedings before the Court of First Instance of Quezon City.

SECTION 3. After the expropriation of the Tatalon Estate as provided in this Act, the lots therein shall be sold at cost to their present bona fide occupants in not more than two hundred forty equal monthly installments with interest of not more than six per centum per annum on the unpaid balance.

SECTION 4. After the expropriation proceedings mentioned in section two of this Act shall have been initiated and during the pendency of the same, no ejectment proceedings shall be instituted or prosecuted against the present occupant of any lot in said Tatalon Estate, and no ejectment proceedings already commenced shall be continued, and such lot or any portion thereof shall not be sold by the owners of said estate to any person other than the present occupant without the consent of the latter given in a public instrument.

SECTION 5. Any owner, manager, agent, or other representative of the owners of said estate who shall violate the provisions of the preceding section shall be liable for exemplary damages equivalent to the amount of actual damages suffered by the prejudiced occupant, and for attorney s fees and expenses of litigation.

SECTION 6. No person acquiring by virtue of this Act any lot in the Tatalon Estate shall sell, transfer, mortgage or otherwise dispose of said lot or any portion thereof within five years from the date full ownership of such lot has been vested in him, without the consent of the Secretary of Agriculture and Natural Resources.

SECTION 7. The amount of ten million pesos is hereby authorized to be appropriated for the purposes of this Act, without prejudice to any other method of raising the necessary funds required for the expropriation herein provided, which the President of the Philippines may determine, including the use of proceeds of Government bonds and proceeds from the Japanese reparations.

SECTION 8. This Act shall take effect upon its approval.

Enacted without executive approval, August 3, 1959.

City jointly owned by the J. M. Tuason and Company, Inc., Gregorio Araneta and Company, Inc., and Florencio Deudor, et al., is hereby authorized." The landowners questioned the validity of the law.

On appeal, the Supreme Court interpreted the language of the Constitution to determine the scope of the power of Congress in relation to the exercise of eminent domain. The Court held that the language of the Constitution must be construed in its ordinary, common meaning. Absent any obscurity, it upheld the power of Congress:

It does not admit of doubt that the congressional power thus conferred is far from limited. It is left to the legislative will to determine what lands may be expropriated so that they could be subdivided for resale to those in need of them. Nor can it be doubted either that as to when such authority may be exercised is purely for Congress to decide. Its discretion on the matter is not to be interfered with.

Ultimately, the Court reversed the ruling of the trial court. It held Republic Act No. 2616 constitutional, denied the prohibition suit, and set aside the earlier preliminary injunction.

Another illustration of the role of language in construction is the case of *Civil Liberties Union v. Executive Secretary.*[44] That case involved the constitutionality of Executive Order No. 284 issued by President Corazon Aquino. The Order reconciled two provisions of the Constitution: Article VII, Section 13[45] and Article IX-B, Section 7(2),[46] of the 1987 Constitution. According to the Order, members of the Cabinet, their undersecretaries and their assistant secretaries are generally not allowed to hold another office during their tenure. However, this prohibition

44 G.R. Nos. 83896 & 83815, February 22, 1991.

45 The section provides:

> Sec. 13. The President, Vice-President, the Members of the Cabinet, and their deputies or assistants shall not, unless otherwise provided in this Constitution, hold any other office or employment during their tenure. They shall not, during said tenure, directly or indirectly practice any other profession, participate in any business, or be financially interested in any contract with, or in any franchise, or special privilege granted by the Government or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries. They shall strictly avoid conflict of interest in the conduct of their office.

46 Section 7 provides:

> Unless otherwise allowed by law or by the primary functions of his position, no appointive official shall hold any other office or employment in the government or any subdivision, agency or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries.

admitted of three exceptions, namely: (a) when directly provided for in the Constitution; or (b) if allowed by law; or (c) if allowed by the primary functions of their respective positions. Petitioners maintained that while Article VII, Section 13 applied to the President, her official family, and the Vice President, Section 7(2), Article IX-B applied to Civil Service officers and employees. The phrase "unless otherwise provided in this Constitution" in Article VII, Section 13 limited the exceptions to the prohibition and it referred to the Vice President's appointment as a Cabinet member and the Secretary of the Department of Justice as an ex-officio member of the Judicial and Bar Council.

The Supreme Court agreed. The Court observed that there is a stricter prohibition upon the President, her official family and the Vice-President. It construed that the framers intended such stricter prohibition to avoid a repetition of the practice during the Marcos regime wherein high-ranking officials of government held various offices in different government agencies, instrumentalities and corporations. Hence, the phrase "unless otherwise provided in this Constitution" referred exclusively to: (1) the Vice President being appointed as member of the Cabinet; (2) the Vice President acting as President; and (3) the Secretary of the Department of Justice being an ex-officio member of the Judicial and Bar Council. The Court declared that whenever prohibitory language is used in the Constitution, it must be understood in its literal meaning, imposing a positive and unequivocal negation. Since the language of Section 13, Article VII is prohibitory, it must be "understood as intended to be a positive and unequivocal negation of the privilege of holding multiple government offices and or employment."

WHEN CONSTRUCTION IS REQUIRED

A cardinal rule in statutory construction is that when the law is clear and free from any doubt or ambiguity, there is no room for construction or interpretation. There is only room for application.[47] Construction or interpretation comes only after it is shown that an application of the law is impossible or inadequate without such interpretation.[48]

47 Amores v. House Electoral Tribunal, G.R. No. 189600, June 29, 2010.

48 Philippine Veteran s Bank v. Callangan, G.R. No. 191995, August 3, 2011.

Sarmiento v. Mison[49] is an illustration of how the Court dealt with an ambiguous provision in the Constitution. The appointment of Salvador Mison as Commissioner of the Bureau of Customs was effected without the confirmation of the Commission on Appointments. Petitioners argued that such appointment contradicted Article VII, Section 16[50] of the 1987 Constitution which required the consent of the Commission on Appointments, and must, therefore, be voided. In interpreting the constitutional provision, the Supreme Court traced legislative history through the 1935 and 1973 Constitutions, ascertained the intent of the framers in their deliberations, clarified the construction of certain words in the provision, considered the nature of the power to appoint, and harmonized the provision with other existing laws.

In the 1935 Constitution, almost all presidential appointments required the confirmation of the Commission on Appointments. The 1973 Constitution placed absolute power in the President in the matter of appointments. The Constitutional Convention struck the "middle ground" when, in Section 16, Article VII of the 1987 Constitution, it made classifications of appointees to the government. As detailed by the Court, these classifications are:

> First, the heads of the executive departments, ambassadors, other public ministers and consuls, officers of the armed forces from the rank of colonel or naval captain, and other officers whose appointments are vested in him in this Constitution;
>
> Second, all other officers of the Government whose appointments are not otherwise provided for by law;
>
> Third, those whom the President may be authorized by law to appoint; and

49 G.R. No. 79974, December 17, 1987.

50 Section 16 reads:

> Sec. 16. The President shall nominate and, with the consent of the Commission on Appointments, appoint the heads of the executive departments, ambassadors, other public ministers and consuls, or officers of the armed forces from the rank of colonel or naval captain, and other officers whose appointments are vested in him in this Constitution. He shall also appoint all other officers of the Government whose appointments are not otherwise provided for by law, and those whom he may be authorized by law to appoint. The Congress may, by law, vest the appointment of other officers lower in rank in the President alone, in the courts, or in the heads of the departments, agencies, commissions or boards& .

> Fourth, officers lower in rank whose appointments the Congress may by law vest in the President alone."

While the first set of officers must clearly be confirmed by the Commission of Appointments, the Court had to refer to the debates of the Constitutional Commission to ascertain whether or not the same confirmation is required for the other groups. The records of the Constitutional Commission revealed that the framers intended the appointments of the second and third groups of officers to be effected without need of confirmation by the Commission on Appointments. The contention that the word "also" in the second sentence (of the Constitutional Commission's discussion) meant that the second group required confirmation was rejected by the Court. Instead, it ruled that "also" simply meant "in addition to, as well, or besides." By this interpretation, the provision simply read that in addition to the power to appoint officers of the first group with the confirmation of the Commission on Appointments, the President can also appoint officers of the second group.

The use of the word "alone" in the third sentence was also put into issue. Petitioners submitted that absent legislation, the appointment of lower-ranked officers (fourth group) must be made by the President, with the consent of the Commission on Appointments; and if this were so, it must follow that the same procedure should be observed as for the appointment of higher-ranked officers. In contrast, the respondents posited that it simply referred to the option of Congress to vest the power to appoint lower-ranked officers in the President. Ruling in favor of either party, the Court held that the word "alone" was a mere slip in draftsmanship. Its use in the 1935 Constitution to denote an exception to the need for confirmation by the Commission on Appointments could not be extended to the 1987 Constitution wherein the clear intent of the framers was to vest the power to appoint such group of officers in the President without further need of confirmation. Taken literally, such word appeared to be a redundancy in light of the second sentence; a redundancy which could not prevail over the intent of the framers.

The Court gave import to the power of appointment as fundamentally executive in character; hence, limitations to it must be strictly construed. Strict construction requires the clear statement of the limitations.

Hence, the Court upheld the validity of Mison's appointment.

The case of *Integrated Bar of the Philippines v. Zamora*[51] demonstrates a literal construction of a constitutional provision. An order by President Estrada directing the Philippine National Police and the Marines to work together in establishing visibility patrols in the Metro Manila area in order to suppress an alarming increase of violent crimes was declared constitutional. The Integrated Bar of the Philippines, fearing that the order might serve as a precedent for military ascension and curtailment of civil liberties of the people, filed suit to have the order declared unconstitutional. The Court refused to strike down the order of the President. It based its decision upon the literal construction of Article VII, Section 18[52] of the Constitution and upon the deliberations of the Constitutional Commission. From the constitutional provision, the Court identified the difference between the calling out power of the President on one hand, and the power to suspend the privilege of the writ of *habeas corpus* and the proclamation of martial law on the other. While the latter two powers require two conditions to concur, i.e., an actual invasion or rebellion and a requirement of public safety, the calling out power remains discretionary upon the President "whenever it becomes necessary."

It was likewise observed that the calling out power was not subject to revocation or review by Congress or the Judiciary. The maxim of *expressio unius est exclusio alterius*, or limiting the construction of the terms that apply to certain matters to such matters alone, without extensions, was applied. This distinction, according to the Court, places the calling out power in a different category than the two other powers. The Court confirmed that this distinction was intended by the framers when it cited the records of the Constitutional Commission.

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51 G.R. No. 141284, August 15, 2000.

52 The pertinent provisions read as follows:

> Section 18. The President shall be the Commander-in-Chief of all armed forces of the Philippines and whenever it becomes necessary, he may call out such armed forces to prevent or suppress lawless violence, invasion or rebellion. In case of invasion or rebellion, when the public safety requires it, he may, for a period not exceeding sixty days, suspend the privilege of the writ of *habeas corpus* or place the Philippines or any part thereof under martial law& .The Congress, voting jointly, by a vote of at least a majority of all its Members in regular or special session, may revoke such proclamation or suspension, which revocation shall not be set aside by the President…
>
> The Supreme Court may review, in an appropriate proceeding filed by any citizen, the sufficiency of the factual basis of the proclamation of martial law or the suspension of the privilege of the writ of *habeas corpus* or the extension thereof, and must promulgate its decision thereon within thirty days from its filing.

Thus, it was held that the President had full discretion in calling out the military when, in his judgment, it was necessary to do so, or when it was for the purposes of suppressing lawless violence, invasion or rebellion. Absent any proof that the President abused this discretion by exercising the power without any factual basis, such exercise would be respected by the Court.[53]

MANDATORY AND DIRECTORY PROVISIONS

There is no hard-and-fast rule in determining whether the language in a statute should be considered mandatory or directory. According to the Supreme Court, the issue is addressed on a case-to-case basis and courts should look into the nature, structure and aim of the law to determine legislative intent.[54] "Generally, it is said that if no consequential rights or liabilities depend on it and no injury can result from ignoring it, and that the purpose of the legislature can be accomplished in a manner other than that prescribed when substantially the same results can be obtained, then the statute should be regarded merely as directory, rather than as mandatory, in character."[55]

In *Marcelino v. Cruz, Jr.*,[56] the Court ruled on the directory nature of constitutional provisions on procedure when Bernardino Marcelino, charged with the crime of rape, moved for postponement of the promulgation of his conviction. Eighty-five days after the case was submitted for decision, Judge Fernando Cruz, Jr. filed his

53 Integrated Bar of the Philippines v. Zamora, G.R. No. 141284, August 15, 2000. Here, the Court explained that while it had no power to substitute its judgment for that of Congress or of the President, it may look into the question of whether such exercise has been made in grave abuse of discretion. A showing that plenary power is granted either department of government does not always bar judicial inquiry because the improper exercise of that power may give rise to justiciable controversy. According to the Court, while it cannot overrule the President s wisdom, this does not prevent an examination of whether such power was exercised within permissible constitutional limits or whether it was exercised in a manner constituting grave abuse of discretion. Because the constitution gives the President full discretionary power to determine the necessity of calling out the armed forces, the burden falls upon the petitioner to show that the President s decision is totally bereft of factual basis. In this case, there is no evidence to support the assertion that there existed no justification for calling out the armed forces. Nor was there evidence to show that grave abuse was committed because the power to call was exercised in such a manner as to violate the constitutional provision on civilian supremacy over the military.

54 Bermudez v. Executive Secretary, G.R. No. 131429, August 4, 1999.

55 *Id.*

56 G.R. No. L-42428, March 18, 1983.

decision on the case with the Deputy Clerk of Court. On the date of promulgation, however, the accused moved for the postponement of the promulgation on the ground of loss of jurisdiction for failure to resolve the case within the 90-day period provided for in the Constitution.

The Court pronounced that the trial court was able to render the decision within the 90-day period, when on the eighty-fifth day, it filed the decision. First, the reckoning date of the period was not that of the promulgation but that of the rendition of judgment and filing with the Clerk of Court. And in any case, the 90-day period in the Constitution is directory. Section 11(1), Article X of the Constitution provides that:

> Sec. 11 (1) Upon the effectivity of this Constitution, the maximum period within which a case or matter shall be decided or resolved from the date of its submission, shall be eighteen months for the Supreme Court, and, *unless reduced by the Supreme Court*, twelve months for all inferior collegiate courts, and three months for all other inferior courts.

While the Court recognized that constitutional provisions are generally mandatory, it held that there are exceptions. One such exception is the period of deciding a case which is held widely by authorities[57] to be merely directory. Evidencing this is the phrase "unless reduced by the Supreme Court," which shows that such period may be modified according to the Court's sound discretion. Characterizing such provision as merely procedural, the Court relied upon the pronouncement in *Albermarle Oil & Gas Co. v. Morris*[58] that constitutional provisions on procedure are directory.

Finally, the Court explained that the liberal construction of the provision would result in less injury to the public and would avoid "absurd, impossible or mischievous" outcomes.

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57 The Court cited Trapp v. McCormick, 130 S.W. 2d 122, 125,175 Tenn.; American Tupe Founders Co. v. Justice s Court, 133 Cal. 819, 65 Pac. 742; Heillen v. Phillips, 88 Cal. 557, 26 Pac. 366; Drake v. Bagley, 69 Mo. App. 39; State v. Davis, 194 Mo. 585, 5 Ann. Cas. 1000, 4 L.R.A. (N.S.) 1023, 92 S.W. 484; Wissman v. Meagher, 115 Mo. App. 82, 91 S.W. 448; Pohle v. Dickmann, 67 Mo. App. 381; Herwick v. Koken Barber Supply Co., 61 Mo. App. 454.

58 121, S.E. 60, 62.

The Court in *Co v. Electoral Tribunal*,[59] on the other hand, ruled on the exclusivity of the jurisdiction of the House of Representatives Electoral Tribunal in construing the word "sole" in the constitutional provision. When Jose Ong, Jr. won the congressional race for the second legislative district of Northern Samar during the 1987 elections, his citizenship and residence were questioned through an election protest filed by Sixto Balinquit and Antonio Co, his political rivals. The House of Representatives Electoral Tribunal found for Ong, Jr. and the subsequent motion for reconsideration of Balinquit and Co was denied. Hence, they filed separate petitions for *certiorari* before the Supreme Court, questioning the jurisdiction of the Tribunal over the election protests.

The Court upheld the jurisdiction of the Tribunal. It ruled that the Constitution explicitly provided for the Tribunal's power in Article VI, Section 17 as the sole judge of all contests relating to the election, returns and qualifications of its members. It construed the word 'sole' as an emphasis of the exclusivity of the jurisdiction of the Tribunal. Such power was described to be 'full, clear and complete,' such that even the Court could not restrict or curtail it. The only exception was laid down in the earlier case of *Robles v. House of Representatives Electoral Tribunal*[60] wherein the Court stated that decisions or resolutions of the Tribunal may be inquired into by the Court when these were rendered without or in excess of its jurisdiction, or with grave abuse of discretion. Hence, the Court could not strike down the ruling of the Tribunal for a mere error if there was no grave abuse of discretion. The Court found no such grave abuse of discretion in the case, and it dismissed the petitions upon the conclusion that Ong, Jr. was a natural-born citizen of the Philippines and a resident of Laoang, Northern Samar.

AIDS IN INTERPRETATION

In *Legaspi v. Minister of Finance*,[61] the Supreme Court looked at the purpose of the law in ruling on the constitutionality of Amendment No. 6 of President Marcos. Pursuant to the grant of legislative powers to the President in Amendment No. 6 of the 1973 Constitution, President Marcos promulgated Presidential Decree No. 1840, essentially granting tax amnesty to delinquent taxpayers. Valentino Legaspi, a

59 G.R. Nos. 92191-92, July 30, 1991.
60 G.R. No. 86647, February 5, 1990.
61 G.R. No. L-58289, July 24, 1982.

member of the interim *Batasang Pambansa*, questioned the constitutionality of the decree before the Supreme Court, alleging that the President's power to legislate under Amendment No. 6 had not been carried over by more recent constitutional amendments. In finding for the validity of the law, the Court concluded that:

> Constitutional law is not simply the literal application of the words of the Charter. The ancient and familiar rule of constitutional construction that has consistently maintained its intrinsic and transcendental worth is that the meaning and understanding conveyed by the language, albeit plain, of any of its provisions do not only portray the influence of current events and developments but likewise the inescapable imperative considerations rooted in the historical background and environment at the time of its adoption and thereby caused their being written as part and parcel thereof. As long as this Court adheres closest to this perspective in viewing any attack against any part of the Constitution, to the end of determining what it actually encompasses and how it should be understood, no one can say We have misguided Ourselves. None can reasonably contend We are treading the wrong way.

It then traced the four constitutional measures to be implemented whenever national security is threatened (delegation of emergency powers by the Batasan, calling out power, suspension of the writ of *habeas corpus*, and martial law) through the 1935 and 1973 Constitutions. The external legislative power of the President was construed by the Court as an addition to these measures. In defense of Amendment No. 6, the Court discussed that its *raison d'etre* is "that the Philippines be henceforth spared of martial law unless manifest extreme situations should ever demand it."

In construing constitutional provisions which are ambiguous, courts may consider the debates in the constitutional convention to shed light on the intent of the framers of the Constitution. The intent of the convention is not controlling by itself but "the understanding of the convention as to what was meant by the terms of the constitutional provision that was the subject of the deliberation, helps in explaining the understanding of the people when they ratified it."[62]

62 G.R. No. 176579, June 28, 2011.

Montejo v. COMELEC[63] resorted to the records of the Constitutional Commission when the Court invalidated the Commission on Elections' Resolution No. 2736, redistricting certain municipalities in the province of Leyte. The Resolution transferred municipalities from one legislative district to another. The Court reviewed the records of the Constitutional Commission which revealed that the COMELEC was only empowered to make minor adjustments to the reapportionments in the Ordinance appended to the Constitution. The Court ruled that the power to make legislative apportionments was wielded by the Constitutional Commission itself, and thereby struck down the resolution.

But resort to the deliberations of the Constitutional Commission does not yield an absolutely certain interpretation, as the Court demonstrated in the case of *La Bugal-B'laan Tribal Association, Inc. v. Ramos.*[64] Initially, the Court favored the validity of the Financial and Technical Assistance Agreement (FTAA) of the Philippine Government with Western Mining Corporation (Philippines) Inc. (WMCP), a foreign-owned corporation, for the exploration, development and utilization of 99,387 hectares of land in South Cotabato, Sultan Kudarat, Davao del Sur and North Cotabato. A Petition for Prohibition and *Mandamus* was filed by petitioners, assailing the validity not only of the FTAA but also of Republic Act No. 7942 otherwise known as The Philippine Mining Act, and DENR Administrative Order No. 96-40, its implementing rules and regulations. Petitioners averred that Republic Act No. 7942, DENR Administrative Order No. 96-40 and the FTAA are unconstitutional for allowing foreign corporations to undertake exploration, development and utilization of Philippine mining resources. By then, the full equity of WMCP was sold to Sagittarius Mines, Inc., a domestic corporation with 60% Filipino ownership. The transfer of the FTAA to Sagittarius Mines, Inc. was then approved by the DENR.

Earlier, on January 2004, the Court granted the petition. It ruled that the FTAA was in the nature of service contracts prohibited under the Constitution. However, the Court overturned the said grant in its December 2004 Resolution. The Court resolved that the phrase "agreements involving either technical or financial assistance" in paragraph 4, Section 2, Article XII meant that the State may enter into contracts for the exploration, development and utilization with foreign corporations, wherein the participation of the latter is not limited to mere technical or financial

63 G.R. No. 118702, March 16, 1995.

64 G.R. No. 127882. December 1, 2004.

assistance. The Court emphasized the use of the word "involving", which it took as an indication that there may be forms of assistance or activities, other than the technical and financial aspects, that the Government may outsource. The Court also resorted to the deliberations of the Constitutional Commission. From the record, the Court showed that the drafters interchangeably used the term 'agreements involving either technical or financial assistance' and 'service contracts'. The deliberations confirmed that the drafters did not intend to impose a total ban on such contracts, but merely to install sufficient safeguards to eliminate or minimize abuses. The Court concluded that these new service contracts, wherein the Government was the principal or owner and foreign corporations were contractors, allowed under the Constitution for as long as the Government actively exercised full control and supervision over the entire enterprise.

The same dilemma arose in *De Castro v. Judicial and Bar Council*[65] where both the Court and dissenter Justice Carpio-Morales relied, among others, on the deliberations of the Commission in respectively finding that the sitting President is permitted or not permitted to appoint the Chief Justice of the Supreme Court even within two months immediately preceding the next presidential elections. While Section 4(1), Article VIII of the Constitution mandates the President to appoint a new Chief Justice within ninety days from the vacancy of such position, Section 15, Article VII prohibits the President from making appointments two months immediately before the next presidential elections until the end of term. The import of whether the presidential mandate to appoint under the former provision or the prohibition on appointments in the latter provision should apply was brought forth by the compulsory retirement of former Chief Justice Reynato Puno a few days after the May 2010 presidential elections.

The Court concluded that the prohibition does not extend to the Judiciary, citing seven reasons for its stand. First, the Court said that reference to the records of the deliberations of the Constitutional Commission showed that the framers did not intend to include judicial appointments in the prohibition. It took notice of the separation of appointments under the article on the Executive Department and those under the article on the Judiciary, and pronounced that the 90-day limitation for filling the vacancy in the Supreme Court was a special provision to establish a definite mandate for the President as the appointing power. It reversed its earlier ruling *In Re Appointments Dated March 30, 1998 of Hon. Mateo A. Valenzuela and*

65 G.R. No. 191002, March 17, 2010.

Hon. Placido B. Vallarta as Judges of the Regional Trial Court of Branch 62, Bago City and of Branch 24, Cabanatuan City, respectively (Valenzuela)[66] which upheld the prohibition even as against members of the Judiciary. Second, it held that prohibition does not apply to all other appointments in the Judiciary. The establishment of the Judicial and Bar Council proved that there was an intent to avoid midnight appointments since the Judicial and Bar Council is expected to undertake an unhurried and deliberate process of appointment even before the vacancy occurs. Third, the constitutionality of appointments to the Judiciary within the prohibition period was confirmed by Justice Regalado in 1998, and this confirmation was accepted by the Judicial and Bar Council. Fourth, Section 15 of Article VII must be taken in the context of Section 14 and 16, both of which pertain to appointments in the executive department. Fifth, appointment by the succeeding President would not ensure judicial independence. Also, such a holding would tie the Judiciary to the fortunes and misfortunes of the presidential candidates. Sixth, the argument that there would still be time for compliance with the 90-day limitation after the election was flawed because it does not take into consideration that this period applies to every vacancy, and not just the one by Former Chief Justice Puno. Seventh, there is doubt, said the Court, as to whether the appointment may be made among the sitting justices without need for a Judicial and Bar Council list, as can be inferred from a reading of Section 4(1).

In her dissenting opinion, Justice Carpio-Morales favored the invalidity of the presidential power to appoint the Chief Justice during the 2-month period prior to the next elections. She reasoned that the power to appoint the Chief Justice is counterbalanced by the election ban, a measure much needed to insulate the Judiciary from the political climate of presidential elections. She rebutted the rationale of the majority opinion as follows: First, the ratiocination that lends functional import to the draftsmanship and sequencing of constitutional provisions is insufficient in ascertaining the intent of the framers. Second, the conclusion that the prohibition does not apply to appointments to the Judiciary is belied by the Constitutional Commission deliberations cited in the earlier case of *Aytona v. Castillo*.[67] In the records, Mr. Davide explained the proposal on the prohibition, thus:

66 A.M. No. 98-5-01-SC, November 9, 1998.

67 G.R. No. 19313, January 19, 1962.

> The idea of the proposal is that about the end of the term of the President, he may prolong his rule indirectly by appointing people to these sensitive positions, like the commissions, the Ombudsman, the JUDICIARY, so he could perpetuate himself in power even beyond his term of office.

Third, the *ponencia* pronouncement on the attainment of judicial independence is flawed because it overlooks the very risk of compromising judicial independence when the incumbent President faces charges subsequently filed against her/him. Fourth, the interpretation of the ponencia is not in accord with the rules of statutory construction (*ubi lex non distinguit nec nos distinguere debemus, expressio unius et exclusion alterius, casus omissus pro omisso habendus est* and *verba legis non est recedendum, index animi sermo est*). There was no distinction or exception installed, so it is clear that the general and only rule is that the prohibition applies to all kinds of midnight appointments. Fifth, the weight and due consideration given to the opinion of Justice Regalado as against the *Valenzuela* doctrine ignores the fact that the latter was decided by the Court *en banc*. *Valenzuela* was penned by no less than former Chief Justice Andres Narvasa, and concurred in by, *inter alia*, then Associate Justices Hilario Davide, Jr., Artemio Panganiban and Reynato Puno, all of whom later became Chief Justices. Sixth, the running of the 90-day limitation is deemed suspended during the prohibition period, a ban which takes effect only once every six years. Seventh, whether or not the Judicial and Bar Council's list is necessary for appointment is a non-issue since the Constitution clearly states that the appointment must come "from a list…prepared by the Judicial and Bar Council." Lastly, the Court can function even without a sitting Chief Justice. The express allowance of a 90-day period of vacancy rebuts any policy argument on the necessity to avoid a vacuum of even a single day in the position of an appointed Chief Justice.

STATUTES AND EXECUTIVE REGULATIONS NOT BINDING ON COURTS

Statutes and implementing rules are entitled to great weight in constitutional construction only as indicators of contemporaneous interpretation. Their interpretation, however, is not necessarily binding or conclusive on the courts. Citing jurisprudence, the Supreme Court held that:

> …where the meaning of a constitutional provision is clear, a contemporaneous or practical…executive interpretation thereof is entitled to no weight and will not be allowed to distort or in any way change its natural meaning. The reason is that "the application of the doctrine of contemporaneous construction is more restricted as applied to the interpretation of constitutional provisions than when applied to statutory provisions," and that "except as to matters committed by the Constitution itself to the discretion of some other department, contemporaneous or practical construction is not necessarily binding upon the courts, even in a doubtful case." Hence, "if in the judgment of the court, such construction is erroneous and its further application is not made imperative by any paramount considerations of public policy, it may be rejected."[68]

SELF-EXECUTING PROVISIONS

Not all provisions of the Constitution are immediately operative. Litigants may not invoke a provision simply because it is found in the Constitution. While generally, the provisions of the Constitution are self-executing, there are some that are not.

Article II of the Constitution is a "declaration of principles and state policies." They are not intended to be self-executing principles ready for enforcement through the courts. They are used by the judiciary as aids or as guides in the exercise of its power of judicial review, and by the legislature in its enactment of laws.[69]

Yet in *Oposa v. Factoran*,[70] the Court held that Sections 15 and 16 may be the bases of a suit:

> While the right to a balanced and healthful ecology is to be found under the Declaration of Principles and State Policies and not under the Bill of Rights, it does not follow that it is less important than any of the civil and political rights enumerated in the latter. Such a right belongs to a different category of rights altogether for it concerns nothing less than

68 Alternative Center for Organizational Reforms and Development, Inc. v. Zamora, G.R. No. 144246, June 8, 2005.

69 Tañada v. Angara, G.R. No. 118295, May 2, 1997.

70 G.R. No. 101083, July 30, 1993.

> self-preservation and self-perpetuation—aptly and fittingly stressed by the petitioners—the advancement of which may even be said to predate all governments and constitutions. As a matter of fact, these basic rights need not even be written in the Constitution for they are assumed to exist from the inception of humankind. If they are now explicitly mentioned in the fundamental charter, it is because of the well-founded fear of its framers that unless the rights to a balanced and healthful ecology and to health are mandated as state policies by the Constitution itself, thereby highlighting their continuing importance and imposing upon the state a solemn obligation to preserve the first and protect and advance the second, the day would not be too far when all else would be lost not only for the present generation, but also for those to come — generations which stand to inherit nothing but parched earth incapable of sustaining life.

In *Tañada*, the Court also said that "some sections of Article XII are not self-executing provisions, the disregard of which can give rise to a cause of action in the courts. They do not embody judicially enforceable constitutional rights but guidelines for legislation."[71] In *Gamboa v. Teves*,[72] the Court held that Section 11, Article XI, like other provisions of the Constitution, expressly reserving to Filipinos specific areas of investment, such as the development of natural resources and ownership of land, educational institutions and advertising businesses, is *self-executing.* As such, there is no need for legislation to implement these provisions of the Constitution. Citing *Manila Prince Hotel v. GSIS*,[73] the Court explained that a provision which lays down a general principle, such as those found in Article II of the 1987 Constitution is usually not self-executing. The Court held:

> But a provision which is complete in itself and becomes operative without the aid of supplementary or enabling legislation, or that which supplies sufficient rule by means of which the right it grants may be enjoyed or protected, is self-executing. Thus a constitutional provision is self-executing if the nature and extent of the right conferred and the liability imposed are fixed by the constitution itself, so that they can be determined by an

71 Tañada v. Angara, G.R. No. 118295, May 2, 1997

72 G.R. No. 176579, June 28, 2011.

73 G.R. No. 122156, February 3, 1997.

examination and construction of its terms, and there is no language indicating that the subject is referred to the legislature for action.

Article XIII, Section 3 is also held as not self-executing.[74]

On the other hand, one may also find self-executing provisions in Article XII. The Supreme Court had an opportunity to illustrate this point in *Tañada v. Angara*.[75] In that case, acts of both the Executive and the Senate, which bound the State as a member of the World Trade Organization (WTO), were assailed as unconstitutional. Petitioners in this case claimed that the parity and national treatment clauses of the Agreement to enter into the WTO were in violation of economic nationalism, as embodied in Section 19, Article II, and Sections 10 and 12, Article XII of the 1987 Constitution. The Government on the other hand, argued that the constitutional provisions cited were not self-executing, and therefore, could not be made bases of judicially enforceable claims.

The Court held that Section 19, Article II was a mere declaration of principle, which is not self-executing. It stated that these principles are used by the Judiciary as aids or guides in the exercise of its power of judicial review, and by the legislature in its enactment of laws. The Court also held that Sections 10 and 12 of Article XII should be read with other constitutional mandates in the same article. It clarified that the issue was not whether Section 10 is self-executing or not, but rather, whether, as a rule, there are enough balancing constitutional provisions. The Court found that there were, and declared that while the Constitution mandates a bias in favor of Filipino goods, services, labor and enterprises, the Constitution does not prohibit the entry of foreign goods, services, and investments into the country. It ruled that the Constitution allowed the Senate to ratify the Philippine concurrence in the WTO Agreement.

The Court has made clear in a number of cases that unless it is expressly provided that a legislative act is necessary to enforce a constitutional mandate, all the provisions of the Constitution are presumed to be self-executing. Otherwise, if the constitutional provisions are treated as requiring legislation instead of being self-executing, the legislature would have the power to ignore and practically nullify

74 Serrano v. Gallant Maritime Services, Inc., G.R. No. 167614, March 24, 2009.

75 G.R. No. 118295, May 2, 1997.

the mandate of the fundamental law, which could then lead to cataclysmic results.[76] Following this rule, the Court held that impeachment provisions are self-executing.

The Supreme Court has also held that the provision on the President's power of control over all executive departments, bureaus, and offices is self-executing and does not require any implementing law. Congress cannot limit or curtail the President's power of control over the Executive branch.[77] The provisions on terms of local officials have been held as self-executing, being fixed clearly and unequivocally in the Constitution and "allowing no room for any implementing legislation with respect to the fixed term itself and no vagueness that would allow an interpretation from this Court." The term of three years for local officials should stay at three years as fixed by the Constitution and cannot be extended as holdover by Congress.[78]

76 Gutierrez v. House Committee on Justice, G.R. No. 193459, February 15, 2011.

77 Boy Scouts of the Philippines v. Commission on Audit, G.R. No. 177131, June 7, 2011.

78 Kida v. Senate of the Philippines, G.R. No. 196271, October 18, 2011.

CHAPTER 4

Judicial Review

The Constitution vests the power of judicial review or the power to declare a law, treaty, international or executive agreement, presidential decree, order, instruction, ordinance, or regulation, in the courts, including the regional trial courts.[1] The power is recognized under Article VIII, Section 4 (2) of the Constitution. Through the power of judicial review, the judiciary enforces and upholds the supremacy of the Constitution. The determination of whether a specific rule or set of rules issued by an administrative agency contravenes the law or the constitution is within the jurisdiction of the regular courts.

ORIGINS AND CONSTITUTIONAL BASIS

The Court has been given the power to review discretionary acts of the political branches of government, thus raising concerns that it could become the most dangerous branch of government.[2] The courts were assigned broader powers under the 1987 Constitution as a consequence of the judiciary's subservience under the Marcos regime. During the regime, the Supreme Court avoided confrontation with Marcos by invoking the 'political question' doctrine—claiming that the issues raised before it were better decided by other branches of government. The 1987 Constitution removed that option and the Court has interpreted its power broadly;

1 Betoy v. Board of Directors, National Power Corporation, G.R. No. 156556-57, October 4, 2011; SMART Communications, Inc. v. National Telecommunications Commission, G.R. No. 151908, August 12, 2003.

2 Pacifico A. Agabin, *The Politics of Judicial Review over Executive Action: The Supreme Court and Social Change*, in Unconstitutional Essays 167-198 (1996).

almost every political issue, now, has reached the Supreme Court. Under the new Constitution, the Court has been called a component of the legislative process.[3]

The power of judicial review is conferred on the judicial branch of the government by Section 1, Article VIII of the 1987 Constitution:

> SECTION 1. The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law.
>
> Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and *to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the government.*

Any inquiry into the history and breadth of judicial review in the Philippines usually begins with *Angara v. Electoral Commission*.[4] In that case, the Supreme Court explained that:

> The Constitution has blocked out with deft strokes and in bold lines, allotment of power to the executive, the legislative and the judicial departments of the government. The overlapping and interlacing of functions and duties between the several departments, however, sometimes makes it hard to say just where the one leaves off and the other begins. In times of social disquietude or political excitement, the great landmarks of the Constitution are apt to be forgotten or marred, if not entirely obliterated. In cases of conflict, the judicial department is the only constitutional organ which can be called upon to determine the proper allocation of powers between the several departments and among the integral or constituent units thereof.
>
> As any human production, our Constitution is of course lacking perfection and perfectibility, but as much as it was within the power of our people, acting through their delegates to so provide, that instrument which is

3 *See* Stacia Haynie, *Paradise Lost: Politicisation of the Philippine Supreme Court in the Post Marcos Era,* 22:4 Asian Studies Review 459-473 (1988). For a more detailed account of the erosion of judicial independence under the Marcos regime, *see* Dante Gatmaytan-Magno, *Judicial Review and Redemption in the Philippines*, 25 UCLA Pac. Basin L.J. 1-24 (2007).

4 G.R. No. L-45081, July 15, 1936.

the expression of their sovereignty however limited, has established a republican government intended to operate and function as a harmonious whole, under a system of checks and balances, and subject to specific limitations and restrictions provided in the said instrument. The Constitution sets forth in no uncertain language the restrictions and limitations upon governmental powers and agencies. If these restrictions and limitations are transcended it would be inconceivable if the Constitution had not provided for a mechanism by which to direct the course of government along constitutional channels, for then the distribution of powers would be mere verbiage, the bill of rights mere expressions of sentiment, and the principles of good government mere political apothegms. Certainly, the limitations and restrictions embodied in our Constitution are real as they should be in any living constitution. In the United States where no express constitutional grant is found in their constitution, the possession of this moderating power of the courts, not to speak of its historical origin and development there, has been set at rest by popular acquiescence for a period of more than one and a half centuries. In our case, this moderating power is granted, if not expressly, by clear implication from Section 2 of Article VIII of our Constitution.

The Constitution is a definition of the powers of government. Who is to determine the nature, scope and extent of such powers? The Constitution itself has provided for the instrumentality of the judiciary as the rational way. And when the judiciary mediates to allocate constitutional boundaries, it does not assert any superiority over the other departments; it does not in reality nullify or invalidate an act of the legislature, but only asserts the solemn and sacred obligation assigned to it by the Constitution to determine conflicting claims of authority under the Constitution and to establish for the parties in an actual controversy the rights which that instrument secures and guarantees to them. This is in truth all that is involved in what is termed "judicial supremacy" which properly is the power of judicial review under the Constitution. Even then, this power of judicial review is limited to actual cases and controversies to be exercised after full opportunity of argument by the parties, and limited further to the constitutional question raised or the very *lis mota* presented. Any attempt at abstraction could only lead to dialectics and barren legal questions and to sterile conclusions of wisdom, justice or expediency of legislation. More than that, courts accord the presumption of constitutionality to legislative

> enactments, not only because the legislature is presumed to abide by the Constitution but also because the judiciary in the determination of actual cases and controversies must reflect the wisdom and justice of the people as expressed through their representatives in the executive and legislative departments of the government.
>
> But much as we might postulate on the internal checks of power provided in our Constitution, it ought not the less to be remembered that, in the language of James Madison, the system itself is not "the chief palladium of constitutional liberty…the people who are authors of this blessing must valso be its guardians…their eyes must be ever ready to mark, their voice to pronounce…aggression on the authority of their constitution." In the last and ultimate analysis, then, must the success of our` government in the unfolding years to come be tested in the crucible of Filipino minds and hearts than in consultation rooms and court chambers.

As indicated in *Angara*, judicial review is indeed an integral component of the system of checks and balances which, together with the corollary principle of separation of powers, forms the bedrock of our republican form of government, and insures that its vast powers are utilized only for the benefit of the people it serves. The Court said:

> The separation of powers is a fundamental principle in our system of government. It obtains not through express provision but by actual division in our Constitution. Each department of the government has exclusive cognizance of matters within its jurisdiction, and is supreme within its own sphere. But it does not follow from the fact that the three powers are to be kept separate and distinct that the Constitution intended them to be absolutely unrestrained and independent of each other. The Constitution has provided for an elaborate system of checks and balances to secure coordination in the workings of the various departments of the government… And the judiciary in turn, with the Supreme Court as the final arbiter, effectively checks the other departments in the exercise of its power to determine the law, and hence to declare executive and legislative acts void if violative of the Constitution.[5]

5 *Id.*

The Constitution contains the "expanded *certiorari* jurisdiction" of the Supreme Court. As explained earlier, the Court now has the power "to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the government."

Former Chief Justice and Constitutional Commissioner Roberto Concepcion explained the reason for the expansion of the Supreme Court's power in his sponsorship speech of what is now Article VIII of the Constitution:

> Fellow Members of this Commission, this is actually a product of our experience during martial law. As a matter of fact, it has some antecedents in the past, but the role of the judiciary during the deposed regime was marred considerably by the circumstance that in a number of cases against the government, which then had no legal defense at all, the solicitor general set up the defense of political questions and got away with it. As a consequence, certain principles concerning particularly the writ of *habeas corpus*, that is, the authority of courts to order the release of political detainees, and other matters related to the operation and effect of martial law failed because the government set up the defense of political question. And the Supreme Court said: "Well, since it is political, we have no authority to pass upon it." The Committee on the Judiciary feels that this was not a proper solution of the questions involved. It did not merely request an encroachment upon the rights of the people, but it, in effect, encouraged further violations thereof during the martial law regime…
>
> Briefly stated, courts of justice determine the limits of power of the agencies and offices of the government as well as those of its officers. In other words, the judiciary is the final arbiter on the question whether or not a branch of government or any of its officials has acted without jurisdiction or in excess of jurisdiction, or so capriciously as to constitute an abuse of discretion amounting to excess of jurisdiction or lack of jurisdiction. This is not only a judicial power but a duty to pass judgment on matters of this nature.
>
> This is the background of paragraph 2 of Section 1, which means that the courts cannot hereafter evade the duty to settle matters of this nature, by claiming that such matters constitute a political question.[6]

6 Record of the Constitutional Commission 434-436 (1986).

Clearly, the innovation in the 1987 Constitution is meant to address the problem during the Marcos regime where the Supreme Court hid behind the "political question" doctrine as an excuse not to question the acts of the administration. This approach adopted by the Court did not improve its reputation during those repressive times; instead, it helped earn the Court's reputation as a rubberstamp of the dictator.

Political questions are "those questions which, under the Constitution, are to be decided by the people in their sovereign capacity, or in regard to which full discretionary authority has been delegated to the legislative or executive branch of government."[7] The 1987 Constitution limits resort to the 'political question' doctrine and broadens the scope of judicial inquiry into areas that the Court, under previous constitutions, would have normally left to the political departments to decide. Nevertheless, there are still issues beyond the Court's jurisdiction that are to be determined by the President, Congress, or for the people themselves through a plebiscite or referendum. Courts cannot question the President's recognition of a foreign government, set aside a presidential pardon, or amend the Constitution under the guise of resolving a dispute brought before it because that power is reserved to the people.[8]

In any case, the concept of a political question never precludes judicial review when the act of a constitutional organ infringes upon a fundamental individual or collective right.[9]

This grant of power under the 1987 Constitution is not meant to give the judiciary unbridled control over the other branches of government. When political questions are involved, the Constitution limits the courts' power to the determination as to whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of the official whose action is being questioned.

Grave abuse of discretion is well defined under the law: it is "simply [the] capricious or whimsical exercise of judgment that is patent and gross as to amount to an evasion of positive duty or a virtual refusal to perform a duty enjoined by law, or to act at all in contemplation of law, as where the power is exercised in an arbitrary and despotic manner by reason of passion or hostility."[10] Courts, under this definition, are without power to directly decide matters over which full discretionary authority

7 Tañada v. Cuenco, G.R. No. L-10520, February 28, 1957.

8 Marcos v. Manglapus, G.R. No. 88211, September 15, 1989.

9 The Diocese of Bacolod v. COMELEC, G.R. No. 205728, January 21, 2015.

10 Integrated Bar of the Philippines v. Zamora, G.R. No. 141284, August 15, 2000.

has been delegated to other branches of government. But while the Supreme Court has no power to substitute its judgment for that of Congress or of the President, it may look into the question of whether such exercise has been made in grave abuse of discretion. The grant of power to either the executive or legislative powers will not necessarily be an impediment to judicial inquiry because the irresponsible exercise or abuse of that power may give rise to a justiciable controversy.[11]

It is generally believed that the Supreme Court has been granted superior powers under the 1987 Constitution. The Court, however, is reluctant to join in this assessment. In *Mantruste Systems, Inc. v. Court of Appeals*,[12] the Supreme Court explained that:

> While the judicial power may appear to be pervasive, the truth is that under the system of separation of powers set up in the Constitution, the power of the courts over the other branches and instrumentalities of the Government is limited only to the determination of "whether or not there has been a grave abuse of discretion (by them) amounting to lack or excess of jurisdiction" in the exercise of their authority and in the performance of their assigned tasks (Sec. 1, Art. VIII, 1987 Constitution). Courts may not substitute their judgment for that of the APT [Asset Privatization Trust], nor block, by an injunction, the discharge of its functions and the implementation of its decisions in connection with the acquisition, sale or disposition of assets transferred to it.
>
> There can be no justification for judicial interference in the business of an administrative agency, except when it violates a citizen's constitutional rights, or commits a grave abuse of discretion, or acts in excess of, or without jurisdiction.

REQUISITES FOR EXERCISE OF JUDICIAL REVIEW

For a court to exercise this power, certain requirements must first be present. These are:

1. an actual case or controversy calling for the exercise of judicial power;

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11 Integrated Bar of the Philippines v. Zamora, G.R. No. 141284, August 15, 2000.

12 G.R. Nos. 86540-41, November 6, 1989.

2. the person challenging the act must have "standing" to challenge it; he must have a personal and substantial interest in the case such that he has sustained, or will sustain, direct injury as a result of its enforcement;
3. the question of constitutionality must be raised at the earliest possible opportunity; and
4. the issue of constitutionality must be the very *lis mota* of the case.[13]

These requirements are briefly explained as follows.

ACTUAL CASE OR CONTROVERSY

An actual case or controversy means an existing case or controversy that is appropriate or ripe for determination, not conjectural or anticipatory, lest the decision of the court would amount to an advisory opinion.[14]

This power cannot be exercised *in vacuo*. The function of the courts is to determine controversies between litigants and not to give advisory opinions. The power of judicial review can only be exercised in connection with a *bona fide* case or controversy which involves the statute sought to be reviewed and does not include the power to rule on a hypothetical situation.[15] Courts do not adjudicate academic questions to satisfy scholarly interest, however intellectually challenging.[16]

There is no case or controversy when the issue becomes moot. An issue or a case becomes moot when it ceases to present a justiciable controversy perhaps because of supervening events, so that a determination of the issue would have no practical use.[17] In such cases, there is no actual substantial relief to which the petitioner would be entitled and, which would be negated by the dismissal of the petition.[18] Courts generally decline jurisdiction over such case or dismiss it on the ground of mootness.[19]

When Joseph Estrada ran for President in 2010 a case was filed to disqualify him on the ground that a president was not eligible for reelection under the Constitution. Estrada, however, did not win the elections; therefore the issue was deemed moot. The Court dismissed the case in a very brief Resolution:

13 Garcia v. Executive Secretary, G.R. No. 157584, April 2, 2009.

14 Southern Hemisphere Engagement Network, Inc. v. Anti-Terrorism Council, G.R. No. 178552, October 5, 2010.

15 Agra v. Philippine National Bank, G.R. No. 133317, June 29, 1999.

16 Guingona v. Court of Appeals, G.R. No. 125532, July 10, 1998.

17 Peñafrancia Sugar Mill, Inc. v. Sugar Regulatory Administration, G.R. No. 208660, March 5, 2014.

18 Corona v. Senate of the Philippines, G.R. No. 200242, July 17, 2012.

19 Jacinto-Henares v. St. Paul College of Makati, G.R. No. 215383 (Resolution), March 8, 2017.

Republic of the Philippines
SUPREME COURT
Manila

EN BANC

ATTY. EVILIO C. PORMENTO,	G.R. Nos. 191988
Petitioner,	Present:
- versus –	CORONA, *C.J.*, CARPIO, CARPIO-MORALES, VELASCO, JR., NACHURA, LEONARDO-DE CASTRO, BRION, * PERALTA, ** BERSAMIN, DEL CASTILLO, ABAD, VILLARAMA, JR., PEREZ, MENDOZA, and SERENO, *JJ.*
JOSEPH "ERAP" EJERCITO ESTRADA AND COMMISSION ON ELECTIONS,	
Respondents.	
	Promulgated:
	August 31, 2010

x - - -

RESOLUTION

Chief Justice Corona is the *ponente* or author of this Resolution.

CORONA, *C.J.*:

The issue is immediately identified in the Resolution.

What is the proper interpretation of the following provision of Section 4, Article VII of the Constitution: "[t]he President shall not be eligible for any reelection?"

The novelty and complexity of the constitutional issue involved in this case present a temptation that magistrates, lawyers, legal scholars and law students alike would find hard to resist. However, prudence dictates that this Court exercise judicial restraint where the issue before it has already been mooted by subsequent events. More importantly, the constitutional requirement of the existence of a "case" or an "actual controversy" for the proper exercise of the power of judicial review constrains us to refuse the allure of making a grand pronouncement that, in the end, will amount to nothing but a non-binding opinion.

The facts and procedural history of the case are consolidated in one paragraph.

The petition asks whether private respondent Joseph Ejercito Estrada is covered by the ban on the President from "any reelection." Private respondent was elected President of the Republic of the Philippines in the general elections held on May 11, 1998. He sought the presidency again in the general elections held on May 10, 2010. Petitioner Atty. Evillo C. Pormento opposed private respondent's candidacy and filed a petition for disqualification. However, his petition was denied by the Second Division of public respondent Commission on Elections (COMELEC). His motion for reconsideration was subsequently denied by the COMELEC *en banc*.

Petitioner filed the instant petition for *certiorari* on May 7, 2010. However, under the Rules of Court, the filing of such petition would not stay the execution of the judgment, final order or resolution of the COMELEC that is sought to be reviewed. Besides, petitioner did not even pray for the issuance of a temporary restraining order or writ of preliminary injunction. Hence, private respondent was able to participate as a candidate for the position of President in the May

10, 2010 elections where he garnered the second highest number of votes.

Private respondent was not elected President the second time he ran. Since the issue on the proper interpretation of the phrase "any reelection" will be premised on a person's second (whether immediate or not) election as President, there is no case or controversy to be resolved in this case. No live conflict of legal rights exists. There is in this case no definite, concrete, real or substantial controversy that touches on the legal relations of parties having adverse legal interests. No specific relief may conclusively be decreed upon by this Court in this case that will benefit any of the parties herein. As such, one of the essential requisites for the exercise of the power of judicial review, the existence of an actual case or controversy, is sorely lacking in this case.

The Court explains why the case need not be resolved. The issue was mooted by Estrada's failure to win the 2010 elections.

As a rule, this Court may only adjudicate actual, ongoing controversies. The Court is not empowered to decide moot questions or abstract propositions, or to declare principles or rules of law which cannot affect the result as to the thing in issue in the case before it. In other words, when a case is moot, it becomes non-justiciable.

An action is considered "moot" when it no longer presents a justiciable controversy because the issues involved have become academic or dead or when the matter in dispute has already been resolved and hence, one is not entitled to judicial intervention unless the issue is likely to be raised again between the parties. There is nothing for the court to resolve as the determination thereof has been overtaken by subsequent events.

Assuming an actual case or controversy existed prior to the proclamation of a President who has been duly elected in the May 10, 2010 elections, the same is no longer true today. Following the results of that elections, private respondent was not elected President for the second time. Thus, any discussion of his "reelection" will simply be hypothetical and speculative. It will serve no useful or practical purpose.

Accordingly, the petition is denied due course and is hereby DISMISSED.

SO ORDERED.

The vote is 13-0 in favor of the dismissal of the case.

Carpio, Carpio Morales, Velasco, Jr., Nachura, Leonardo-de Castro, Bersamin, Del Castillo, Abad, Villarama, Jr., Perez, Mendoza and *Sereno, JJ.*, concur.

Brion, J., is on leave.

Peralta, J., is on official leave.

Courts might initially assume jurisdiction over a case but may be forced to dismiss the same because the issues raised therein have become moot. A case against then Chief Justice Renato Corona was dismissed after he was removed by the Senate sitting as an Impeachment Court.

Republic of the Philippines
SUPREME COURT
Manila

EN BANC

RE: COMPLAINT AGAINST THE HON. CHIEF JUSTICE RENATO C. CORONA DATED SEPTEMBER 14, 2011 FILED BY INTER-PETAL RECREATIONAL CORPORATION	A.M. No. 12-6-10-SC Present: CARPIO, VELASCO, JR., LEONARDO-DE CASTRO, BRION, PERALTA, BERSAMIN, DEL CASTILLO, ABAD, VILLARAMA, JR.,

PEREZ,
MENDOZA, and
SERENO,
REYES,
PERLAS-BERNABE, JJ.

Promulgated:

June 13, 2012

x - - -

and the paramount public interest is involved; *third*, the constitutional issue raised requires formulation of controlling principles to guide the bench, the bar, and the public; or *fourth*, the case is capable of repetition but has evaded review.[21]

Even if the case has been rendered moot, the Supreme Court can still pass upon the main issue of the case. The Court has the duty to formulate guiding and controlling constitutional precepts, doctrines or rules. It has the symbolic function of educating the bench and the bar especially if the issues being raised affect the public interest, such as the alleged misuse of public funds.[22]

PROPER PARTY

Even with the presence of an actual case or controversy, the court may refuse to exercise judicial review unless the constitutional question is brought before it by a party having the requisite standing to challenge it. Legal standing or *locus standi* is defined as a "personal and substantial interest in the case such that the party has sustained or will sustain direct injury as a result of the governmental act that is being challenged."[23] For a citizen to have standing, he must establish that he has suffered some actual or threatened injury as a result of the allegedly illegal conduct of the government; the injury is fairly traceable to the challenged action; and the injury is likely to be redressed by a favorable action.[24]

A proper party is one who has sustained or is in immediate danger of sustaining an injury as a result of the act complained of. Until and unless such actual or threatened injury is established, the complainant is not clothed with legal personality to raise the constitutional question.[25]

In some cases, the Supreme Court dispenses with the requirement that the petitioner has experienced or is in actual danger of suffering direct and personal injury. However, the Court has held that a cursory incantation of "transcendental

21 Mendoza v. Familara, G.R. No. 191017, November 15, 2011.

22 Peralta v. Philippine Postal Corp., G.R. No. 223395, December 4, 2018.

23 Automotive Industry Workers Alliance v. Romulo, G.R. No. 157509, January 18, 2005.

24 *Id.*

25 Macalintal v. Presidential Electoral Tribunal, G.R. No. 191618, November 23, 2010. In one case, the Supreme Court held that the Association of Flood Victims was not even a party-list candidate in the 10 May 2010 elections, and could not have been directly affected by COMELEC Minute Resolution No. 12-0859. The Association, said the Court, did not have standing to file the petition imputing grave abuse of discretion in the promulgation of the Resolution. See Association of Flood Victims v. Commission on Elections, G.R. No. 203775, August 5, 2014.

importance" does not automatically justify the brushing aside of the strict observance of the requisites for the Court's exercise of judicial review.[26] As the Court explained, an indiscriminate disregard of the requisites every time "transcendental or paramount importance or significance" is invoked would result in an unacceptable corruption of the settled doctrine of *locus standi*, as every worthy cause is an interest shared by the general public.[27]

General allegations by petitioners on their legal standing do not justify the relaxation of the *locus standi* rule. While the Court has taken an increasingly liberal approach to the rule of *locus standi*, evolving from the stringent requirements of personal injury to the broader transcendental importance doctrine, such liberality is not to be abused.[28]

Cases involving the constitutionality of penal legislation are a different kind of constitutional litigation. These cases require a closer judicial scrutiny of *locus standi*.[29]

Taxpayers, voters, concerned citizens, and legislators may be accorded standing to sue, provided that the following requirements are met:

1. the cases involve constitutional issues;
2. for taxpayers, there must be a claim of illegal disbursement of public funds or that the tax measure is unconstitutional;
3. for voters, there must be a showing of obvious interest in the validity of the election law in question;
4. for concerned citizens, there must be a showing that the issues raised are of transcendental importance which must be settled early; and
5. for legislators, there must be a claim that the official action complained of infringes upon their prerogatives as legislators.[30]

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26 Roy III v. Herbosa, G.R. No. 207246, November 22, 2016.

27 *Id.*

28 *Id.*

29 See Republic of the Philippines v. Roque, G.R. No. 204603, September 24, 2003, citing Southern Hemisphere Engagement Network, Inc. v. Anti-Terrorism Council, G.R. No. 178552, October 5, 2010.

30 Funa v. Manila Economic and Cultural Office, G.R. No. 193462, February 4, 2014. There is no allegation of usurpation of legislative function if the Senator sues in his capacity as Chairperson of the Committee created pursuant to Section 62 of Republic Act No. 9136. Such position by itself is not sufficient to vest petitioner with standing to institute suit. See Osmena III v. Power Sector Assets and Liabilities Management Corporation, G.R. No. 212686, September 28, 2015.

Establishments which publish and broadcast have the standing to assert the constitutional freedom of speech of candidates and of the right to information of the public, as well as their own freedom of the press.[31]

The Supreme Court decided a case filed on behalf of marine mammals that were threatened by the exploration, development, and exploitation of petroleum resources. On the issue of standing, the Supreme Court held that because the Supreme Court had promulgated the Rules of Procedure for Environmental Cases, "the need to give the Resident Marine Mammals legal standing has been eliminated by our Rules, which allow any Filipino citizen, as a steward of nature, to bring a suit to enforce our environmental laws."[32] In effect, there is no need to invoke the rights of non-human life forms if humans are co-petitioners in the suit.

EARLIEST OPPORTUNITY

"Earliest opportunity" means that the question of unconstitutionality of the act should have been immediately raised in the proceedings in the court below. Defendants in an anti-bouncing checks case should have moved to quash the separate indictments or moved to dismiss the cases in the trial courts on the ground of unconstitutionality of the law.[33] In another case, the challenge to the constitutionality of the *Interim Rules of Procedure on Corporate Rehabilitation* was considered a new and belated theory that the Supreme Court did not entertain. Because it was raised only in the Supreme Court, it was not "pleaded at the earliest possible opportunity."[34] Similarly, in Umali v. Guingona, Jr.,[35] the constitutionality of the Presidential Commission on Anti-Graft and Corruption was raised in the motion for reconsideration of a Regional Trial Court's decision. The Court did not entertain the constitutional issue because it was belatedly raised at the Regional Trial Court.

While it is true that the issue of constitutionality must be raised at the first opportunity, the Court, in the exercise of sound discretion, can take cognizance of

31 GMA Network, Inc. v. Commission on Elections, G.R. No. 205357, September 2, 2014.

32 Resident Marine Mammals of the Protected Seascape Tañon Strait v. Reyes, G.R. No. 180771, April 21, 2015.

33 Arceta v. Mangrobang, G.R. No. 152895, June 15, 2004.

34 Bank of the Philippine Islands v. Shemberg Biotech Corporation, G.R. No. 162291, August 11, 2010.

35 G.R. No. 131124, March 29, 1999.

the constitutional issues raised by the parties. In one case, the Supreme Court held that when an administrative regulation is challenged as unconstitutional, a party may raise its unconstitutionality "on every occasion that the regulation is being enforced."[36] The party assailing the regulation must show that the question of constitutionality has been raised at the earliest opportunity. This does not mean that the question of constitutionality must be raised immediately after the execution of the state action complained of. That the question of constitutionality has not been raised before is not a valid reason for refusing to allow it to be raised later. A contrary rule would mean that a law, otherwise unconstitutional, would lapse into constitutionality by the mere failure of the proper party to promptly file a case to challenge the same.[37]

LIS MOTA

The constitutional issue should be the threshold issue of the case and it should be raised by either of the parties.[38] *Lis mota* literally means "the cause of the suit or action." This last requisite of judicial review arises from the presumption of validity accorded executive and legislative acts of our co-equal branches of the government. It is rooted in the principle of separation of powers. Given the presumed validity of an executive act, the petitioner who claims otherwise has the burden of showing first that the case cannot be resolved unless the constitutional question he raised is determined by the Court.[39]

This means that a person who claims that a law is unconstitutional has the burden of showing that the case cannot be resolved unless the disposition of the constitutional question that he raised is unavoidable. If there is some other ground upon which the court may rest its judgment, the courts will adopt that course and the question of constitutionality should be avoided.[40]

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36 Carbonilla v. Board of Airlines Representatives, G.R. No. 193247, September 14, 2011.

37 *Id.*

38 Boy Scouts of the Philippines v. Commission on Audit, G.R. No.177131, June 7, 2011.

39 General v. Urro, G.R. No. 191560, March 29, 2011. See also Republic v. N. Dela Merced & Sons, Inc., G.R. Nos. 201501 & 201658, January 22, 2018.

40 Kalipunan ng Damayang Mahihirap, Inc. v. Robredo, G.R. No. 200903, July 22, 2014. See the application in Matibag v. Benipayo, G.R. No. 149036, April 2, 2002, and Tua v. Mangrobang, G.R. No. 170701, January 22, 2014.

EFFECT OF DECLARATION OF UNCONSTITUTIONALITY

The general rule is that an unconstitutional act is not a law; it confers no rights; it imposes no duties; it affords no protection; it creates no office; it is in legal contemplation as inoperative as though it had never been passed.[41] The law is stricken from the statute books and considered never to have existed at all. The parties and all persons are bound by the declaration of unconstitutionality which means that no one may thereafter invoke it nor may the courts be permitted to apply it in subsequent cases. It is, in other words, a total nullity.[42]

This is the orthodox view embodied in Article 7 of the Civil Code which provides that "When the courts declare a law to be inconsistent with the Constitution, the former shall be void and the latter shall govern. Administrative or executive acts, orders and regulations shall be valid only when they are not contrary to the laws or the Constitution." The Constitution is supreme and paramount and any legislative or executive act contrary to its terms cannot survive.[43]

The 'operative fact' doctrine cannot apply unless there is a law or executive issuance that is invalidated by the Court.[44]

When the Supreme Court declared that Section 8 of Republic Act No. 8551 violated the Constitution, "all acts done pursuant to such provision shall be null and void" including the appointment of new police commissioners under that law.[45]

The Court, however, recognizes that when it declares a law unconstitutional or abandons a doctrinal interpretation of such law, acts may have been performed under the impression of the constitutionality of the law or the validity of its interpretation. It has consistently held that such operative fact cannot be undone by the mere subsequent declaration of the nullity of the law or its interpretation; thus, the declaration can only have a prospective application.[46] A judicial declaration of invalidity, it is also true, may not necessarily obliterate all the effects and consequences of a void act occurring prior to such a declaration. So also a situation that may aptly be described

41 Peralta v. Civil Service Commission, G.R. No. 95832, August 10, 2002.

42 Aldovino v. Alunan III, G.R. No. 102232, March 9, 1994.

43 *See* Serano v. Philippine National Bank, G.R. No. L-23127, April 29, 1971.

44 Commissioner of Internal Revenue v. San Roque Power Corporation, G.R. No. 187485, October 8, 2013.

45 Canonizado v. Aguirre, G.R. No. 133132, February 15, 2001.

46 Castro v. Deloria, G.R. No. 163586, January 27, 2009.

as *fait accompli* may no longer be open for further inquiry, let alone to be unsettled by a subsequent declaration of nullity of a governing statute.[47]

When the Supreme Court declared Executive Order No. 386 unconstitutional in 1969, the Court explained that

> This is not to say, however, that the acts done by the municipality of Balabagan in the exercise of its corporate powers are a nullity because the executive order "is, in legal contemplation, as inoperative as though it had never been passed." For the existence of Executive Order 386 is "an operative fact which cannot justly be ignored." As Chief Justice Hughes explained in *Chicot County Drainage District v. Baxter State Bank*:
>
> > The courts below have proceeded on the theory that the Act of Congress, having been found to be unconstitutional, was not a law; that it was inoperative, conferring no rights and imposing no duties, and hence affording no basis for the challenged decree. Norton v. Shelby County, 118 U.S. 425, 442; Chicago, I. & L. Ry. Co. v. Hackett, 228 U.S. 559, 566. It is quite clear, however, that such broad statements as to the effect of a determination of unconstitutionality must be taken with qualifications. The actual existence of a statute, prior to such a determination, is an operative fact and may have consequences which cannot justly be ignored. The past cannot always be erased by a new judicial declaration. The effect of the subsequent ruling as to invalidity may have to be considered in various aspects — with respect to particular relations, individual and corporate, and particular conduct, private and official. Questions of rights claimed to have become vested, of status, of prior determinations deemed to have finality and acted upon accordingly, of public policy in the light of the nature both of the statute and of its previous application, demand examination. These questions are among the most difficult of those which have engaged the attention of courts, state and federal, and it is manifest from numerous decisions that an all- inclusive statement of a principle of absolute retroactive invalidity cannot be justified."

47 Republic of the Philippines v. Court of Appeals, G.R. No. 79732, November 8, 1993.

> There is then no basis for the respondents' apprehension that the invalidation of the executive order creating Balabagan would have the effect of unsettling many an act done in reliance upon the validity of the creation of that municipality.[48]

The doctrine is concerned with the *consequences* of the acts performed under the unconstitutional law. It realizes that in declaring a law or rule null and void, undue harshness and resulting unfairness must be avoided.[49] The Supreme Court applies the doctrine "when a declaration of unconstitutionality will impose an undue burden on those who have relied on the invalid law." It was applied to a criminal case when a declaration of unconstitutionality would have put the accused in double jeopardy or would put in limbo the acts done by a municipality in reliance upon a law creating it.[50] In *Rutter v. Esteban*,[51] the Court sustained the right of a party under the Moratorium Law, although the right accrued before law was declared unconstitutional.[52]

There is no rule that automatically applies the "operative fact doctrine" to every case where a law is found to be unconstitutional. In fact, the Supreme Court has been careful in applying the doctrine especially when the public interest is concerned. In *Planters Products Inc. v. Fertiphil Corporation*,[53] the Court refused to apply the doctrine and explained that

> Here, We do not find anything iniquitous in ordering PPI to refund the amounts paid by Fertiphil under LOI No. 1465. It unduly benefited from the levy. It was proven during the trial that the levies paid were remitted and deposited to its bank account. Quite the reverse, it would be inequitable and unjust not to order a refund. To do so would unjustly enrich PPI at the expense of Fertiphil. Article 22 of the Civil Code explicitly provides that "every person who, through an act of performance by another comes into possession of something at the expense of the latter without just or legal ground shall return the same to him". We cannot allow PPI to profit from

48 Municipality of Balabagan v. Benito, G.R. No. L-28113, March 28, 1969.

49 Union of Filipino Employees v. Vivar, Jr., G.R. No. 79256, January 20, 1992.

50 *See* Yap v. Thenamaris Ship's Management and Intermare Maritime Agencies, Inc., G.R. No. 179532. May 30, 2011.

51 G.R. No. L-3708, May 18, 1953.

52 *See* Tañada v. Tuvera, G.R. No. 63915, April 24, 1985.

53 G.R. No. 166006, March 14, 2008.

> an unconstitutional law. Justice and equity dictate that PPI must refund the amounts paid by Fertiphil.

The Supreme Court also refused to apply the doctrine in *Philippine Coconut Producers Association v. Del Rosario*,[54] saying that

> ...it is highly inappropriate to apply the operative fact doctrine to the UCPB shares. Public funds, which were supposedly given utmost safeguard, were haphazardly distributed to private individuals based on statutory provisions that are found to be constitutionally infirm on not only one but on a variety of grounds. Worse still, the recipients of the UCPB shares may not actually be the intended beneficiaries of said benefit. Clearly, applying the Operative Fact Doctrine would not only be iniquitous but would also serve injustice to the Government, to the coconut industry, and to the people, who, whether willingly or unwillingly, contributed to the public funds, and therefore expect that their Government would take utmost care of them and that they would be used no less, than for public purpose.[55]

These cases show that the Court can require that certain acts can be undone if they were performed under an unconstitutional law.

The Supreme Court applied the doctrine to potential liability of officials for violations of the Constitution in *Araullo v. Aquino III*.[56] When the Supreme Court declared the Development Acceleration Program (DAP) and its implementing issuances constitutionally infirm, the Supreme Court held that the doctrine of operative fact "can apply only to the [program, activity or project] that can no longer be undone, and whose beneficiaries relied in good faith on the validity of the DAP, but cannot apply to the authors, proponents and implementors of the DAP, unless there are concrete findings of good faith in their favor by the proper tribunals determining their criminal, civil, administrative and other liabilities."[57] The Court clarified in a

54 Philippine Coconut Producers Federation, Inc. v. Republic of the Philippines, G.R. Nos. 177857-58, January 24, 2012.

55 *Id.*

56 Araullo v. Aquino III, G.R. No. 209287, 209135, 209136, 209155, 209164, 209260, 209442, 209517, 209569, July 1, 2014.

57 *Id.*

subsequent Resolution that the ascertainment of good faith and the determination of whether due diligence and prudence were exercised are questions of fact and is better determined by tribunals because the Supreme Court "is not a trier of facts."[58]

PARTIAL UNCONSTITUTIONALITY; THE SEPARABILITY CLAUSE

When a statute is in part unconstitutional and it is possible to discard the unconstitutional part without affecting the valid part, only the unconstitutional part of the statute will be discarded.[59] In other words, if a statute contains unobjectionable provisions that may be separated from those found to be unconstitutional, it is the duty of the court to so declare and to maintain the act insofar as it is valid.[60]

A separability clause is typically included towards the end of a law. The "Filipino World War II Veterans Pensions and Benefits Act of 2008," for example, includes such a clause as it is typically written:

> SECTION 7. *Separability Clause.* — If any portion or provision of this Act is declared unconstitutional, the remainder of this Act or any provisions not affected thereby shall remain in force and effect.[61]

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58 *Id.* The phrase not a trier of facts means that the Supreme Court does not normally undertake the re-examination of the evidence presented by the contending parties during the trial of the case. See Gabales v. Dupio, G.R. No. 209970, February 17, 2014. The Court is not the proper forum for the ventilation and substantiation of factual issues (Heirs of Racaza v. Spouses Abay-Abay, G.R. No. 198402, June 13, 2012) and the resolution of factual issues is the function of the lower courts whose findings on these matters are received with respect and are, as a rule, binding on the Supreme Court (China Banking Corp. v. Qbro Fishing Enterprises, Inc., G.R. No. 184556, February 22, 2012). There are exceptions to this rule which are: (1) when the findings are grounded entirely on speculation, surmises or conjectures; (2) when the inference made is manifestly mistaken, absurd or impossible; (3) when there is grave abuse of discretion; (4) when the judgment is based on misapprehension of facts; (5) when the findings of facts are conflicting; (6) when in making its findings the Court of Appeals went beyond the issues of the case, or its findings are contrary to the admissions of both the appellant and appellee; (7) when the findings are contrary to the trial court; (8) when the findings are conclusions without citation of specific evidence on which they are based; (9) when the facts set forth in the petition as well as in the petitioner s main and reply briefs are not disputed by the respondent; (10) when the findings of fact are premised on the supposed absence of evidence contradicted by the evidence on record; and (11) when the Court of Appeals manifestly overlooked certain relevant facts not disputed by parties, which, if properly considered, would justify a different conclusion. See Office of the Ombudsman v. De Villa, G.R. no. 208341, June 17, 2015.

59 United States v. Rodriguez, G.R. Nos. 13352-13355, October 11, 1918.

60 Lopez v. Court of Appeals, G.R. No. 144573, September 24, 2002.

61 Republic Act No. 9499 (2008).

There is a slightly different way of writing the clause as illustrated by the "Philippine Design Competitiveness Act of 2013."[62]

> SECTION 14. *Separability Clause.* — The provisions of this Act are hereby declared separable, and in the event any of its provisions is declared unconstitutional, the other provisions which are not affected thereby shall remain in force and effect.

The separability clause of a law creates the presumption that Congress "intended separability, rather than complete nullity of the statute."[63]

However, an entire law may be invalidated if part of it is unconstitutional despite the presence of a separability clause. The Supreme Court explained in one case that:

> ...the separability clause only creates a presumption that the act is severable. *It is merely an aid in statutory construction. It is not an inexorable command. A separability clause does not clothe the valid parts with immunity from the invalidating effect the law gives to the inseparable blending of the bad with the good. The separability clause cannot also be applied if it will produce an absurd result. In sum, if the separation of the statute will defeat the intent of the legislature, separation will not take place despite the inclusion of a separability clause in the law.*[64]

Oddly, the Supreme Court in one case required the presence of a separability clause to preserve the unobjectionable parts of a law. The Court found a portion of a tax ordinance illegal but voided the entire law because there was no separability clause. Said the Court:

> Finally, in view of the lack of a separability clause, we declare void the entirety of Ordinance No. 9503-2005. Any payment made by reason of the tax imposed by Ordinance No. 9503-2005 should, therefore, be refunded

62 Republic Act No. 10557 (2013).

63 *Id.*

64 Tatad v. Secretary of the Department of Energy, G.R. No. 124360, December 3, 1997.

> to CEPALCO. Our ruling, however, is made without prejudice to the enactment by the City of Cagayan de Oro of a tax ordinance that complies with the limits set by the Local Government Code.[65]

Not soon after, the Court reduced the significance of a separability clause. It held that a separability clause is not controlling and the courts, in spite of it, may invalidate the whole statute where what is left, after the void part, is not complete and workable.[66]

The severability of a statute should not depend on the existence of a separability clause. This was the Supreme Court's usual approach[67] where it simply stated that when provisions of law declared void are severable from the main statute and the removal of the unconstitutional provisions would not affect the validity and enforceability of the other provisions, the statute remains valid without its voided sections.[68]

Pegging the severability of a statute to a separability clause is also inconsistent with the practice in the United States. There, the lack of a severability clause does not result in a presumption against severability. Since 1987, it has been indisputable that no statute is presumed non–severable, regardless of whether there is a severability clause in the challenged statute.[69] A study of the history of the severability doctrine found that the core of the doctrine has not changed since its inception and that the only aspect of the doctrine that has ever been overruled is the early presumption of non–severability for statutes lacking a severability clause.[70]

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65 Cagayan Electric Power and Light Co., Inc. v. City of Cagayan de Oro, G.R. No. 191761, November 14, 2012. An early indication that the Supreme Court is tethering severability to the separability clause can be seen in *Bureau of Customs Employees Association v. Teves* (G.R. No. 181704, December 6, 2011). There the Court wrote that in its decision in *Abakada Guro Party List v. Purisima* (G.R. No. 166715, August 14, 2008), the Court declared Section 12 of Republic Act No. 9335 as unconstitutional. However, the constitutionality of the remaining provisions of R.A. No. 9335 was upheld pursuant to Section 13 of R.A. No. 9335. Section 13 is the separability clause of the law.

66 Film Development Council of the Philippines v. Colon Heritage Realty Corporation, G.R. No. 203754, June 16, 2015.

67 *See* Barrameda v. Moir, G.R. No. 7927, August 18, 1913 and Lidasan v. Commission on Elections, G.R. No. L-28089, October 25, 1967.

68 Manalo v. Sistoza, G.R. No. 197369, August 11, 1999.

69 Kenneth A. Klukowski, *Severability Doctrine: How Much of a Statute Should Federal Courts Invalidate?*, 16 Tex. Rev. L. & Pol. 1, 83-84 (2011).

70 *Id.* at 109. For historical analyses of the severability doctrine *see* Robert L. Stern, *Separability and Separability Clauses in the Supreme Court,* 51 Harv. L. Rev. 76 (1937) and John Copeland Nagle, *Severability,* 72 N.C. L. Rev. 203 (1993).

WHEN JUDICIAL REVIEW IS NOT EXERCISED

The function of the courts is to determine controversies between litigants and not to give advisory opinions. The power of judicial review can only be exercised in connection with a *bona fide* case or controversy, which involves the statute sought to be reviewed.[71]

In *Montesclaros v. Commission on Elections*,[72] petitioners challenged an attempt by Congress to reschedule the *Sangguniang Kabataan* elections so that they could participate as voters and candidates. A proposed bill postponing the elections to a later date would render such petitioners ineligible for participation as a function of the age limitation requirement. It was this bill that petitioners would have the Court strike down as unconstitutional.

The Court ruled that it could not exercise the power of judicial review over the proposed bill. First of all, the petitioners were amenable to a resetting of the *Sangguniang Kabataan* elections to the date on which the elections were to be reset. Hence, there was no actual controversy. There were also no legally demandable and enforceable rights and duties arising from the proposed bill because it was not a law. Judicial intervention in declaring a proposed bill constitutional or unconstitutional would amount to the rendering of an advisory opinion on an act of Congress. It would take on a dictatorial nature which is against the principle of respect for the co-equal branches of government. Thus, the Court held that it may only exercise judicial review after the bill was enacted and has become law, and not before it created rights.

In another case, the Supreme Court explained that it cannot stop Congress from passing laws that will abolish the Judiciary Development Fund. A bill, according to the Court, produces no legal effects until it is passed into law. The judiciary is mandated to interpret laws and cannot speculate on the constitutionality of a bill that may or may not be enacted. It cannot rule on mere speculations or issues that are not ripe for judicial determination.[73]

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71 Allied Broadcasting Center, Inc. v. Republic of the Philippines, G.R. No. 91500, October 18, 1990.

72 G.R. No. 152295, July 9, 2002.

73 In re Supreme Court Judicial Independence v. Judiciary Development Fund, UDK-15143 (Resolution), January 21, 2015).

CHAPTER 5

Case Law and Precedent

COURT DECISIONS AS LAW

Courts are mandated to settle disputes between real conflicting parties through the application of the law.[1] Judicial decisions assume the same authority as a statute itself and, until authoritatively abandoned, necessarily become, to the extent that they are applicable, the criteria which must control the acts of the parties and of those duty-bound to enforce obedience to the decision.[2]

These decisions are "laws" by their own right because they interpret what the laws say or mean. Unlike rulings of the lower courts, which bind the parties to specific cases alone, decisions of the Supreme Court are "universal in their scope and application, and equally mandatory in character."[3] They are binding judicial precedent based on the doctrine of *stare decisis*.[4] A legal precedent is a principle or rule established in a previous case that is either binding on or persuasive for a court or other tribunal when deciding subsequent cases with similar issues or facts.[5]

However, a case cannot yet acquire the status of a "decided" case that is "deemed settled and closed to further argument" if the Court's decision is still the subject of a motion for reconsideration.[6]

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1 Guingona, Jr. v. Court of Appeals, G.R. No. 125532, July 10, 1998.

2 Caltex v. Palomar, G.R. No. L-19650, September 29, 1966.

3 Philippine Veterans Affairs Office v. Segundo, G.R. No. 51570, August 15, 1988.

4 Valenzuela Hardwood and Industrial Supply, Inc. v. Court of Appeals, G.R. No. 102316, June 30, 1997.

5 University of the East v. Masangkay, G.R. No. 226727, April 25, 2018.

6 Philippine Long Distance Telephone Co. v. Alvarez, G.R. No. 179408, March 05, 2014.

The application or interpretation placed by the Court upon a law is part of the law "as of the date of the enactment of the said law since the Court's application or interpretation merely establishes the contemporaneous legislative intent that the construed law purports to carry into effect."[7]

A judicial interpretation becomes a part of the law as of the date that the law was originally passed. However, when a doctrine of the Court is overruled and the Court adopts a different view, or when there is a reversal of the doctrine, the new doctrine applies prospectively and should not apply to parties who relied on the old doctrine and acted in good faith.[8]

A lower court cannot re-examine and reverse a decision of the Supreme Court. Where a Judge disagrees with a Supreme Court ruling, she is free to express her reservations but she must still follow precedent.[9]

All lower courts are bound by Supreme Court decisions. The judiciary has to speak with one voice to assure stability in legal relations and to avoid confusion. It speaks with finality, logically and rightly, through the highest judicial organ, which is the Supreme Court. Supreme Court rulings "should be definitive and authoritative, binding on those occupying the lower ranks in the judicial hierarchy."[10] The Supreme Court has the last word on what the law is, and its decisions applying or interpreting the Constitution and laws form part of this country's legal system. All other courts should then be guided by the decisions of the Supreme Court.[11] There is only one Supreme Court from whose decisions all other courts should take their bearings.[12]

The Supreme Court is given the exclusive and ultimate authority to interpret the laws of the land, including the Constitution. The people have entrusted the Court the power to be the final arbiter of all questions of law and the rule of law demands that as disputes ought to reach an end in the interest of societal peace, submission

7 People v. Licera, G.R. No. L-39990, July 22, 1975. See also National Amnesty Commission v. Commission on Audit, G.R. No. 156982, September 08, 2004.

8 De Jesus v. Aquino, G.R. No. 164662, February 18, 2013. Supreme Court decisions are also subject to Article 4 of the Civil Code which provides that laws shall have no retroactive effect unless the contrary is provided. When a doctrine of the Court is overruled and a different view is adopted, the new doctrine should be applied prospectively and should not apply to parties who had relied on the old doctrine and acted on the faith thereof. See Spouses Gauvain v. Court of Appeals, G.R. No. 97973, January 27, 1992.

9 Enrile v. Salazar, G.R. No. 92163, 92164, June 5, 1990.

10 Barrera v. Barrera, G.R. No. L-31589, July 31, 1970.

11 Conducto v. Monzon, Administrative Matter No. MTJ-98-1147, July 2, 1998.

12 Tugade v. Court of Appeals, G.R. No. L-47772, August 31, 1978.

should follow the court's final fiat. To undermine the authority of this Court as the final arbiter of legal disputes is to foster chaos and confusion in our administration of justice.[13]

A decision of the Court of Appeals does not establish judicial precedent. A ruling of the Court of Appeals on any question of law is not binding on the Supreme Court.[14]

Under the principle of *stare decisis*, lower courts should adhere to doctrinal rules established by the Supreme Court in its final decisions. A ruling of a division of the Court of Appeals cannot bind or prejudice a ruling of another division, the former being a co-ordinate authority and, relative to the Supreme Court, is still considered as a lower court.[15] As the Supreme Court explained:

a. the decisions of the higher courts bind the lower courts;

b. the courts of co-ordinate authority do not bind each other; and

c. the one highest court does not bind itself, because it is invested with the innate authority to rule according to its best lights.[16]

The rulings and principles set out in a Supreme Court resolution constitute binding precedent as well.[17]

STARE DECISIS, RES JUDICATA, AND LAW OF THE CASE

Some difficulty may arise with the manner in which we should treat a Supreme Court decision in relation to its other decisions. The doctrines of *stare decisis*, *res judicata*, and law of the case frequently cause confusion.

13 Guieb v. Civil Service Commission, G.R. No. 93935, February 9, 1994.

14 Spouses Nepomuceno v. City of Surigao, G.R. No. 146091, July 28, 2008.

15 Francisco v. Rojas, G.R. No. 167120, April 23, 2014.

16 Francisco v. Rojas, G.R. No. 167120, April 23, 2014.

17 Bulig-Bulig Kita Kamag-Anak Association v. Sulpicio Lines, Inc., G.R. No. 84750, August 31, 1978.

> The doctrine of the law of the case has certain affinities with, but is clearly distinguishable from, the doctrines of *res judicata* and *stare decisis*, principally on the ground that the rule of the law of the case operates only in the particular case and only as a rule of policy and not as one of law. At variance with the doctrine of *stare decisis*, the ruling adhered to in the particular case under the doctrine of the law of the case need not be followed as a precedent in subsequent litigation between other parties, neither by the appellate court which made the decision followed on a subsequent appeal in the same case, nor by any other court. The ruling covered by the doctrine of the law of the case is adhered to in the single case where it arises, but is not carried into other cases as a precedent. On the other hand, under the doctrine of *stare decisis*, once a point of law has been established by the court, that point of law will, generally, be followed by the same court and by all courts of lower rank in subsequent cases where the same legal issue is raised. *Stare decisis* proceeds from the first principle of justice that, absent powerful countervailing considerations, like cases ought to be decided alike.[18]

STARE DECISIS

The common law is the body of rules and principles found exclusively in judicial decisions. It is not created by legislatures and is not found in constitutions; the common law is judge-made law. It developed centuries ago in England when courts were called upon to resolve disputes. These disputes were resolved according to particular principles derived from earlier decisions. Common law analysis has remained virtually unchanged since that time—judges look to earlier cases for guidance in resolving disputes.[19]

The common law influence in the Philippines makes respect for precedent imperative. The central tenet of the common law is the principle of *stare decisis*, which means that like cases should be decided alike. This doctrine, sometimes expressed as the doctrine of precedent,[20] assures certainty and stability in our legal system.[21]

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18 Ayala Corporation v. Rosa-Diana Realty and Development Corporation, G.R. No. 134284, December 1, 2000.

19 John C. Dernbach & Richard V. Singleton II, A Practical Guide to Legal Reasoning and Legal Method 46-47 (1981).

20 *See* Steven L. Burton, An Introduction to Law and Legal Reasoning 26 (1985).

21 Tung Chin Hui v. Rodriguez, G.R. No. 137571, September 21, 2000.

Reasoning under the principle of *stare decisis* is reasoning by analogy. As explained by the Supreme Court,

> *Stare decisis* simply means that a judgment reached in one case should be applied to successive ones in which the facts are substantially identical, even though the parties may be different. Like cases ought to be decided alike. We stress that when a court has laid down a principle of law as applicable to a certain state of facts, it will adhere to that principle and apply it to all future cases in which the facts are substantially the same. *Stare decisis et non quieta movere*. Stand by the decisions and disturb not what is settled. *Stare decisis* simply means that for the sake of certainty, a conclusion reached in one case should be applied to those that follow if the facts are substantially the same, even though the parties may be different. It proceeds from the first principle of justice that, absent any powerful countervailing considerations, like cases ought to be decided alike.[22]

Once a case has been decided one way, another case involving exactly the same point at issue should be decided in the same manner.[23]

But *stare decisis* works as a bar only against issues litigated in a previous case. Where the issue involved was not raised nor presented to the court and not passed upon by the court in the previous case, the decision in the previous case is not *stare decisis* of the question presently presented.[24] A case that was dismissed on a

22 Villena v. Spouses Chavez, G.R. No. 148126, November 10, 2003.

23 Firestone Ceramics, Inc. v. Court of Appeals, G.R. No. 127022, September 2, 1999. See also Government Service Insurance System v. Buenviaje-Carreon, G.R. No. 189529, August 10, 2012. The Supreme Court explained that [t]he principle of *stare decisis* enjoins adherence to judicial precedents. It requires courts in a country to follow the rule established in a decision of its Supreme Court. That decision becomes a judicial precedent to be followed in subsequent cases by all courts in the land. The doctrine is based on the principle that once a question of law has been examined and decided, it should be deemed settled and closed to further argument. Thus, where the same question relating to the same event is brought by parties similarly situated as in a previous case already litigated and decided by a competent court, the rule of *stare decisis* is a bar to any attempt to relitigate the same issue.

24 Negros Navigation Co. Inc. v. Court of Appeals, G.R. No. 110398, November 7, 1997. This is to be distinguished from the law of the case doctrine. Under the latter doctrine, what was once irrevocably established as the controlling legal rule or decision between the same parties in the same case, continues to be binding upon them so long as the facts on which the decision was predicated continue to be the facts of the case before the Court. See Miranda v. Court of Appeals, G.R. No. L-59730, February 11, 1986.

procedural technicality does not set any controlling doctrine and *stare decisis* will not bar consideration of issues that were raised in that previous case.[25]

Stare decisis enjoins adherence by lower courts to doctrinal rules established by the Supreme Court in its final decisions. It is based on the principle that once a question of law has been examined and decided, it should be deemed settled and closed to further argument. It is a bar to any attempt to litigate the same issues again. It is necessary for two simple reasons: economy and stability.[26]

Stare decisis encourages the private settlement of disputes because it discourages individuals from forum and judge shopping. It promotes efficiency because it disposes of the need to litigate every issue and discourages a rush of litigation whenever there is a change in court personnel.[27]

If the questions raised in a petition were already comprehensively examined and settled in prior cases, any further arguments thereon are deemed proscribed[28] especially since the facts, issues, and even the parties involved are exactly identical.[29]

Stare decisis promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process.[30] However, when governing decisions are unworkable or are badly reasoned, the Supreme Court is not constrained to follow precedent.[31] After all, *stare decisis* is not an inexorable command but "a principle of policy and not a mechanical formula of adherence to the latest decision."[32]

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25 Belgica v. Executive Secretary, G.R. No. 208566, November 19, 2013.

26 Ting v. Velez-Ting, G.R. No. 166562, March 31, 2009.

27 Stefanie A. Lindquist, *Stare decisis as Reciprocity Norm*, in What's Law Got to Do With It? What Judges Do, Why They Do It, and What's at Stake 173, 174 (Charles Gardner Geyh, ed., 2011).

28 Nueva Ecija Electric Cooperative Incorporated v. Energy Regulatory Commission, G.R. No. 180642, February 3, 2016.

29 Commissioner of Internal Revenue v. Pilipinas Shell Petroleum Corporation, G.R. No. 180402, February 10, 2016.

30 Payne v. Tennessee, 501 U.S. 808, 828 (1991). Payne held that allowing victim impact statements at the sentencing stage of a death penalty case does not violate the Constitution. It reversed two earlier decisions saying that the Court has during the past 20 Terms overruled in whole or in part 33 of its previous constitutional decisions. Booth and Gathers were decided by the narrowest of margins, over spirited dissents challenging the basic underpinnings of those decisions. *Id.* at 828-29.

31 Smith v. Allwright, 321 U.S. 649, 665, 64 S.Ct. 757, 765, 88 L.Ed. 987 (1944).

32 Helvering v. Hallock, 309 U.S. 106, 119, 60 S.Ct. 444, 451, 84 L.Ed. 604 (1940).

The Philippine Supreme Court has held that abandoning *stare decisis* must be based on strong and compelling reasons; otherwise, the predictability which is expected from its decisions would be immeasurably affected, and the public's confidence in the stability of the solemn pronouncements diminished. "Verily, only upon showing that circumstances attendant in a particular case override the great benefits derived by our judicial system from the doctrine of *stare decisis*, can the courts be justified in setting aside the same."[33]

When it can be shown that circumstances of a particular case can override the benefits derived by our judicial system from the doctrine of *stare decisis*, the Court is justified in setting it aside.[34] The Court "may be guided but is not controlled by precedent." Thus, the Court, especially with a new membership, is not obliged to follow blindly a particular decision that it determines, after re-examination, to call for a rectification.[35]

Illustrative Cases

An illustration of the decision to depart from precedent can be found in American jurisprudence. In *Bowers v. Hardwick*,[36] Hardwick was charged with violating the Georgia statute criminalizing sodomy by committing that act with another adult male in the bedroom of his home. After a preliminary hearing, the District Attorney decided not to present the matter to the grand jury unless further evidence developed.

Hardwick brought suit in the Federal District Court, challenging the constitutionality of the statute insofar as it criminalized consensual sodomy. He claimed that he was in imminent danger of arrest, and that the statute for several reasons violated the Federal Constitution. The District Court granted the defendant's motion to dismiss for failure to state a claim. The Court of Appeals reversed and held that the statute violated Hardwick's fundamental rights because his homosexual activity was a private and intimate association beyond the reach of state regulation by reason of the Ninth Amendment and the Due Process Clause of the Fourth Amendment. The case was remanded for trial, at which the State would have to prove that the statute

33 Lazatin v. Desierto, G.R. No. 147097, June 5, 2009.

34 Abaria v. National Labor Relations Commission, G.R. No. 154113, December 11, 2011.

35 *Id.*

36 478 U.S. 186 (1986).

was supported by a compelling interest and was the most narrowly drawn means of achieving that end.

The issue presented in that case was whether the Federal Constitution "confers a fundamental right upon homosexuals to engage in sodomy, and hence invalidates the laws of the many States that still make such conduct illegal, and have done so for a very long time."

The Supreme Court disagreed with the Court of Appeals that the Court's prior cases had construed the Constitution to confer a right of privacy that extended to homosexual sodomy and, for all intents and purposes, had decided the case at bar. It held that none of the cases cited by the Appeals Court showed a constitutional right of homosexuals to engage in acts of sodomy asserted in the case. "No connection between family, marriage, or procreation, on the one hand, and homosexual activity, on the other, has been demonstrated, either by the Court of Appeals or by respondent." None of the cases cited, said the Supreme Court, supported the proposition that any kind of private sexual conduct between consenting adults was constitutionally insulated from state proscription. The Court was unwilling to announce that there existed a fundamental right to engage in homosexual sodomy. It added:

> Nor are we inclined to take a more expansive view of our authority to discover new fundamental rights imbedded in the Due Process Clause. The Court is most vulnerable and comes nearest to illegitimacy when it deals with judge-made constitutional law having little or no cognizable roots in the language or design of the Constitution.

A few years later, the Court reversed its ruling in *Bowers*. In *Lawrence v. Texas*,[37] officers of the Harris County Police Department were dispatched to a private residence in response to a reported weapons disturbance. They entered an apartment where John Geddes Lawrence resided. The officers observed Lawrence and Tyron Garner engaging in a sexual act. The two petitioners were arrested, charged, and convicted before a Justice of the Peace.

Eventually, the case reached the Supreme Court where three issues were raised for the Court's resolution:

37 539 U.S. 558 (2003).

1. Whether Petitioners' criminal convictions under the Texas "Homosexual Conduct" law—which criminalizes sexual intimacy by same-sex couples, but not identical behavior by different-sex couples—violate the Fourteenth Amendment guarantee of equal protection of laws?
2. Whether Petitioners' criminal convictions for adult consensual sexual intimacy in the home violate their vital interests in liberty and privacy protected by the Due Process Clause of the Fourteenth Amendment?
3. Whether *Bowers v. Hardwick*, should be overruled?

The Court re-examined its ruling in *Bowers,* pointing out how it misapprehended the history of sodomy laws. Sodomy laws did not have ancient roots as Bowers suggested, and it was not until the 1970s that any State singled out same-sex relations for criminal prosecution, and only nine States had done so.

Over the course of the last decades, States with same-sex prohibitions have moved toward abolishing them. *Lawrence* also noted *Bowers*' assertion that anti-sodomy laws reflected values shared with a wider civilization, but the reasoning and holding in Bowers have been rejected elsewhere, said the Court. The Court was emphatic about overturning *Bowers*: "*Bowers* was not correct when it was decided, and it is not correct today. It ought not to remain binding precedent. *Bowers v. Hardwick* should be and now is overruled."

Clearly, long established rulings can be reversed. There is nothing so sacred about a Supreme Court decision that it cannot be revisited and reversed. In the Philippines, the Supreme Court had an opportunity to re-examine a three-decade old issue: whether school children who are members of a religious sect known as Jehovah's Witness may be expelled from school (both public and private), for refusing, on account of their religious beliefs, to take part in the flag ceremony which includes playing (by a band) or singing the Philippine national anthem, saluting the Philippine flag, and reciting the patriotic pledge.[38]

The same issue was raised and resolved by the Supreme Court in 1959, in the case of *Gerona v. Secretary of Education*,[39] where the Court sanctioned the expulsion of

38 Ebralinag v. Division of Superintendent of Schools of Cebu, G.R. No. 95770, March 1, 1993.

39 A.C. No. L-350, August 7, 1959. There the Court held that:

> The flag is not an image but a symbol of the Republic of the Philippines, an emblem of national sovereignty, of national unity and cohesion and of freedom and liberty which

the students. In 1993, the Court, in *Ebralinag v. Division of Superintendent of Schools of Cebu*,[40] took the opposite position, saying that the idea that one may be compelled to salute the flag, sing the national anthem, and recite the patriotic pledge, during a flag ceremony on pain of being expelled from school, "is alien to the conscience of the present generation of Filipinos who cut their teeth on the Bill of Rights which guarantees their rights to free speech and the free exercise of religious profession and worship." The Court questioned its own fears about the potential consequences of exempting the students:

> We are not persuaded that by exempting the Jehovah's Witnesses from saluting the flag, singing the national anthem and reciting the patriotic pledge, this religious which admittedly comprises a "small portion of the school population" will shake up our part of the globe and suddenly produce a nation "untaught and uninculcated in and unimbued with reverence for the flag, patriotism, love of country and admiration for national heroes" (Gerona vs. Sec. of Education, 106 Phil. 2, 24). After all, what the petitioners seek only is exemption from the flag ceremony, not exclusion from the public schools where they may study the Constitution, the democratic way of life and form of government, and learn not only the arts, science, Philippine history and culture but also receive training for a vocation or

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it and the Constitution guarantee and protect. Under a system of complete separation of church and state in the government, the flag is utterly devoid of any religious significance. Saluting the flag does not involve any religious ceremony. The flag salute is no more a religious ceremony than the taking of an oath of office by a public official or by a candidate for admission to the bar.

In requiring school pupils to participate in the flag salute, the State thru the Secretary of Education is not imposing a religion or religious belief or a religious test on said students. It is merely enforcing a non-discriminatory school regulation applicable to all alike whether Christian, Moslem, Protestant or Jehovah s Witness. The State is merely carrying out the duty imposed upon it by the Constitution which charges it with supervision over and regulation of all educational institutions, to establish and maintain a complete and adequate system of public education, and see to it that all schools aim to develop, among other things, civic conscience and teach the duties of citizenship.

The children of Jehovah s Witnesses cannot be exempted from participation in the flag ceremony. They have no valid right to such exemption. Moreover, exemption to the requirements still disrupt school discipline and demoralize the rest of the school population which by far constitutes the great majority.

The freedom of religious belief guaranteed by the Constitution does not and cannot mean exemption from or non-compliance with reasonable and non-discriminatory laws, rules and regulations promulgated by competent authority.

40 G.R. No. 95770, March 1, 1993.

> profession and be taught the virtues of "patriotism, respect for human rights, appreciation for national heroes, the rights and duties of citizenship, and moral and spiritual values (Sec. 3[2], Art. XIV, 1987 Constitution) as part of the curricula. Expelling or banning the petitioners from Philippine schools will bring about the very situation that this Court had feared in Gerona. Forcing a small religious group, through the iron hand of the law, to participate in a ceremony that violates their religious beliefs, will hardly be conducive to love of country or respect for duly constituted authorities.

There is no hard and fast rule on how quickly a Supreme Court decision can be reversed. In *Maliksi v. Commission on Elections*,[41] the Supreme Court in a close 8-7 decision penned by Justice Antonio Carpio, upheld a Commission on Elections Resolution declaring Homer Saquilayan as the duly-elected mayor of Imus, Cavite. A month later, Justices Martin Villarama, Jr. and Jose Perez, changed their votes and sided with the dissenters. In the later ruling,[42] the Supreme Court reversed its earlier decision. Justice Carpio wrote a dissenting opinion concurred in by five of his colleagues.

Sometimes, a doctrine may be abandoned because Congress amended the pertinent law that was the basis of a Supreme Court decision. A doctrine, which has been followed for years, no matter how sound it may be, if found to be contrary to law, must be abandoned "because the principle of *stare decisis* does not and should not apply when there is conflict between the precedent and the law."[43] For example, prior to the amendment of Presidential Decree No. 1866, when homicide or murder was committed with the use of an unlicensed firearm, such use of such firearm was considered as an aggravating circumstance. After amendment of the law, the Supreme Court had no choice but to abandon its previous ruling in *People v. Quijada.*[44] The Court ruled that violation of Presidential Decree No. 1866 is now an offense distinct from murder.[45]

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41 G.R. No. 203302, March 12, 2013.

42 G.R. No. 203302, April 11, 2013.

43 Chong v. Secretary of Labor, G.R. No. 47616, September 16, 1947. For a study of Congressional overrides of Supreme Court decisions in the U.S., *see* Matthew R. Christiansen & William N. Eskridge, Jr., *Congressional Overrides of Supreme Court Statutory Interpretation Decisions*, 1967 2011, 92 Tex. L. Rev. 1317 (2014).

44 G.R. Nos. 115008-09, July 24, 1996.

45 People v. Samonte, G.R. No. 126048, September 29, 2000.

The Philippine Supreme Court applied the doctrine of *stare decisis* in *De Mesa v. Pepsi Cola Products Philippines,*[46] citing Article 8 of the Civil Code as the express law in which the principle of *stare decisis* is entrenched: *Judicial decisions applying or interpreting laws of the Constitution shall form a part of the legal system of the Philippines.* The case involved Pepsi Cola's 1992 promotional campaign called "Number Fever", a contest wherein holders of soft drink bottle caps bearing the chosen combinations are given prizes. In one of its draws, it announced the winning combination to be '349'. However, Pepsi revoked such announcement citing security code problems. Three sets of complaints for specific performance were filed by winning crown holders against Pepsi: the Mendoza group, the Rodrigo group, and the De Mesa group. Both the Mendoza and Rodrigo groups' complaints were dismissed with finality. The De Mesa group's petition was subsequently dismissed and the petition for *certiorari* filed by the De Mesa group was denied by the Supreme Court.

The Court ruled that while the parties involved in the cases are different, the Court observed that the legal rights and relations of the parties, the facts, the applicable laws, the causes of action, the issues, and the evidence are exactly the same in all three cases when it dismissed the third complaint on the basis of its previous dismissal of two complaints involving the same issues. Since the issue had already been settled in the earlier cases of Mendoza and Rodrigo, the Court was already bound by the finality of the said judgments.

Villena v. Spouses Chavez[47] defined the rule of *stare decisis* as that wherein a conclusion reached in one case should be applied to those that follow if the facts are substantially the same, even though the parties may be different. In that case, George Villena and others occupied lots in Angeles City owned by the Chavezes, upon the agreement that the former would pay the latter "equity" for their continued possession of the lots and ultimate acquisition thereof. When Villena and the others failed to pay despite several demands by the Chavezes, the latter filed an unlawful detainer case against them. The Metropolitan Trial Court ruled that it had no jurisdiction over the controversy, the same being the subject of a contract. The Regional Trial Court affirmed this ruling but the Court of Appeals reversed such ruling.

The Supreme Court held that the case at bar was similar to a case previously settled by the Court of Appeals. In both cases, there was an existing agreement that determined the nature of the parties' relationship. Thus, the Supreme Court ruled that the proper action was not unlawful detainer but rescission of contract or specific

46 G.R. Nos. 153063-70, August 19, 2005.

47 G.R. No. 148126, November 10, 2003.

performance. The Court declared that the earlier ruling should be applied to the instant case, by way of *stare decisis*.

Precedent is not upheld simply because the Supreme Court has already ruled on an issue. In *Olaguer v. Military Commission No. 34*,[48] the petitioners asked the Supreme Court to revisit the issue of whether military commissions or tribunals had jurisdiction to try civilians for offenses allegedly committed during martial law when civil courts were functioning. The Court overturned *Aquino, Jr. v. Military Commission No. 2* and six other decisions and ruled that the creation of Military Commission No. 34 to try civilians was unconstitutional. All its proceedings were deemed null and void. Said the Court:

> We have been asked to re-examine a previous ruling of the Court with a view towards abandoning or modifying the same. We do so now but not without careful reflection and deliberation on Our part. Certainly, the rule of *stare decisis* is entitled to respect because stability in jurisprudence is desirable. Nonetheless, reverence for precedent, simply as precedent, cannot prevail when constitutionalism and the public interest demand otherwise. Thus, a doctrine which should be abandoned or modified should be abandoned or modified accordingly. After all, more important than anything else is that this Court should be right.[49]

RES JUDICATA

Res judicata literally means "a matter adjudged; a thing judicially acted upon or decided; a thing or matter settled by judgment." This doctrine establishes the rule that an existing final judgment or decree rendered on the merits, without fraud or collusion, by a court of competent jurisdiction, upon any matter within its jurisdiction, is conclusive of the rights of the parties or their privies, in all other actions

48 G.R. No. L-54558, May 22, 1987.

49 Olaguer v. Military Commission No. 34, G.R. No. L-54558, May 22, 1987. Olaguer cited *In re Fernandez* (G.R. No. 38398, December 8, 1933) where it held:

> The rule of *stare decisis* is entitled to respect. Stability in the law, particularly in the business field, is desirable. But idolatrous reverence for precedent, simply as precedent, no longer rules. More important than anything else is that the court should be right. And particularly is it not wise to subordinate legal reason to case law and by so doing perpetuate error when it is brought to mind that the views now expressed conform in principle to the original decision and that since the first decision to the contrary was sent forth there has existed a respectable opinion of non-conformity in the court.

or suits in the same or any other judicial tribunal of concurrent jurisdiction on the points and matters in issue in the first suit.[50]

The doctrine rests on the principle that parties should not be permitted to litigate the same issue more than once; that when a right or fact has been judicially tried and determined by a court of competent jurisdiction, so long as it remains unreversed, it should be conclusive upon the parties and those in privity with them in law or estate.[51] The doctrine of *res judicata* is implicated when there is an attempt to litigate issues anew despite the fact that these have already been settled in a case involving the same parties. As the Supreme Court explained,

Material facts or questions which were in issue in a former action and were there admitted or judicially determined and conclusively settled by a judgment rendered therein…such facts or questions become *res judicata* and may not again be litigated in a subsequent action between the same parties or their privies, regardless of the form the issue may take in the subsequent action, whether the subsequent action involves the same or a different form of proceeding, or whether the second action is upon the same or a different cause of action, subject matter, claim or demand, as the earlier action. In such cases, it is also immaterial that the two actions are based on different grounds, or tried on different theories, or instituted for different purposes, and seek different reliefs.[52]

This judicially created doctrine exists as an obvious rule of reason, justice, fairness, expediency, practical necessity, and public tranquility. Moreover, public policy, judicial orderliness, economy of judicial time, and the interest of litigants, as well as the peace and order of society, all require that stability should be accorded judgments, that controversies once decided on their merits shall remain in repose, that inconsistent judicial decision shall not be made on the same set of facts, and that there be an end to litigation.[53]

The doctrine of *res judicata* is an old axiom of law, dictated by wisdom and sanctified by age, and founded on the broad principle that it is to the interest of the public that there should be an end to litigation by the same parties over a subject once fully and fairly adjudicated. A contrary doctrine would subject the public peace and quiet to the will and neglect of individuals and prefer the gratification of the

50 Spouses Villanueva v. Court of Appeals, G.R. No. 163433, August 22, 2011.

51 Chu v. Spouses Cunanan, G.R. No. 156185, September 12, 2011.

52 Veloso v. Court of Appeals, G.R. No. 116680, August 28, 1996.

53 Fenix (CEZA) International, Inc. v. Executive Secretary, G.R. No. 235258, August 6, 2018.

litigious disposition on the part of suitors to the preservation of the public tranquility and happiness.[54]

For *res judicata* to apply, the following requisites must concur:

1. the former judgment or order must be final;
2. the judgment or order must be on the merits;[55]
3. it must have been rendered by a court having jurisdiction over the subject matter and the parties; and
4. there must be, between the first and the second actions, identity of parties, of subject matter and of cause of action.[56]

The last requisite is sometimes called the elements of *res judicata* and explained further in this manner:

1. identity of parties or at least such as representing the same interest in both actions;
2. identity of rights asserted and relief prayed for, the relief being founded on the same facts; and
3. the identity in the two particulars is such that any judgment which may be rendered in the other action will, regardless of which party is successful, amount to *res judicata* in the action under consideration.[57]

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54 Heirs of Sotto v. Palicte, G.R. No. 159691, June 13, 2013.

55 A judgment or an order on the merits is one rendered after a determination of which party is upheld, as distinguished from an order rendered upon some preliminary or formal or merely technical point. Strictly speaking, *res judicata* does not apply to decisions or orders adjudicating interlocutory motions. *See* Macahilig v. Heirs of Magalit, G.R. No. 141423, November 15, 2000. A judgment on the merits is one rendered after a determination of which party is right, as distinguished from a judgment rendered upon some preliminary or formal or merely technical point. The dismissal of the case without prejudice indicates the absence of a decision on the merits and leaves the parties free to litigate the matter in a subsequent action as though the dismissed action had not been commenced. See Presidential Commission on Good Government v. Sandiganbayan, G.R. No. 152500, September 14, 2011.

56 Development Bank of the Philippines v. La Campana Development Corporation, G.R. No. 137694, January 17, 2005. See also Puerto Azul Land, Inc. v. Pacific Wide Realty Development Corporation, G.R. No. 184000, September 17, 2014.

57 Land Bank of the Philippines v. Pagayatan, G.R. No. 177190, February 23, 2011.

If there is identity of parties in the first and second cases, but no identity of causes of action, the first judgment is conclusive only as to those matters actually and directly controverted and determined and not as to matters merely involved therein.[58]

There are two distinct concepts of *res judicata*, namely: (a) bar by former judgment; and (b) conclusiveness of judgment. The bar by prior judgment requires the following elements to be present for it to operate: (a) a former final judgment that was rendered on the merits; (b) the court in the former judgment had jurisdiction over the subject matter and the parties; and (c) identity of parties, subject matter and cause of action between the first and second actions. In contrast, the elements of conclusiveness of judgment are identity of: (a) parties; and (b) subject matter in the first and second cases.[59]

A related concept, forum shopping, occurs "when a party repetitively avails of several judicial remedies in different courts, simultaneously or successively, all substantially founded on the same transactions and the same essential facts and circumstances, and all raising substantially the same issues either pending in or already resolved adversely by some other court."[60] Forum shopping is an act of malpractice prohibited and condemned because it trifles with the courts and abuses their processes. It degrades the administration of justice and adds to the already congested court dockets.[61]

While the Supreme Court has declared that the doctrine of *res judicata* applies only to judicial or quasi-judicial proceedings, and not to the exercise of administrative powers, it has also limited the latter to proceedings purely administrative in nature. When the administrative proceedings take on an adversary character, the doctrine of *res judicata* certainly applies.[62] In certain cases, *res judicata* can be disregarded by the Court if its rigid application would involve the sacrifice of justice to technicality.[63]

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58 Social Security Commission v. Rizal Poultry and Livestock Association, Inc., G.R. No. 167050, June 1, 2011.

59 Fenix (CEZA) International, Inc. v. Executive Secretary, G.R. No. 235258, August 6, 2018.

60 *Id.*

61 *Id.*

62 Heirs of Derla v. Heirs of Vda. de Derla, G.R. No. 157717, April 13, 2011.

63 Philippine National Bank v. Intestate Estate of Francisco de Guzman, G.R. No. 182507, June 18, 2010.

An interlocutory order[64] does not result in res judicata. It remains under the control of the court and can be modified or rescinded at any time before final judgment.[65]

Res judicata is different from *litis pendentia*.[66] *Litis pendentia* is a ground for the dismissal of a civil action which arises where two actions are pending between the same parties for the same cause of action, so that one of them becomes unnecessary and vexatious. It exists when the following requisites are present: identity of the parties in the two actions; substantial identity in the causes of action and in the reliefs sought by the parties; and the identity between the two actions should be such that any judgment that may be rendered in one case, regardless of which party is successful, would amount to *res judicata* in the other.[67]

Res judicata is different from *stare decisis*. The focal point of *stare decisis* is the doctrine created. The principle states that, for the sake of certainty, a conclusion reached in one case should be applied to those that follow if the facts are substantially the same, even though the parties may be different. Thus, where the same questions relating to the same event have been put forward by the parties similarly situated as in a previous case litigated and decided by a competent court, th e rule of *stare decisis* is a bar to any attempt to re-litigate the same issue.[68]

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64 An interlocutory order is one which deals with incidental matters and does not resolve the actual merits of the case. *See* Oriental Assurance Corporation v. Court of Appeals, G.R. No. 177017, November 20, 2013. This is distinguished from a final order which disposes of the subject matter in its entirety or terminates a particular proceeding or action, leaving nothing more to be done except to enforce by execution what the court has determined. An interlocutory order does not completely dispose of the case but leaves something else to be decided upon. An interlocutory order deals with preliminary matters and the trial on the merits is yet to be held and the judgment rendered. *See* Jose v. Javellana, G.R. No. 158239, January 25, 2012.

65 Morales v. Olondriz, G.R. No. 198994, February 3, 2016.

66 *Litis pendentia* is a Latin term that means a pending suit and in some decisions is referred to as *lis pendens and auter action pendant*. *See* Ferrer, Jr. v. Bautista, G.R. No. 210551, June 30, 2015.

67 Umale v. Canoga Park Development Corporation, G.R. No. 167246, July 20, 2011. Forum shopping and *litis pendentia* are different. Forum shopping is the filing of multiple suits involving the same parties for the same cause of action, either simultaneously or successively, to obtain a favorable judgment. It exists where the elements of *litis pendentia* are present or where a final judgment in one case will amount to res judicata in another. For *litis pendentia* to be a ground for the dismissal of an action, the following requisites must concur: (a) identity of parties, or at least such parties who represent the same interests in both actions; (b) identity of rights asserted and relief prayed for, the relief being founded on the same facts; and (c) the identity with respect to the two preceding particulars in the two cases is such that any judgment that may be rendered in the pending case, regardless of which party is successful, would amount to *res judicata* in the other case. *See* Malayan Insurance Co., Inc. v. Lin, G.R. No. 207277, January 16, 2017.

68 Belgica v. Ochoa, G.R. No. 208566, November 19, 2013.

A party is not bound by *res judicata* if she was not a party in the Court's earlier ruling. Nevertheless, while *res judicata* may be inapplicable, a previous ruling may still apply under *stare decisis*.[69]

LAW OF THE CASE

Stare decisis is also often confused with the doctrine of "law of the case." The doctrine of "law of the case" provides that whatever is once irrevocably established as the controlling legal principle or decision, continues to be the law of the case between the same parties in the same case, whether correct on general principles or not, so long as the facts on which such decision was predicated continue to be the facts of the case before the court.[70] The doctrine precludes departure from a rule previously made by an appellate court in a subsequent proceeding essentially involving the same case.[71] As a general rule, a decision on a prior appeal of the same case is held to be the law of the case whether that question is right or wrong, and the remedy of the party deeming himself aggrieved is to seek a rehearing.[72]

The principle of the law of the case is embodied in Section 47 (b) and (c), Rule 39 of the Rules of Court:

> SEC. 47. *Effect of judgments or final orders.* — The effect of a judgment or final order rendered by a court of the Philippines, having jurisdiction to pronounce the judgment or final order, may be as follows…

In any other litigation between the same parties or their successors in interest, that only is deemed to have been adjudged in a former judgment or final order which appears upon its face to have been so adjudged, or which was actually and necessarily included therein or necessary thereto.[73]

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69 The Government of Baguio v. Masweng, G.R. No. 195905, July 3, 2018.

70 Veloso v. Court of Appeals, G.R. No. 116680, August 28, 1996.

71 Philippine Ports Authority v. Nasipit Integrated Arrastre and Stevedoring Services, Inc., G.R. No. 214864, March 22, 2017.

72 Tolentino v. Loyola, G.R. No. 163809, July 27, 2011.

73 Penta Capital Finance Corporation v. Bay, G.R. No. 162100, January 18, 2012.

Under the doctrine, "when an appellate court passes on a question and remands the cause to the lower court for further proceedings, the question there settled becomes the law of the case upon subsequent appeal."[74] The Court's earlier ruling continues to be the rule governing the same proceeding where the petitioners have been accused before and convicted by the Sandiganbayan.[75]

A decision becomes the law of the case once it attains finality.[76] The doctrine applies in a situation where an appellate court has made a ruling on a question on appeal and remands the case to the lower court for further proceedings. The question settled by the appellate court becomes the law of the case at the lower court and in any subsequent appeal.[77] Questions necessarily involved and dealt with in a former appeal will be regarded as the law of the case in a subsequent appeal, although the questions are not expressly treated in the opinion of the court. It is presumed that all the facts in the case bearing on the point decided have received due consideration whether all or none of them are mentioned in the opinion.[78]

"Law of the case" differs from *res judicata*. In "law of the case", the first judgment is generally not yet final. It relates entirely to questions of law, and is confined in its operation to subsequent proceedings in the same case. While it is conclusive as to all matters within its scope, it cannot be invoked, except as to questions that were actually considered and determined in the first appeal. In the application of this rule, courts will take cognizance of such points only as affirmatively appear in the last to have been decided in the former appeal.[79] The Court explained the distinction in another case in this way:

> Law of the case applies only to the same case, whereas *res judicata* forecloses parties or privies in one case by what has been done in another case. In law of the case, the rule made by an appellate court cannot be departed from in subsequent proceedings in the same case. Furthermore, law of the case relates entirely to questions of law while *res judicata* is applicable to the conclusive determination of issues of fact. Although *res judicata* may

74 Agustin v. Court of Appeals, G.R. No. 107846, April 18, 1997.

75 Jaca v. People of the Philippines, G.R. No. 166967, January 28, 2013.

76 General Milling Corporation-Independent Labor Union v. General Milling Corporation, G.R. No. 183122, June 15, 2011.

77 Tolentino v. Loyola, G.R. No. 153809, July 27, 2011.

78 Export Processing Zone Authority v. Pulido, G.R. No. 188995, August 24, 2011.

79 Municipality of Daet v. Court of Appeals, G.R. No. L-35861, October 18, 1979.

> include questions of law, it is generally concerned with the effect of adjudication in a wholly independent proceeding.[80]

The rule enables an appellate court to perform its duties satisfactorily and efficiently, which would be impossible if a question already decided by it were to be litigated anew in the same case upon any and every subsequent appeal. Without the rule, litigants would be free to speculate on changes in the personnel of a court, or on the chance that judges will rewrite propositions handed down as the law of a given case.[81]

Where the Supreme Court has already defined the term "fugitive from justice" in *Marquez, Jr. v. Commission on Elections*,[82] the "law of the case" doctrine forbids a lower court to craft an expanded re-definition of "fugitive from justice" that is at variance with the Marquez Decision. The Court explained in *Rodriguez v. Commission on Elections*:[83]

> To elaborate, the same parties (Rodriguez and Marquez) and issue (whether or not Rodriguez is a "*fugitive from justice*") are involved in the *MARQUEZ Decision* and the instant petition. The *MARQUEZ Decision* was an appeal from EPC No. 92-28 (the Marquez' *quo warranto* petition before the COMELEC). The instant petition is also an appeal from EPC No. 92-28 although the COMELEC resolved the latter jointly with SPA No. 95-089 (Marquez' petition for the disqualification of Rodriguez). Therefore, what was irrevocably established as the controlling legal rule in the *MARQUEZ Decision* must govern the instant petition. And we specifically refer to the concept of "*fugitive from justice*" as defined in the main opinion in the *MARQUEZ Decision* which highlights the significance of an *intent to evade* but which Marquez and the COMELEC, with their proposed expanded definition, seem to trivialize.

80 Spouses Sy v. Young, G.R. No. 169214, June 19, 2013.
81 *Id.*
82 G.R. No. 112889, April 18, 1995.
83 G.R. No. 120099, July 24, 1996.

Agustin v. Court of Appeals[84] applied the doctrine in cases on appeal where the Court ruled that the award of repossession expenses by the Court of Appeals had long attained finality and that the remand of the case to the Regional Trial Court was merely for the purpose of determining the amount to be reimbursed, and not the propriety of the reimbursement. That reimbursement was appropriate had become the "law of the case." The same issue could not be resurrected in a subsequent appeal; otherwise, there would be no end to litigation.

PROBLEMS WITH PRECEDENT

INCONSISTENCIES

Supreme Court decisions do not always clarify issues. In rape cases, for example, there is a question as to whether a defendant may introduce evidence that he and the complainant are romantically involved. This defense—also known as the "sweetheart defense"—poses certain problems because it suggests that the existence of a romantic relationship precludes the possibility of rape. The following excerpt from a Supreme Court decision illustrates the confusion generated by the use of this defense:

> Appellant's claim that they are lovers is untenable. For one, such claim was not substantiated by the evidence on the record. The only pieces of evidence adduced by appellant were his testimony and those of his relatives Boyet and Nieves Irish. According to Boyet, he knows of their relationship because they were conversing and writing each other while Nieves Irish saw them once walking in the street. To the mind of the Court, these are not enough evidence to prove that a romantic relationship existed between appellant and "AAA"....
>
> Other than his self-serving assertions and those of his witnesses, which were rightly discredited by the trial court, nothing supports appellant's claim that he and "AAA" were indeed lovers. "A 'sweetheart defense,' to be credible, should be substantiated by some documentary or other evidence of relationship [such as notes, gifts, pictures, mementos] and the like. Appellant failed to discharge this burden.

84 G.R. No. 107846, April 18, 1997.

> Besides, even if it were true that appellant and "AAA" were sweethearts, this fact does not necessarily negate rape. "Definitely, a man cannot demand sexual gratification from a fiancée and worse, employ violence upon her on the pretext of love. Love is not a license for lust." But what destroyed the veracity of appellant's "sweetheart" defense were the credible declaration of "AAA" that she does not love him and her categorical denial that he is her boyfriend.
>
> With the credibility of "AAA" having been firmly established, the courts below did not err in finding appellant guilty beyond reasonable doubt of rape committed through force and intimidation. The "sweetheart" theory interposed by appellant was correctly rejected for lack of substantial corroboration.[85]

From the foregoing, it appears that the defendant can adduce evidence of an existing relationship with the complainant. But to what end? If the existence of the relationship does not preclude the existence of rape, then why allow the admission of such evidence? Let us assume that the parties were in fact in an intimate relationship. Would that lead to an acquittal? Would it mean that the complainant had in fact consented to engaging in sex? It would not, as the Court itself has repeatedly explained. In *People v. Akhtar,*[86] the Court held:

> Even assuming that appellant and complainant were lovers, however, this fact alone would not negate the commission of rape, especially where coitus occurred when the woman was drugged. We have repeatedly declared that "a love affair does not justify rape, for the beloved cannot be sexually violated against her will." A man does not have an unbridled license to subject his beloved to his carnal desires.[87]

And in another case,[88] it explained that the "sweetheart defense" is a much-abused defense that "rashly derides the intelligence of the Court and sorely tests

85 People v. Dumadag, G.R. No. 176740, June 22, 2011.
86 G.R. No. 130640, June 21, 1999.
87 *Id.*
88 People v. Maglantay, G.R. No. 125537, March 8, 1999.

its patience." It added that even if it were true that defendant and the plaintiff were lovers, still, this was no license for accused-appellant to force himself upon her. In other words, while there may have been a romantic relationship between the plaintiff and the defendant their sexual relations may not have been consensual."[89]

Still courts are not precluded from entertaining evidence of such relationships. In *People v. Malabago,*[90] the Court discarded the "sweetheart defense," saying:

> Appellant had the burden of proving that indeed he and private complainant were sweethearts. We agree with the lower court that he miserably failed to do so. Not only was his claim categorically denied by private complainant, but there was also no substantial evidence presented by appellant to support it, such as love notes, mementos or pictures.[91]

People v. Andayang[92] makes it clear that the "sweetheart theory" is a valid defense by beginning this way: "In rape, the 'sweetheart defense' must be proven by compelling evidence: *first*, that the accused and the victim were lovers; and, *second*, that she consented to the alleged sexual relations."[93] In fact, in *People v. Cabanilla*,[94] the entire case boiled down to "whether or not the "sweetheart defense is credible so as to overcome the prosecution's evidence that the intercourse was not consensual."[95]

It would be more prudent for the Court to simply lay down the rule that evidence offered to support the existence of such relationship has no probative value and, therefore, is inadmissible. Inconsistencies such as those presented above do little to create certainty in litigation.

Other inconsistencies plague rape law in the Philippines. The character of the complainant is often put into issue and, if less than pristine, often leads to acquittals.[96] Yet the Court consistently makes pronouncements that "even a prostitute or

89 *See* People v. Cruz, G.R. No. 201728, July 17, 2013.

90 G.R. No. 108613, April 18, 1997.

91 *Id.*

92 G.R. No. 174861, April 11, 2011.

93 *Id.*

94 G.R. No. 185839, November 17, 2010.

95 *Id.*

96 *See* Dan Gatmaytan, *Character, Credibility, and Contradiction: Rape Law and the Judicial Construction of the Filipina,* Philippine Peace and Human Rights Review 661-723 (1998).

a woman of loose morals could fall victim of rape, for she could still refuse a man's lustful advances."[97] In rape, the moral character of the victim is immaterial; the essence of rape being the act of having carnal knowledge of a woman without her consent.[98] The victim's moral character in rape is immaterial where it is shown that intimidation was used for the victim to have sex with the accused.

JUDICIAL FLIP-FLOPPING

Another form of inconsistency in Supreme Court decisions is one involving a single case. In these instances, the Supreme Court Justices cannot seem to agree on what the correct interpretation of the law should be.

The case of *League of Cities of the Philippines v. Commission on Elections* is one example. It is the first time that the Supreme Court reversed itself three times and it did so in a span of three years.

The case began back during the 11th Congress, when Congress enacted thirty-three bills converting thirty-three municipalities into cities. However, Congress did not act on bills converting twenty-four other municipalities—sixteen of which are the respondents in the *League of Cities*.[99]

Republic Act No. 9009 was enacted during the 12th Congress. The law amended Section 450 of the Local Government Code.[100] It increased the annual

97 People v. Felan, G.R. No. 176631, February 2, 2011.

98 People v. Olimba, G.R. No. 185008, September 22, 2010.

99 League of Cities of the Philippines v. Commission on Elections, G.R. Nos. 176951, 177499, 178056, November 18, 2008.

100 Section 450 now provides:

> Requisites for Creation. (a) A municipality or a cluster of barangays may be converted into a component city if it has a locally generated average annual income, as certified by the Department of Finance, of at least One hundred million pesos (P100,000,000.00) for the last two (2) consecutive years based on 2000 constant prices, and if it has either of the following requisites:
>
> (i) a contiguous territory of at least one hundred (100) square kilometers, as certified by the Land Management Bureau; or
>
> (ii) a population of not less than one hundred fifty thousand (150,000) inhabitants, as certified by the National Statistics Office.
>
> The creation thereof shall not reduce the land area, population and income of the original unit or units at the time of said creation to less than the minimum requirements prescribed herein.
>
> (b) The territorial jurisdiction of a newly-created city shall be properly identified by metes and bounds. The requirement on land area shall not apply where the city proposed

income requirement for conversion of a municipality into a city from Php20M to Php100M. The rationale was to restrain the "mad rush" of municipalities to convert into cities solely to secure a larger share in the Internal Revenue Allotment.

After Republic Act No. 9009 went into effect, the House of Representatives adopted a joint resolution to exempt the twenty-four municipalities whose cityhood bills were not previously approved from the Php100M income requirement. However, the 12th Congress ended without the Senate approving the joint resolution.

In the 13th Congress, the House of Representatives re-adopted the joint resolution. Again, the Senate failed to approve it. Heeding the advice of Sen. Aquilino Pimentel, sixteen of the twenty-four municipalities filed cityhood bills, all of which contained a common provision exempting all the sixteen municipalities from the Php100M income requirement. Both Houses of Congress approved the cityhood bills, which all lapsed into law. The Cityhood Laws directed the Commission on Elections to hold plebiscites to determine whether the residents of each respondent municipality approved of the conversion. The League of Cities of the Philippines (LCP) filed petitions for prohibition to enjoin the COMELEC from conducting the plebiscites and to question the constitutionality of the cityhood laws.

November 18, 2008 En Banc Decision

The first decision came out on November 18, 2009.[101] The majority opinion, penned by Justice Carpio, struck down the cityhood laws for being unconstitutional by a vote of 6-5.

The majority held that the cityhood laws were unconstitutional on seven grounds: (1) the application of Republic Act No. 9009 to the case before the Court was prospective and not retroactive because Republic Act No. 9009 took effect in 2001 while the cityhood laws were passed more than five years later; (2) the Constitution requires that Congress shall prescribe the criteria for the creation of a city in the Local Government Code and not in any other law;[102] (3) the cityhood

to be created is composed of one (1) or more islands. The territory need not be contiguous if it comprises two (2) or more islands.

(c) The average annual income shall include the income accruing to the general fund, exclusive of special funds, transfers, and non-recurring income.

101 League of Cities of the Philippines v. Commission on Elections, G.R. Nos. 176951, 177499, 178056, November 18, 2008.

102 Article X, § 10 of the 1987 Constitution provides that No province, city, municipality, or barangay shall be created, divided, merged, abolished or its boundary substantially

laws violated Section 6, Article X of the Constitution[103] because they presented an unfair and unjust distribution of national taxes to the local government units; (4) the intent of members of Congress to exempt certain municipalities from the coverage of Republic Act No. 9009 remained an intent and was never written into law; (5) the criteria prescribed in Section 450 of the Local Government Code, as amended by Republic Act No. 9009, were clear, plain and unambiguous and there was no need to resort to statutory construction; (6) the deliberations of the 11th and 12th Congress on unapproved bills or resolutions were *not* extrinsic aids in interpreting the law passed in the 13th Congress because Congress is not a continuing body; and (7) e190ven if the exemption in the cityhood laws were written into Section 450 of the Local Government Code, the exemption would still be unconstitutional for violation of the equal protection clause because the exemption was based solely on the fact that the sixteen municipalities had cityhood bills pending in the 11th Congress.[104]

Justices Quisumbing, Austria-Martinez, Carpio-Morales, Velasco Jr., and Brion concurred with the *ponencia*. Justice Ruben Reyes submitted a dissenting opinion, joined by Justices Corona, Azcuna, Chico-Nazario and Leonardo-de Castro. Chief Justice Puno, and Justices Nachura and Tinga took no part, while Justice Ynares-Santiago was on leave.

March 31, 2009, April 28, 2009, and June 2, 2009 Resolutions

The motion for reconsideration filed by respondent LGUs was denied by the Supreme Court by a majority vote of 7-5 on a resolution dated March 31, 2009.[105] The second motion for reconsideration was likewise denied on April 28, 2009, this time by a 6-6 vote.[106]

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altered, except in accordance with the criteria established in the local government code and subject to approval by a majority of the votes cast in a plebiscite in the political units directly affected.

103 Article X, § 6 of the 1987 Constitution provides that Local government units shall have a just share, as determined by law, in the national taxes which shall be automatically released to them.

104 League of Cities of the Philippines v. Commission on Elections, G.R. Nos. 176951, 177499, 178056, November 18, 2008.

105 Justice Velasco, Jr. wrote a Dissenting Opinion, joined by Justices Ynares-Santiago, Corona, Chico-Nazario, and Leonardo-De Castro. Chief Justice Puno and Justice Nachura took no part.

106 Justice Velasco, Jr. wrote a Dissenting Opinion, joined by Justices Ynares-Santiago, Corona, Chico-Nazario, Leonardo-De Castro, and Bersamin. Chief Justice Puno and Justice Nachura took no part. Justice Quisumbing was on leave.

On May 14, 2009, respondent LGUs filed a "Motion to Amend the Resolution of April 28, 2009 by Declaring Instead that Respondent's 'Motion for Reconsideration of the Resolution of March 31, 2009' and 'Motion for Leave to File and to Admit Attached Second Motion for Reconsideration of the Decision Dated November 18, 2008 Remained Unresolved and to Conduct Further Proceedings Thereon'." In a resolution dated June 2, 2009, the Supreme Court declared the May 14, 2009 motion as expunged in light of the entry of judgment made on May 21, 2009. Respondent LGUs filed a motion for reconsideration of the June 2, 2009 resolution, which would pave the way for the first reversal of original decision.

December 21, 2009 En banc Decision[107]

In a decision penned by Justice Velasco, Jr., the Supreme Court reversed the November 18, 2008 *en banc* decision and declared the cityhood laws constitutional. Curiously, Justice Velasco was among those who concurred with J. Carpio's original *ponencia*.

The new majority's reasoning essentially rested on four grounds. First, the reference made by Section 10, Article X of the Constitution to a "local government code" should not be interpreted as referring to any specific statute or codification of laws, let alone to the Local Government Code of 1991. The majority relied on the plenary power of the legislature to justify the validity of the income-exception clauses in the cityhood laws despite the clear language of Section 450 of the Local Government Code, as amended by Republic Act No. 9009. Consequently, Congress could impose such criteria in a consolidated set of laws or a single-subject enactment—under which the cityhood laws fall under—or through amendments such as Republic Act No. 9009.

Second, the majority laid emphasis on the exchange between Senators Pimentel and Drilon during the deliberations on Republic Act No. 9009 to establish the legislative intent to exclude those cities with pending cityhood bills from the effects of Republic Act No. 9009. The Pimentel-Drilon exchange indicated that those with pending cityhood bills would fall outside the minimum income requirement of Php100M and that Republic Act No. 9009 would not have any retroactive effect insofar as the cityhood bills are concerned.

107 League of Cities of the Philippines v. Commission on Elections, G.R. Nos. 176951, 177499, 178056, December 21, 2009.

Third, the fact that the deliberations on Republic Act No. 9009 were made during the 11th and 12 Congress, while the cityhood laws were passed only in the 13th Congress, was considered immaterial. The majority was of the view that the prior hearings and deliberations of Congress were part of its legislative history and could be consulted as extrinsic aids in the interpretation of the law. That Congress is not a continuing body was therefore, considered of no moment.

Lastly, on the equal protection issue, the majority found that there existed a substantial distinction between the sixteen respondent LGUs and other municipalities. This distinction was based on the fact that the respondent LGUs had pending cityhood bills long before the enactment of Republic Act No. 9009 and they had met the old Php20M income threshold prior to the enactment of Republic Act No. 9009.

Justices Corona, Leonardo-de Castro, Bersamin, Abad, and Villarama concurred with Justice Velasco. Justice Carpio registered his dissent, opining that the denial of the first and second motions for reconsideration already brought finality to the case. He was joined by Justices Carpio-Morales, Brion, and Peralta. Chief Justice Puno, and Justices Nachura and Del Castillo did not take part.

August 24, 2010 Resolution[108]

The Supreme Court reversed itself a second time in 2010 and reinstated the November 18, 2008 decision declaring the sixteen cityhood laws as unconstitutional. The Resolution was penned by Justice Carpio, the *ponente* of the first decision. It was adopted by a vote of 7-6.

The Resolution echoed the 2008 Decision, stating that the cityhood laws violated Section 10, Article X of the Constitution. From the text of the fundamental law, it is clear that the creation of LGUs must follow the criteria established in the Local Government Code and not in any other law. Therefore, for the exemptions to be valid, it must be written in the Local Government Code. The Resolution maintained that Republic Act No. 9009 was not a law different from the Local Government Code as it in fact amended it. The Court held that language of Republic Act No. 9009 is plain, simple, and clear—there are no exceptions to the income requirement.

The majority further ruled that the mere pendency of a cityhood bill in the 11th Congress was not a material distinction to distinguish one municipality from another for the purpose of the income requirement. There was no rational

108 *Id.*

relationship between the basis of the classification, *i.e.* pendency of the bill, and the purpose of the law, to prevent fiscally non-viable municipalities from converting into cities. That being the case, the Court held that cityhood laws violate the equal protection clause.

The majority refuted the minority's application of the *operative fact* doctrine. While the doctrine could leave undisturbed the effects of an unconstitutional law prior to its judicial declaration of nullity, as a matter of equity and fair play, it never validates an unconstitutional law. Therefore, the cityhood laws remained unconstitutional although the effects of the implementation of these laws may be recognized as valid and effective prior to the Decision.

Justices Carpio-Morales, Brion, Peralta, Villarama, Mendoza and Sereno joined Justice Carpio. Justice Velasco, Jr. wrote a dissenting opinion, joined by Chief Justice Corona, and Justices Leonardo-de Castro, Bersamin, Abad, and Perez. Justices Nachura and Del Castillo again took no part.

February 15, 2011 Resolution[109]

The last reversal came in February 15, 2011 through a Resolution penned by Justice Bersamin, with a vote of 7-6. Although the composition of the Court was the same as the previous resolution, Justice Mendoza shifted to the majority opinion.

The new decision reiterated the December 21, 2009 Decision, stating that there had been no violation of Section 10, Article X of the Constitution. Again, heavy reliance was placed on the Pimentel–Drilon exchange. Republic Act No. 9009 carries with it both the letter and the spirit of the law. Thus, it was not enough to look at the text of Republic Act No. 9009; reference should also be made to the legislative intent behind the enactment of Republic Act No. 9009.

The new Resolution also stated, additionally, that there was no violation of Section 6, Article X as regards the just share of local government units. The majority provided empirical data to show that the amounts received by cities increased notwithstanding the inclusion of the sixteen respondent local government units.

Justice Carpio dissented, joined by the five other justices who comprised the majority in the August 2010 Resolution but without Justice Mendoza. Justices Nachura and Del Castillo did not take part.

109 League of Cities of the Philippines v. Commission on Elections, G.R. No. 176951, February 15, 2011.

April 12, 2011 Resolution[110]

The Supreme Court, by a vote of 7-6, denied the motion for reconsideration filed by the League of Cities and upheld the constitutionality of the cityhood laws in the April 12, 2011 Resolution.

The Resolution, again written by Justice Bersamin, reiterated that the legislative intent behind Republic Act No. 9009 was to exclude those with pending cityhood bills in the 11th Congress from the Php100M income requirement. The exemption clauses ultimately incorporated in the challenged cityhood laws were but express articulations of the clear legislative intent to exempt the respondents from the coverage of Republic Act No. 9009. Thereby, Republic Act No. 9009 and the Local Government Code were amended by way of express exemptions being embodied in the exemption clauses.

The majority also held that the Php100M requirement was arbitrary and even some members of the League of Cities failed to meet the requirement. It could not be justified to insist that the Constitution should yield to every amendment to the Local Government Code despite such amendment imminently producing effects contrary to the original thrusts of the Local Government Code, i.e. to promote autonomy, decentralization, countryside development, and the concomitant national growth.

Justice Carpio wrote a dissenting opinion, reiterating his view that the cityhood laws violated Section 10, Article X of the Constitution. He added that the "Court has made history with the repeated flip-flopping in this case." Justices Carpio-Morales, Brion, Peralta, Villarama, and Sereno once again joined the dissent. Justices Nachura and Del Castillo once again abstained from voting.

Indecision on the part of the Court creates little confidence in the Judiciary.[111] It suggests that the law is nothing more than the Justices' whims, especially when the members of the Court shift sides in the dispute. This particular case became one of the grounds for the impeachment case of Chief Justice Renato Corona in December of 2011.

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110 League of Cities of the Philippines v. Commission on Elections, G.R. No. 176951, April 12, 2011.

111 Other cases where the Supreme Court demonstrated inconsistency in its rulings are discussed in Marites Danguilan Vitug, Shadow of Doubt: Probing The Supreme Court 123-144 (2010).

CHAPTER 6

Analytical Reasoning

The application of law to facts involves two methods: deduction and analogy.

DEDUCTION

Reasoning in the deductive form is associated with reasoning from enacted law—statutes, regulations, executive orders. Usually, the enactment of a rule precedes any case. The starting point of the reasoning is the rule, not a case.[1] Judges do not have any discretion in applying the rules laid down by other branches of government and their task is limited to interpretation.[2]

The deductive form using a syllogism is the dominant style of legal reasoning. A syllogism in legal reasoning has an established structure, consisting of a major premise, a minor premise, and a conclusion. The major premise posits a statement that is true of a class of objects; the minor premise characterizes a particular object as belonging to the class; and the conclusion asserts that the statement is therefore true of the particular object.[3]

In legal reasoning, the major premise states a rule of law applicable to a class of situations described in the factual predicate; the minor premise characterizes a particular situation as either satisfying or not satisfying the elements of a factual predicate; and the conclusion states whether the general rule applies to the particular situation. That is, the major premise announces a rule of law, while the minor premise

1 Steven J. Burton, An Introduction to Law and Legal Reasoning 41 (1985).

2 *Id.* at 41-2.

3 Kenneth J. Vendevelde, Thinking like a Lawyer: An Introduction to Legal Reasoning 67 (1998).

describes the facts of the client's situation, and the conclusion states whether the right or duty described in the rule of law has been demonstrated to exist under the facts of the client's situation.[4]

An example of a case where the Supreme Court employed deductive reasoning is the case of *First Philippine Industrial Corporation v. Court of Appeals*.[5] The issue in that case was whether a pipeline operator "engaged in the business of transporting petroleum products from the Batangas refineries, via pipeline, to Sucat and JTF Pandacan Terminals" was exempt from business taxes under the Local Government Code. The City of Batangas argued that petitioner could not be exempt from taxes under Section 133 (j) of the Code because the exemption applied only to "transportation contractors and persons engaged in the transportation by hire and common carriers by air, land and water." The City argued that the term "common carrier" referred only to ordinary carriers such as trucks, trains, ships and the like, and not to pipelines.

The Supreme Court disagreed. It explained that a "common carrier" may be defined as one who holds himself out to the public as engaged in the business of transporting persons or property from place to place, for compensation, offering his services to the public generally. It examined Article 1732 of the Civil Code which defines a "common carrier" as "any person, corporation, firm or association engaged in the business of carrying or transporting passengers or goods or both, by land, water, or air, for compensation, offering their services to the public." The Court concluded that the petitioner had satisfied the definition of a common carrier because it was engaged in the business of transporting or carrying goods, i.e. petroleum products, for hire as a public employment. It undertook to carry for all persons (that is, to all persons who chose to employ its services), and transported the goods by land and for compensation. The definition of "common carriers" in the Civil Code does not make any distinction as to the means of transportation, as long as it is by land, water or air. It does not provide that the transportation of the passengers or goods should be by motor vehicle.

4 *Id.*

5 G.R. No. 125948, December 29, 1998.

ANALOGY

The second form of reasoning is reasoning by analogy. One author explains it in this way:

> In law, the most common form of analogical reasoning is the use of precedent. In common law jurisprudential systems … court decisions are recognized as a valid source of law. When a previously decided case is discovered that is "on point," the rule of the previous case governs the case to be decided. Not infrequently, the previous case is not precisely on point with the case to be decided. In this circumstance, the court must decide whether the previous case is sufficiently analogous for its rule to govern the case to be decided. It also frequently happens that there is more than one case that arguably applies to the case at hand. In that circumstance, courts that reason by analogy must determine which of the previous cases is most similar to the case to be decided.[6]

An analogy is a form of logic by which one reasons that because two items are alike in at least one respect, they are alike in at least one other respect. In analogy, the lawyer identifies at least one prior case—one precedent—that seems to have facts in common with the client's situation. [7]

If the lawyer believes that facts of the client's case are like those of the precedent, the lawyer concludes that the precedent should be followed. Analogy involves three steps. First, the lawyer identifies a rule or holding announced in a prior case. The rule serves the function of a major premise in a syllogism. Second, the lawyer determines whether the facts are like those of a prior case. Finally, the characterization of the facts as like or unlike those of the precedent yields the conclusion that the client's situation should or should not have the same legal consequence as the facts in the precedent.[8]

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6 *See* Wilson Huhn, *The Stages of Legal Reasoning: Formalism, Analogy, and Realism*, 48 Vill. L. Rev. 305, 314-315 (2003).

7 Vendevelde, *supra* note, 3 at 86.

8 *Id.* at 87.

Analogy is different from deduction in that in the former, a lawyer uses one specific case to decide another specific case. In the latter, a lawyer uses a general rule to decide a specific case.[9]

Analogical reasoning is considered advantageous because:

a. it produces a wealth of data for decision making;

b. it represents the collaborative effort of a number of judges over time;

c. it tends to correct biases that might lead judges to discount the force of prior decisions;

d. and it exerts a conservative force in law, holding the development of law to a gradual pace.[10]

Illustrative Cases

If a court finds that a case is sufficiently similar to the one it is considering, then the older case is considered "on all fours" with the present case.[11] Past decisions that "are not on all fours with the facts" cannot be applied to a new case.[12]

In *Lasoy v. Zenarosa*,[13] the issue was whether it was still possible to amend an information after the accused was arraigned, convicted, and had applied for probation. The prosecution sought the amendment on the ground that the information was allegedly tampered with. It cited what they claimed was the analogous case of *Galman v. Sandiganbayan*[14] and argued that the trial in *Lasoy* was likewise a "sham." The Supreme Court distinguished between the cases, however, because in *Galman*, then President Marcos ordered the *Sandiganbayan* and *Tanodbayan* to rig the trial and to closely monitor the entire proceedings to assure the acquittal of the accused from all the charges filed against them, which were facts that were not present in *Lasoy*.

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9 *Id.*

10 Emily Sherwin, *A Defense of Analogical Reasoning in Law*, 66 U. Chi. L. Rev. 1179 (1999). Sherwin discusses the objections to the use of analogous reasoning. *See Id.* at 1184-1185.

11 *See* Republic of the Philippines v. Gomez, G.R. No. 189021, February 2, 2012 and Fenequito v. Vergara, Jr., G.R. No. 172829, July 18, 2012.

12 *See* Nazareno v. Maersk Filipinas Crewing, Inc., G.R. No. 168703, February 26, 2013.

13 G.R. No. 129472, April 12, 2005.

14 G.R. No. L-72670, September 12, 1986.

In another case, the Court of Appeals dismissed an appeal filed fourteen days beyond the deadline allowed by law. The issue in *Bigornia v. Court of Appeals*[15] was whether the Court of Appeals acted with grave abuse of discretion when it refused to admit the appellants' brief. The petitioners argued that the dismissal of an appeal under Section 1 (e), Rule 50 of the Rules of Court is directory, not mandatory. They cited the case of *United Feature Syndicate, Inc. v. Munsingwear Creation Manufacturing Company,*[16] wherein the Court, in the interest of substantial justice, allowed a late appeal. The Court agreed and held that technical and procedural rules are intended to ensure, not suppress, substantial justice. The Supreme Court pointed to other cases where it had suspended its own rules or exempted a particular case from its strict operation where the appellant failed to perfect his appeal within the proper period.

Identifying precedent is not always a simple task. The creation of the Municipality of Alicia in Bohol became an issue in *Candijay v. Court of Appeals*[17] because it was created by Executive Order No. 265 issued in 1949 pursuant to Section 68 of the Revised Administrative Code. Section 68, however, was previously declared unconstitutional by the *Supreme Court in Pelaez v. Auditor General.*[18] In the latter case, municipalities created under Section 68 were declared illegal. The Court in *Candijay* ruled in favor of the Municipality relying on the more recent decision of *Municipality of San Narciso, Quezon v. Mendez, Sr.*:[19]

> Respondent municipality's situation in the instant case is strikingly similar to that of the municipality of San Andres. Respondent municipality of Alicia was created by virtue of Executive Order No. 265 in 1949, or ten years ahead of the municipality of San Andres, and therefore had been in existence for all of sixteen years when *Pelaez vs. Auditor General* (citation omitted) was promulgated. And various governmental acts throughout the years all indicate the State's recognition and acknowledgment of the existence thereof. For instance, under Administrative Order No. 33 …, the Municipality of Alicia was covered by the 7th Municipal Circuit Court of

15 G.R. No. 173017, March 17, 2009.
16 G.R. No. 76193, November 9, 1989.
17 G.R. No. 116702, December 28, 1995.
18 G. R. No. L-23825, December 24, 1965.
19 G.R. No. 103702, December 6, 1994.

> Alicia-Mabini for the province of Bohol. Likewise, under the Ordinance appended to the 1987 Constitution, the Municipality of Alicia is one of twenty municipalities comprising the Third District of Bohol.
>
> Inasmuch as respondent municipality of Alicia is similarly situated as the municipality of San Andres, it should likewise benefit from the effects of Section 442(d) of the Local Government Code, and should henceforth be considered as a regular, *de jure* municipality.[20]

The lawyer should be alert to changes in the Court's decisions to know which precedent governs the present controversy. *Pelaez* has never been overturned. It was inapplicable, however, in light of the fact that the municipal corporations in *San Narciso* and *Candijay* were *de facto* corporations. With the enactment of the Local Government Code, both became *de jure*. *Pelaez* dealt with municipalities that were completely void.

Another example can be found in the case of *Salva v. Makalintal*.[21] The issue in that case was whether a regional trial court had jurisdiction to enjoin the Commission on Elections from implementing rules for conducting a plebiscite on the abolition of a barangay. Both sides to the dispute cited cases which they argued were controlling in the present case. The Court ruled against the trial court, but the following excerpt shows how the Supreme Court managed the arguments of the parties:

The Supreme Court cited two cases where the same issue was already decided by the Supreme Court.

> In *Garces vs. Court of Appeals* (259 SCRA 99 [1996]) and *Filipinas Engineering and Machine Shop vs. Ferrer* (135 SCRA 25 [1985]), we found occasion to interpret the foregoing provision in this wise:
>
> "…What is contemplated by the term 'final orders, rulings and decisions' of the COMELEC reviewable by *certiorari* by the Supreme Court as provided by law are those rendered in actions or proceedings before the COMELEC and taken cognizance of by the said body in the exercise of its adjudicatory or quasi-judicial powers."

The Court quotes from the previous ruling to explain the prevailing rule.

20 Candijay v. Court of Appeals, G.R. No. 116702, December 28, 1995.

21 G.R. No. 132603, September 18, 2000.

In *Filipinas*, we have likewise affirmed that powers vested by the Constitution and the law on the Commission on Elections may either be classified as those pertaining to its adjudicatory or quasi-judicial functions, or those which are inherently administrative and sometimes ministerial in character.

…We agree with the Solicitor General that "…. [t]he issuance of [COMELEC] Resolution No. 2987 is thus a ministerial duty of the COMELEC that is enjoined by law and is part and parcel of its *administrative* functions. It involves no exercise of discretionary authority on the part of respondent COMELEC; let alone an exercise of its adjudicatory or quasi-judicial power to hear and resolve controversies defining the rights and duties of party-litigants, relative to the conduct of elections of public officers and the enforcement of the election laws." (Citation omitted.) Briefly, COMELEC Resolution No. 2987 which provides for the rules and regulations governing the conduct of the required plebiscite, was not issued pursuant to the COMELEC's quasi-judicial functions but merely as an incident of its inherent administrative functions over the conduct of plebiscites, thus, the said resolution may not be deemed as a "final order" reviewable by *certiorari* by this Court. Any question pertaining to the validity of said resolution may be well taken in an ordinary civil action before the trial courts.

To resolve the issue, the Court has to determine whether the Resolution was issued in an administrative or quasi-judicial function.

Even the cases cited by the public respondent in support of its contention — that the power to review or reverse COMELEC Resolution No. 2987 solely belongs to this Court are simply not in point. *Zaldivar vs. Estenzo* speaks of the power of the COMELEC to enforce and administer all laws relative to the conduct of elections to the exclusion of the judiciary. In the present case, petitioners are not contesting the exclusive authority of the COMELEC to enforce and administer election laws. *Luison vs. Garcia*

The Court explains that the issues in the cases cited by the respondent are not similar to the present case.

> refers to this Court's power to review "administrative decisions," particularly referring to a COMELEC resolution declaring a certain certificate of candidacy null and void, based on Article X, Section 2 of the 1935 Constitution. In *Macud vs. COMELEC*, we reiterated that when a board of canvassers rejects an election return on the ground that it is spurious or has been tampered with, the aggrieved party may elevate the matter to the COMELEC for appropriate relief, and if the COMELEC sustains the action of the board, the aggrieved party may appeal to this Court. In both *Luison* and *Macud*, the assailed COMELEC resolutions fall within the purview of "final orders, rulings and decisions" of the COMELEC reviewable by *certiorari* by this Court.

This excerpt illustrates how parties to a case use analogy to persuade the Court to rule in their favor. Both sides argued that the past decisions of the Court presented a rule that favored their interests. Again, the Supreme Court was able to distinguish the cases cited by the respondents and disregard them because they were "not in point."

In *Torralba v. Sibagat*,[22] the Court again illustrated how its prior decisions may be inapplicable to pending cases. In that case, the issue was the validity of the creation of the Municipality of Sibagat. The Court upheld the creation of the statute holding that the failure of the Legislature to enact a local government code did not prevent it from creating a municipality. But the Court cited another decision it felt might be perceived as inconsistent with their ruling. Here is an excerpt:

The Supreme Court acknowledges a prior decision that potentially applies to the case.

> We are not unmindful of the case of *Tan vs. COMELEC* (142 SCRA 727 [1986]), striking down as unconstitutional BP Blg. 885 creating a new province in the Island of Negros known as the Province of Negros del Norte, and declaring the plebiscite held in connection therewith as illegal.

22 G.R. No. L-59180, January 29, 1987.

There are significant differences, however, in the two cases among which may be mentioned the following: in the *Tan* case, the Local Government Code already existed at the time that the challenged statute was enacted on 3 December 1985; not so in the case at bar. Secondly, BP Bldg. 885 in the *Tan* case confined the plebiscite to the "proposed new province" to the exclusion of the voters in the remaining areas, in contravention of the Constitutional mandate and of the Local Government Code that the plebiscite should be held "in the unit or units affected." In contrast, BP 56 specifically provides for a plebiscite "in the area or areas affected." In fact, as previously stated, no question is raised herein as to the legality of the plebiscite conducted. Thirdly, in the *Tan* case, even the requisite area for the creation of a new province was not complied with in BP Blg. 885. No such issue in the creation of the new municipality has been raised here. And lastly, "indecent haste" attended the enactment of BP Blg. 885 and the holding of the plebiscite thereafter in the *Tan* case; on the other hand, BP 56 creating the Municipality of Sibagat, was enacted in the normal course of legislation, and the plebiscite was held within the period specified in that law.

The Court explains that there are factual differences between *Tan* and *Torralba.*

CHAPTER 7

The Decision

A "decision" is the adjudication or settlement of a controversy by a court of law. It goes into the roots of the controversy, makes a searching examination of the facts and the issues of the case, applies the law and considers the evidence presented, and determines the rights of the parties.[1] This is distinguished from a "judgment" which is a determination by the court that the accused is guilty or not guilty of the offense charged, and the imposition of the proper penalty and civil liability provided for by law on the accused. It is usually the dispositive portion of a decision, but may be used interchangeably with the term decision itself.[2]

CONSTITUTIONAL MANDATE

To be valid, decisions should comply with the form, procedure, and substantive requirements laid out in the Constitution, the Rules of Court, and the circulars and orders of the Supreme Court.[3] Article VIII, Section 14 of the Constitution provides that:

> No decision shall be rendered by any court without expressing therein clearly and distinctly the facts and the law on which it is based.
>
> No petition for review or motion for reconsideration of a decision of the court shall be refused due course or denied without stating the legal basis therefor.

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1 Philippine Judicial Academy, Fundamental of Decision Writing for Judges 16 (2009).

2 *Id.* at 21.

3 Velarde v. Social Justice Society, G.R. No. 159357, April 28, 2004.

Consistent with this constitutional mandate, Section 1 of Rule 36 of the Rules of Court on Civil Procedure similarly provides:

> Sec. 1. *Rendition of judgments and final orders.* – A judgment or final order determining the merits of the case shall be in writing personally and directly prepared by the judge, stating clearly and distinctly the facts and the law on which it is based, signed by him and filed with the clerk of court.

In the same vein, Section 2 of Rule 120 of the Rules of Court on Criminal Procedure reads as follows:

> Sec. 2. *Form and contents of judgments.* – The judgment must be written in the official language, personally and directly prepared by the judge and signed by him and shall contain clearly and distinctly a statement of the facts proved or admitted by the accused and the law upon which the judgment is based.

Pursuant to the Constitution, the Supreme Court also issued Administrative Circular No. 1 on January 28, 1988, prompting all judges "to make complete findings of facts in their decisions, and scrutinize closely the legal aspects of the case in the light of the evidence presented…They should avoid the tendency to generalize and form conclusions without detailing the facts from which such conclusions are deduced."[4]

The Constitution and the Rules of Court identify two essential parts of a judgment: the *body* and the *decretal portion*. Although the latter is the controlling part, the former is important because it is where the court clearly and distinctly states its findings of fact and of law on which the decision is based.[5] According to the Supreme Court:

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4 Yao v. Court of Appeals, G.R. No. 132426, October 24, 2000, citing People v. Alvero, G.R. No. 69564, January 29, 1988 and Pengson v. Intermediate Appellate Court, G.R. No. L-65622, June 29, 1984.

5 University of the Philippines v. Dizon, G.R. No. 171182, August 23, 2012.

> The term *findings of fact* that must be found in the body of the decision refers to statements of fact, not to conclusions of law. Unlike in pleadings where ultimate facts alone need to be stated, the Constitution and the Rules of Court require not only that a decision should state the ultimate facts but also that it should specify the supporting evidentiary facts, for they are what are called the findings of fact.[6]

The Supreme Court has discussed the significance of the constitutional provision in this way:

> Faithful adherence to the requirements of Section 14, Article VIII of the Constitution is indisputably a paramount component of due process and fair play. It is likewise demanded by the due process clause of the Constitution. The parties to a litigation should be informed of how it was decided, with an explanation of the factual and legal reasons that led to the conclusions of the court. The court cannot simply say that judgment is rendered in favor of X and against Y and just leave it at that without any justification whatsoever for its action. The losing party is entitled to know why he lost, so he may appeal to the higher court, if permitted, should he believe that the decision should be reversed. A decision that does not clearly and distinctly state the facts and the law on which it is based leaves the parties in the dark as to how it was reached and is precisely prejudicial to the losing party, who is unable to pinpoint the possible errors of the court for review by a higher tribunal. More than that, the requirement is an assurance to the parties that, in reaching judgment, the judge did so through the processes of legal reasoning. It is, thus, a safeguard against the impetuosity of the judge, preventing him from deciding ipse dixit. Vouchsafed neither the sword nor the purse by the Constitution but nonetheless vested with the sovereign prerogative of passing judgment on the life, liberty or property of his fellowmen, the judge must ultimately depend on the power of reason for sustained public confidence in the justness of his decision.[7]

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6 *Id.*

7 Yao v. Court of Appeals, G.R. No. 132426, October 24, 2000, *citing* People v. Alvero, G.R. No. 69564, January 29, 1988 and Pengson v. Intermediate Appellate Court, G.R. No. L-65622, June 29, 1984.

Due process demands that the parties be given information on how the case was decided, as well as an explanation of the factual and legal reasons that led to the conclusions of the court.[8] Thus, judges should exert effort to ensure that their decisions present a comprehensive analysis or account of the factual and legal findings that substantially address the issues raised by the parties.[9]

Although Section 14, Article VIII of the 1987 Constitution need not apply to decisions rendered in administrative proceedings and applies only to decisions rendered in judicial proceedings,[10] the Court has ruled that this requirement extends to decisions written by labor arbiters. The failure of a labor arbiter and the National Labor Relations Commission to express the basis for their decisions is an evasion of their constitutional duty that constitutes grave abuse of discretion.[11]

This mandate applies in cases "submitted for decision," or given due course after the filing of briefs or memoranda and/or other pleadings, as the case may be. It is not applicable to an order or resolution refusing due course to a Petition for *Certiorari*.[12] The constitutional mandate only requires that the decision should state the facts on which it is based. It does not prohibit courts from adopting the narration of facts made in the briefs or memoranda of the parties, instead of rewriting the same in their own words.[13]

REPOSITORIES OF DECISIONS

A system that adheres to binding precedent requires the publication of reported cases. The official repository of Supreme Court decisions is the Philippine Reports.[14] Unofficial reporters include Supreme Court Reports Annotated (SCRA), which is

8 Nicos Industrial Corp. v. Court of Appeals, G.R. No. 88709, February 11, 1992; People v. Judge Bellaflor, G.R. No. 103275, June 15, 1994; Anino v. National Labor Relations Commission, G.R. No. 123226, May 21, 1998.

9 Madrid v. Court of Appeals, G.R. No. 130683, May 31, 2000.

10 Solid Homes, Inc. v. Laserna, G.R. No. 166051, April 8, 2008.

11 Miguel v. JCT Group, Inc., G.R. No. 157752, March 16, 2005.

12 Nunal v. Commission on Appointments, G.R. No. 78648, January 24, 1989.

13 Hernandez v. Court of Appeals, G.R. No. 104874, December 14, 1993.

14 China Airlines v. Chiok, G.R. No. 152122, July 30, 2003.

published by Central Books[15] and which is also available online.[16] Supreme Court decisions available from SCRA begin from 1901 to the present. Another unofficial repository, CD Technologies Asia, makes the complete text of Supreme Court decisions available on DVD and online.[17]

The Supreme Court's decisions and resolutions are available online.[18] The Court issued a Resolution holding in abeyance the uploading of unsigned extended resolutions and unsigned resolutions with opinions to the Supreme Court Website. Pursuant to Rule 14 of the Internal Rules of the Supreme Court, the Court resolved that the following resolutions be uploaded to the Supreme Court Website:

> (a) Unsigned Extended Resolution which disposes a case after the filing of the comment; and
>
> (b) Unsigned Resolution, whether Extended or Minute, with separate, concurring, or dissenting opinions."[19]

PERSONAL OPINIONS OF JUDGES

The Supreme Court frowns upon the inclusion of personal views in court decisions. The decision of a court should contain only opinion that is relevant to the question before the court for decision. After all, courts are not concerned with the wisdom or morality of laws, but only in the interpretation and application of the law. Judges should refrain from expressing irrelevant opinions in their decision which may only reflect unfavorably upon their competence and the propriety of their judicial actuations.[20] Intemperate speech detracts from the equanimity and judiciousness that should be the constant hallmarks of a dispenser of justice.[21]

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15 See http://central.com.ph/centralbooks/.

16 See http://central.com.ph/escra/.

17 See http://www.cdasiaonline.com/.

18 See http://sc.judiciary.gov.ph/.

19 In re Decisions/Resolutions for Uploading to SC Website, A.M. No. 12-7-1-SC (Notice), July 22, 2014.

20 Director of Prisons v. Ang Cho Kio, G.R. No. L-30001, June 23, 1970.

21 Balagtas v. Sarmiento, Jr., A.M. No. MTJ-01-1377, June 17, 2004.

FORM OF DECISIONS

The Constitution does not prescribe a form for decisions, although certain guidelines should be observed by judges.[22] Brevity in writing decisions is desirable but it should not be used as a substitute for substance.[23] A judge must make an effort to explain his or her opinion and to support it with law or jurisprudence.[24]

In writing a decision, judges are not required to adopt a florid and dramatic style. The Supreme Court has said that "the decision [should] be lucidly crafted, complete in all its vital details, to enable the parties involved to understand how the judge arrived at his conclusions."[25] Judges must write decisions and resolutions with due care, and make certain that they accurately reflect their conclusions and final dispositions.[26] Judges should prepare concise but complete, as well as correct and clear decisions, orders, and resolutions.[27]

The Supreme Court in *Velarde v. Social Justice Society*[28] suggested the following as essential parts of a good decision: (1) statement of the case; (2) statement of facts; (3) issues or assignment of errors; (4) court ruling, in which each issue is, as a rule, separately considered and resolved; and, finally, (5) a dispositive portion.[29]

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22 For an excellent piece on opinion writing *see* Gerald Lebovitz, et al., *Ethical Judicial Opinion Writing,* 21 Geo. J. Leg. Ethics 237-309 (2008). *See also* Ruth C. Vance, *Judicial Opinion Writing: An Annotated Bibliography* 17 J. Leg. Writing Inst. 197-231 (2011).

23 Yao v. Court of Appeals, G.R. No. 132428, October 24, 2000.

24 People v. Francisco, G.R. No. 106097, July 21, 1994. The Constitutional provision applies to decisions of the National Labor Relations Commission. See Miguel v. JCT (Group, Inc.), G.R. No. 157752, March 16, 2005.

25 People v. Geral, G.R. No. 145731, June 26, 2003.

26 Lim v. Chan, G.R. No. 123891, February 28, 200 citing Caltex Refinery Employees Association v. Brillantes, G.R. No. 123782, September 16, 1997 and Saballa v. NLRC, G.R. Nos. 102472-84, August 22, 1996.

27 Office of the Court Administrator v. Español, A.M. No. RTJ-04-1872, October 18, 2004.

28 G.R. No. 159357, April 28, 2004.

29 There are other non-essential parts of a decision such as an introduction or prologue, and epilogue, which may be used especially in cases where controversial or novel issues are involved. According to the Court, an introduction may consist of a concise but comprehensive statement of the principal factual or legal issue/s of the case. In some cases particularly those concerning public interest or involving complicated commercial, scientific, technical or otherwise rare subject matters a longer introduction may inform readers with the specific nature of the controversy and the issues involved. An epilogue may be a summation of the important principles applied to the resolution of the issues of paramount public interest or significance. It may also lay down an enduring philosophy of law or guiding principle. Velarde v. Social Justice Society, G.R. No. 159357, April 28, 2004.

In that case, the *Social Justice Society*, a registered political party, filed a Petition for Declaratory Relief against several religious leaders which it alleged to be endorsing the candidacy of candidates for elective office or urging members to vote for specified candidates. It sought to clarify whether these alleged acts of endorsement or urging violate the Constitutional provision on the separation of church and state. The trial court rendered a decision narrating proceedings before it and discussing the legal issue on the separation clause.

The Court observed that the trial court's decision contained no statement of facts nor any assessment thereof. The decision clearly violated the constitutional directive. Moreover, the court a quo did not include a dispositive portion which is important because the dispositive part of the decision or order is the controlling factor that determines and settles the rights of the parties and the questions presented therein. The Court ruled that the assailed decision indeed failed to decide anything for not making a statement of facts and having a dispositive portion. It stated that decisions must express clearly the facts and the law on which they are based, as required by the Constitution, the Rules of Procedure and an administrative circular of the Judiciary. It likewise cited a line of cases emphasizing the mandate of making proper and valid decisions.

In *Sebastian Jr. v. Reyes,*[30] the Supreme Court dismissed a judge after it was shown that she failed to put her judgment into writing, merely requiring the accused to read it from the computer screen without assistance of counsel. The Court dismissed Judge Reyes from service. It found that the verbal judgment she rendered was in violation of the Constitution. It pronounced that a verbal judgment is ineffective because it does not respect the right of the losing party to know the reason for his/her loss for purposes of appeal to a higher court. Without these reasons, the party would be unable to point to the possible errors which the higher tribunal may review.

Students of law should read the *Velarde* decision for guidelines on various parts of a well-written decision.[31] Vandevelde[32] lists the following components of a decision which have been reduced to the barest outline here:

30 A.M. No. MTJ-06-1638, September 18, 2009.

31 See also Reynato S. Puno, Decision Writing, 4:14 Philja Juridical Journal 1-28 (2002).

32 Kenneth J. Vandevelde, Thinking Like a Lawyer: An Introduction to Legal Reasoning 27 -32 (1998).

1. Facts

   An opinion usually begins with a description of facts. It is a narration of events that gave rise to the dispute submitted for the court's resolution.

2. Procedural History

   This portion describes the events that occurred in the trial or lower appellate court during the course of the litigation beginning with the filing of a complaint.

3. Question Presented

   These are the questions that appellant is asking the court to decide.

4. Rule of Law

   To receive the issues raised, courts announce rules of law. These are the principles that apply to the case before the court.

5. Application of Law to the Fact

   This is the part of the decision that determines whether each element of each rule apply to the facts before it.

6. Holding

   This is the decision of the court with respect to a question presented.

7. Disposition

   This is essentially a procedural directive of some kind that gives effect to the court's decision.[33]

The following is an example that shows parts of a Supreme Court decision. (Citations are omitted in the reproduction)

33 *Id.*

Republic of the Philippines
SUPREME COURT
Manila

SECOND DIVISION

KARLO ANGELO DABALOS y SAN DIEGO,
Petitioner,

- versus –

REGIONAL TRIAL COURT, BRANCH 59, ANGELES CITY (PAMPANGA), REPRESENTED BY ITS PRESIDING JUDGE MA. ANGELICA T. PARAS-QUIAMBAO; THE OFFICE OF THE CITY PROSECUTOR, ANGELES CITY (PAMPANGA); AND ABC,
Respondent.

G.R. No. 193960

Each case is assigned a docket number when filed.

Present:

CARPIO, *J.*, Chairperson,
BRION,
DEL CASTILLO,
PEREZ and
PERLAS-BERNABE, *JJ.*

Promulgated:
January 7, 2013

This is the date the decision was promulgated.

x - - -

policy of the State to protect women and children from violence and threats to their personal safety and security.

This is the statement of the case. It explains the nature of this case.

Before the Court is a petition for *certiorari* and prohibition assailing the Orders dated September 13, 2010 and October 5, 2010 of the Regional Trial Court (RTC) of Angeles City, Branch 59 in Criminal Case No. 09-5210 which denied petitioner's Motion for Judicial Determination of Probable Cause with Motion to Quash the Information.

These are the facts of the case.

The Facts

Petitioner was charged with violation of Section 5 (a) of RA 9262 before the RTC of Angeles City, Branch 59, in an Information which states:

> That on or about the 13th day of July, 2009, in the City of Angeles, Philippines, and within the jurisdiction of this Honorable Court, the above-named accused, being then the boyfriend of the complainant,… did then and there wilfully, unlawfully and feloniously use personal violence [on] the complainant, by pulling her hair, punching complainant's back, shoulder and left eye, thereby demeaning and degrading the complainant's intrinsic worth and dignity as a human being, in violation of Section 5(a) of the Republic Act 9262.

After examining the supporting evidence, the RTC found probable cause and consequently, issued a warrant of arrest against petitioner on November 19, 2009. The latter posted a cash bond for his provisional liberty and on August 12, 2010, filed a Motion for Judicial Determination of Probable Cause with Motion to Quash the Information. Petitioner averred that at the time of the alleged incident on July 13, 2009, he was no longer in a dating relationship with private respondent; hence, RA 9262 was inapplicable.

In her affidavit, private respondent admitted that her relationship with petitioner had ended prior to the subject incident. She narrated

that on July 13, 2009, she sought payment of the money she had lent to petitioner but the latter could not pay. She then inquired from petitioner if he was responsible for spreading rumors about her which he admitted. Thereupon, private respondent slapped petitioner causing the latter to inflict on her the physical injuries alleged in the Information.

This section explains the decision of the Regional Trial Court where the case was tried.

The RTC Ruling

The RTC denied petitioner's motion. It did not consider material the fact that the parties' dating relationship had ceased prior to the incident, ratiocinating that since the parties had admitted a prior dating relationship, the infliction of slight physical injuries constituted an act of violence against women and their children as defined in Sec. 3 (a) of RA 9262.

The Court identifies the issues or assignment of errors.

Issues

Hence, the instant petition raising the following issues: 1) whether the RTC has jurisdiction over the offense; 2) whether RA 9262 should be construed in a manner that will favor the accused; and 3) whether the Information alleging a fact contrary to what has been admitted should be quashed.

The Court makes a ruling and then proceeds to explain it in the "ratio" of the case.

The Court's Ruling

The petition has no merit.

Petitioner insists that the act which resulted in physical injuries to private respondent is not covered by RA 9262 because its proximate cause was not their dating relationship. Instead, he claims that the offense committed was only slight physical injuries under the Revised Penal Code which falls under the jurisdiction of the Municipal Trial Court.

The Court is not persuaded.

Sec. 3 (a) of RA 9262 reads:

> SEC. 3. *Definition of Terms.* — As used in this Act,
>
> (a)"*Violence against women and their children*" refers to any act or a series of acts committed by any person against a woman who is his wife, former wife, or against a woman with whom the person has or had a sexual or dating relationship, or with whom he has a common child, or against her child whether legitimate or illegitimate, within or without the family abode, which result in or is likely to result in physical, sexual, psychological harm or suffering, or economic abuse including threats of such acts, battery, assault, coercion, harassment or arbitrary deprivation of liberty.…

The law is broad in scope but specifies two limiting qualifications for *any* act or series of acts to be considered as a crime of violence against women through physical harm, namely: 1) it is committed against a woman or her child and the woman is the offender's wife, former wife, or with whom he has or had sexual or dating relationship or with whom he has a common child; and 2) it results in or is likely to result in physical harm or suffering.

In *Ang v. Court of Appeals*, the Court enumerated the elements of the crime of violence against women through harassment, to wit:

1. The offender has or had a sexual or dating relationship with the offended woman;
2. The offender, by himself or through another, commits an act or series of acts of harassment against the woman; and
3. The harassment alarms or causes substantial emotional or psychological distress to her.

Notably, while it is required that the offender has or had a sexual or dating relationship with the offended woman, for RA 9262 to be applicable, it is not indispensable that the act of violence be a

consequence of such relationship. Nowhere in the law can such limitation be inferred. Hence, applying the rule on statutory construction that when the law does not distinguish, neither should the courts, then, clearly, the punishable acts refer to all acts of violence against women with whom the offender has or had a sexual or dating relationship. As correctly ruled by the RTC, it is immaterial whether the relationship had ceased for as long as there is sufficient evidence showing the past or present existence of such relationship between the offender and the victim when the physical harm was committed. Consequently, the Court cannot depart from the parallelism in *Ang* and give credence to petitioner's assertion that the act of violence should be due to the sexual or dating relationship.

Neither can the Court construe the statute in favor of petitioner using the rule of lenity because there is no ambiguity in RA 9262 that would necessitate any construction. While the degree of physical harm under RA 9262 and Article 266 of the Revised Penal Code are the same, there is sufficient justification for prescribing a higher penalty for the former. Clearly, the legislative intent is to purposely impose a more severe sanction on the offenders whose violent act/s physically harm women with whom they have or had a sexual or dating relationship, and/or their children with the end in view of promoting the protection of women and children.

Accordingly, the Information having sufficiently alleged the necessary elements of the crime, such as: a dating relationship between the petitioner and the private respondent; the act of violence committed by the petitioner; and the resulting physical harm to private respondent, the offense is covered by RA 9262 which falls under the jurisdiction of the RTC in accordance with Sec. 7 of the said law which reads:

> SEC. 7. *Venue.* — The Regional Trial Court designated as a Family Court shall have original and exclusive jurisdiction over cases of violence against women and their children under this law. In the absence of such court in the place where the offense was committed, the case shall be filed

> in the Regional Trial Court where the crime or any of its elements was committed at the option of the complainant.

Finally, the Court finds the Order of the RTC, giving the prosecutor a period of two (2) days to amend the Information to reflect the cessation of the dating relationship between the petitioner and the offended party, to be in accord with Sec. 4 of Rule 117 of the Rules of Court, to wit:

> SEC. 4. *Amendment of complaint or information.* — If the motion to quash is based on an alleged defect of the complaint or information which can be cured by amendment, the court shall order that an amendment be made.

Furthermore, Sec. 14 of Rule 110 of the Rules of Court provides that an information may be amended, in form or in substance, without leave of court, at any time before the accused enters his plea. In the present case, the accused petitioner has not yet been arraigned, hence, the RTC was correct in directing the amendment of the Information and in denying the motion to quash the same.

In a civil case, the dispositive portion should state whether the complaint or petition is granted or denied, the specific relief granted and the costs.

WHEREFORE, the petition is DISMISSED. The Orders dated September 13, 2010 and October 5, 2010 of the Regional Trial Court (RTC) of Angeles City, Branch 59 in Criminal Case No. 09-5210 are AFFIRMED. The Temporary Restraining Order issued by the Court is LIFTED and the RTC is directed to continue with the proceedings in Criminal Case No. 09-5210.

SO ORDERED.

Theoretically, every decision of a lower court or administrative body can come up to the Supreme Court for review. A review of a criminal conviction would typically look like the following case.

Republic of the Philippines
SUPREME COURT
Manila

THIRD DIVISION

MEL DIMAT,
Petitioner,

G.R. No. 181184

Present:

VELASCO, JR., J.,
Chairperson,
PERALTA,
ABAD,
PEREZ and
PERLAS-BERNABE, JJ.

- versus –

PEOPLE OF THE PHILIPPINES,
Respondent

Promulgated:
January 25, 2012

Criminal cases are brought by the People of the Philippines because the State is the offended party when crimes are committed.

DECISION

ABAD, *J.*:

Justice Abad is the ponente or author of this Decision.

This case is about the need to prove in the crime of "fencing" that the accused knew or ought to have known that the thing he bought or sold was the fruit of theft or robbery.

Cases sometimes begin by providing the reader with an idea of what the case is about.

The Facts and the Case

The government charged the accused Mel Dimat with violation of the Anti-Fencing Law before the Manila Regional Trial Court (RTC), Branch 03, in Criminal Case 02-202338.

These are the facts of the case.

Samson Delgado, together with Jose Mantequilla and police officers Danilo Ramirez and Ruben Familara, testified in substance that in December 2000 Delgado's wife, Sonia, bought from accused Dimat a 1997 Nissan Safari bearing plate number WAH-569 for P850,000.00. The deed of sale gave the vehicle's engine number as TD42-126134 and its chassis number as CRGY60-YO3553.

On March 7, 2001 PO Ramirez and fellow officers of the Traffic Management Group (TMG) spotted the Nissan Safari on E. Rodriguez Avenue, Quezon City, bearing a suspicious plate number. After stopping and inspecting the vehicle, they discovered that its engine number was actually TD42-119136 and its chassis number CRGY60-YO3111. They also found the particular Nissan Safari on their list of stolen vehicles. They brought it to their Camp Crame office and there further learned that it had been stolen from its registered owner, Jose Mantequilla.

Mantequilla affirmed that he owned a 1997 Nissan Safari that carried plate number JHM-818, which he mortgaged to Rizal Commercial Banking Corporation. The vehicle was carnapped on May 25, 1998 at Robinsons Galleria's parking area. He reported the carnapping to the TMG.

For his part, Dimat claimed that he did not know Mantequilla. He bought the 1997 Nissan Safari in good faith and for value from a certain Manuel Tolentino under a deed of sale that gave its engine number as TD42-126134 and its chassis number as CRGY60-YO3553. Dimat later sold the vehicle to Delgado. He also claimed that, although the Nissan Safari he sold to Delgado and the one which the police officers took into custody had the same plate number, they were not actually the same vehicle.

The evidence in favor of the defense is also examined by courts.

On July 20, 2005 the RTC found Dimat guilty of violation of the Anti-Fencing Law and sentenced him to an imprisonment of 10 years, 8 months, and 1 day of *prision mayor* to 20 years of *reclusion temporal.* The court also ordered him to pay P850,000.00 as actual damages and P50,000.00 as exemplary damages, as well as the costs of suit.

On October 26, 2007 the Court of Appeals (CA) affirmed in CA-G.R. CR 29794[2] the RTC decision but modified the penalty to imprisonment of 8 years and 1 day of *prision mayor* in its medium period, as minimum, to 17 years, 4 months, and 1 day of *reclusion temporal* in its maximum period, as maximum, thus, the present appeal.

These paragraphs explain the decisions of the trial court and the Court of Appeals.

The Issue Presented

The sole issue presented in this case is whether or not the CA correctly ruled that accused Dimat knowingly sold to Sonia Delgado for gain the Nissan Safari that was earlier carnapped from Mantequilla.

The Ruling of the Court

The elements of "fencing" are 1) a robbery or theft has been committed; 2) the accused, who took no part in the robbery or theft, "buys, receives, possesses, keeps, acquires, conceals, sells or disposes, or buys and sells, or in any manner deals in any article or object taken" during that robbery or theft; (3) the accused knows or should have known that the thing derived from that crime; and (4) he intends by the deal he makes to gain for himself or for another.

To determine liability for the crime of fencing, all the elements of the crime must be present.

Here, someone carnapped Mantequilla's Nissan Safari on May 25, 1998. Two years later in December 2000, Dimat sold it to Delgado for P850,000.00. Dimat's defense is that the Nissan Safari he bought from Tolentino and later sold to Delgado had engine number TD42-126134 and chassis number CRGY60-YO3553 as evidenced by the deeds of sale covering those transactions. The Nissan Safari stolen from Mantequilla, on the other hand, had engine number TD42-119136 and chassis number CRGY60-YO3111.

But Dimat's defense is flawed. First, the Nissan Safari Delgado bought from him, when stopped on the road and inspected by the police, turned out to have the engine and chassis numbers of the Nissan Safari stolen from Mantequilla. This means that the deeds of sale did not reflect the correct numbers of the vehicle's engine and chassis.

Second. Dimat claims lack of criminal intent as his main defense. But Presidential Decree 1612 is a special law and, therefore, its violation is regarded as *malum prohibitum*, requiring no proof of criminal intent. Of course, the prosecution must still prove that Dimat knew or should have known that the Nissan Safari he acquired and later sold to Delgado was derived from theft or robbery and that he intended to obtain some gain out of his acts.

The Court explains why it is not persuaded by the defendant's arguments.

Dimat testified that he met Tolentino at the Holiday Inn Casino where the latter gave the Nissan Safari to him as collateral for a loan. Tolentino supposedly showed him the old certificate of registration and official receipt of the vehicle and even promised to give him a new certificate of registration and official receipt already in his name. But Tolentino reneged on this promise. Dimat insists that Tolentino's failure to deliver the documents should not prejudice him in any way. Delgado himself could not produce any certificate of registration or official receipt.

Based on the above, evidently, Dimat knew that the Nissan Safari he bought was not properly documented. He said that Tolentino showed him its old certificate of registration and official receipt. But this certainly could not be true because, the vehicle having been carnapped, Tolentino had no documents to show. That Tolentino was unable to make good on his promise to produce new documents undoubtedly confirmed to Dimat that the Nissan Safari came from an illicit source. Still, Dimat sold the same to Sonia Delgado who apparently made no effort to check the papers covering her purchase. That she might herself be liable for fencing is of no moment since she did not stand accused in the case.

The Court makes its conclusions based on its examination of the evidence.

WHEREFORE, the Court AFFIRMS the decision of the Court of Appeals dated October 26, 2007 in CA-G.R. CR 29794.

The Court upheld the conviction.

SO ORDERED.

* Designated as additional member in lieu of Associate Justice Jose Catral Mendoza, per Raffle dated August 8, 2011.

THE DISPOSITION OR DISPOSITIVE PORTION

To get the true intent and meaning of a decision, the same must be considered in its entirety. Hence, a resolution or ruling may and does appear in other parts of the decision and not merely in the *fallo* thereof.[34] Whatever may be found in the body of the decision can only be considered as part of the reasons or conclusions of the court and while they may serve as guide or enlightenment to determine the *ratio decidendi*, what is controlling is what appears in the dispositive part of the decision.[35] The resolution of the court in a given issue — embodied in the *fallo* or dispositive part of a decision or order — is the controlling factor in resolving the issues in a case. The *fallo* embodies the court's decisive action on the issues posed, and is the part of the decision that must be enforced during execution. The other parts of the decision only contain the *ratio decidendi* (or reason for the decision) and, in this sense, assume a lesser role in carrying into effect the tribunal's disposition of the case.[36]

If there is a conflict between the dispositive portion or the *fallo* and the body of the decision, the *fallo* controls. This rule rests on the theory that the *fallo* is the final order while the opinion in the body is merely a statement ordering nothing. However, where the inevitable conclusion from the body of the decision is so clear as to show that there was a mistake in the dispositive portion, the body of the decision will prevail.[37]

The Supreme Court has departed from the general rule "to be able to do justice and equity to all concerned." In *Republic of the Philippines v. de los Angeles,*[38] the Court explained that "the provision of the Constitution of the Philippines regarding the form of judgments constitutes the conclusion and findings of facts and law of the court as integral parts of the judgment, so that the judgment must be in accordance therewith, hence it can be said that there is constitutional warrant to examine the other parts of a decision whenever it is necessary to determine the meaning of its dispositive part."

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34 Republic of the Philippines v. de los Angeles, G.R. No. L-26112, October 4, 1971.

35 Tropical Homes, Inc. v. Fortun, G.R. No. 51554, January 13, 1989.

36 So v. Food Fest Land, Inc., G.R. No. 183628, February 9, 2011. In another case, the Court explained that while the body of the decision, order or resolution might create some ambiguity in the manner the court s reasoning preponderates, it is the dispositive portion that finally invests rights upon the parties, sets conditions for the exercise of those rights, and imposes the corresponding duties or obligations. See Florentino v. Rivera, G.R. No. 167968, January 23, 2006.

37 Gonzales v. Solid Cement Corporation, G.R. No. 198423, October 23, 2012.

38 G.R. No. L-26112, October 4, 1971.

The general rule applies when the dispositive part of a final decision or order is definite, clear, and unequivocal, and can be given effect wholly without need of interpretation or construction.[39] The exceptions where the dispositive part of the judgment does not always prevail over the body of the opinion are as follows:

(a) where there is ambiguity or uncertainty, the body of the opinion may be referred to for purposes of construing the judgment because the dispositive part of a decision must find support from the decision's *ratio decidendi*;[40]

(b) where extensive and explicit discussion and settlement of the issue is found in the body of the decision.[41]

(c) where the inevitable conclusion from the body of the decision is so clear as to show that there was a mistake in the dispositive portion, the body of the decision will prevail.[42]

If there is ambiguity caused by an omission or mistake in the dispositive portion of a decision, the court may clarify such ambiguity by an amendment even after the judgment had become final, and for this purpose it may resort to the pleadings filed by the parties and the court's findings of facts and conclusions of law as expressed in the body of the decision.[43]

Where a *doubt or uncertainty* exists between the dispositive part and the body of the decision, the Court must harmonize the former with the latter to give effect to the decision's intention, purpose and substantive terms. As the Court explained, "[d]oubtful or ambiguous judgments are to have a reasonable intendment to do justice and avoid wrong. When a judgment is susceptible of two interpretations, that will be

39 Obra v. Spouses Badua, G.R. No. 149125, August 9, 2007.

40 UPSI Property Holdings, Inc. v. Diesel construction Co., Inc., G.R. No. 200250, August 6, 2014. In this case, the Court held that in case of ambiguity or uncertainty in the dispositive portion of a decision, the body of the decision may be scanned for guidance in construing the judgment.

41 Wilson Ong Ching Kian Chung v. Director of the National Library, G.R. No. 131502, June 8, 2000.

42 People v. Lacbayan, G.R. No. 125006, August 31, 2000. In one case, the Court held that the body of a decision prevails over the *fallo* when the inevitable conclusion from the former is that there was a glaring error in the latter, in which case the body of the decision will prevail. See PH Credit Corporation v. Court of Appeals, G.R. No. 109648, November 22, 2001.

43 Galang v. Court of Appeals, G.R. No. 139448, October 11, 2005.

adopted which renders it the more reasonable, effective, and conclusive, and which makes the judgment harmonize with the facts and law of the case and be such as sought to have been rendered.[44]

Where there are inaccuracies in the dispositive portion, a court is not precluded from issuing a writ of execution with the correct address of the subject property. This act falls within a court's inherent power "to amend and control its process and orders so as to make them conformable to law and justice."[45]

The court is also not precluded from resolving inaccuracies by resorting to the body of the decision. While the general rule is that the dispositive portion of a decision becomes the subject of execution, the body of the decision becomes controlling when there is ambiguity or uncertainty in the dispositive portion or when there is extensive and explicit discussion and settlement of the issue found in the body.[46]

Thus, although the dispositive portion of the Court of Appeals ruled that "although the prayer for dismissal of the complaint in Manila may be pursued before said court during the proceedings," the trial court erred in failing to resolve the motion to dismiss. Notwithstanding that the dispositive portion of the Court of Appeals decision seemed to grant the trial court discretion in resolving the said motion, the body of the same decision clearly held that the trial court should dismiss the case on the grounds of *litis pendentia* and forum shopping.[47]

THE PRINCIPLE OF IMMUTABILITY OF FINAL JUDGMENTS

A final judgment may no longer be altered, amended, or modified, even if the alteration, amendment, or modification is meant to correct what is perceived to be an erroneous conclusion of fact or law. Any attempt to insert, change, or add matters not clearly contemplated in the dispositive portion violates the rule on immutability

44 Jordan v. Grandeur Security & Services, Inc., G.R. No. 206716, June 18, 2014.

45 Montebon v. Court of Appeals, G.R. No. 180568, July 13, 2009. In this case, the regional trial court already assumed jurisdiction over the case. As such, the Metropolitan Trial Court was no longer in a position to correct the error contained in the dispositive portion. The duty devolved upon the Regional Trial Court before which the appeal was pending, is to rectify the error contained in the dispositive portion of the judgment sought to be executed. Clerical error or ambiguity in the dispositive portion of a judgment may be rectified or clarified by reference primarily to the body of the decision itself and the pleadings previously filed.

46 Wilson Ong Ching Klan Chung v. Director of the National Library, G.R. No. 131502, June 8, 2000.

47 *Id.*

of judgments.[48] A judgment that has become final and executory is immutable and unalterable, and may no longer be modified in any respect regardless of whether the modification is attempted to be made by the court rendering it or by the highest Court of the land.[49] The judgment of courts and the award of quasi-judicial agencies must, on some definite date fixed by law, become final even at the risk of occasional errors.[50]

This doctrine has two purposes: (a) to avoid delay in the administration of justice and thus, procedurally, to make orderly the discharge of judicial business; and (b) to put an end to judicial controversies, at the risk of occasional errors, which is precisely why courts exist.[51]

The doctrine is not a mere technicality to be easily brushed aside, but a matter of public policy as well as a time-honored principle of procedural law.

There are exceptions to the rule on the immutability of final judgments, which are (1) the correction of clerical errors,[52] (2) the so-called *nunc pro tunc* entries which cause no prejudice to any party, and (3) void judgments.[53]

Another recognized exception is the existence of a supervening cause or event which renders the enforcement of a final and executory decision unjust and

48 Lim v. HMR Phils., Inc., G.R. No. 201483, August 4, 2014.

49 Phil. Trust Co. v. Spouses Roxas, G.R. No. 171897, October 14, 2015.

50 Natividad v. Mariano, G.R. No. 179643, June 3, 2013.

51 Sangguniang Barangay v. Exploration Permit Application of PNOC, G.R. No. 162226 (Resolution), September 2, 2013.

52 The Supreme Court is not precluded from rectifying errors of judgment if blind and stubborn adherence to the doctrine of immutability of final judgments would involve the sacrifice of justice for technicality. See FGU Insurance Corp. v. Regional Trial Court of Makati City, Branch 66, G.R. No. 161282, February 23, 2011.

53 SM Land, Inc. v. Bases Conversion and Development Authority, G.R. No. 203655 (Resolution), September 7, 2015. Clerical errors cover all errors, mistakes, or omissions that result in the record s failure to correctly represent the court s decision. Courts are not authorized to add terms it never adjudged, nor enter orders it never made, although it should have made such additions or entered such orders. To be clerical, the error or mistake must be plainly due to inadvertence or negligence. An example of a clerical error is the interchange of the words mortgagor and mortgagee. *Nunc pro tunc* is Latin for now for then. Its purpose is to put on record an act which the court performed, but omitted from the record through inadvertence or mistake. It is not intended to render a new judgment or supply the court s inaction. A *nunc pro tunc* entry may be used to make the record speak the truth, but not to make it speak what it did not speak but ought to have spoken. A void judgment or order has no legal and binding effect. It does not divest rights and no rights can be obtained under it; all proceedings founded upon a void judgment are equally worthless. *See* Go v. Echavez, G.R. No. 174542, August 3, 2015.

inequitable.[54] The principle of immutability of judgments allows courts, as an exception, to recognize circumstances that transpire after the finality of the decision which would render its execution unjust and inequitable and act accordingly.[55] For instance, when a law is passed imposing penalties more lenient and favorable to the accused, the Court shall direct the reopening of a final and immutable judgment, to correct not the findings of guilt but the applicable penalties to be imposed.[56]

THE SYLLABUS

The syllabus of cases in official or unofficial reports of Supreme Court decisions or resolutions is not the work of the Court, nor does it state the Court's decision. The syllabus is the work of the reporter who gives his understanding of the decision. The reporter writes the syllabus for the convenience of lawyers in reading the reports. A syllabus is not a part of the Court's decision. According to the Court, a counsel should not cite a syllabus in place of the carefully considered text in the decision of the Court. Rule 10.02 of Canon 10 of the Code of Professional Responsibility mandates that a lawyer shall not knowingly misquote or misrepresent the text of a decision for authority. It is the duty of all officers of the court to cite the rulings and decisions of the Supreme Court accurately.[57]

Lawyers and litigants are mandated to quote decisions of the Supreme Court accurately. Judges should do no less by strictly abiding by this rule when they quote cases that support their judgments and decisions. Canon 3 of the Code of Judicial Conduct enjoins them to perform official duties diligently by being faithful to the law and maintaining their professional competence. [58]

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54 Libongcogon v. PHIMCO Industries, Inc., G.R. No. 203332, June 18, 2014.

55 Phil. Airlines, Inc. v. Bichara, G.R. No. 213729, September 2, 2015.

56 Hernan v. Sandiganbayan, G.R. No. 217874, December 5, 2017.

57 Allied Banking Corporation v. Court of Appeals and Galandia, G.R. No. 144412, November 18, 2003 citing French Oil Mill Machinery Co., Inc. v. Court of Appeals, G.R. No. 126477, September 11, 1998, and Insular Life Assurance Co., Ltd., Employees Association-Natu v. Insular Life Assurance Co., Ltd., G.R. No. L-25291, January 30, 1971.

58 China Airlines v. Chiok, G.R. No. 152122, July 30, 2003. However, since that case was not administrative in nature, the Supreme Court could not rule on the Court of Appeals Justices administrative liability. The Court pointed out that in administrative proceedings, the respondents must first be given an opportunity to be heard before sanctions can be imposed. It added that the case at bar was an appeal from the Court of Appeals Decision and was not an administrative case against the magistrates concerned. The Court said that [t]hese two suits are independent of and separate from each other and cannot be mixed in the same proceedings.

In *Allied Banking Corporation v. Court of Appeals*,[59] Labor Arbiter Almirante quoted from the Supreme Court's decision in *Dosch v. National Labor Relations Commision*.[60] The Labor Arbiter included the phrase "[r]efusal to obey a transfer order cannot be considered insubordination where employee cited reason for said refusal, such as that being away from the family" as part of the quoted decision, which, in actuality is a headnote from the Supreme Court Reports Annotated syllabus. The Court thus admonished the Labor Arbiter for misquoting its decision by including text from the syllabus otherwise not found in the decision itself. It explained that the syllabus is not the work of the Court and is therefore not part of the Court's decision. It cannot be cited in place of carefully considered text in the decision because it is merely the work of a reporter who gives his/her own understanding of the decision.

THE CERTIFICATION

Article VIII, Section 13 of the 1987 Constitution provides that:

> The conclusions of the Supreme Court in any case submitted to it for decision *en banc* or in division shall be reached in consultation before the case is assigned to a Member for the writing of the opinion of the Court. A certification to this effect signed by the Chief Justice shall be issued and a copy thereof attached to the record of the case and served upon the parties. Any Member who took no part, or dissented, or abstained from a decision or resolution must state the reason therefor. All lower collegiate courts shall observe the same requirements.

The certification requirement is a new provision introduced by the 1987 Constitution. It is meant to ensure the implementation of the constitutional requirement that decisions of the Supreme Court and lower collegiate courts are reached after consultation with members of the court sitting *en banc* or in a division before the case is assigned to a member thereof for decision-writing. The decision is thus rendered

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Without any proper administrative case, the Court could only determine whether the error in quotation would be sufficient to reverse or modify the Court of Appeals Decision.

59 G.R. No. 144412, November 18, 2003.

60 G.R. No. L-51182, July 5, 1983.

by the court as a body and not merely by a member thereof. This is in keeping with the very nature of a collegial body that arrives at its decisions only after deliberation, the exchange of views and ideas, and the concurrence of the required majority vote.[61]

The absence of the certification, however, does not necessarily mean that the case submitted for decision was not reached in consultation before being assigned to one member for the writing of the opinion of the court, since the regular performance of official duty is presumed. The lack of certification serves as evidence of failure to observe the certification requirement and may be basis for holding the official responsible for the omission to account therefor. Such absence of certification does not have the effect of invalidating the decision.[62]

Not everything promulgated by the Supreme Court requires certification. The certification requirement refers to decisions in judicial, not administrative, cases. From the very beginning, resolutions or decisions of the Court in administrative cases have not been accompanied by any formal certification. In fact, such a certification would be a superfluity in administrative cases, which by their very nature, have to be deliberated upon considering the collegiate composition of the Supreme Court. But even if such a certification were required, the signatures of the members who actually took part in the deliberations and voted attest to the fact that the conclusions of the Court were arrived at after consultation and deliberation.[63]

A *per curiam* decision — one where there is no *ponente* — does not require formal certification.[64]

The Supreme Court has also held that a minute resolution need not be signed by the members of the Court who took part in the deliberations of a case nor does it require a certification of the Chief Justice. To require members of the Court to sign all resolutions would delay the issuance of its resolutions and a great amount of their time would be spent on functions more properly performed by the Clerk of Court and which time could be more profitably used in the analysis of cases and the formulation of decisions and orders of important nature and character.[65]

When a decision is promulgated by a Division of the Supreme Court, the Division Chair attests to the fact that the decision was reached in consultation before it

61 Consing v. Court of Appeals, G.R. No. 78272, August 29, 1989.

62 *Id.*

63 Prudential Bank v. Castro, A.C. No. 2756, March 15, 1988.

64 *Id.*

65 Borromeo v. Court of Appeals, G.R. No. 82273, June 1, 1990.

was assigned to the writer of the opinion. Thereafter, the Chief Justice certifies that "the conclusions in the above decision were reached in consultation before the case was assigned to the writer of the opinion of the Court's Division." For example:

ATTESTATION

I attest that the conclusions in the above Decision had been reached in consultation before the case was assigned to the writer of the opinion of the Court's Division.

ANTONIO T. CARPIO
Associate Justice
Chairperson

CERTIFICATION

Pursuant to Section 13, Article VIII of the Constitution, and the Division Chairperson's Attestation, I certify that the conclusions in the above Decision had been reached in consultation before the case was assigned to the writer of the opinion of the Court's Division.

RENATO C. CORONA
Chief Justice

Certification is also made by the Chief Justice in Resolutions of the Presidential Electoral Tribunal.[66]

66 *See* Poe v. Macapagal-Arroyo, P.E.T. Case No. 002, March 29, 2005, and Legarda v. De Castro, P.E.T. Case No. 003, March 31, 2005.

MEMORANDUM DECISION

Memorandum decisions are those which adopt by reference the findings of fact and conclusions of law of inferior tribunals. The statutory basis for this type of decision is found in section 40 of the Judiciary Reorganization Act of 1981,[67] thus:

> Sec. 40. *Form of decision in appealed cases.* — Every decision of final resolution of a court in appealed cases shall clearly and distinctly state the findings of fact and the conclusions of law on which it is based, which may be contained in the decision or final resolution itself, or adopted by reference from those set forth in the decision, order, or resolution appealed from.

Memorandum decisions do not violate the constitutional requirement mandating that decisions should state the facts and the law on which the decision is based. However, it would be more prudent for a memorandum decision not to be limited to the dispositive portion but to state the nature of the case, summarize the facts with references to the record, and contain a statement of the applicable laws and jurisprudence and the tribunal's assessments and conclusions on the case. This practice would better enable a court to make an appropriate consideration of whether the dispositive portion of the judgment sought to be enforced is consistent with the findings of fact and conclusions of law made by the tribunal that rendered the decision. This is particularly true where the decisions, orders, or resolutions came from a court in another jurisdiction. Otherwise, the enforcement of the decisions would be based on presumptions that laws in other jurisdictions are similar to our laws, at the expense of justice based on the merits.[68]

Incorporation by reference is allowed to avoid the cumbersome reproduction of the decision of the lower courts, or portions thereof, in the decision of the higher court. This is particularly true when the decision sought to be incorporated is a lengthy and thorough discussion of the facts and conclusions arrived at.[69]

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67 Batas Pambansa Blg. 129 (1981).

68 Oil and Natural Gas Commission v. Court of Appeals, G.R. No. 114323, September 28, 1999.

69 Oil and Natural Gas Commission v. Court of Appeals, G.R. No. 114323, July 23, 1998.

The Supreme Court has sanctioned memorandum decisions on the grounds of expediency, practicality, convenience, and docket status of our courts.[70] In *Francisco v. Permskul*,[71] the Court laid down the conditions for the validity of memorandum decisions:

> The memorandum decision, to be valid, cannot incorporate the findings of fact and the conclusions of law of the lower court only by remote reference, which is to say that the challenged decision is not easily and immediately available to the person reading the memorandum decision. For the incorporation by reference to be allowed, it must provide for direct access to the facts and the law being adopted, which must be contained in a statement attached to the said decision. In other words, the memorandum decision authorized under Section 40 of B.P. Blg. 129 should actually embody the findings of fact and conclusions of law of the lower court in an annex attached to and made an indispensable part of the decision.

It is expected that this requirement will allay the suspicion that no study was made of the decision of the lower court and that its decision was merely affirmed without a proper examination of the facts and the law on which it is based. The proximity at least of the annexed statement should suggest that such an examination has been undertaken. It is, of course, also understood that the decision being adopted should, to begin with, comply with Article VIII, Section 14 as no amount of incorporation or adoption will rectify its violation.

The Court finds it necessary to emphasize that the memorandum decision should be sparingly used lest it become an addictive excuse for judicial sloth. It is an additional condition for the validity that this kind of decision may be resorted to only in cases where the facts are in the main accepted by both parties and easily determinable by the judge and there are no doctrinal complications involved that will require an extended discussion of the laws involved. The memorandum decision may be employed in simple litigations only, such as ordinary collection cases, where the appeal is obviously groundless and deserves no more than the time needed to dismiss it.

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70 Yao v. Court of Appeals, G.R. No. 132428, October 24, 2000.

71 G.R. No. 81006, May 12, 1989.

Henceforth, all memorandum decisions shall comply with the requirements herein set forth both as to the form prescribed and the occasions when they may be rendered. Any deviation will summon the strict enforcement of Article VIII, Section 14 of the Constitution and strike down the flawed judgment as a lawless disobedience.[72]

In *Yao v. Court of Appeals*,[73] the Court struck down a decision of a regional trial court because it was "starkly [s]hallow, otiosely written, vacuous in its content and trite in its form. It achieved nothing and attempted at nothing, not even at a simple summation of facts which could easily be done." Such a decision was not even considered a memorandum decision because it merely affirmed a lower court decision without saying more.

PER CURIAM OPINIONS

A *per curiam* resolution is defined as "an opinion of the Court in which the judges are all of one mind and the question involved is so clear that it is not necessary to elaborate on it by an extended discussion."[74]

Per curiam opinions are unsigned and decided by "the court." In the federal appellate courts of the United States, *per curiam* opinions are reserved for cases deemed routine and squarely controlled by precedent or for cases in which the court wants to control the result without writing to explain why.[75] True *per curiam* opinions are more authoritative than signed opinions when they contain no reservations or exceptions. However, the authority extends only to the result, not to the reasoning. On the other hand, *per curiam* opinions are less authoritative than signed opinions, when the court uses them to decide mundane questions. *Per curiam* opinions are the most authoritative opinions of all when the court wants to make a politically important decision issued by a unanimous court, not from an individual judge appointed by a particular appointing authority. An example of this form of *per curiam* opinion is *Bush v. Gore*.[76]

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72 *Id.*

73 G.R. No. 132428, October 24, 2000.

74 Ramos v. Central Bank of the Philippines, G.R. No. L-29352, February 19, 1986.

75 Gerald Lebovits, Technique: Legal Method to the Madness, 75-JUN N.Y. St. B. J. 64 (2003).

76 531 U.S. 98 (2000).

The Supreme Court usually resorts to *per curiam* decisions for cases involving the imposition of the death penalty[77] or severe administrative penalties.[78] According to Section 14 of the Supreme Court's internal rules, unless otherwise requested by the Member assigned to write the opinion of the Court, the decision or resolution shall be rendered *per curiam*:

(a) where the penalty imposed is dismissal from service, disbarment, or indefinite suspension in administrative cases; or

(b) in any other case by agreement of the majority of the Members or upon request of a Member.

MINUTE RESOLUTIONS

The Supreme Court is not bound to render signed decisions all the time and has discretion to formulate decisions or minute resolutions, provided a legal basis is given, depending on its evaluation of a case.[79] It disposes of the bulk of its cases by minute resolutions and decrees them as final and executory, where:

1. a case is patently without merit;
2. the issues raised are factual in nature;
3. the decision appealed from is supported by substantial evidence and is in accord with the facts of the case and the applicable laws; or
4. it is clear from the records that the petition is filed merely to forestall the early execution of judgment and for non-compliance with the rules.[80]

The use of minute resolutions helps the court in alleviating its heavy docket.[81] If the Court were to be obligated to write a full opinion to address all who seek

77 People v. Ebio, G.R No. 147750, September 29, 2004.

78 Dantes v. Dantes, A.C. No. 6486, September 22, 2004.

79 In Re: Wenceslao Laureta, G.R. No. L-68635, March 12, 1987.

80 Borromeo v. Court of Appeals, G.R. No. 82273, June 1, 1990.

81 Commercial Union Assurance Company Limited and North British & Mercantile Insurance Company Limited v. Lepanto Consolidated Mining Company, G.R. No. L-43342, October 30, 1978.

its aid, it would be unable to carry out effectively the burden placed upon it by the Constitution.[82]

No law requires the Justices of the Supreme Court to sign minute resolutions that deny due course to actions filed before it or the Chief Justice to enter his certification on the same. To require the Justices to sign all its resolutions respecting its action on new cases would be unreasonable and unnecessary.[83]

With the promulgation of its Internal Rules, the Court defined the instances when cases are to be adjudicated by decision, signed resolution, unsigned resolution or minute resolution. Among those instances when a minute resolution shall issue is when the Court "denies a petition filed under Rule 45 of the [Rules of Court], citing as legal basis the absence of reversible error committed in the challenged decision, resolution, or order of the court below."[84]

Minute resolutions are promulgated by the Court through the Clerk of Court, who sends copies to the parties concerned by quoting *verbatim* the resolution issued on a particular case. The Clerk of Court informs the parties of the action taken on their cases by quoting the resolution adopted by the Court, although she never participates in the deliberations of a case. She merely transmits the Court's action to the parties. Minute resolutions are the result of a thorough deliberation among the members of the Supreme Court but it does not delegate the exercise of its judicial functions to its Clerk of Court or any of its subalterns. When a petition is denied or dismissed by the Court, it sustains the challenged decision or order together with its findings of facts and legal conclusions.[85] The Court needs the full time and attention of its Clerks of Court and other key officials. Its officers do not have the time to answer frivolous complaints filed by disgruntled litigants questioning decisions and resolutions of the Court and involving cases already deliberated upon and resolved by the Court itself. All resolutions and decisions are actions of the Court, not its subordinate personnel. The Court assumes full responsibility for all its acts. Its personnel cannot answer and should not be made to answer for acts of the Court.[86]

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82 Re: Request for Copies of the Statement of Assets, Liabilities and Net Worth and Personal Data Sheet or Curriculum Vitae of the Justices of the Supreme Court and Officers and Employees of the Judiciary, A.M. No. 09-8-6-SC, et al. August 26, 2014.

83 Agoy v. Araneta Center, Inc. G.R. No. 196358. March 21, 2012.

84 *Id.*

85 Rhine Marketing Corp. v. Felix Gravante, G.R. No. 56280, July 6, 1981.

86 Borromeo v. Court of Appeals, G.R. No. 82273, June 1, 1990.

Minute resolutions are not constitutionally infirm because they are not "decisions" within the meaning of the Constitution.[87] The constitutional mandate is applicable only in cases "submitted for decision," or those that are given due course and after the filing of briefs or memoranda and/or other pleadings, but not where the petition is refused due course, with the resolution therefore stating the legal basis thereof. When the Court, after deliberating on a petition and subsequent pleadings, decides to deny due course to the petition and states that the questions raised are factual or where there is no reversible error in the respondent court's decision, there is sufficient compliance with the constitutional requirement.[88] The constitutional requirement that a decision must express clearly and distinctly the facts and law on which it is based refers only to decisions. Resolutions disposing of petitions fall under the second paragraph of Article VIII, Section 14 of the Constitution, which provides that "[n]o petition for review or motion for reconsideration of a decision of the court shall be refused due course or denied without stating the legal basis therefor."[89]

The following are substantial distinctions between a minute resolution and a decision:

1. Article VIII, Section 14 of the Constitution, requiring that the facts and the law on which the judgment is based must be expressed clearly and distinctly, applies only to decisions, not to minute resolutions.
2. A minute resolution is signed only by the Clerk of Court by authority of the Justices.
3. A minute resolution does not require the certification of the Chief Justice.
4. Minute resolutions are not published in the Philippine Reports.
5. Finally, as a rule, the Supreme Court lays down doctrines or principles of law which constitute binding precedent in a decision duly signed by the members of the Court and certified by the Chief Justice.[90]

87 Novino v. Court of Appeals, G.R. No. L-21098, May 31, 1963.

88 Komatsu Industries (Phils.), Inc. v. Court of Appeals, G.R. No. 127682, April 24, 1998; Judge Judge Madrid v. Dealca, A.C. No. 7474, September 9, 2014.

89 Tayamura v. Intermediate Appellate Court, G.R. No. 76355, May 21, 1987.

90 Nationwide Security and Allied Services, Inc. v. Valderama, G.R. No. 186614, February 23, 2011.

Minute resolutions dismissing the actions filed before it constitute actual adjudications on the merits. These Resolutions are the product of thorough deliberation among the members of the Court. When the Court does not find any reversible error in the decision of the Court of Appeals, there is no need for the Court to fully explain its denial, since it already means that it agrees with and adopts the findings and conclusions of the Court of Appeals.[91] Minute resolutions denying due course to petitions or dismissing cases summarily for failure to comply with the formal or substantial requirements laid down by law, are dispositions on the merits.[92]

The application of the rule of *res judicata* depends on whether a minute resolution of the Supreme Court is an adjudication on the merits of the petition.[93] In one case, the Supreme Court explained that a minute resolution, while not a precedent relative to strangers to an action, nonetheless binds the parties therein, and calls for the application of *res judicata*.[94]

Minute resolutions are typically short as the following example shows:

Republic of the Philippines
SUPREME COURT
Manila

EN BANC

RESOLUTION

Sirs/Mesdames:

Please take notice that the Court en banc issued a Resolution dated JULY 17, 2012, *which reads as follows:*

91 Agoy v. Araneta Center, Inc., G.R. No. 196358, March 21, 2012.

92 Republic of the Philippines v. Court of Appeals, G.R. No. 103412, February 3, 2000.

93 Commercial Union Assurance Company Limited and North British & Mercantile Insurance Company Limited v. Lepanto Consolidated Mining Company and the Court of Appeals, G.R. No. L-43342, October 30, 1978. *See also* Philippine Health Care Providers, Inc. v. Commissioner of Internal Revenue, G.R. No. 167330, September 18, 2009.

94 Philippine National Bank v. Lim, G.R. No. 171677, January 30, 2013.

The petitioners argue that the Judicial and Bar Council should desist from selecting a Chief Justice.

"G.R. No. 202263 (Citizens Homobono A. Adaza, Alan Paguia, Herman Tiu Laurel and Uriel G. Borja v. President Benigno Simeon C. Aquino III and Judicial and Bar Council). - This is a Petition for *Certiorari* and Prohibition under Rule 65 of the Rules of Court with a Prayer for Temporary Restraining Order and/or Writ of Preliminary Injunction filed by petitioners Homobono A. Adaza, Alan Paguia, Herman Tiu Laurel and Uriel G. Borja against respondents President Benigno Simeon C. Aquino III and the Judicial and Bar Council (JBC) questioning the JBC's action in going over a list of nominees for the Chief Justice of the Court based on the following grounds: (1) there is no provision in the Constitution authorizing the JBC to entertain nominees for the position of Chief Justice of the Supreme Court and to submit a list to the President; (2) there is no provision in the Constitution authorizing the President to appoint a Chief Justice as he can only appoint the members of this Court; and (3) even if the JBC has the power to recommend nominees for the Chief Justice and the President can appoint a Chief Justice, they cannot do so until the Court resolves the petitions filed before it questioning the jurisdiction of the Senate in the Impeachment case of Chief Justice Renato Corona.

They cite three reasons as the bases of their argument.

The Court rules against the petitioners.

We find no merit in the petition.

The first two arguments have been resolved by the Court in an earlier case.

The first and second grounds relied upon by petitioners are the very issues resolved by the Court in *Famela R. Dulay v. Judicial and Bar Council and Paquito N. Ochoa, Jr., as Executive Secretary.* In said case, we upheld the JBC's action in accepting applications and nominations for the position of Chief Justice of this Court as well as the President's power to appoint one, as the "members of the Supreme Court" used in the 1987 Constitution who are within the President's appointing power refer not only to the fourteen Associate Justices of the Court but also to the Chief Justice. Thus, we apply the same conclvusion and, consequently, dismiss the petition.

As to the third issue, suffice it to state that former Chief Justice Corona himself respected the decision of the Senate Impeachment Court and did not bring the matter to this Court. Thus, said petitions should not bar the JBC from performing its duty of selecting the nominees for the vacant post, and the President from making

the appointment. We would like to emphasize at this point that the Constitution imposes on the President the imperative duty to make the appointment of a Member of the Supreme Court within 90 days from the occurrence of the vacancy. The failure by the President to do so will be a clear disobedience to the Constitution. This 90-day limitation fixed in Section 4(1), Article VIII, for the President to fill the vacancy, was undoubtedly a special provision to establish a definite mandate for the President as the appointing power, and cannot be defeated by the pendency of the cases referred to by petitioners.

On the third argument, the Court cites two reasons why the JBC should be allowed to proceed.

WHEREFORE, the petition is DISMISSED." (*Carpio, Velasco, Jr., Leonardo-De Castro, Brion, Abad and Sereno, JJ.,* no part, *Peralta, J.,* presiding, *Bersamin, Del Castillo, Villarama, Jr., Perez, Mendoza, Reyes, Perlas-Bernabe, JJ.,* present)

Very truly yours,
(Sgd.) ENRIQUETA E. VIDAL Clerk of Court

Some minute resolutions, however, take time to discuss substantive issues as shown by the next example:

Republic of the Philippines
SUPREME COURT
Manila

EN BANC

RESOLUTION

This is an older Resolution that does not reflect gender sensitive language.

Gentlemen:

Quoted hereunder, for your information, is a resolution of the Court En banc dated February 1, 2005.

The title of the case is found in the body of the Resolution.

G.R. No. 127882 (La Bugal B'laan Tribal Association, et al. vs. Ramos, et al.)

Before the Court is petitioners' 38-page Motion for Reconsideration praying for the reversal of this Court's Resolution promulgated on December 1, 2004, on the following grounds:

Several grounds were raised by the petitioners in asking the Supreme Court to reverse its December 2004 Resolution.

"I

The assumption that Filipino-owned corporations cannot put up the capital and that foreign-owned corporations are not willing to provide large amounts of financial assistance are belied by the very facts of this case.

"II

The interpretation of paragraph four, section 2, article XII of the Constitution practically negates the operation of the first paragraph, section 2, article XII of the Constitution.

"III

The interpretation in the Decision violates the constitutional requirement of equitable sharing.

"IV

The 'control test' in the Decision is not in consonance with the requirement of 'full control and supervision' required of the state considering that the kind of service contracts during Martial Law has been reestablished and reinstated.

"V

The alleged transfer of the FTAA to TMRC is null and void because it violates the fourth paragraph, section 2, article XII of the Constitution.

"VI

The provisions of the FTAA which were invalidated by the Decision dated December 1, 2004 are not separable and are intrinsic to the agreements.

"VII

The 'closing out theory' of interpretation is not valid."

A close perusal of the above issues and the discussions thereof shows that they are a mere rehash of arguments and positions already raised and discussed extensively in the 246-page Resolution of December 1, 2004, penned by Justice Artemio V. Panganiban; as well as in the 125-page Dissenting Opinion of Justice Antonio T. Carpio, the 100-page Dissenting Opinion of Justice Conchita Carpio Morales, the 29-page Separate Opinion of Justice Dante O. Tinga, and the 10-page Concurring Opinion of Justice Minita V. Chico-Nazario.

The inclusion of the number of pages devoted to the Court's December 1, 2004 Resolution indicates that the Court is disinclined to address the matter further.

Further discussion of these issues would not serve any useful purpose, as it would merely repeat the same justifications and reasons already taken up in the foregoing Opinions, which tackled precisely those matters and even more; any further elucidations, disquisitions and disputations would merely reiterate the same points already passed upon.

In a Minute Resolution, the Supreme Court is not precluded from addressing substantive issues.

In regard to the present Dissenting Opinion of Justice Carpio, which in the main attacks RA 7942 (the Mining Law), DAO 56-99 and the subject FTAA for allegedly limiting "the equitable share of the State from the mining profits of the foreign contractor" (p. 46), suffice it to reiterate that "the development of the mining industry [is] the responsibility of the political branches of government. And let not this Court interfere inordinately and unnecessarily." The issue of how much "profit" the nation should or could derive from the exploration, development and utilization of the country's mineral resources is a policy matter, over which we "must allow the President and Congress maximum discretion in using the resources of our country and in securing the assistance of foreign groups to eradicate the grinding poverty of our people and answer their cry for viable employment opportunities in the country," (pp. 240-241, Resolution dated December 1, 2004). That the aforementioned law, executive issuance and contract had been declared constitutional will not

prevent Congress or the President or the parties to the FTAA from amending or modifying them, if indeed, in their opinion they are unwise or wanting in any respect.

This is another indication that the Court is no longer inclined to address the issues again.

In any event, after a thorough deliberation on the Motion, none of the members of this Court have changed their opinions or votes. Indeed, all the conceivable aspects of this litigation — factual, constitutional, legal, philosophical, technical, financial, ecological, environmental and technological — have all been extensively taken up and addressed during the Court's lengthy and purposeful debates and deliberations.

Justices Carpio and Carpio-Morales wrote separate dissents to this Minute Resolution.

WHEREFORE, the Motion is DENIED with finality. The prayer for oral argument is likewise DENIED. (Ynares-Santiago, Carpio, Morales, and Callejo Sr., *JJ,* maintain their dissents; Azcuna, J, no part).

The Supreme Court also uses minute resolutions even when the issues raised in a case are not insubstantial.

In a case where the extent of the powers of the Judicial and Bar Council were raised, the Court saw it fit to dismiss the case through a minute resolution despite the fact that the issues that were raised were novel and significant. Below are excerpts:

EN BANC

[G.R No. 202143, July 03, 2012]

FAMELA R. DULAY V. JUDICIAL AND BAR COUNCIL AND PAQUITO N. OCHOA, JR., AS EXECUTIVE SECRETARY.

Sirs/Mesdames:

Please take notice that the Court en banc issued a Resolution dated JULY 3, 2012, *which reads as follows:*

"G.R No. 202143 (Famela R. Dulay v. Judicial and Bar Council and Paquito N. Ochoa, Jr., as Executive Secretary.). This is a Petition for *Certiorari* and Prohibition, under Rule 65 of the Rules of Court, with Prayer for the Issuance of a Temporary Restraining Order, filed by petitioner Famela R. Dulay against the Judicial and Bar Council (JBC) and Executive Secretary Paquito N. Ochoa, Jr., raising the following issues:

The title and the nature of the case are expressed in the first paragraph.

A. Whether the respondent Honorable JBC can legitimately, validly and constitutionally accepts (sic) application for nomination and interview of nominees for the position of a Chief Justice of the Honorable Court and, thereafter, submits (sic) short list of nominees to the President of the Republic of the Philippines for the appointment of a Chief Justice of the Honorable Court;

B. Whether the President of the Republic of the Philippines may legitimately, validly and constitutionally appoint a Chief Justice of the Honorable Court, in replacement of the removed and impeached Honorable Renato C. Corona;

C. Whether the respondent Honorable JBC can constitutionally be headed by a retired Associate Justice of the Honorable Court, instead of an incumbent Chief Justice of the Honorable Court.

The petition raises substantive issues that have never been addressed by the Supreme Court before.

Petitioner claims that the President of the Republic of the Philippines cannot legitimately, validly, and constitutionally appoint the Chief Justice of the Supreme Court, because the 1987 Constitution only empowers him to appoint members or Justices but not the Chief Justice. She adds that the Chief Justice should be replaced and designated exclusively from among their peers. Petitioner also contends that the JBC cannot be validly, legally and constitutionally headed by a retired Associate Justice of the Supreme Court, because the Constitution specifically provides that it be headed by the incumbent Chief Justice and no other.

We dismiss the petition….

(The Court ruled that the petitioner did not have standing to file the Petition. That discussion has been omitted.)

Even if we ignore the technical defect and we look into the merits of the case, the petition is still bound to be dismissed.

Simply stated, petitioner seeks the resolution of two substantive issues: (1) whether or not the President of the Philippines has the constitutional power to appoint the Chief Justice of the Supreme Court; and (2) whether or not the JBC can validly be headed by a person other than the incumbent Chief Justice.

This is the Court's ruling.

We answer in the affirmative to both questions.

Section 9, Article VIII of the Constitution, provides for the appointment of Justices and Judges, to wit:

The Court identifies the pertinent constitutional provisions.

> *Section 9. The Members of the Supreme Court* and judges of lower courts shall be appointed by the President from a list of at least three nominees prepared by the Judicial and Bar Council for every vacancy. Such appointments need no confirmation. x x x (Emphasis supplied)

In interpreting the above-stated constitutional provision, petitioner considers only the Associate Justices as the "members of the Supreme Court" thereby excluding the Chief Justice from the President's appointing power. Said interpretation is baseless.

This is the Court's interpretation of the provision.

A plain reading of the constitutional provisions on the Judicial Department in Article VIII of the 1987 Constitution clearly shows that the phrase "Members of the Supreme Court" and the words "Members" and "Member" are repeatedly used to refer to the Justices of the Supreme Court without distinction whether he be the Chief Justice or any of the Associate Justices or all fifteen Justices.

Section 4 (l), Article VIII thereof defines the composition of the Supreme Court, namely, "a Chief Justice and fourteen Associate Justices" who may sit *en banc* or, in its discretion, in divisions of three, five, or *seven* Members; Section 4 (2) and (3) describe the manner of conducting business in the Court whether it be *En banc* or in division; Section 7 (1) enumerates the qualifications of the Members

of the Court and the other members of the Judiciary; Section 11 provides for the security of tenure in the Judiciary; Section 12 states the prohibition on non-judicial assignments of the Members of the Supreme Court and of other courts; and Section 13 lays down the process of decision-making. In all of these provisions, the phrase "Members of the Supreme Court" was repeatedly used to refer not only to the Associate Justices of the Supreme Court but includes the Chief Justice. Thus, in Section 9 of the same Article VIII on the appointment of Justices and Judges, the phrase "Members of the Supreme Court" clearly refers to the fifteen Justices of the Court - one Chief Justice and fourteen (14) Associate Justices - who are within the appointing power of the President. Although decided under a different Constitution, we reiterate the Court's pronouncement in *Vargas v. Rilloraza* that "there can be no doubt that the Chief Justice and Associate Justices required x x x to compose the Supreme Court are the regular members of the Court."

We, likewise, do not agree with petitioner that the JBC can only be headed by the incumbent Chief Justice and no other. Petitioner, in effect, argues that the JBC cannot perform its task without an incumbent Chief Justice. To follow this logic would lead to an eventuality where a vacancy in the Judiciary will not be filled if a vacancy occurs in the JBC. We can likewise infer from this argument that if the Office of the Chief Justice is vacated, the same will not be filled because there will be no "incumbent Chief Justice" to act as Chairman of the JBC.

We definitely cannot sustain these arguments. The principal function of the JBC is to recommend appointees to the Judiciary. For every vacancy, the JBC submits to the President a list of at least three nominees and the President may not appoint anybody who is not in the list. Any vacancy in the Supreme Court is required by the Constitution to be filled within 90 days from the occurrence thereof. This 90-day period is mandatory. It cannot, therefore, be compromised only because the constitutionally-named Chairman could not sit in the JBC. Although it would be preferable if the membership of the JBC is complete, the JBC can still operate to

perform its mandated task of submitting the list of nominees to the President even if the constitutionally-named *ex-officio* Chairman does not sit in the JBC. This intention is evident from the exchanges among the Commissioners during the deliberations of the Constitutional Commission of 1986, *viz.*:

The Court relies on the deliberations of the Constitutional Commission to determine the intent of the framers of the Constitution.

> MR. DE CASTRO. I understand that our justices now in the Supreme Court, together with the Chief Justice, are only 11.
>
> MR. CONCEPCION. Yes.
>
> MR. DE CASTRO. And the second sentence of this subsection reads: "Any vacancy shall be filled within ninety days from the occurrence thereof."
>
> MR. CONCEPCION. That is right.
>
> MR. DE CASTRO. Is this now a mandate to the executive to fill the vacancy?
>
> MR. CONCEPCION. That is right. That is borne out of the fact that in the past 30 years, seldom has the Court had a complete complement.
>
> MR. DE CASTRO. By that time, upon ratification of this Constitution, the Judicial and Bar Council shall be in operation.
>
> MR. CONCEPCION. We hope so.
>
> MR. DE CASTRO. And one of the members thereof is a Member of Congress.
>
> MR. CONCEPCION. That is right.
>
> MR. DE CASTRO. An ex officio member. By the time this is ratified, Congress is not yet convened and there will still be an election; so there will still be a delay of more than 90 days. Maybe before the vacancies occur in the Supreme Court, they will be filled up by the President.
>
> MR. CONCEPCION. That is possible.

> MR. DE CASTRO. Therefore, it will take perhaps until November or December before the four other justices will be appointed, if we follow the Judicial and Bar Council. Or can the Judicial and Bar Council function without the presence yet of a member of Congress who is an ex-officio member?
>
> MR. CONCEPCION. It can operate without the ex-officio member because a majority would be enough, although it would be preferable if it were complete.
>
> MR. DE CASTRO. So that upon ratification of this Constitution, it is possible, and the President may do it by appointing the members of the Judicial and Bar Council without first a representative from Congress.
>
> MR. CONCEPCION. That is correct.
>
> MR. DE CASTRO. So that we can immediately fill up the four vacancies in the Supreme Court.
>
> MR. CONCEPCION. That is correct.
>
> MR. DE CASTRO. I am asking this just for the record, that the vacancies in the Supreme Court be immediately filled up so that our backlog of cases can be immediately attended to….

Considering, however, that complete membership in the JBC is preferable and pursuant to its supervisory power over the JBC, this Court should not be deprived of representation. The most Senior Justice of this Court who is not an applicant for the position of Chief Justice should participate in the deliberations for the selection of nominees for the said vacant post and preside over the proceedings in the absence of the constitutionally-named *Ex-Officio* Chairman, pursuant to Section 12 of Republic Act No. 296, or the Judiciary Act of 1948, to wit:

> Section 12. *Vacancy in office of Chief Justice.* - In case of vacancy in the office of the Chief Justice of the Supreme Court, or of his inability to perform the duties and powers

> of his office, they shall devolve upon the Associate Justice who is first in precedence, until such disability is removed, or another Chief Justice is appointed and duly qualified. This provision shall apply to every Associate Justice who succeeds to the office of Chief Justice. (Emphasis supplied.)

IN VIEW OF THE FOREGOING, we DISMISS the petition." (*Carpio, Velasco, Jr., Leonardo-De Castro, Brion, Abad and Sereno, JJ.,* no part, *Peralta, J.*, presiding,*Bersamin, Del Castillo, Villarama, Jr., Perez, Mendoza, Reyes, Perlas-Bernabe, JJ.*, present)

Very truly yours,

(Sgd.) ENRIQUETA E. VIDAL

Clerk of Court

CHAPTER 8

The Dissenting Opinion

VALUE AND FUNCTIONS OF DISSENT

Collegial bodies cannot always be expected to make unanimous decisions all the time. The members of an administrative body or court can disagree on the interpretation of laws. Those who do not concur with the majority's opinion express their disagreement by writing dissenting opinions.

Decisions, resolutions or orders of collegiate courts must have the separate concurring or dissenting opinions appended to the majority opinion before these are promulgated. There are two reasons why this principle must be followed:[1]

1. Both parties deserve to know all the views of the collegiate court who voted for the majority and minority opinions and the reasons why they voted in such manner, especially the losing party deciding to appeal to a higher court.
2. If the separate opinions are not appended to the main opinion, the parties will have difficulty understanding the dissertation in the *ponencia* of the majority that addressed the points raised and reasons presented in the separate opinions, more particularly in the dissenting opinion.[2]

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1 Tan v. Commission on Elections, G.R. No. 166143-47, November 20, 2006.

2 *Id.*

The issue in *Li v. Spouses Reynaldo and Soliman*[3] was whether a physician could be held liable for her failure to fully disclose serious side effects to the parents of the child-patient who died while undergoing chemotherapy, despite the absence of finding that petitioner was negligent in administering the said treatment. The majority of the Court ruled in the doctor's favor but it was a thoroughly divided Court as the following quote shows:

> WHEREFORE, the petition for review on *certiorari* is GRANTED. The Decision dated June 15, 2004 and the Resolution dated September 1, 2004 of the Court of Appeals in CA-G.R. CV No. 58013 are SET ASIDE.
>
> The Decision dated September 5, 1997 of the Regional Trial Court of Legazpi City, Branch 8, in Civil Case No. 8904 is REINSTATED and UPHELD.
>
> No costs.
>
> SO ORDERED.
>
> *Corona, C.J.* and *Perez, J.*, concur.
>
> *Carpio, J.*, see dissenting opinion.
>
> *Carpio Morales, Velasco, Jr.* and *Peralta, JJ.*, join the dissent of J. Carpio.
>
> *Nachura, Leonardo-de Castro,* and *Mendoza, JJ.*, join the separate opinion of J. Brion.
>
> *Brion, J.*, in the result: see separate opinion.
>
> *Bersamin, J.*, concur in the result, and I join the separate opinion of J. Brion.
>
> *Del Castillo, J.*, took no part.
>
> *Abad, J.*, please see my concurring opinion.
>
> *Sereno, J.*, I dissent. Evidence was provided by the doctor-petitioner herself. I join J. Antonio Carpio.

3 G.R. No. 165279, June 7, 2011.

In this case, Justice Villarama wrote the majority opinion, and Justices Corona and Perez concurred with him. Justice Brion wrote a separate opinion concurring "in the result," which meant he arrived at the same result as the majority but on different grounds. Four other Justices, Nachura, Leonardo-de Castro, Mendoza, and Bersamin, joined Justice Brion's concurring opinion. Justice Abad wrote another concurring opinion. The majority, therefore, consisted of nine Justices. Justices Carpio wrote a dissent with whom Justices Carpio-Morales, Velasco, Jr., Peralta and Sereno concurred. Justice Del Castillo took no part in the decision although he did not explain why.

To guarantee the freedom of expression of the minority, a provision was inserted in the 1935 Constitution that "any Justice dissenting from a decision shall state the reasons for his dissent,"[4] and that mandate was binding for the minority to comply with and for the majority to respect.[5]

The 1987 Constitution contains a similar mandate in Article VIII:

> Section 13. The conclusions of the Supreme Court in any case submitted to it for decision *en banc* or in division shall be reached in consultation before the case is assigned to a Member for the writing of the opinion of the Court. A certification to this effect signed by the Chief Justice shall be issued and a copy thereof attached to the record of the case and served upon the parties. Any Members who took no part, or dissented, or abstained from a decision or resolution, must state the reason therefor. The same requirements shall be observed by all lower collegiate courts.

Dissenting opinions, however, do not provide doctrine and cannot be cited as precedent. Dissenting opinions cannot be enforced. "There is nothing to enforce in a dissenting opinion, since it affirms or overrules no claim, right, or obligation, and neither disposes of, nor awards, anything; it merely expresses the views of the dissenter."[6] Only the majority opinion can be the subject of an appeal or a special

4 Const. (1935), Art. VIII, § 11.

5 People v. Lopez, G.R. No. L-1243, April 14, 1947.

6 Tolentino v. Ongsiako, G.R. No. L-17938, April 30, 1963.

civil action, but never the dissenting opinion.[7] Elementary decision-making teaches that we cite the majority opinion as precedent, not lonely dissenting opinions.[8]

A dissenting opinion cannot be the subject of an appeal or a special civil action. In *Ruiz v. Ucol*,[9] the Court complained that "It is totally inexplicable how a member of the bar could be so careless or, if the act was deliberate, could have the courage to come before this Court asking us to review a dissenting opinion. Counsel is warned that we do not find his mistake in the slightest bit amusing."

The Supreme Court has held that an arbitration decision becomes final even without receipt of a dissenting opinion.[10]

At one point, Justices of the Philippine Supreme Court bemoaned the futility of writing dissents: "We are conscious of the fact that our time is wasted in the writing of dissenting opinions."[11] But dissents serve other useful purposes, which may not be immediately palpable. Dissents are addressed to the future resolution of similar cases—in the hope that future courts will resolve the same issues in a different way. Dissenting opinions can attract review or isolate and refine the issues for further appeal. They can also trigger legislative reform.[12]

The well-crafted dissent serves other immediate purposes, outside the production of legal doctrine. Justice Bocobo in a dissenting opinion declared:

> The existence of a forceful dissenting opinion—and dissenting opinions are often of that character—dulls the edge of the majority decision. It would seem that an opinion whose power is thus impaired, while technically it may be cited as a precedent—because it is presumed to be the correct view until the contrary is maintained by the court in a subsequent

7 Ruiz v. Ucol, G.R. No. L-45404, August 7, 1987.

8 In the Matter of the Allegations Contained in the Column of Mr. Amado P. Macaset Published in Malaya dated September 18, 19, 20 and 21, 2007, A.M. No. 07-09-13-SC, August 8, 2008.

9 G.R. No. L-45404, August 7, 1987.

10 Coca-Cola Bottlers Philippines, Inc, Sales Force Union-PTGWO-BALAIS v. Coca-Cola Bottlers Philippines, Inc., G.R. No.155651, July 28, 2005. *See also* National Union of Workers in Hotels, Restaurants, and Allied Industries v. The National Labor Relations Commission, G.R. No. 125561, March 6, 1998 (a dissenting opinion is not binding as it is a mere expression of the individual view of a commissioner who disagrees with the conclusion of the majority of the members of the NLRC division concerned).

11 Intestate Estate of Jose B. Banzon v. Banzon, G.R. No. 27296, October 8, 1927.

12 Federal Judicial Center, Judicial Writing Manual 29 (1991).

> decision—nevertheless practically leaves the legal question open for further examination in future cases. If the original interpretation is intrinsically sound, it can stand the pressure of additional discussion and inquiry in subsequent cases, and instead of being weakened, it will gather greater strength and momentum. But if on the other hand, the original view of the minority bears within itself the puissant urge of reason and the driving impetus of justice, it will eventually, after one or more searching re-examinations of the issue involved, gain ascendancy, thus replacing the old proposition. It is this possibility, among other considerations, that justifies the writing of dissenting opinion, and makes it particularly desirable and necessary that the original majority ruling be re-studied.[13]

This function of the dissent is illustrated by more recent cases involving the qualification of members of the House of Representatives. In these cases, the Supreme Court upheld the qualification of candidates to run for national office, satisfying in the majority's view, the citizenship requirements of the Constitution. In *Co v. Electoral Tribunal of the House of Representatives,*[14] Justice Padilla wrote a dissent that pointed out the majority's failure to abide by the Constitution:

> But the fundamental consideration in cases of this nature is the Constitution and only the Constitution. It has to be assumed, therefore, that when the electorate in the second legislative district of Northern Samar cast the majority of their votes for private respondent, *they assumed and believed that he was fully eligible and qualified for the office because he is a natural-born Filipino citizen.* That erroneous assumption and belief cannot prevail over, but must yield to the majesty of the Constitution.
>
> This is a sad day for the Constitution. As I see it, the Constitution mandates that members of the House of Representatives should be "*natural-born* citizens of the Philippines". The voting majority of the present Court says, "Filipino citizens will do." This is bad enough. What is worse is, the same voting majority, in effect, says, "even aliens will do as well."[15]

13 Eraña v. Vera, G.R. No. 48955, July 27, 1943 (Bocobo, J., dissenting).

14 G.R. Nos. 92191-92, July 30, 1991, (Padilla, J., dissenting).

15 *Id.*

Justice Sandoval-Gutierrez, dissenting in another case, charged the majority of the Court with amending the Constitution: "It bears stressing that we are tracing and enforcing a doctrine embodied in no less than the Constitution… *Indeed, a deviation from the clear and constitutional definition of a "natural-born Filipino citizen" is a matter which can only be accomplished through a constitutional amendment.*"[16]

When the Supreme Court removed Chief Justice Sereno ostensibly for her failure to file her Statement of Assets and Liabilities, Justice Benjamin Caguioa wrote a dissent that called out his fellow Justices for playing politics:

> I view with deep shame and regret this day when the Court has ousted one of its sitting Members upon the prodding of a mere agency of a separate coordinate department. I steadfastly maintain that the members of the Court cannot and should not allow themselves to be used in this manner. No matter how dislikable a member of the Court is, the rules cannot be changed just to get rid of him, or her in this case. The other members of the Court — the Court *en banc* — are called upon to grin and bear the unbearable as travelling this prohibited road will be at the expense and to the extreme prejudice of the independence of the entire Judiciary, the independence of the Court's individual members, and the freedom of discourse within the Court. This case marks the time when the Court commits *seppuku* — without honor.[17]

One of the fiercest dissents ever written was by Justice Perfecto in *Vera v. Avelino,*[18] virtually accusing his colleagues of cowardice in refusing to face the issue of the unconstitutional removal of duly elected members of the Senate. He said:

> We cannot accept the invitation to bury our heads in ostrich-like fashion in the sands of indifference and in-action because, in having to exercise

16 Bengson III v. House of Representatives Electoral Tribunal, G.R. No. 142840, May 7, 2001.
17 Republic v. Sereno, G.R. No. 237428, May 11, 2018, Caguioa, J., dissenting.
18 G.R. No. L-543, August 31, 1946.

> the constitutional function of administering justice, we will be constrained to face and take action against powerful, defiant or arrogant parties. It is precisely in cases like this where we should never show the least hesitancy in the performance of our official duties and in the exercise of the loftiest function of humanity: the administration of justice.
>
> The judicial function calls for those qualities, which for lack of better words, are described as manliness, moral, courage, intellectual decision, firmness of character, and steadfastness of convictions. We accepted our position in this court fully cognizant of the grave responsibilities it entails and aware that it will exact from us all the best that nature has bestowed on us. We must not give less. We must not betray popular trust. We should not disappoint the people.[19]

Indeed, dissents can be effective in calling out the majority's shortcomings. A Supreme Court Justice, Mariano Del Castillo, was accused of plagiarizing academic articles by three law professors when he authored the Supreme Court's decision in *Vinuya v. Executive Secretary.*[20] The Supreme Court, however, absolved him of any wrongdoing in its decision "*In The Matter of the Charges of Plagiarism, Etc., Against Associate Justice Mariano C. Del Castillo*",[21] ostensibly because there was no "malicious intent" to commit plagiarism on the part of Justice Del Castillo.

Justice Lourdes Sereno wrote a forceful dissent in that case where she presented seven tables that compared the excerpts from *Vinuya* and the academic articles alleged to have been plagiarized. Two of the tables are reproduced here. Table A of her dissent compared Evan J. Criddle and Evan Fox-Decent's article in the Yale Journal of International Law, entitled *A Fiduciary Theory of Jus Cogens* (2009) and the Supreme Court's April 28, 2010 Decision in *Vinuya v. Executive Secretary*.

19 *Id.*

20 G.R. No. 162230, April 28, 2010.

21 A.M. No. 10-7-17-SC, October 12, 2010.

	THE ALLEGEDLY PLAGIARIZED WORK Evan J. Criddle & Evan Fox-Decent, *A Fiduciary Theory of Jus Cogens*, 34 Yale J. Int'l L. 331 (2009).	THE DECISION *Vinuya v. Executive Secretary*, G.R. No. 162230, 28 April 2010.	INTERNATIONAL SOURCE BEING ANALYZED BY CRIDDLE AND FOX-DECENT
1.	..judges on the Permanent Court of International Justice affirmed the existence of peremptory norms in international law by referencing treaties *contra bonos mores* (contrary to public policy) in a series of individual concurring and dissenting opinions.[10] For example, in the 1934 Oscar Chinn Case, Judge Schücking's influential dissent stated that neither an international court nor an arbitral tribunal should apply a treaty provision in contradiction to bonos mores. Oscar Chinn Case, 1934 P.C.I.J. (ser. A/B) No. 63, at 149-50 (Dec. 12) (Schücking, J., dissenting). (p. 335 of *Criddle and Fox-Decent*)	...Judges on the Permanent Court of International Justice affirmed the existence of peremptory norms in international law by referencing treaties *contra bonos mores* (contrary to public policy) in a series of individual concurring and dissenting opinions. (For example, in the 1934 Oscar Chinn Case, Judge Schücking's influential dissent stated that neither an international court nor an arbitral tribunal should apply a treaty provision in contradiction to bonos mores. Oscar Chinn Case, 1934 P.C.I.J. (ser. A/B) No. 63, at 149-50 (Dec. 12) (Schücking, J., dissenting). (p. 31, footnote 71 of *Vinuya*)	...It is an essential principle of any court, whether national or international, that the judges may only recognize legal rules, which they hold to be valid. There is nothing to show that it was intended to disregard that legal principle when this Court was instituted, or that it was to be obliged to found its decisions on the ideas of the parties–which may be entirely wrong–as to the law to be applied in a given case…. The Court would never, for instance, apply a convention the terms of which were contrary to public morality. But, in my view, a tribunal finds itself in the same position if a convention adduced by the parties is in reality null and void, owing to a flaw in its origin. The attitude of the tribunal should, in my opinion, be governed in such a case by considerations of international public policy, even when jurisdiction is conferred on the Court by virtue of a Special Agreement.

	THE ALLEGEDLY PLAGIARIZED WORK (Continued)	THE DECISION (Continued)	INTERNATIONAL SOURCE (Continued)
			Source: The Oscar Chinn Case (U.K. v. Belg.), 1934 P.C.I.J. (ser. A/B) No. 63, at 149-50 (Dec. 12) (separate opinion of Judge Schücking).
2.	While the ICJ recently endorsed the jus cogens concept for the first time in its 2006 Judgment on Preliminary Objections in Armed Activities on the Territory of the Congo (Congo v. Rwanda), it declined to clarify jus cogens's legal status or to specify any criteria for identifying peremptory norms.[67] [67] Armed Activities on the Territory of the Congo, Jurisdiction of the Court and Admissibility of the Application (Dem. Rep. Congo v. Rwanda) (Judgment of Feb. 3, 2006), at 31-32, available at http://www.icj-cij.org/docket/files/126/10435.pdf (last visited Mar. 31, 2009). (p. 346, footnote 67 of *Criddle and Fox-Decent*)	While the ICJ recently endorsed the *jus cogens* concept for the first time in its 2006 Judgment on *Preliminary Objections in Armed Activities on the territory of the Congo* (Congo v. Rwanda), it declined to clarify *jus cogens's* legal status or to specify any criteria for identifying peremptory norms. (Armed Activities on the Territory of the Congo, Jurisdiction of the Court and Admissibility of the Application (Dem. Rep. Congo v. Rwanda) (Judgment of February 3, 2006), at 31-32, available at http://www.icj-cij.org/docket/files/126/10435.pdf. (p. 32, footnote 77 of *Vinuya*)	. ...The Court observes, however, as it has already had occasion to emphasize, that "the erga omnes character of a norm and the rule of consent to jurisdiction are two different things"..., and that the mere fact that rights and obligations erga omnes may be at issue in a dispute would not give the Court jurisdiction to entertain that dispute. The same applies to the relationship between peremptory norms of general international law (jus cogens) and the establishment of the Court's jurisdiction: the fact that a dispute relates to compliance with a norm having such a character, which is assuredly the case with regard to the prohibition of genocide cannot of

	THE ALLEGEDLY PLAGIARIZED WORK (Continued)	THE DECISION (Continued)	INTERNATIONAL SOURCE (Continued)
			itself provide a basis for the jurisdiction of the Court to entertain that dispute. Under the Court's Statute that jurisdiction is always based on the consent of the parties. Source: Armed Activities on the Territory of the Congo (Dem. Rep. Congo v. Rwanda), 2006 I.C.J. 6, 31-32 (Feb. 3).
3.	Similarly, the European Court of Human Rights has addressed jus cogens only once, in Al-Adsani v. United Kingdom, when it famously rejected the argument that jus cogens violations would deprive a state of sovereign immunity.[75] [75] Shelton, supra note 3, at 309 (discussing Al-Adsani v. United Kingdom, 2001-XI Eur. Ct. H.R. 79, 61). (p. 347 of *Criddle and Fox-Decent*)	[77] Similarly, the European Court of Human Rights has addressed *jus cogens* only once, in *Al-Adsani v. United Kingdom*, when it famously rejected the argument that *jus cogens* violations would deprive a state of sovereign immunity. *Al-Adsani v. United Kingdom,* 2001-XI Eur. Ct. H.R. 79, 61) (p. 32, footnote 77 of *Vinuya*)	While the Court accepts, on the basis of these authorities, that the prohibition of torture has achieved the status of a peremptory norm in international law, it observes that the present case concerns… the immunity of a State in a civil suit for damages in respect of acts of torture within the territory of that State. Notwithstanding the special character of the prohibition of torture in international law, the Court is unable to discern in the international instruments, judicial authorities or

	THE ALLEGEDLY PLAGIARIZED WORK (Continued)	THE DECISION (Continued)	INTERNATIONAL SOURCE (Continued)
			other materials before it any firm basis for concluding that, as a matter of international law, a State no longer enjoys immunity from civil suit in the courts of another State where acts of torture are alleged…. *Source:* *Al-Adsani v United Kingdom,* App. No. 35763/97, 34 Eur. H.R. Rep. 11, par. 61 (2002) (21 Nov. 2001).

Table B of the dissent compared Mark Ellis's article entitled *Breaking the Silence: Rape as an International Crime* (2006-2007) and the Supreme Court's April 28, 2010 Decision in *Vinuya v. Executive Secretary:*

	THE ALLEGEDLY PLAGIARIZED WORK Mark Ellis's article entitled *Breaking the Silence: Rape as an International Crime* 38 Case W. Res. J. Int'l. L. 225(2006-2007).	THE DECISION *Vinuya v. Executive Secretary,* G.R. No. 162230, 28 April 2010.	INTERNATIONAL SOURCE BEING ANALYZED BY ELLIS
1.	A major step in this legal development came in 1949, when rape and sexual assault were included in the Geneva Conventions.... Rape is included in the following acts committed against persons protected by the 1949 Geneva Conventions: "wilful killing, torture or inhuman treatment, including biological experiments; wilfully causing great suffering or serious injury to body or health."[65] [65] Fourth Geneva Convention, supra note 23, art. 147. (p. 236 of *Ellis*)	…A major step in this legal development came in 1949, when rape and sexual assault were included in the Geneva Conventions. Rape is included in the following acts committed against persons protected by the 1949 Geneva Conventions: "willful killing, torture or inhuman treatment, including biological experiments; willfully causing great suffering or serious injury to body or health."… (See Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field, art. 3(1)(c), 75 U.N.T.S. 31; Geneva Convention for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea, art. 3(1)(c), 75 U.N.T.S. 85; Geneva	[Article 50/51/147] Grave breaches to which the preceding Article relates shall be those involving any of the following acts, if committed against persons… protected by the Convention: willful killing, torture or inhuman treatment, including biological experiments, wilfully causing great suffering or serious injury to body or health…. *Source:* Geneva Convention (I) for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field, 75 U.N.T.S. 31; Geneva Convention (II) for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members

	THE ALLEGEDLY PLAGIARIZED WORK (Continued)	THE DECISION (Continued)	INTERNATIONAL SOURCE (Continued)
		Convention Relative to the Treatment of Prisoners of War, art. 3(1)(c), 75 U.N.T.S. 973; Fourth Geneva Convention, supra note 23, art. 3(1)(c). (p. 28, footnote 65 of *Vinuya*)	of Armed Forces at Sea, 75 U.N.T.S. 85; Geneva Convention (III) Relative to the Treatment of Prisoners of War, 75 U.N.T.S. 973; Geneva Convention (IV) Relative to the Protection of Civilian Persons in Time of War, 75 U.N.T.S. 287.
2.	Rape as a violation of the laws or customs of war generally consists of violations of Article 3 of the 1949 Geneva Conventions, which, in part, prohibits "violence to life and person, in particular mutilation, cruel treatment and torture; outrages upon personal dignity, in particular humiliating and degrading treatment."[66] [66] See Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field, art. 3(1)(c), 75 U.N.T.S. 31; Geneva Convention for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea, art. 3(1)(c),	… Rape as a violation of the laws or customs of war generally consists of violations of Article 3 of the 1949 Geneva Conventions, which, in part, prohibits "violence to life and person, in particular mutilation, cruel treatment and torture; outrages upon personal dignity, in particular humiliating and degrading treatment." (*See* Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field, art. 3(1)(c), 75 U.N.T.S. 31; Geneva Convention for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea, art. 3(1)(c), 75 U.N.T.S. 85; Geneva	Article 3 … (a) violence to life and person, in particular murder of all kinds, mutilation, cruel treatment and torture; (b) taking of hostages; (c) outrages upon personal dignity, in particular humiliating and degrading treatment; … *Source:* Geneva Convention (I) for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field, 75 U.N.T.S. 31; Geneva Convention (II) for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members

	THE ALLEGEDLY PLAGIARIZED WORK (Continued)	THE DECISION (Continued)	INTERNATIONAL SOURCE (Continued)
	75 U.N.T.S. 85; Geneva Convention Relative to the Treatment of Prisoners of War, art. 3(1)(c), 75 U.N.T.S. 973; Fourth Geneva Convention, supra note 23, art. 3(1)(c).... (p. 236 of *Ellis*)	Convention Relative to the Treatment of Prisoners of War, art. 3(1)(c), 75 U.N.T.S. 973; Fourth Geneva Convention, supra note 23, art. 3(1)(c). (p. 28, footnote 65 of *Vinuya)*	of Armed Forces at Sea, 75 U.N.T.S. 85; Geneva Convention (III) Relative to the Treatment of Prisoners of War, 75 U.N.T.S. 973; Geneva Convention (IV) Relative to the Protection of Civilian Persons in Time of War, 75 U.N.T.S. 287.
3.	Article 27 of the Fourth Geneva Convention, directed at protecting civilians during time of war, states that "women shall be especially protected against any attack on their honour, in particular against rape, enforced prostitution, or any form of indecent assault."[67] [67] Fourth Geneva Convention, supra note 23, art. 27. (pp. 236 of *Ellis*)	…Article 27 of the Fourth Geneva Convention, directed at protecting civilians during time of war, states that "women shall be especially protected against any attack on their honour, in particular against rape, enforced prostitution, or any form of indecent assault." (p. 28, footnote 65 of *Vinuya*)	Article 27 Women shall be especially protected against any attack on their honour, in particular against rape, enforced prostitution, or any form of indecent assault. *Source:* Geneva Convention (IV) Relative to the Protection of Civilian Persons in Time of War, 75 U.N.T.S. 287.
4.	Protocol I of the Geneva Conventions continues to expand the protected rights by providing that	…Protocol I of the Geneva Conventions continues to expand the protected rights by providing that "women	Article 76.-Protection of women 1. Women shall be the object of special respect

	THE ALLEGEDLY PLAGIARIZED WORK (Continued)	THE DECISION (Continued)	INTERNATIONAL SOURCE (Continued)
4.	"women shall be the object of special respect and shall be protected in particular against rape, forced prostitution and any form of indecent assault."[68] Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of International Armed Conflicts (Protocol I), Article 76(1), 1125 U.N.T.S. 4. (pp. 236-237 of *Ellis*)	shall be the object of special respect and shall be protected in particular against rape, forced prostitution and any form of indecent assault." (Protocol Additional to the Geneva Conventions of August 12, 1949, and Relating to the Protection of Victims of International Armed Conflicts (Protocol I), Article 76(1), 1125 U.N.T.S. 4). (p. 28, footnote 65 of *Vinuya)*	and shall be protected in particular against rape, forced prostitution and any other form of indecent assault. *Source:* Protocol Additional to the Geneva Conventions of 12 August 1949, and relating to the Protection of Victims of International Armed Conflicts (Protocol I), 1125 U.N.T.S. 3.

Justice Sereno summed up her findings:

> In the tables outlined above…it can be seen that the researcher of Justice del Castillo failed to make the necessary attribution twenty-three (23) times in the body of the Vinuya Decision; the works whose texts were used without attribution include several copyrighted journal articles, essays from a book on international law, and one congressional report of the United States. There were thirty-six (36) missing citations in the footnotes, including twelve (12) citations missing from footnote 65 alone. This adds up to a total of fifty-nine (59) missing citations. The sheer number of missing citations is related to the length and volume of the footnotes and discussions, some of which Justice del Castillo himself admitted to be unnecessary.[22]

22 *Id.* (Sereno, J., dissenting).

Unlike the majority opinion that discussed the issue of plagiarism as an abstraction, Justice Sereno's dissent presents the alleged infractions in palpable form that allows the public to make its own conclusions on the commission of plagiarism. Without her dissent, the bases of the issue would have been buried in legalese. This is especially true since the majority opinion did not reproduce the alleged plagiarized portions of *Vinuya*.

Justice Sereno also emphasized the larger effects of Del Castillo's absolution on the Judiciary and the academic community. In conclusion, she wrote:

> Unless reconsidered, this Court would unfortunately be remembered as the Court that made "malicious intent" an indispensable element of plagiarism and that made computer-keying errors an exculpatory fact in charges of plagiarism, without clarifying whether its ruling applies only to situations of judicial decision-making or to other written intellectual activity. It will also weaken this Court's disciplinary authority — the essence of which proceeds from its moral authority — over the bench and bar. In a real sense, this Court has rendered tenuous its ability to positively educate and influence the future of intellectual and academic discourse.[23]

In the Resolution of the Motion for Reconsideration,[24] Justice Sereno reiterated her position and added a discussion on the role of the judiciary in society:

> On more than one occasion, this Court has referred to one of its functions as the symbolic or educative function, the competence to formulate guiding principles that may enlighten the bench and the bar, and the public in general. It cannot now backpedal from the high standards inherent in the judicial role, or from the standards it has set for itself.…
>
> Thus, being the subject of constant public scrutiny, a judge should freely and willingly accept restrictions on conduct that might be viewed as burdensome by the ordinary citizen. A judge should personify integrity and exemplify honest public service. The personal behavior of a judge, both

23 *Id.* (Sereno, J., dissenting).

24 In The Matter of the Charges of Plagiarism, etc., Against Associate Justice Mariano C. Del Castillo, A.M. No. 10-7-17-SC, February 8, 2011.

> in the performance of his official duties and in private life should be above suspicion. Concerned with safeguarding the integrity of the judiciary, this Court has come down hard on erring judges and imposed the concomitant punishment….
>
> The clearest manifestation of adherence to these standards is through a Justice's written opinions. In the democratic framework, it is the only way by which the public can check the performance of such public officer's obligations. Plagiarism in judicial opinions detracts directly from the legitimacy of the judge's ruling and indirectly from the judiciary's legitimacy. It is objectionable not only because of its inherent capacity to harm, but the overarching damage it wreaks on the dignity of the Court as a whole….
>
> I affirm my response to the dispositive portion of the majority Decision in this case as stated in my Dissent of 12 October 2010, with the modification that more work of more authors must be appropriately acknowledged, apologies must be extended, and a more extensively corrected Corrigendum must be issued. Again, I make no pronouncement on liability, not only because the process was erroneously cut short by the majority when it refused to proceed to the next step of determining the duty of diligence that a judge has in supervising the work of his legal research, and whether, in this instance, Justice del Castillo discharged such duty, but also because of the view expressed by Justice Carpio that this Court had best leave the matter of clearing Justice del Castillo to Congress, the body designated by the Constitution for such matters. It seems now that the process of determining the degree of care required in this case may never be undertaken by this Court. One thing is certain, however: we cannot allow a heavily plagiarized Decision to remain in our casebooks — it must be corrected. The issues are very clear to the general public. A wrong must be righted, and this Court must move forward in the right direction.[25]

Philippine politics has emphasized the role of the dissenting opinion in judicial decisions. During the impeachment trial of Chief Justice Renato Corona, the Supreme Court adopted a resolution that empowered it to determine whether parts of separate opinions of the members of the Court should be released to the

25 *Id.*

prosecution panel. The prosecution panel requested for, among other items, the dissenting opinions in *Macapagal-Arroyo v. de Lima*,[26] and *Arroyo v. de Lima*,[27] where the Supreme Court enjoined the Secretary of Justice from enforcing its hold departure orders against the former first couple.

In a *Per curiam* Resolution,[28] the Supreme Court's majority opinion claimed that the internal deliberations of the Court included the Separate Opinions of the Justices and were within the purview of judicial privilege, despite its promulgation and publication. Justice Sereno again wrote a dissent, pointing out that the majority's decision amounted to censorship designed to suppress information regarding the events taking place away from public awareness. Characteristically blunt, she wrote:

> This pronouncement gives the impression that the confidentiality rule even extends to promulgated written opinions by the Members of this Court containing its internal deliberations. This is unmitigated overexpansion of the rule of judicial privilege that does not appear to be aimed at protecting judicial independence and even veers dangerously close to censorship and curtailment of the constitutional duty of the minority. What is more absurd is that these Opinions are already within the realm of public knowledge having been promulgated and even posted in the Court's website. Any attempt by the majority to censure or regulate the use of these promulgated Opinions by the Impeachment Court amounts to unchartered extension of the judiciary's limited confidentiality rule. Whatever is contained in these Opinions are decidedly public records, which the House Prosecution Panel can rely on to support its cause. Nevertheless, the prerogative lies with the Impeachment Court on how to appreciate their contents. For the Court to clip this right vested on the Impeachment Court by reserving for itself the power to identify which parts of a promulgated Opinion the Senator-Judges can consider and which to turn a blind eye to is already tantamount to undue interference with the Senate's sole duty to try and decide impeachment cases, and contravenes the doctrine of separation of powers.

26 G.R. No. 199034, November 15, 2011.

27 G.R. No. 199046, November 15, 2011.

28 *In re* Production of Court Records and Documents and the Attendance of Court Officials and Employees as Witnesses under the Subpoenas of February 10, 2012 and the various letters for the Impeachment Prosecution Panel dated January 19 and 25, 2012, February 14, 2012.

...The internal workings of this Court require us, to some extent, to shield and protect it from the glare of political pressures. However, when the process of impeachment as a lamp of transparency and accountability is lit, this Court must demonstrate that it is not just quenching the light when it invokes judicial independence. It must show that it is ready to balance the demand of the people for accountability with the need to preserve the efficient operations of the Supreme Court. It must carefully observe the legitimate bounds for judicial privilege to apply.[29]

Justice Antonio Carpio, in his own dissent, wrote:

...the majority can *never* suppress the dissent of any Justice because to write a dissent is not only a constitutional right but also a constitutional duty. If the majority suppress a dissent, then they commit a culpable violation of the Constitution. This *express* constitutional right and duty to explain one's dissent should be given utmost deference *vis-à-vis* Judicial Privilege which is merely implied from Judicial Power. When a Justice explains his dissent, he may even include in his dissent internal deliberations if such internal deliberations are material in complying with his constitutional duty to state the reasons for his dissent. Assuming that the dissent of a Justice breaches Judicial Privilege, any sanction for such breach can only be made through impeachment by Congress, which has the sole power to discipline impeachable officers. Any other rule means that the majority can terrorize the minority into acquiescence by threatening to sanction them for their dissents.

A Justice who dissents can explain his position only in his dissent and nowhere else. He cannot go to media to expound on his dissent. He can articulate, and state his reasons, only in his dissent. Thus, a Justice who dissents often strives to put into his dissent all the arguments he could possibly marshal, hoping that his arguments could one day in the future carry more weight with the wisdom of hindsight. Indeed, in both American and Philippine jurisprudence, many dissents eventually emerged as

29 *Id.* (Sereno, J., dissenting).

> the majority rule, and some dissents were even enacted into law by the legislature....[30]

The dissent in this case assumed more significance when it became evident that the public was receiving an inaccurate account of the Court's activities relative to the Arroyo's attempt to leave the country. In still another dissent, Justice Sereno wrote:

> While this opinion was being written, Court Administrator and Acting Chief of the Public Information Office (PIO) Atty. Midas Marquez informed the press that the Temporary Restraining Order (TRO) was effective, i.e., "in full force and effect." Contrary to this interpretation, as stated, it was the understanding of a majority that the TRO is "suspended pending compliance" with our earlier Resolution. The operational ineffectivity of the TRO is implied—for it is a basic principle that the failure of petitioners to comply with one of the conditions in the Resolution dated 15 November 2011 is a jurisdictional defect that suspends, at the least, the effectivity of the TRO. Therefore, the TRO, until faithful compliance with the terms thereof, is legally ineffective. It was a human mistake, understandable on the part of the Clerk of Court, considering the way the TRO was rushed, to have issued the same despite non-compliance by petitioners with one of the strict conditions imposed by the Court. Nevertheless, good faith and all, the legal effect of such non-compliance is the same—petitioners cannot make use thereof for failure to comply faithfully with a condition imposed by this Court for its issuance.
>
> The Court Administrator cum Acting Chief of the PIO is hereby advised to be careful not to go beyond his role in such offices, and that he has no authority to interpret any of our judicial issuances, including the present Resolution, a function he never had from the beginning.[31]

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30 *Id.* (Carpio, J., dissenting).

31 G.R. No. 199034, November 18, 2011. In his defense, Marquez said Chief Justice Renato Corona explained to him what transpired during the closed-door deliberations. I also spoke with other justices in the majority and I got the same information, he said. In an e-mailed statement, Marquez said that while Sereno was entitled to her own view, her dissenting opinion is just that a dissent. Gil C. Cabacungan, Jr. & Marlon Ramos, *Lawmakers Want Midas Marquez Disciplined*, Philippine Daily Inquirer, November 21, 2011, http://newsinfo.inquirer.net/97629/lawmakers-want-midas-marquez-disciplined.

Justice Sereno's dissents illustrate what Justice William Brennan of the United States Supreme Court meant when he summarized the uses of dissents:

> In its most straightforward incarnation, the dissent demonstrates flaws the author perceives in the majority's legal analysis. It is offered as a corrective—in the hope that the Court will mend the error of its ways in a later case…. But the dissent is often more than just as plea; it safeguards the integrity of the judicial decision-making process by keeping the majority accountable for the rationale and consequences of its decision…. At the heart of that function is the critical recognition that vigorous debate improves the final product by forcing the prevailing side to deal with the hardest questions urged by the losing side. In this sense, this function reflects the conviction that the best way to find the truth is to go looking for it in the marketplace of ideas. It is as if the opinions of the Court—both for majority and dissent—were the product of a judicial town meeting.
>
> The dissent is also commonly used to emphasize the limits of a majority decision that sweeps, so far as the dissenters are concerned, unnecessarily broadly—a sort of "damage control" mechanism. Along the same lines, a dissent sometimes is designed to furnish litigants and lower courts with practical guidance—such as ways of distinguishing subsequent cases. It may also hint that the litigant might more fruitfully seek relief in a different forum—such as the state courts.…
>
> The most enduring dissents, however, are the ones in which the authors speak, as the writer Alan Barth expressed it, as "Prophets with Honor." These are the dissents that often reveal the perceived congruence between the Constitution and the "evolving standards of decency that mark the progress of a maturing society," and that seek to sow seeds for future harvest. These are the dissents that soar with passion and ring with rhetoric. These are the dissents that, at their best, straddle the worlds of literature and law.[32]

An impressive dissent can lead the author of the majority opinion to refine and clarify her initial opinion. Justice Ruth Bader Ginsburg wrote several drafts of the

32 William J. Brennan, Jr., *In Defense of Dissents*, 37 Hastings L.J. 427, 430-431 (1986).

majority opinion in *United States v. Virginia*[33] (holding that the Virginia Military Institute's denial of admission to women violated the Fourteenth Amendment's Equal Protection Clause) to respond to Justice Antonin Scalia's "attention-grabbing dissent."[34] On the other hand, she once drafted a dissent that was so persuasive it became the opinion of the Court from which only two Justices dissented.[35]

Dissents serve a purpose outside the Court. In fact, they were once designed to appeal "over the head of the Court" and were addressed directly to the people.[36] Today, this function is also carried out with the use of oral dissents (those delivered by dissenting Justices in public). These dissents "offer an intriguing prism on the way that dissents provide alternative sources of democratic legitimacy and important pathways toward democratic accountability."[37] Professor Guinier explains:

> Oral dissents are performance art, whose structure invariably creates a relationship with an audience, even temporarily. Oral dissents function as an ideal window "into the kind of public/broad/mass/ democratic, even subversive, appeal that law could aspire to." An oral dissent is "written to be performed." Its dramatic effect derives in part from the juxtaposition, within the courtroom, of a theatrical stage from which both the playwright and the actor perform. Like spoken word poetry, also known as "performance poetry," the full meaning of the oral dissent may not be "realized completely" until "performed or recited." Although spoken word poets are more likely than oral dissenters to "utilize the dynamic range of the voice and engage the subtle nuances of vernacular speech and physical expression," orality nevertheless encourages even the reticent oral dissenter to look at the faces of her listeners, to establish eye contact, to respond to or at least note expressions of recognition or displeasure.[38]

Oral dissents become a portal by which those previously excluded can enter, engage with, and destabilize dominant (or majority) legal discourse.[39]

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33 518 U.S. 515 (1986).

34 Justice Ruth Bader Ginsburg, *Dissent is an Appeal for the Future,* 32 AK Bar Rag 1 (2008).

35 *Id.*

36 Lani Guinier, *Demosprudence through Dissent,* 122 Harv. L. Rev. 4, 19 (2008).

37 *Id.* at 23.

38 *Id.* at 25-26.

39 *Id.* at 26.

DISSENTS IN JUDICIAL RULE-MAKING

Dissents are not limited to opinions of courts. In 2018, the Supreme Court promulgated the Rule on Precautionary Hold Departure Order.[40] It provides the rules for the issuance of an order in writing issued by a court commanding the Bureau of Immigration to prevent any attempt by a person suspected of a crime to depart from the Philippines, which shall be issued *ex-parte* in cases involving crimes where the minimum of the penalty prescribed by law is at least six years and one day or when the offender is a foreigner regardless of the imposable penalty.

Justice Leonen wrote a dissent, saying that the Rule on Precautionary Hold Departure Order "has grave implications on individual liberties in relation to law enforcement." He claimed that it was too broad and "forecloses future court actions where there are factual settings in which our current assumptions may not apply."[41]

The Rule, wrote Justice Leonen, "amounts to judicial legislation. It arbitrarily sets a cluster of crimes and construes, through a judicial rule, that these are what constitute threats to 'national security, public safety, or public health.'" In the end he opined that the Rule "unduly burdens the rights of a person who has only been suspected of committing a crime."[42]

ADOPTING THE DISSENT

The Supreme Court or its members may take a different position on a legal issue when given the opportunity to re-examine them. Sometimes, they may change their position after a party files a motion for reconsideration of their decision. The purpose of a motion for reconsideration is to allow the adjudicator another opportunity to review the case and to re-examine the issues, deciding anew a question that was previously raised. There is no legal proscription imposed upon the deciding body against adopting a position contrary to one previously taken.[43] The party who files a motion for reconsideration is requesting the court or quasi-judicial body to take a

40 Rule on Precautionary Hold Departure Order, A.M. No. 18-07-05-SC, August 7, 2018.

41 *Id.* (Leonen, J., *dissenting*).

42 *Id.* (Leonen, J., *dissenting*).

43 Victorino Salcedo II v. Commission on Elections, G.R. No. 135886, August 16, 1999.

second look at its earlier judgment and correct any errors it may have committed,[44] or to point out the findings and conclusions of the decision, which, in its view, are not supported by law or the evidence.[45]

The Court may also, in a subsequent case, adopt a dissenting opinion.

When the Supreme Court reviews decisions of lower courts or administrative bodies, they are sometimes influenced by dissents in those decisions.[46] Justice Sandoval-Gutierrez's dissent in *Bengson v. HRET*[47] cited the dissents of the members of the Commission on Elections. Dissenting opinions in Supreme Court decisions are sometimes adopted by the majority at a future point in time. This case is illustrated by *Meralco v. Castro-Bartolome*[48] and *Director of Lands v. Intermediate Appellate Court*.[49]

In the first case, the Manila Electric Company (MERALCO) filed an application for the confirmation of title to two lots with a total area of one hundred sixty-five square meters, located at Tanay, Rizal. The Republic of the Philippines opposed the application on the ground that the applicant, as a private corporation, was disqualified to hold alienable public lands. It also alleged that the applicant and its predecessors-in-interest had not been in the open, continuous, exclusive and notorious possession and occupation of the land for at least thirty years immediately preceding the filing of the application. The trial court dismissed the application because, in its opinion, MERALCO was not qualified to apply for the registration of the said land since under Section 48 (b) of the Public Land Law, only Filipino citizens or natural persons could apply for judicial confirmation of their imperfect titles to public land. The trial court assumed that the land which it sought to register was *public land*.

MERALCO appealed, arguing that after having been possessed in the concept of owner by private individuals for more than thirty years, the land had become

44 Anthony T. Reyes v. Pearlbank Securities, Inc., G.R. No. 171435, July 30, 2008.

45 Continental Cement Corporation v. Court of Appeals, G.R. No. 88586, April 27, 1990. See also Guerra Enterprises Company, Inc. v. Court of First Instance of Lanao del Sur, G.R. No. L-28310, April 17, 1970. In that case, the Supreme Court explained that Among the ends to which a motion for reconsideration is addressed, one is precisely to convince the court that its ruling is erroneous and improper, contrary to the law or the evidence; and in doing so, the movant has to dwell of necessity upon the issues passed upon by the court.

46 *See* Citizens Surety and Insurance Company, Inc. v. Court of Appeals, G.R. No. L-48958, June 28, 1988.

47 Bengson III v. House of Representatives Electoral Tribunal, G.R. No. 142840, May 7, 2001.

48 G.R. No. L-49623, June 29, 1982.

49 G.R. No. 73002, December 29, 1986.

private land, and, therefore, the constitutional prohibition, banning a private corporation from acquiring alienable public land, was not applicable.

The Supreme Court held that the land was still public land and that it would become private "only upon the issuance of the certificate of title to any Filipino citizen claiming it under Section 48 (b)." And because it was still public land, MERALCO, as a juridical person, was disqualified to apply for its registration under Section 48 (b). The Court continued:

> This conclusion is supported by the rule announced in *Oh Cho vs. Director of Lands*, 75 Phil. 890, 892, which rule is a compendious or quintessential precis of a pervasive principle of public land law and land registration law, that "*all lands that were not acquired from the Government, either by purchase or by grant, belong to the public domain*. An exception to the rule would be any land that should have been in the possession of an occupant and of his predecessors-in-interest since time immemorial, for such possession would justify the presumption that the land had never been part of the public domain or that it had been a private property even before the Spanish conquest." (Cariño v. Insular Government, 212 U. S. 449, 53 L. ed. 594, 41 Phil. 935 and 7 Phil. 132.)

Justice Teehankee wrote a dissent, arguing that the land had become private. His dissent was based on his study of precedent:

> This dissent is based on the failure of the majority to adhere to established doctrine since the 1909 case of *Cariño* and the 1925 case of *Susi* down to the 1980 case of *Herico, infra*, pursuant to the Public Land Act, as amended, that where a possessor has held the open, exclusive and unchallenged possession of alienable public land for the statutory period provided by law (30 years now under amendatory Rep. Act No. 1942 approved on June 22, 1957), the law itself mandates that the possessor "shall be *conclusively presumed* to have performed all the conditions essential to a Government grant and shall be entitled to a certificate of title" and "*by legal fiction* [the land] has already *ceased to be of the public domain* and has *become private property*." Accordingly, the prohibition of the 1973 Constitution and of the

> Public Land Act against private corporations holding lands of the *public domain* has no applicability in the present cases. What Meralco and Iglesia have acquired from their predecessors-in-interest had already ceased to be of the public domain and had become private property at the time of the sale to them and therefore their applications for confirmation of title by virtue of their predecessors-in-interest' vested right and title may be duly granted.

Then in 1986, the Supreme Court decided the case of *Director of Lands v. Intermediate Appellate Court.*[50] The Appellate Court had affirmed a decision of the Court of First Instance, which ordered the registration in favor of ACME of five parcels of land, which were acquired by members of the Dumagat tribe. The question for the Court's resolution was whether the title that the Dumagats transferred to ACME in 1962 could be confirmed in favor of the latter in proceedings instituted by it in 1981 when the 1973 Constitution was already in effect (which contains the prohibition against private corporations holding lands of the public domain except in lease not exceeding 1,000 hectares).

The Court cited the *MERALCO* case, not for the ruling of the majority, but to adopt Justice Teehankee's piercing dissent. Said the Court:

> The present Chief Justice entered a vigorous dissent, tracing the line of cases beginning with *Cariño* in 1909 thru *Susi* in 1925 down to *Herico* in 1980, which developed, affirmed and reaffirmed the doctrine that open, exclusive and undisputed possession of alienable public land for the period prescribed by law creates the legal fiction whereby the land, upon completion of the requisite period *ipso jure* and without the need of judicial or other sanction, ceases to be public land and becomes private property. That said dissent expressed what is the better—and, indeed, the correct, view—becomes evident from a consideration of some of the principal rulings cited therein.

Thus, the Court concluded that the confirmation proceedings instituted by ACME in its own name "must be regarded as simply another accidental

50 G.R. No. 73002, December 29, 1986.

circumstance, productive of a defect hardly more than procedural and in no wise affecting the substance and merits of the right of ownership sought to be confirmed in said proceedings…."

While a litigant may argue that a dissenting view is the better view, dissents, being a minority view, are not always as influential. In *Llamado v. Court of Appeals,*[51] the Court examined a dissenting opinion but ultimately rejected it.

In that case, Ricardo Llamado was convicted for violating Batas Pambansa Blg. 22, otherwise known as the Bouncing Checks Law. He made an oral manifestation of his intention to file an appeal with the Court of Appeals, and as such, the records were forwarded to the latter. During the period for filing an appeal, he filed a Petition for Probation with the trial court. The petition was denied since the records were already with the Court of Appeals. Another Petition for Probation was filed with the appellate court, attaching thereto the original petition. This second petition and a subsequent motion for reconsideration were denied by the majority of the Court of Appeals. Before the Supreme Court, Llamado asked that the decision of the majority of the Court of Appeals be overturned in favor of the dissenting opinion of Justice Bellosillo, which construes the period for application for probation as the 'earliest opportunity' and not the fifteen-day period provided for in the Rules.

The Supreme Court did not accept Llamado's proposition. It found the dissenting opinion of Justice Bellosillo unpersuasive. It ruled that under the Probation Law, the period during which probation may be applied for is the period for the perfection of an appeal, i.e., fifteen days from the judgment of conviction. Moreover, that liberal construction be given to penal laws could not apply in the instant case. The Probation Law is not a penal statute, and the terms in which its provisions are couched in do not leave room for doubt or interpretation, said the Court.

CONCURRING OPINIONS

Concurrences are appropriate where they are intended to define with greater precision the scope of an opinion or otherwise inform the parties and other audiences of what the writer believes are important points. Judges may write concurrences where there are two argued grounds for a decision, the majority justifies its decision on one of those grounds, and other judges believe the alternative grounds

51 G.R. No. 84850, June 29, 1989.

should be stated.[52] They are written to explain the bases for the writer's opinion. Justice Antonio Carpio's concurring opinion in *Sanoh Fulton Phils., Inc. v. Bernardo*[53] provides a simple illustration:

> I concur with the Court's denial of the petition. Indeed, Sanoh Fulton Phils., Inc. (Sanoh) is liable for illegal dismissal because it failed to prove that the impending losses it expected to incur were imminent and, consequently, that the retrenchment it conducted was necessary to prevent such alleged impending losses. However, I file this separate opinion to differentiate the two kinds of losses, which can justify retrenchment and the corresponding proof required for each kind.

Later, Justice Carpio explained the basis for Sanoh's liability:

> Sanoh is liable for illegal dismissal not because it failed to present its financial statements but because the surrounding circumstances show that there were no impending losses, which were "reasonably imminent as perceived objectively and in good faith by the employer." Sanoh failed to discharge its burden to prove with substantial and convincing evidence that the impending losses it expected to incur were imminent and that the retrenchment it conducted was necessary to prevent such losses.[54]

A Justice may issue a dissenting opinion, a concurring opinion, or both. That is, a Justice may agree with the disposition of the case, but disagree with one or more aspects of the case. Justice Marvic Leonen illustrated this point in a criminal case where he wrote:

> I concur with the *ponencia* in its discussion affirming the lower courts in finding accused-appellants guilty beyond reasonable doubt for the crime of murder, sentencing them to suffer imprisonment of *reclusion perpetua*

52 Federal Judicial Center, Judicial Writing Manual 30 (1991).

53 G.R. No. 187214, August 14, 2013.

54 Sanoh Fulton Phils., Inc. v. Bernardo, G.R. No. 187214, August 14, 2013.

> and to indemnify the heirs of Wilfredo D. Atendido. I express my dissent, however, in so far as the deletion of the award for loss of earning capacity in the amount of P 1,946,180.00. This award was taken back for having no anchor but the bare assertions of Wilfredo's wife that her husband earned P400.00 to P500.00 daily as a doormat vendor.[55]

Justice Diosdado Peralta in *Colinares v. People*[56] also wrote a concurring and dissenting opinion. It began this way:

> I concur with the disposition of the majority as to the conviction of the accused.
>
> However, as to the question relating to the application of the Probation Law in this case, I respectfully dissent to the majority opinion.
>
> Probation is not a right granted to a convicted offender. Probation is a special privilege granted by the State to a penitent qualified offender, who does not possess the disqualifications under Section 9 of Presidential Decree (P.D.) No. 968, otherwise known as the Probation Law of 1976. Likewise, the Probation Law is not a penal law for it to be liberally construed to favor the accused.

Justice Arturo Brion in *Dumduma v. Civil Service Commission*[57] provides another example in this excerpt:

> I agree with the majority's conclusion that Cesar S. Dumduma is administratively liable for dishonesty and should be dismissed from the service. I disagree, however, with the Court's ruling that he should be awarded

55 The dissent was based on exceptions to the need for documentary evidence which are: (1) the deceased is self-employed and earning less than the minimum wage under current labor laws, in which case, judicial notice may be taken of the fact that in the deceased s line of work, no documentary evidence is available; or (2) the deceased is employed as a daily wageworker earning less than the minimum wage under current labor laws. In his view, the evidence presented, if seen as credible by the trial court judge, should stand in the absence of clear basis to refute it. *See* People v. Ibañez, G.R. No. 197813, September 25, 2013.

56 G.R. No. 182748, December 13, 2011.

57 G.R. No. 182606, October 4, 2011.

> financial assistance of P50,000.00 on the basis of temperance or whatever equitable consideration this basis stands for…
>
> It is unfortunate that so short a paragraph in an 11-page Decision may unwittingly open the door to a new practice as yet unknown in Philippine jurisprudence on the grant of financial assistance to employees validly dismissed from the public service. For this reason and for the award's lack of basis in fact, in law and in reason, I strongly object to the grant of this award.

SEPARATE OPINIONS

Decisions, resolutions or orders of collegiate courts must have all separate concurring or dissenting opinions appended to the majority opinion before these are promulgated. The clerk of court ensures that these separate opinions are submitted within the required period so that the decision, resolution or order is timely promulgated.[58] These rules are implemented because:

First, both parties deserve to know all the views of the collegiate court who voted for the majority and minority opinions and the reasons why they voted in such manner, especially the losing party deciding to appeal to a higher court.[59]

Second, if the separate opinions are not appended to the main opinion, the parties will have difficulty understanding the dissertation in the ponencia of the majority that addressed the points raised and reasons presented in the separate opinions, more particularly in the dissenting opinion.[60]

A separate opinion is not and should not be treated as binding precedent.[61] A separate opinion is the expression of a justice's individual view apart from the conclusions held by the majority of the Supreme Court and it has no binding effect. The Court may adopt the views stated in the separate opinion but the party invoking it has the burden of proving that the views there is the correct legal analysis that must govern the dispute.[62]

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58 Tan v. Commission on Elections, G.R. Nos. 166143-47 & 166891, November 20, 2006.

59 *Id.*

60 *Id.*

61 Naredico, Inc. v. Krominco, Inc., G.R. No. 196892, December 5, 2018.

62 Falcis III v. Civil Registrar General, G.R. No. 217910, September 3, 2019.

CHAPTER 9

Ratio Decendi and Obiter dictum

It is the *ratio* (or *rationes* if there is more than one) of a decision that constitutes the binding precedent. When looking at precedent, the first task of the court is to determine what was the ratio of the case, and to what extent it is relevant to the principle to be applied in the present case. *Obiter dictum* is not binding but it can be helpful in establishing the legal principles in the case under consideration.[1]

RATIO DECIDENDI

Ratio decidendi is the ultimate issue directly before the Court, expressly decided in the course of the consideration of the case, so that any resolution thereon must be considered as authoritative precedent.[2] As a rule, execution must conform to the dispositive portion of a decision, but the other parts of the decision may be resorted to in order to determine the *ratio decidendi* of the Court.[3] Only the *ratio decidendi* constitutes binding precedent.[4]

OBITER DICTUM

Not everything expressed in the opinion of the Supreme Court constitutes precedent. Precedent is an opinion, "the formation of which is necessary for the decision of a particular case."[5]

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1 Penny Darbyshire, Darbyshire on the English Legal System 45 (8th ed. 2005).

2 Dario v. Mison, G.R. No. 81954, August 8, 1989.

3 Intramuros Tennis Club, Inc. v. Philippine Tourism Authority, G.R. No. 135630, September 26, 2000.

4 Chamber of Agriculture and Natural Resources of the Philippines, Inc. v. Central Bank of the Philippines, G.R. No. L-23244, June 30, 1965.

5 *See* Arthur Goodhart, *Determining the Ratio decidendi of a Case*, 40 Yale L. J. 161 (1930).

Obiter dictum is a matter that was not raised expressly and therefore it was not a prerequisite in the disposition of the case.[6] A remark made or opinion expressed by a judge in a decision upon a cause, incidentally or collaterally, and not directly upon the question before the court, or upon a point not necessarily involved in the determination of the cause, is *obiter dictum*, which lacks the force of an adjudication, and is not to be regarded as such.[7] Passages from the Court's opinions that do not resolve the issues in a case "cannot be controlling jurisprudence to bind our courts."[8]

Obiter dicta are opinions "entirely unnecessary for the decision of the case" and thus "are not binding as precedent."[9] Any issue not passed upon by the Court does not have any value as precedent.[10] *Obiter dictum* cannot be cited as a doctrinal declaration of the Supreme Court and is not safe from judicial examination.[11]

The Philippine Supreme Court has also held that dictum is generally not binding as authority or precedent within the *stare decisis* rule but may be followed if sufficiently persuasive.[12] There is no prohibition in embracing the rationale of an *obiter dictum* in settling controversies if it reflects a more rational and just interpretation of the law.[13] If a matter was "clearly raised" by one of the parties, a court's pronouncements thereon are not *dicta*. Citing U.S. case law, the Supreme Court held that:

> [A]n adjudication on any point within the issues presented by the case cannot be considered as *obiter dictum*, and this rule applies to all pertinent questions, although only incidentally involved, which are presented and decided in the regular course of the consideration of the case, and led up to the final conclusion, and to any statement as to matter on which the

6 Delta Motors Corp. v. Court of Appeals, G.R. No. 121075, July 24, 1997.

7 City of Manila v. Entote, G.R. No. L-24776, June 28, 1974.

8 Dee v. Harvest All Investment Limited, G.R. Nos. 224834 & 224871, March 15, 2017.

9 Equatorial Realty Dev., Inc. v. Mayfair Theater, Inc., G.R. No. 16063, November 21, 1996. *See also* Morales v. Paredes, G. R. No. L-34428, December 29, 1930; Reagan v. Commissioner of Internal Revenue, G.R. No. L-26379, December 27, 1969; and American Home Assurance Co. v. National Labor Relations Commission G.R. No. 120043, July 24, 1996.

10 Commissioner of Internal Revenue v. San Roque Power Corporation, G.R. No. 187485, February 12, 2013.

11 Office of the Ombudsman v. Lisondra, G.R. No. 174054, March 7, 2008.

12 Lee v. Court of Appeals and De Simeon, G.R. No. L-28126, November 28, 1975. Obiter dictum lacks the force of adjudication because it is a mere expression of an opinion with no binding force for purposes of res judicata. *See* Land Bank of the Philippines v. Suntay, G.R. No. 188376, December 14, 2011.

13 Roxas & Company, Inc. v. DAMBA-NSFW, G.R. No. 149548, December 4, 2009.

> decision is predicated. Accordingly, a point expressly decided does not lose its value as a precedent because the disposition of the case is, or might have been, made on some other ground, or even though, by reason of other points in the case, the result reached might have been the same if the court had held, on the particular point, otherwise than it did. A decision, which the case could have turned-on is not regarded as *obiter dictum* merely because, owing to the disposal of the contention, it was necessary to consider another question, nor can an additional reason in a decision, brought forward after the case has been disposed of on one ground, be regarded as *dicta*. So, also, where a case presents two (2) or more points, any one of which is sufficient to determine the ultimate issue, but the court actually decides all such points, the case as an authoritative precedent as to every point decided, and none of such points can be regarded as having the status of a *dictum*, and one point should not be denied authority merely because another point was more dwelt on and more fully argued and considered, nor does a decision on one proposition make statements of the court regarding other propositions *dicta*.[14]

But identifying what constitutes precedent can be difficult. In one case, the Supreme Court pointed out that the writer of the majority opinion may actually express personal views that do not form part of the *ratio* of a decision. Examining the opinion of Justice Labrador in *Bacolod-Murcia Milling Co. v. Central Bank,*[15] the Court explained that parts of the decision were not part of the *ratio decidendi* of the case and, therefore, not binding precedents. It pointed out that the text itself showed that some pronouncements were the personal views of the writer:

> In short, the writer holds the view that the Central Bank Act merely authorizes the Monetary Board to license or to restrict or regulate foreign exchange; said Act does not authorize it to commandeer foreign exchange earned by exporters and pay for it the price it fixes, later selling it to importers at the same rate of purchase. The writer further holds the belief that the power to commandeer amounts to a confiscatory power that may not be exercised by the Central Bank under its Charter; that such

14 Villanueva, Jr. v. Court of Appeals, et al., G.R. No. 142947, March 19, 2002.

15 G.R. No. L-12610, October 25, 1963.

> confiscatory measures if justified by a monetary crisis can be adopted by the Legislature alone under its police power. In the opinion of the writer, therefore, the disputed Section 4 (a) of Circular No. 20 of the Central Bank is beyond the power of the Central Bank to adopt under the provisions of its Charter, particularly Section 74 thereof.[16]

The Supreme Court's decision in *Oposa v. Factoran*[17] is often cited as a case that recognizes the standing of future generations to sue on behalf of the environment. A careful analysis of the case will show, however, that Secretary Factoran never challenged petitioners' standing to sue. In his motion to dismiss, he alleged that petitioners had not identified a specific right that he had allegedly impaired, so as to entitle the children to relief from the courts. The defendant, in short, merely questioned the existence of a cause of action.

The Supreme Court even points this out in the introductory portions of its decision. It explained that the case "touches on the issue of whether the said petitioners have a cause of action to 'prevent the misappropriation or impairment' of Philippine rainforests and 'arrest the unabated hemorrhage of the country's vital life-support systems and continued rape of Mother Earth.'" In fact, the Court's entire discussion of standing to sue was preceded by an admission that the respondents "did not take issue with this matter."[18]

The pronouncement on standing is *obiter dictum* as, in this case, it touched upon a matter that was not raised expressly by the petitioner, and therefore, it was not a prerequisite in disposing of the case. Of course, the Philippine Supreme Court has also held that dictum is generally not binding as authority or precedent within the *stare decisis* rule, but may be followed if sufficiently persuasive. However, until that happens, *Oposa's* rule on standing has no binding effect on any Philippine court.

In any case, the Supreme Court later held that the liberalization of standing enunciated in *Oposa*, insofar as it refers to minors and generations yet unborn, is now enshrined in the Rules of Procedure for Environmental Cases[19] which allows the filing of a citizen suit in environmental cases. According to the Supreme Court, the

16 Chamber of Agriculture and Natural Resources of the Philippines, v. Central Bank of the Philippines, G.R. No. L-23244, June 30, 1965.

17 G.R. No. 101083, July 30, 1993.

18 This point is discussed extensively in Dante B. Gatmaytan, *The Illusion of Intergenerational Equity: Oposa v. Factoran as Pyrrhic Victory,* 15 Geo. Int l Envtl. L. Rev. (2003).

19 A.M. No. 09-6-8-SC.

provision on citizen suits in the Rules "collapses the traditional rule on personal and direct interest, on the principle that humans are stewards of nature."[20]

Illustrative Cases

In *Mercado v. People of the Philippines*,[21] Marvin Mercado was convicted by the Regional Trial Court for carnapping and was sentenced to a prison term of twelve years and one day as minimum to seventeen years and four months as maximum. This sentence was increased by the Court of Appeals to seventeen years and four months as minimum to thirty years as maximum. Mercado argued that such increase in prison term justified automatic review by the Supreme Court, since it fell within the period for a penalty of *reclusion perpetua*.

The Supreme Court found that the decision of the Court of Appeals was devoid of error, other than the extended imposition of the prison sentence. In that decision, the Court of Appeals relied on a footnote in the case of *People v. Omotoy*[22] to affirm the conviction of Mercado. In essence, the footnote explained the direct appeal to the Supreme Court from the Regional Trial Court by reason of imposition of *reclusion perpetua* and avoidance of delaying the disposition of the case. The Court pronounced that while this footnote was not the *ratio decidendi* of the case, it still constituted "an important part of the decision since it enunciated a fundamental procedural rule in the conduct of appeals."

On the other hand, the Court, in *Villanueva v. Court of Appeals*,[23] cited the definition of an *obiter dictum* as a remark or opinion in a decision upon a cause that is incidentally or collaterally before the court. In that case, Roque Villadores was charged with the offense of falsification of public documents for falsifying a surety bond in an appeal against Francisco Villanueva, Jr. In the course of the proceedings, a second amended information was accepted by the trial court wherein Villanueva was added as an offended party. On the strength of the pronouncement of the Court of Appeals that Villanueva is not an offended party, Villadores filed a Motion to Disqualify Villanueva's counsel. Villanueva argued that the pronouncement of the Court of Appeals was mere *obiter dictum* and it lacks the force of adjudication.

20 Arigo v. Swift, G.R. No. 206510, September 16, 2014.
21 G.R. No. 149375, November 26, 2002.
22 G.R. No. 112719, January 29, 1997.
23 G.R. No. 142947, March 19, 2002.

The Court ruled that the pronouncement of the Court of Appeals was not an *obiter dictum* because it touched upon the issue of Villanueva's inclusion as an offended party, a matter clearly raised by Villadores in his petition. It stated that as a rule:

> [I]t has been held that an adjudication on any point within the issues presented by the case cannot be considered as *obiter dictum*, and this rule applies to all pertinent questions, although only incidentally involved which are presented and decided in the regular course of the consideration of the case, and led up to the final conclusion, and to any statement as to matter on which the decision is predicated."

Lhuillier v. British Airways[24] applied Black's Law Dictionary definition of *obiter dictum* as "an opinion entirely unnecessary for the decision of the case" and thus "not binding as precedent." The Court rejected the contention that the ruling in *Santos III v. Northwest Orient Airlines*[25] was *obiter dictum* in determining the jurisdiction of the Regional Trial Court over Edna Lhuillier's Complaint for tortuous conduct against British Airways.

Edna Lhuillier filed a Complaint against British Airways before the Regional Trial Court for alleged tortuous conduct of the latter's flight attendants during a trip to Rome. The Regional Trial Court granted the Motion to Dismiss filed by British Airways on the ground of lack of jurisdiction, citing *Santos III v. Northwest Orient Airlines* and ruling that the Philippines was not one of the competent venues where an action could be filed as per Article 28 (1) of the Warsaw Convention. Lhuillier asserted that the pronouncement in the *Santos* case that "the allegation of willful misconduct resulting in a tort is insufficient to exclude the case from the comprehension of the Warsaw Convention" was a mere *obiter dictum*, since that case was predicated on breach of contract.

The Court found the argument of Lhuillier untenable and ruled that the Santos case categorically puts at issue the applicability of the Warsaw Convention if the action was based on tort. Its ruling in the *Santos* case that a cause of action based on tort did not bring the case outside the sphere of the Warsaw Convention is the *ratio decidendi* in disposing of the specific issue presented.

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24 G.R. No. 171092, March 15, 2010.

25 G.R. No. 101538, June 23, 1992.

RULINGS *PRO HAC VICE*

The Supreme Court can limit the extent to which its decisions can constitute precedent. It may make rulings *pro hac vice*. It is a Latin term meaning "for this one particular occasion." A ruling expressly qualified as *pro hac vice* cannot be relied upon as a precedent to govern other cases.[26] Decisions qualified as *pro hac vice* are made only when there are "extremely peculiar circumstances" in a case."[27]

In *Citizens' Battle Against Corruption (CIBAC) v. Commission on Elections (COMELEC)*,[28] the Supreme Court was asked to determine whether the COMELEC gravely abused its discretion when it denied CIBAC an additional seat in the House of Representatives under the party-list system. The COMELEC use a simplified formula instead of the formula established in its previous rulings. In the 2004 national elections, CIBAC received 493,546 votes out of the 12,627,852 votes cast for all the party-list participants. Applying the case of *Veterans Federation Party v. COMELEC,*[29] CIBAC earned 3.9084 percent of the votes cast. However, in the computation for additional seats for the parties, the COMELEC adopted a simplified formula of one additional seat per additional two percent, limiting CIBAC to a single seat.

The COMELEC defended its decision by citing a Supreme Court Resolution dated November 20, 2003. In that Resolution, the Court granted BUHAY's Motion for Reconsideration, entitling it to one additional seat for having garnered more than four percent of the total number of votes cast for the party-list system. However, when the Court granted BUHAY an additional seat, it meant to apply it on that specific case alone, not being a precedent—*pro hac vice*. Thus, that Resolution could not be applied as a precedent to future cases. The Supreme Court annulled a portion of the COMELEC Resolution that adopted and applied the "simplified formula."

Rulings *pro hac vice* are made to bypass procedural lapses by litigants in order to address the merits of important cases. The Supreme Court may ignore procedural errors in cases that involve "not only the power of taxation of a local government unit but also its stewardship of the environment." According to the Court, the higher

26 Partido ng Manggagawa (PM) and Butil Farmers Party (BUTIL) v. Commission on Elections, G.R. No. 164702, March 15, 2006 and Tadeja v. People of the Philippines, G.R. No. 145336, February 20, 2013.

27 Spouses Leonardo and Milagros Chua v. Ang et al., G.R. No. 156164, September 4, 2009.

28 G.R. No. 172103, April 13, 2007.

29 G.R. Nos. 136781, 136786, 136795, October 6, 2000.

interest of public welfare dictates that it should suspend its rules *pro hac vice* in order to resolve the merits of the petition.[30]

But rulings *pro hac vice* can be a point of disagreement among Justices. In *Dumduma v. Civil Service Commision*,[31] Justice Brion dissented on the majority's decision to characterize the case as *pro hac vice*:

> I do not believe that the characterization of the Court's Decision as a *pro hac vice* ruling will ever suffice as an excuse for a ruling that obviously lacks legal and factual basis and one that runs against a declared government policy on dishonesty. The case carries *no known and meritorious distinguishing feature* to justify the special and selective treatment accorded it by this Court. The characterization only reveals what it truly is — a ruling with shaky foundations that should not be followed as a precedent because it was only meant for a specific individual. I can only hope that the Court's ruling today, because it is *pro hac vice*, shall not open the door leading away from the settled rulings and standards on how to treat dishonesty in the government service. Misplaced compassion is the worst signal that the Court can give in a situation where the law itself, that the Court applies, has given clear, express and categorical signs that the public service cannot, and should not, tolerate dishonesty.

Decisions *pro hac vice* are applied to administrative matters such as requests for the audio coverage of oral arguments before the Supreme Court. In A.M. NO. 13-07-14-SC (pertaining to the cases questioning the constitutionality of the Priority Development Assistance Fund or PDAF), the Supreme Court approved the request *pro hac vice* of Atty. Theodore O. Te, Chief of the Public Information Office, to "livestream" the audio component of the oral arguments. The approval was meant to apply only to the specific case for which the request was made.

Requests for media coverage of oral arguments are not always decided in the same way. In another case, the Court disallowed the television coverage of a trial

30 Provincial Assessor of Marinduque v. Court of Appeals, G.R. No. 170532, April 30, 2009.
31 G.R. No. 182606, October 4, 2011.

"that has achieved notoriety and sensational status," prompting the Court to adopt a greater degree of care to safeguard the constitutional rights of the accused.[32]

The Supreme Court has adopted a very disparaging view of *pro hac vice* decisions. In one case, it explained that a *pro hac vice* decision violates Article 8 of the Civil Code, which provides that "judicial decisions applying or interpreting the laws or the Constitution shall form part of the legal system of the Philippines." The decision of the Court cannot be *pro hac vice* because by mandate of the law every decision of the Court forms part of the legal system of the Philippines. The Court explained that if another case comes up with the same facts that case must be decided in the same way to comply with the constitutional mandate of equal protection of the law. Thus, a *pro hac vice* decision also violates the equal protection clause of the Constitution.[33]

32 *In re* Petition for Radio and Television Coverage of the Multiple Murder Cases Against Maguindanao Governor Zaldy Ampatuan, A.M. No. 10-11-5-SC, October 23, 2012.

33 Knights of Rizal v. DMCI Homes, Inc. G.R. No. 213948, April 26, 2017.

CHAPTER 10

Authorities

AUTHORITIES

In law, the concept of authority is typically associated with legal *sources*. These legal sources—constitutions, statutes, regulations, and reported cases—are often referred to as *authorities*.[1] In a broader sense, a legal authority may include "a learned treatise or an article in a law review, not because it is authoritative, but because it is a repository of genuine wisdom, experience, or information."[2]

This understanding of authority constrains the decision-makers' options when adjudicating disputes. Schauer explains:

> Relying on genuinely authoritative sources may thus dictate that a judge make a decision other than the one she would have made herself, even after taking into account all the wisdom and information that she can obtain from her own knowledge and that of others. And in this way legal reasoning differs, in degree even if not in kind, from the reasoning in other decision-making environments. In other decision-making environments, authority may play some role, but first-order substantive considerations typically dominate. In law, however, authority is dominant, and only rarely do judges engage in the kind of all-things-considered decision-making that is so pervasive outside of the legal system.[3]

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1 Frederick Schauer, Thinking Like a Lawyer: A New Introduction to Legal Reasoning 66 (2009).

2 *Id.*

3 *Id.* at 67.

PRIMARY AND SECONDARY AUTHORITY

Authority is anything that a court can rely on in reaching its conclusion.[4] Authority is either primary or secondary. Primary authority is any law that the court can rely on in making its decision. Examples of such are the Constitution, statutes, regulations, executive orders, ordinances, treaties, and other court opinions. Secondary authority is any non-law source that the court can rely on in reaching its conclusions. These include legal and non-legal periodical literature, legal and non-legal encyclopedias, legal and non-legal dictionaries, and legal and non-legal treatises.[5]

Primary authority is issued by a branch of government acting in its lawmaking capacity. These authorities emanate from the judiciary, the legislature, and administrative agencies. The judiciary decides cases based on disputes between litigants. When a court decides a case, it creates precedent. The reasoning in a decided case will be followed, as a general rule, in the resolution of similar disputes.[6]

Congress and local legislative councils (*sanggunians*) at various local government units write statutes and ordinances respectively.

Administrative agencies generate law in two ways. They may issue decisions in settling disputes when acting in their quasi-judicial functions. They also promulgate regulations (which resemble statutes) usually to implement statutes.[7]

Secondary authority is created by lawyers, scholars, nongovernmental bodies, or government officials who are not acting in their lawmaking capacity.[8] These are usually commentaries that explain how the law came to be, and contain analyses or critiques of the law.[9] Examples of secondary authorities are encyclopedias, treatises, and periodical articles.[10] They also provide citations to primary sources of law and to other secondary materials. Unlike primary authority, however, the secondary sources do not supply binding law, and are persuasive authority only.[11]

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4 William P. Statsky, Introduction to Paralegalism: Perspectives, Problems, and Skills 486 (7th ed. 2009).

5 *Id.*

6 Christina L. Kunz et al., The Process of Legal Research 7-8 (6th ed. 2004).

7 *Id.*

8 *Id.* at 8.

9 *Id.*

10 *Id.*

11 Helene S. Shapo et al., Writing and Analysis in the Law (Rev. 4th ed., 2003).

Ideally, lawyers should rely on primary authority when they argue their cases. Judges must also rely on enacted law rather than secondary authorities. U.S. Supreme Court Chief Justice William Rehnquist chided dissenters in *Seminole Tribe of Florida v. Florida*[12] for ignoring case law and placing a premium on law review articles, saying:

> The dissent… disregards our case law in favor of a theory cobbled together from law review articles and its own version of historical events. The dissent cites not a single decision since Hans (other than Union Gas) that supports its view of state sovereign immunity.…[13]

MANDATORY AND PERSUASIVE AUTHORITY

Mandatory authority is whatever the court must rely on in reaching its conclusion. Only primary authority, such as another court opinion, a statute, or a constitutional provision can be mandatory authority. A court is never required to rely on secondary authority, such as a law review article or legal encyclopedia. Secondary authority cannot be mandatory authority.[14]

Persuasive authority is what the court relies on when it is not required to do so. There are two kinds of persuasive authority:

1. a prior court opinion that the court is not required to follow but does so because it finds the opinion persuasive;
2. any secondary authority that the court is not required to follow but does so because it finds the secondary authority persuasive.[15]

Non-authority is:

1. any primary or secondary authority that is not "on point" because it does not cover the facts of the client's case;
2. any invalid primary authority, such as an unconstitutional statute; or
3. any book that is solely a finding aid such as digests of cases.[16]

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12 517 U.S. 44 (1996).

13 *Id.*

14 Statsky, *supra* note 4.

15 *Id.*

16 *Id.* at 487.

Courts must follow mandatory authority. There are two broad categories of mandatory authority: (a) enacted law, such as a statute, a constitutional provision, an ordinance, or a regulation; and (b) other court opinions.

ENACTED LAW AS MANDATORY AUTHORITY

Any enacted law is mandatory authority and must be followed if the following tests are met:

1. The enacted law is being applied in a geographic area over which the authors of the law have power or jurisdiction.
2. It was the intention of the authors of the enacted law to cover the facts that are currently before the court.
3. The application of this enacted law to the facts does not violate some other law that is superior in authority (such as the Constitution).[17]

Even if the enacted law was intended to cover the facts before the court, it is not mandatory authority if it violates some higher law. Similarly, a statute may clearly cover a given set of facts but be invalid because the statute is unconstitutional.

OPINION AS MANDATORY AUTHORITY

A court must follow an opinion if the following conditions are met:

1. The opinion is analogous to the facts of the current case.
2. The opinion must have been written by a court that is superior to the court currently considering the applicability of the opinion.[18]

A case is analogous if there is sufficient similarity between the key facts of the opinion and the facts of the present case. The second condition requires an analysis of the relationship between the court that wrote the opinion and the court that is currently considering that opinion.[19]

17 *Id.*
18 *Id.* at 488.
19 *Id.*

PERSUASIVE AUTHORITY

Persuasive authority is any law or non-law authority that a court decides to follow, not because it is mandated to, but because of its persuasiveness.[20] Cases from other jurisdictions and from lower courts, learned treatises, law review articles, and non-legal sources (dictionaries, newspaper articles, and journals from non-legal disciplines) are regarded as persuasive authorities. It means that a court will use them only if it is persuaded by the reasoning of the cited source. Schauer points out, however, that if the court citing such material is genuinely persuaded it is misleading to think of the sources as authoritative at all, because "persuasion and authority are fundamentally opposed notions." He suggests that we refer to nonbinding sources as non-mandatory or optional.[21]

OPINIONS AS PERSUASIVE AUTHORITY

A court does not have to *follow* an opinion if either of the following exists:

1. An opinion was written by an inferior court and is now being considered by a court within the same judicial system that is superior to the court that wrote the opinion; or
2. It was written by a court from another judicial system (another State, for example).

If the opinion, however, is on point, it may be considered as persuasive authority.[22]

Only *final decisions* of the Supreme Court establish jurisprudence or doctrines in the Philippines.[23]

Rulings of the Court of Appeals may serve as precedents for lower courts but they apply only to points of law not covered by any Supreme Court decision.[24] On the other hand, the decisions of subordinate courts have a persuasive effect and may serve as judicial guides. "It is even possible that such a conclusion or pronouncement can be raised to the status of a doctrine if, after it has been subjected to test in the

20 *Id.* at 489.

21 Schauer *supra* note 1 at 69.

22 Statsky, *supra* note 4 at 490.

23 Virtucio v. Alegarbes, G.R. No. 187451, August 29, 2012.

24 Government Service Insurance System v. Cadiz, G.R. No. 154093, July 8, 2003.

crucible of analysis and revision the Supreme Court should find that it has merits and qualities sufficient for its consecration as a rule of jurisprudence."[25]

Since only decisions of the Court establish jurisprudence, it is the duty of all officers of the court to cite the rulings and decisions of the Supreme Court accurately. Otherwise, "if not faithfully and exactly quoted, the decisions and rulings of this Court may lose their proper and correct meaning, to the detriment of other courts, lawyers and the public who may thereby be misled."[26]

FOREIGN DECISIONS

American cases have persuasive effect upon Philippine courts, but they can at best be invoked only to support our own jurisprudence. For example, in the area of taxation, U.S. cases have persuasive effect in our jurisdiction because Philippine income tax law is patterned after its U.S. counterpart.[27] Since Philippine income tax laws are of American origin, interpretations by American courts on parallel tax laws have persuasive effect on the interpretation of our tax laws.[28] When a statute has been adopted from another state or country and it has previously been construed by the courts of such state or country, the statute is deemed to have been adopted with the construction given.[29]

The Supreme Court has, however, explained that the Philippine judicial system should not place undue reliance upon foreign decisions and should not regard them as indispensable mental crutches "without which we cannot come to our own decisions through the employment of our own endowments." While the Philippines has derived many of its laws from other countries, courts "must decide our own problems in the light of our own interests and needs, and of our qualities and even idiosyncrasies as a people, and always with our own concept of law and justice."[30]

In *Garcia v. Commission on Elections,*[31] the Court explained that in resolving constitutional disputes, "[w]e should not be beguiled by foreign jurisprudence some

25 Commissioner of Internal Revenue v. Court of Appeals, G.R. No. 104151, March 10, 1995.

26 Spouses Francisco v. Court of Appeals, G.R. No. 118749, April 25, 2003.

27 Commissioner of Internal Revenue v. Solidbank Corporation, G.R. No. 148191, November 25, 2003.

28 Bañas v. Court of Appeals, G.R. No. 102967, February 10, 2000.

29 Philippine Health Care Providers, Inc. v. Commissioner of Internal Revenue, G.R. No. 167330, September 18, 2009.

30 Sanders v. Veridiano II, G.R. No. L-46930, June 10, 1988.

31 G.R. No. 111511, October 5, 1993.

of which are hardly applicable because they have been dictated by different constitutional settings and needs." Indeed, although the Philippine Constitution can trace its origins to that of the United States, their paths of development have long since diverged.[32]

The Supreme Court cites American cases not as precedents, "but as guides of interpretation," especially if there are no applicable local precedents that address the issues before it.[33]

To be clear, the Supreme Court continues to cite foreign cases if it supports its rulings. Thus in *Province of North Cotabato v. The Government of the Republic of the Philippines Peace Panel on Ancestral Domain,*[34] the Court cited two U.S. cases in order to brush aside the argument that the case was not yet ripe for adjudication:

> In *Santa Fe Independent School District v. Doe*,[35] the United States Supreme Court held that the challenge to the constitutionality of the school's policy allowing student-led prayers and speeches before games was ripe for adjudication, even if no public prayer had yet been led under the policy, because the policy was being challenged as unconstitutional *on its face*.
>
> That the law or act in question is not yet effective does not negate ripeness. For example, in *New York v. United States,*[36] decided in 1992, the United States Supreme Court held that the action by the State of New York challenging the provisions of the Low-Level Radioactive Waste Policy Act was ripe for adjudication even if the questioned provision was not to take effect until January 1, 1996, because the parties agreed that New York had to take immediate action to avoid the provision's consequences.[37]

32 Central Bank Employees Association, Inc. v. Bangko Sentral ng Pilipinas, G.R. No. 148208, December 15, 2004. See also Serrano v. Gallant Maritime Services, Inc., G.R. No. 167614, March 24, 2009.

33 Southern Cross Cement Corporation v. Cement Manufacturers Association of the Philippines, G.R. No. 158540, August 3, 2005.

34 G.R. No. 183591, October 14, 2008.

35 530 US 290 (2000).

36 505 U.S. 144 (1992).

37 For a discussion on the arguments for and against the use of foreign cases in judicial decisions, *see* Carlos F. Rosenkrantz, *Against Borrowings and other Non-authoritative Uses of Foreign Law,* 1 Int l J. Const. L. 269-295 (2003).

INDIGENOUS AND ISLAMIC LAW

The Philippine legal system allows for the application of tribal or customary law and Islamic law. Article X of the Constitution provides for the creation of autonomous regions, thus:

> Section 18. The Congress shall enact an organic act for each autonomous region with the assistance and participation of the regional consultative commission composed of representatives appointed by the President from a list of nominees from multi-sectoral bodies. The organic act shall define the basic structure of government for the region consisting of the executive department and legislative assembly, both of which shall be elective and representative of the constituent political units. The organic acts shall likewise provide for special courts with personal, family, and property law jurisdiction consistent with the provisions of this Constitution and national laws.

Autonomy, however, does not end the relation of partnership and interdependence between the central administration and local government units. Neither does it usher in a regime of federalism. "Local governments, under the Constitution, are subject to regulation, however limited, and for no other purpose than precisely, albeit paradoxically, to enhance self-government."[38]

Consistent with these principles, the Supreme Court retains jurisdiction over the courts in the Autonomous Region of Muslim Mindanao (ARMM), which is presently governed by Republic Act No. 9054 (2001). That law provides that:

> SECTION 10. *Shari'ah Appellate Court Decisions.* — The decisions of the Shari'ah Appellate Court shall be final and executory. Nothing herein contained shall, however, affect the original and appellate jurisdiction of the Supreme Court, as provided in the Constitution.[39]

38 Ganzon v. Court of Appeals, G.R. No. 93252, August 5, 1991.

39 Republic Act No. 9054 (2001), Art. VIII, § 10.

The Indigenous Peoples' Rights Act[40] also provides that indigenous peoples have the right to resolve land conflicts in accordance with customary laws of the area where the land is located, and only in default thereof should the complaints be submitted to amicable settlement and to the courts of justice whenever necessary.[41] The Supreme Court also retains jurisdiction over conflicts involving claims and disputes involving the rights of indigenous peoples. The law provides:

> Sec. 66. *Jurisdiction of the NCIP* (National Commission on Indigenous Peoples). — The NCIP, through its regional offices, shall have jurisdiction over all claims and disputes involving rights of ICCs/IPs (Indigenous Cultural Communities/Indigenous Peoples); Provided, however, That no such dispute shall be brought to the NCIP unless the parties have exhausted all remedies provided under their customary laws. For this purpose, a certification shall be issued by the Council of Elders/Leaders who participated in the attempt to settle the dispute that the same has not been resolved, which certification shall be a condition precedent to the filing of a petition with the NCIP.
>
> Sec. 67. *Appeals to the Court of Appeals.* — Decisions of the NCIP shall be appealable to the Court of Appeals by way of a petition for review.

The application of both tribal and Islamic law, therefore, does not preclude the operation of the national judicial system over ancestral domains or the ARMM. The opinions expressed by tribal or Shari'a courts are not binding on the Supreme Court.

CANON LAW

The decisions of church tribunals, although not binding on the civil courts, may be given persuasive effect. This is seen in the provision on "psychological incapacity" in Article 36 of the Family Code which was taken from Canon Law.[42] In view of the evident source and purpose of the Family Code provision, contemporaneous

40 Republic Act No. 8371 (1997).

41 See Republic Act No. 8371 (1997), § 7 (h).

42 Salita v. Magtolis, G.R. No. 106429, June 13, 1994.

religious interpretation is given persuasive effect. "Here, the State and the Church — while remaining independent, separate and apart from each other — shall walk together in synodal cadence towards the same goal of protecting and cherishing marriage and the family as the inviolable base of the nation."[43] The Supreme Court explained in one case that "church rulings hold sway since they are drawn from a similar recognition, as the trial court, of the veracity of the petitioner's allegations … It is the factual findings of the judicial trier of facts, and not that of the canonical courts, that are accorded significant recognition by this Court."[44]

SECONDARY AUTHORITY AS PERSUASIVE AUTHORITY

Secondary authority is not the law itself and can never be a mandatory authority, although some of secondary sources quote from the law itself. Books and journals are not written by a legislative body or a court and can only be persuasive. As a general rule, judges should never use someone else's quotation of the law. It is better to quote from a primary source. Secondary sources may be used to bolster one's interpretation of primary authority because secondary authority frequently paraphrases or summarizes primary authority.[45]

43 Republic v. Court of Appeals, G.R. No. 108763, February 13, 1997.

44 Antonio v. Reyes, G.R. No. 155800, March 10, 2006.

45 Statsky, *supra* note 4, at 490.

CHAPTER 11

Legislation

Legislative power is vested in the Congress of the Philippines.[1] In Government of the *Philippine Islands v. Springer,*[2] the Supreme Court defined legislative power as the authority, under the Constitution, to make laws, and to alter and repeal them. In the same case, the Court continued to explain the extent of legislative powers:

> The Legislature cannot lawfully exercise powers, which are in their nature essentially executive or judicial. The Legislature cannot make a law and then take part in its execution or construction. So the Philippine Legislature is not a partaker in either executive or judicial power, except as the Philippine Senate participates in the executive power through having the right to confirm or reject nominations made by the Governor-General, and except as the Legislature participates in the judicial power through being made the sole judge of the elections, returns, and qualifications of its elective members and through having the right to try its own members for disorderly behavior. The Philippine Legislature may nevertheless exercise such auxiliary powers as are necessary and appropriate to its independence and to make its express powers effective.[3]

The grant of legislative power to Congress is broad, general and comprehensive. The legislative body possesses plenary power for all purposes of civil government. Any power, deemed to be legislative by usage and tradition, is necessarily possessed by Congress, unless the Constitution has lodged this power elsewhere. In other

1 Const., Art. VI, § 1.
2 G.R. No. L-26979, April 1, 1927.
3 *Id.*

words, except as limited by the Constitution, either expressly or impliedly, legislative power embraces all subjects and extends to matters of general concern or common interest.[4]

Legislative power is distinct from executive power. Congress makes laws but it is the President who executes the laws. The executive power is vested in the President; it is the power to enforce and administer the laws or the power of carrying the laws into practical operation and enforcing their due observance.[5]

LEGISLATIVE POWERS

Legislative power is vested in a bicameral Congress of the Philippines. The Senate is composed of twenty-four senators elected at large by qualified registered voters of the country, while the House of Representatives is composed of not more than two hundred fifty members elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area.[6] The Philippines has party-list representatives elected through a party-list system of registered national, regional, and sectoral parties or organizations. Under this system, any national, regional or sectoral party or organization registered with the Commission on Elections may participate in the election of party-list representatives who, upon their election and proclamation, shall sit in the House of Representatives as regular members. Voters cast a vote for a district Representative and another vote for a party-list representative.[7]

President Marcos exercised legislative power under Amendment No. 6 of the 1973 Constitution.[8] After the collapse of the Marcos dictatorship in February 1986, President Corazon Aquino established a revolutionary government. On March 24,

4 Ople v. Torres, G.R. No. 127685, July 23, 1998. *See also* League of Cities of the Philippines v. Commission on Elections, G.R. No. 176951, February 15, 2011.

5 *Id.*

6 The Constitution provides that Congress shall be composed of not more than two hundred fifty members unless otherwise fixed by law. The Constitution did not preclude Congress from increasing its membership by passing a law, other than a general reapportionment law. See Mariano v. Commission on Elections, G.R. No. 118577, March 7, 1995.

7 *See* Veterans Federation Party v. Commission on Elections, G.R. Nos. 136781, 136786, 136795, October 6, 2000. Congress enacted Republic Act No. 7941 to implement the constitution s mandate.

8 National Power Corporation v. Province of Lanao del Sur, G.R. No. 96700, November 19, 1996.

1986, she issued Proclamation No. 3, promulgating the Provisional Constitution, or more popularly referred to as the Freedom Constitution. Under Article II, Section 1 of the Freedom Constitution, the President continued to exercise legislative power until a legislature was elected and convened under a new constitution. When Congress was convened on July 26, 1987, President Aquino lost this legislative power under the Freedom Constitution.[9] When the first Congress under the 1987 Constitution was convened, President Aquino could no longer exercise legislative powers but the laws she had previously enacted remained effective.[10]

Courts are wary of treading on legislative functions. The duty of the Court is merely to apply the law in such a way that it shall not usurp legislative powers by judicial legislation and that in the course of such application or construction, it should not make or supervise legislation, or under the guise of interpretation, modify, revise, amend, distort, remodel, or rewrite the law, or give the law a construction which is repugnant to its terms. The Court should not pre-empt Congress and usurp its inherent powers of making and enacting laws. While it may be the most expeditious approach, a short cut by judicial *fiat* is a dangerous proposition, lest the Court dare trespass on prohibited judicial legislation.[11]

LOCAL LEGISLATION

Congress delegated the power to legislate to local government units through the Local Government Code.[12] Local governments are only agents of the national government and cannot be superior to the principal; they cannot undo acts of

9 Municipality of San Juan v. Court of Appeals, G.R. No. 125183, September 29, 1997. The 1987 Constitution restored legislative power to the Congress in the Philippines. Article XVIII (Transitory Provisions) of the 1987 Constitution states:

> Sec. 6. The incumbent President shall continue to exercise legislative power until the first Congress is convened.

10 La Bugal-B laan Tribal Association, Inc. v. Ramos, G.R. No. 127882, January 27, 2004.

11 Corpuz v. People, G.R. No. 180016, April 29, 2014. Judicial legislation happens when the Court adds to what the law provides and does so in the guise of interpretation. Judicial legislation happens when the Court reads into the law an interpretation that the four corners of that law cannot bear. See Re: Vicente S.E. Veloso, A.M. No. 12-8-07-CA, June 16, 2015.

12 Rep. Act No. 7160, sec. 48 provides:

> SECTION 48. *Local Legislative Power.* Local legislative power shall be exercised by the sangguniang panlalawigan for the province; the sangguniang panlungsod for the city; the sangguniang bayan for the municipality; and the sangguniang barangay for the barangay.

Congress, from which they have derived their power in the first place. They cannot negate by mere ordinance the mandate of the statute.[13] The Local Government Code does not vest in local governments the blanket authority to legislate upon any subject that it finds proper to legislate upon in the guise of serving the common good.[14]

DIRECT LEGISLATION; INITIATIVE AND REFERENDUM

Citizens may also legislate through initiative and referendum. The framers of the Constitution adopted initiative as a weapon of the people to negate government malfeasance and misfeasance. The framers also gave citizens the power to enact or reject any act or law by congress or local legislative body. Article VI of the Constitution provides:

> Section 1. The legislative power shall be vested in the Congress of the Philippines which shall consist of a Senate and a House of Representatives except to the extent reserved to the people by the provision on initiative and referendum....
>
> Section 32. The Congress shall, as early as possible, provide for a system of initiative and referendum, and the exceptions therefrom, whereby the people can directly propose and enact laws or approve or reject any act or law or part thereof passed by the Congress or local legislative body after the registration of a petition therefor signed by at least ten per centum of the total number of registered voters, of which every legislative district must be represented by at least three per centum of the registered voters thereof.

Congress enacted "An Act Providing for a System of Initiative and Referendum and Appropriating Funds Therefor."[15] The law spelled out the requirements for the

13 Magtajas v. Pryce Properties Corp., Inc., G.R. No. 111097, July 20, 1994.

14 Mosqueda v. Pilipino Banana Growers & Exporters Association, Inc., G.R. Nos. 189185 & 189305, August 16, 2016.

15 Republic Act No. 6735 (1989). The Supreme Court held that this law did not provide for the implementation of the exercise of the right to amend the Constitution. See Defensor Santiago v. Commission on Elections, G.R. No. 127325, March 19, 1997.

exercise of the power of initiative and referendum for both national laws and local ordinances. Congress then enacted Republic Act No. 7160, The Local Government Code of 1991[16] that defines initiative and referendum as follows:

> SEC. 120. *Local Initiative Defined.* — Local initiative is the legal process whereby the registered voters of a local government unit may directly propose, enact, or amend any ordinance.
>
> SEC. 126. *Local Referendum Defined.* — Local referendum is the legal process whereby the registered voters of the local government units may approve, amend or reject any ordinance enacted by the sanggunian.
>
> The local referendum shall be held under the control and direction of the COMELEC within sixty (60) days in case of provinces and cities, forty-five (45) days in case of municipalities and thirty (30) days in case of barangays.
>
> The COMELEC shall certify and proclaim the results of the said referendum.[17]

The people resort to initiative either because the law-making body fails or refuses to enact the law, ordinance, resolution or act that they desire or because they want to amend or modify existing laws. In a local referendum, the law-making body submits to the registered voters of its territorial jurisdiction an ordinance or resolution (duly enacted or approved by such law-making authority) for approval or rejection.[18]

Initiative is entirely the work of the electorate; the law-making body begins a referendum. Initiative is a process of law-making by the people themselves without the participation and against the wishes of their elected representatives, while referendum consists merely of the electorate approving or rejecting what has been drawn up or enacted by a legislative body. The process and the voting in an initiative are understandably more complex than in a referendum where expectedly the voters will simply write either "Yes" or "No" in the ballot.[19]

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16 Garcia v. Commission on Elections, G.R. No. 111230, September 30, 1994.

17 Subic Bay Metropolitan Authority v. Commission on Elections, G.R. No. 125416, September 26, 1996.

18 Subic Bay Metropolitan Authority v. Commission on Elections, G.R. No. 125416, September 26, 1996

19 *Id.*

PROCEDURE FOR MAKING LAWS

The House of Representatives' website features an outline[20] of the way laws are enacted in the Philippines. It fills in the details that are absent from a reading of the Constitution. The outline also presents a detailed picture of how a bill travels through the legislative and the executive branches of government.

However, legislation is far more complicated in practice than the outline presents. Legislation is not always the initiative of elected lawmakers. It may be drafted by other stakeholders, such as when civil society actively engages government. These groups find sponsors within Congress who are willing to champion their bills. The outline also does not feature the informal channels for lobbying that exist in reality. Conference committees, for example, open a completely new opportunity to rewrite the law that has been subjected to hearings and debate in both chambers of Congress. Interest groups have access to this opportunity because hearings at this point are not really conducted in small closed-door meetings. The outline also does not account for the impact of the media on the final form of the law.

The following is a virtually verbatim reproduction of the House of Representative's outline:

1. Preparation of the bill

   The member or the bill drafting division of the reference and research bureau prepares and drafts the bill upon the member's request.

2. First reading

   1. The bill is filed with the bills and index service and the same is numbered and reproduced.

   2. Three days after its filing, the same is included in the order of business for first reading.

   3. On first reading, the Secretary General reads the title and number of the bill. The Speaker of the House refers the bill to the appropriate committee/s.

20 How a Bill Becomes a Law, http://www.congress.gov.ph/legisinfo/index.php?l=process. The Senate website has a similar outline which may be visited at http://www.senate.gov.ph/ about/ legpro.asp.

3. Committee consideration/action
    1. The committee where the bill was referred to evaluates it to determine the necessity of conducting public hearings. If the committee finds it necessary to conduct public hearings it schedules such hearings, issues public notices and invites resource persons from the public and private sectors, the academe and experts on the proposed legislation. When the committee finds that public hearings are not needed it schedules the bill for committee discussions.
    2. Based on the result of the public hearings or committee discussions, the committee may introduce amendments, consolidate bills on the same subject matter, or propose a substitute bill. Thereafter it prepares the corresponding committee report.
    3. The committee approves the committee report and formally transmits the same to the plenary affairs bureau.
4. Second reading
    1. The committee report is registered and numbered by the bills and index service. It is included in the order of business and referred to the committee on rules.
    2. The committee on rules schedules the bill for consideration on second reading.
    3. On second reading, the secretary general reads the number, title and text of the bill and the following takes place:
        a. Period of sponsorship and debate
        b. Period of amendments
        c. Voting which may be by:
            i. *Viva voce*
            ii. Count by tellers
            iii. Division of the house; or
            iv. Nominal voting

5. Third reading

    1. The amendments, if there are any, are engrossed and printed copies of the bill are reproduced for third reading.

    2. The engrossed bill is included in the calendar of bills for third reading and copies of the same are distributed to all the members three days before its third reading.

    3. On third reading, the Secretary General reads only the number and title of the bill.

    4. A roll call or nominal voting is called and a member, if she desires, is given three minutes to explain her vote. No amendment on the bill is allowed at this stage.

        a. The bill is approved by an affirmative vote of a majority of the members present.

        b. If the bill is disapproved, the same is transmitted to the archives.

6. Transmittal of the approved bill to the Senate

    The approved bill is transmitted to the Senate for its concurrence.

7. Senate action on approved bill of the house

    The bill undergoes the same legislative process in the Senate.

8. Conference committee

    1. A conference committee is constituted and is composed of members from each house of congress to settle, reconcile or thresh out differences or disagreements on any provision of the bill.

    2. The conferees are not limited to reconciling the differences in the bill but may introduce new provisions germane to the subject matter or may report out an entirely new bill on the subject.[21]

    3. The conference committee prepares a report to be signed by all the conferees and the chairman.

---

21 *See* Tolentino v. Secretary of Finance, G.R. No. 115455, August 25, 1994.

4. The conference committee report is submitted for consideration and approval of both Houses. No amendment to the bill is allowed at this point.

9. Transmittal of the bill to the President

   Copies of the bill, signed by the Senate President and the Speaker of the House of Representatives and certified by both the Secretary of the Senate and the Secretary General of the House, are transmitted to the President.

10. President's action on the bill

    1. If the bill is approved by the president, it is assigned an RA (Republic Act) number and transmitted to the chamber where it originated.

    2. If the bill is vetoed, it is transmitted together with a message citing the reason for the veto, to the house where the bill originated.

11. Action on approved bill

    The bill is reproduced and copies are sent to the Official Gazette[22] office for publication and distribution to the implementing agencies. It is then included in the annual compilation of acts and resolutions.

12. Action on vetoed bill

The message is included in the order of business. If Congress decides to override the veto, the House and the Senate shall proceed separately to reconsider the bill or the vetoed items of the bill. If the bill or its vetoed items is passed by a vote of two-thirds of the members of each house, such bill or items shall become a law.

22 The Official Gazette is the official journal of the Republic of the Philippines. It has been in print since 1902 and is edited at the Office of the President by virtue of Commonwealth Act No. 638, as amended by the Administrative Code of 1987. It publishes Executive Issuances, Republic Acts, Judicial papers, and other government documents every week. During the Third Philippine Republic (1946 1972) it also published the President s statements and a log of his activities. In 2010, the Official Gazette went online, adopting the URL www.gov.ph. It has since been updated regularly with speeches, reports, statements, press releases, and documents from the Office of the President and other departments. It has also revived the practice of logging the President s official activities. *See* http://www.gov.ph/about-this-website/.

A bill is different from a joint resolution. A bill must pass through three readings on separate days, except if the President certifies the bill as urgent. A joint resolution may be adopted by both houses of Congress as their own rules prescribe.[23]

The Constitution requires that before the bill is approved, printed copies of the bill must be distributed to members of the House and the Senate three days before it is passed, unless the President certifies the bill as urgent. The passage of a joint resolution rests on the discretion of both Houses of Congress.[24]

A bill approved by Congress must be presented to the President for signature or veto. There is no exception from this rule. This is not true for joint resolutions.[25]

Upon the last reading of the bill, amendments will no longer allowed, and voting on the bill shall be immediately taken. There is no exception to from this rule. This is not true for joint resolutions.[26]

The procedure for enacting a law is permanently fixed in the Constitution, and unlike joint resolutions, cannot be amended by an act of Congress.[27]

Congress can produce statutes which are several pages long. Some laws, however, merely amend others and can often be less than a page long. The following law is an example of a measure designed to eliminate discrimination against illegitimate children.[28]

Republic of the Philippines

Congress of the Philippines

Metro Manila

Twelfth Congress

Third Regular Session

Begun and held in Metro Manila, on Monday, the twenty-second day of July, two thousand three.

23 Ang Nars Party-List v. The Executive Secretary, G.R. No. 215746, October 8, 2019.
24 Ang Nars Party-List v. The Executive Secretary, G.R. No. 215746, October 8, 2019.
25 Ang Nars Party-List v. The Executive Secretary, G.R. No. 215746, October 8, 2019.
26 Ang Nars Party-List v. The Executive Secretary, G.R. No. 215746, October 8, 2019.
27 Ang Nars Party-List v. The Executive Secretary, G.R. No. 215746, October 8, 2019.
28 Ang Nars Party-List v. The Executive Secretary, G.R. No. 215746, October 8, 2019.

Republic Act No. 9255

February 24 2004

AN ACT ALLOWING ILLEGITIMATE CHILDREN TO USE THE SURNAME OF THEIR FATHER, AMENDING FOR THE PURPOSE ARTICLE 176 OF EXECUTIVE ORDER NO. 209, OTHERWISE KNOWN AS THE "FAMILY CODE OF THE PHILIPPINES"

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. Article 176 of Executive Order No. 209, otherwise known as the Family Code of the Philippines, is hereby amended to read as follows:

> "Article 176. Illegitimate children shall use the surname and shall be under the parental authority of their mother, and shall be entitled to support in conformity with this Code. However, illegitimate children may use the surname of their father if their filiation has been expressly recognized by the father through the record of birth appearing in the civil register, or when an admission in a public document or private handwritten instrument is made by the father. *Provided,* the father has the right to institute an action before the regular courts to prove non-filiation during his lifetime. The legitime of each illegitimate child shall consist of one-half of the legitime of a legitimate child."

SECTION 2. *Repealing Clause.* – All laws, presidential decrees, executive orders, proclamations, rules and regulations, which are inconsistent with the provisions of this Act are hereby repealed or modified accordingly.

SECTION 3. *Effectivity Clause.* – This Act shall take effect fifteen (15) days from its publication in the *Official Gazette* or in two (2) newspapers of general circulation.

Approved,

(Sgd.) FRANKLIN DRILON
President of the Senate

(Sgd.) JOSE DE VENECIA JR.
Speaker of the House of Representatives

This Act which is a consolidation of House Bill No. 4437 and Senate Bill No. 2510 was finally passed by the House of Representatives and the Senate on January 21, 2004 and February 4, 2004, respectively.

(Sgd.) OSCAR G. YABES
Secretary of Senate

(Sgd.) ROBERTO P. NAZARENO
Secretary General
House of Represenatives

Approved: February 24, 2004

(Sgd.) GLORIA MACAPAGAL-ARROYO
President of the Philippines

Some laws can have a single line. Republic Act No. 10655 repealed the crime called "premature marriages" under the Revised Penal Code. Section 1 of the law simply provides that "Without prejudice to the provisions of the Family Code on paternity and filiation, Article 351 of Act No. 3815, otherwise known as the Revised Penal Code, punishing the crime of premature marriage committed by a woman, is hereby repealed."[29]

Another example is a law that decriminalized vagrancy. Senator Francis Escudero explained that vagrancy "has become a common excuse for law enforcers to detain, arrest or bring to the police station any person they don't have sufficient reasons to arrest or those with no specific crime to charge with."[30] So Congress enacted the following law:

29 Rep. Act No. 10655 (2015).

30 Philippine Information Agency, *Senate Approves on Second Reading a Bill Decriminalizing Vagrancy,* PIA Press Release (March 9, 2011), http://archives.pia.gov.ph/?m=1&t=1&id=21149&y=2011&mo=02.

Republic of the Philippines

Congress of the Philippines

Metro Manila

Fifteenth Congress

Second Regular Session

Begun and held in Metro Manila, on Monday, the twenty-fifth day of July, two thousand eleven.

REPUBLIC ACT NO. 10158

AN ACT DECRIMINALIZING VAGRANCY, AMENDING FOR THIS PURPOSE ARTICLE 202 OF ACT NO. 3815, AS AMENDED, OTHERWISE KNOWN AS THE REVISED PENAL CODE

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. Article 202 of the Revised Penal Code is hereby, amended to read as follows:

"Article 202. *Prostitutes; Penalty.* – For the purposes of this article, women who, for money or profit, habitually indulge in sexual intercourse or lascivious conduct, are deemed to be prostitutes.

"Any person found guilty of any of the offenses covered by this article shall be punished by arresto menor or a fine not exceeding 200 pesos, and in case of recidivism, by arresto mayor in its medium period to prision correctional in its minimum period or a fine ranging from 200 to 2,000 pesos, or both, in the discretion of the court."

SECTION 2. *Effect on Pending Cases.* – All pending cases under the provisions of Article 202 of the Revised Penal Code on Vagrancy prior to its amendment by this Act shall be dismissed upon effectivity of this Act.

SECTION 3. *Immediate Release of Convicted Persons.* – All persons serving sentence for violation of the provisions of Article 202 of the Revised Penal

Code on Vagrancy prior to its amendment by this Act shall be immediately released upon effectivity of this Act: Provided, That they are not serving sentence or detained for any other offense or felony.

SECTION 4. *Repealing Clause.* – All laws, presidential decrees, executive orders, rules and regulations and other issuances, or any part thereof, inconsistent with this Act are hereby repealed, modified or amended accordingly.

SECTION 5. *Effectivity Clause.* – This Act shall take effect fifteen (15) days after its publication in the Official Gazette or in at least two (2) newspapers of general circulation.

Approved,

(Sgd.) FELICIANO BELMONTE JR.
Speaker of the House of Representatives

(Sgd.) JUAN PONCE ENRILE
President of the Senate

This Act which is a consolidation of Senate Bill No. 2726 and House Bill No. 4936 was finally passed by the Senate and the House of Representatives on March 14, 2011 and January 30, 2012, respectively.

(Sgd.) MARILYN B. BARUA-YAP
Secretary General House of Representatives

(Sgd.) EMMA LIRIO-REYES
Secretary of the Senate

Approved: MARCH 27, 2012

(Sgd.) BENIGNO S. AQUINO III
President of the Philippines

JUDICIAL CHECK ON CONGRESS

SUPERMAJORITY VOTES

The power of the legislature to make laws includes the power to amend and repeal these laws. Congress cannot, by its own act, limit its power to amend or repeal laws. When Congress requires a higher number of votes to amend a law, the Supreme Court has the duty to strike down such act for interfering with the plenary powers of Congress. Each House of Congress has the power to approve bills by a mere majority vote, provided there is quorum. The act of one legislature is not binding upon, and cannot tie the hands of, future legislatures.[31]

In *Duarte v. Dade*,[32] the Court explained that:

> A state legislature has a plenary law-making power over all subjects, whether pertaining to persons or things, within its territorial jurisdiction, either to introduce new laws or repeal the old, unless prohibited expressly or by implication by the federal constitution or limited or restrained by its own. It cannot bind itself or its successors by enacting irrepealable laws except when so restrained. Every legislative body may modify or abolish the acts passed by itself or its predecessors. This power of repeal may be exercised at the same session at which the original act was passed; and even while a bill is in its progress and before it becomes a law. This legislature cannot bind a future legislature to a particular mode of repeal. It cannot declare in advance the intent of subsequent legislatures or the effect of subsequent legislation upon existing statutes.[33]

IRREPEALABLE LAWS

Among the implied substantive limitations on the legislative powers is the prohibition against the passage of irrepealable laws. Irrepealable laws deprive succeeding legislatures of the power to craft laws appropriate to the operative milieu. Irrepealable laws promote "an unhealthy stasis in the legislative front and dissuades

31 Kida v. Senate of the Philippines, G.R. No. 196271, February 28, 2012.

32 32 Phil. 36, 49 (1915).

33 *Id.*

dynamic democratic impetus that may be responsive to the times."[34] Congress can repeal all laws even those promulgated by President Corazon Aquino in the exercise of her extraordinary legislative power under the Freedom Constitution.[35]

For example, the designation of the Office of the Government Corporate Council (OGCC) as the legal counsel for Government Owned and Controlled Corporations was written into law, initially by Republic Act No. 3838, and later by the Administrative Code of 1987. However, there is no impediment to Congress from imposing a different role for the OGCC with respect to particular GOCCs that it may charter. Congress designated the OGCC as the "legal adviser and consultant" (rather than as counsel) to the Government Service Insurance System (GSIS). Congress is not bound to retain the OGCC as the primary or exclusive legal counsel of GSIS even if it performed such a role for other GOCCs. To bind Congress to perform in that manner would be akin to elevating the OGCC's statutory role to irrepealable status, and it is basic that Congress is barred from passing irrepealable laws.[36]

Congress, in the legitimate exercise of its lawmaking powers, can enact a law withdrawing a tax exemption just as easily as it may grant it under Section 28 (4) of Article VI of the Constitution. Thus, in *Republic v. Caguioa*,[37] the Court ruled that Congress can amend Section 131 of the National Internal Revenue Code in a manner it sees fit, as it did when it passed Republic Act No. 9334.

UNCONSTITUTIONAL LAWS

The power of Congress to enact laws does not include the right to pass unconstitutional laws.[38] The Supreme Court will not hesitate to declare a law or act invalid when it is necessary, as when the acts of the executive and legislative branches, or of any official, "betray the people's will as expressed in the Constitution."[39] Courts may nullify laws if they are unconstitutional or if their effect is unconstitutional. As the Supreme Court explained, "[a] statute may be declared unconstitutional because it is not within the legislative power to enact; or it creates or establishes methods

34 The City of Davao v. The Regional Trial Court, Branch XII, G.R. No. 127383, August 18, 2005.
35 Atitiw v. Zamora, G.R. No. 143374, September 30, 2005.
36 Government Service Insurance System v. Court of Appeals, G.R. No. 183905, April 16, 2009.
37 Republic v. Caguioa, G.R. No. 168584, October 15, 2007.
38 Tatad v. Secretary of the Department of Energy, G.R. No. 124369, December 3, 1997.
39 Luz Farms v. Secretary of Agrarian Reform, G.R. No. 86889, December 4, 1990.

or forms that infringe constitutional principles; or its purpose or effect violates the Constitution or its basic principles."[40]

The determination of whether a law contravenes the Constitution is within the jurisdiction of regular courts. The Constitution vests the power to declare a law, treaty, international or executive agreement, presidential decree, order, instruction, ordinance, or regulation unconstitutional in the courts, including in the regional trial courts.[41]

The general rule is that where part of a statute is void because it is repugnant to the Constitution, while another part is valid, the valid portion, if susceptible to being separated from the invalid, may stand and be enforced.[42] But as the Supreme Court explained,

> When the parts of a statute, however, are so mutually dependent and connected, as conditions, considerations, or compensations for each other, as to warrant a belief that the legislature intended them as a whole, the nullity of one part will vitiate the rest. In which case, if some parts are unconstitutional, all the other provisions, which are thus dependent, conditional, or connected must consequently fall with them.[43]

Courts proceed cautiously when striking down acts of the other branches of government. Every law is presumed to be constitutional, and to justify its nullification, "there must be a clear and unequivocal breach of the Constitution, not a doubtful and argumentative one."[44] This presumption of constitutionality can be overcome only by the clearest showing that there was indeed an infraction of the Constitution, and only when such a conclusion is reached by the required majority may the Court pronounce, in the discharge of the duty it cannot escape, that the challenged act must be struck down.[45]

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40 Tawang Multi-Purpose Cooperative v. La Trinidad Water District, G.R. No. 166471, March 22, 2011.

41 Betoy v. Board of Directors, National Power Corporation, G.R. No. 156556-57, October 4, 2011.

42 Pambansang Koalisyon ng mga Samahang Magsasaka at Manggagawa sa Niyugan v. Executive Secretary, G.R. No. 147036-37, April 10, 2012 .

43 *Id.*

44 Pimentel, Jr. v Executive Secretary, G.R. No. 195770, July 17, 2012.

45 Lawyers against Monopoly and Poverty v. Secretary of Budget and Management, G.R. No. 164987, April 24, 2012.

The Supreme Court, for example, demonstrated restraint when the "Citizenship Retention and Re-acquisition Act of 2003" was challenged as a violation of the Constitution.[46] In that case, the petitioner argued that the law offended Article IV of the Constitution:

> Petitioner contends that Rep. Act No. 9225 cheapens Philippine citizenship. He avers that Sections 2 and 3 of Rep. Act No. 9225, together, allow dual allegiance and not dual citizenship. Petitioner maintains that Section 2 allows all Filipinos, either natural-born or naturalized, who become foreign citizens, to retain their Philippine citizenship without losing their foreign citizenship. Section 3 permits dual allegiance because said law allows natural-born citizens of the Philippines to regain their Philippine citizenship by simply taking an oath of allegiance without forfeiting their foreign allegiance. The Constitution, however, is categorical that dual allegiance is inimical to the national interest.[47]

The Supreme Court dismissed the petition saying:

> To begin with, Section 5, Article IV of the Constitution is a declaration of a policy and it is not a self-executing provision. The legislature still has to enact the law on dual allegiance. In Sections 2 and 3 of Rep. Act No. 9225, the framers were not concerned with dual citizenship per se, but with the status of naturalized citizens who maintain their allegiance to their countries of origin even after their naturalization. Congress was given a mandate to draft a law that would set specific parameters of what really constitutes dual allegiance. Until this is done, it would be premature for the judicial department, including this Court, to rule on issues pertaining to dual allegiance.[48]

The Court added that in determining whether the acts of the legislature are consistent with the Constitution, it proceeds "with judicial restraint and acts with

46 See Calilung v. Datumanon, G.R. No. 160869, May 11, 2007.

47 *Id.*

48 *Id.*

caution and forbearance."[49] Following the doctrine of separation of powers, the Court "cannot arrogate the duty of setting the parameters of what constitutes dual allegiance when the Constitution itself has clearly delegated the duty of determining what acts constitute dual allegiance for study and legislation by Congress."[50]

FISCAL AUTONOMY OF THE SUPREME COURT

The 1987 Constitution molded a stronger and more independent judiciary. It took away the power of Congress to repeal, alter, or supplement rules concerning pleading, practice and procedure, and held that the power to promulgate these rules was no longer shared by the Court with Congress or the Executive Branch. Thus, in one ruling, the Court explained that:

> The separation of powers among the three co-equal branches of our government has erected an impregnable wall that keeps the power to promulgate rules of pleading, practice and procedure within the sole province of this Court. The other branches trespass upon this prerogative if they enact laws or issue orders that effectively repeal, alter or modify any of the procedural rules promulgated by this Court. Viewed from this perspective, the claim of a legislative grant of exemption from the payment of legal fees under Section 39 of Republic Act No. 8291 necessarily fails.[51]

Congress cannot exempt entities from the payment of legal fees because it is proscribed by the Court's judicial autonomy.

> Fiscal autonomy recognizes the power and authority of the Court to levy, assess and collect fees, including legal fees. Moreover, legal fees under Rule 141 have two basic components, the Judiciary Development Fund (JDF) and the Special Allowance for the Judiciary Fund (SAJF). The laws, which established the JDF and SAJF expressly declare the identical purpose of

49 *Id.*

50 *Id.*

51 Re: In the Matter of Clarification of Exemption from Payment of all Court and Sheriff s Fees of Cooperatives Duly Registered in Accordance with Republic Act No. 9520, otherwise known as the Philippine Cooperative Code of 2008, A.M. No. 12-2-03-0, March 13, 2012.

> these funds to guarantee the independence of the Judiciary as mandated by the Constitution and public policy. Legal fees therefore do not only constitute a vital source of the Court's financial resources but also comprise an essential element of the Court's fiscal independence. Any exemption from the payment of legal fees granted by Congress to government-owned or controlled corporations and local government units will necessarily reduce the JDF and the SAJF. Undoubtedly, such situation is constitutionally infirm for it impairs the Court's guaranteed fiscal autonomy and erodes its independence.[52]

Thus, the exemption of cooperatives from payment of court and sheriff's fees no longer stands. Cooperatives can no longer invoke Republic Act No. 6938 as amended by Republic Act No. 9520, as basis for exemption from the payment of legal fees.[53]

OTHER RESTRICTIONS ON LEGISLATION

RIDERS

There are other restrictions on the power to enact laws. Congress is prohibited from inserting "riders." A rider is a provision that is alien to the subject or purpose of the bill in which it is incorporated. In *Atitiw v. Zamora*,[54] the Supreme Court explained that there are two sections of the Constitution that prohibit riders. The first is Section 25 (2) of Article VI of the Constitution, which provides:

> (2) No provision or enactment shall be embraced in the general appropriations bill unless it relates specifically to some particular appropriation therein. Any such provision or enactment shall be limited in its operation to the appropriation to which it relates.

The other is Section 26 (1) of Article VI of the Constitution, which provides:

> (1) Every bill passed by the Congress shall embrace only one subject, which shall be expressed in the title thereof.

52 *Id.*

53 *Id.*

54 G.R. No. 143374, September 30, 2005.

The rationale against inserting a rider in both provisions is similar: "The unity of the subject matter of a bill is mandatory in order to prevent hodge-podge or log-rolling legislation, to avoid surprise or fraud upon the legislature, and to fairly apprise the people of the subjects of legislation that are being considered."[55]

ONE SUBJECT-ONE BILL RULE

The one subject-one title rule expresses the principle that the title of a law must not be "so uncertain that the average person reading it would not be informed of the purpose of the enactment or put on inquiry as to its contents, or which is misleading, either in referring to or indicating one subject where another or different one is really embraced in the act, or in omitting any expression or indication of the real subject or scope of the act."[56] Considering the close intimacy between "reproductive health" and "responsible parenthood" which bears to the attainment of the goal of achieving "sustainable human development" as stated under its terms, the Court found no reason to believe that Congress intentionally sought to deceive the public as to the contents of the assailed legislation.[57]

The one subject requirement under the Constitution is satisfied if all the parts of the statute are related and are germane to the subject matter expressed in the title, or as long as they are not inconsistent with or foreign to the general subject and title.[58]

In *Giron v. Comission on Elections*,[59] the petitioner argued that Sections 12 and 14 of the Fair Election Act[60] violated Article VI, Section 26 (1) of the 1987 Constitution. The Constitution provides that "Every bill passed by the Congress shall embrace only one subject which shall be expressed in the title thereof." Giron argued that these provisions are unrelated to the main subject of the Act, which was the lifting of the political ad ban. The questioned provisions read:

> SECTION 12. *Substitution of Candidates.* — In case of valid substitutions after the official ballots have been printed, the votes cast for the substituted

55 *Id.*

56 Lidasan v. COMELEC, G.R. No. L-28089, October 25, 1967.

57 Imbong v. Ochoa, G.R. No. 204819, April 8, 2014.

58 Remman Enterprises, Inc v. Professional Regulatory Board of Real Estate Service, G.R. No. 197676, February 04, 2014.

59 G.R. No. 188179, January 22, 2013.

60 Republic Act No. 9006 (2001).

> candidates shall be considered as stray votes but shall not invalidate the whole ballot. For this purpose, the official ballots shall provide spaces where the voters may write the name of the substitute candidates if they are voting for the latter: *Provided, however,* That if the substitute candidate is of the same family name, this provision shall not apply.
>
> SECTION 14. *Repealing Clause.* — Sections 67 and 85 of the Omnibus Election Code (Batas Pambansa Blg. 881) and Sections 10 and 11 of Republic Act No. 6646 are hereby repealed. As a consequence, the first proviso in the third paragraph of Section 11 of Republic Act No. 8436 is rendered ineffective. All laws, presidential decrees, executive orders, rules and regulations, or any part thereof inconsistent with the provisions of this Act are hereby repealed or modified or amended accordingly.

The Court was not persuaded and it found that Section 12 and Section 14 were germane to the subject expressed in the title of Republic Act No. 9006: An Act to Enhance the Holding of Free, Orderly, Honest, Peaceful and Credible Elections through Fair Election Practices. In the Court's view, the title was worded broadly enough to include the measures embodied in the assailed sections.

The Court has adopted a liberal approach in the application of the one title-one subject rule "so as not to cripple or impede legislation."[61] It should be given a practical rather than technical construction and that the constitutional requirement is satisfied "if the title expresses the general subject and all the provisions of the statute are germane to that general subject."[62] In yet another case, the Court explained that:

> The "one title-one subject" rule does not require the Congress to employ in the title of the enactment language of such precision as to mirror, fully index or catalogue all the contents and the minute details therein. The rule is sufficiently complied with if the title is comprehensive enough as to include the general object which the statute seeks to effect, and where, as here, the persons interested are informed of the nature, scope and consequences of the proposed law and its operation. Moreover, this Court has invariably adopted a liberal rather than technical construction of the rule "so as not to cripple or impede legislation."[63]

61 Tobias v. Abalos, G.R. No. 114783, December 8, 1994.

62 Cordero v. Cabatuando, G.R. No. L-14542, October 31, 1962.

63 Cawaling, Jr. v. Commission on Elections, G.R. No. 146319, October 26, 2001.

A title that declares a statute to be an act to amend a specified code is sufficient and the precise nature of the amendatory act need not be further stated.[64]

ORIGIN OF REVENUE BILLS

Article VI, Section 24 of the Constitution provides:

> SECTION 24. All appropriation, revenue or tariff bills, bills authorizing increase of the public debt, bills of local application, and private bills shall originate exclusively in the House of Representatives, but the Senate may propose or concur with amendments.

This Section was interpreted in the *Tolentino v. Secretary of Finance:*[65]

> …. it is not the law — but the revenue bill — which is required by the Constitution to "originate exclusively" in the House of Representatives. It is important to emphasize this, because a bill originating in the House may undergo such extensive changes in the Senate that the result may be a rewriting of the whole. What is important to note is that, as a result of the Senate action, a distinct bill may be produced. To insist that a revenue statute — and not only the bill which initiated the legislative process culminating in the enactment of the law — must substantially be the same as the House bill would be to deny the Senate's power not only to "*concur*

64 Barangay Association for National Advancement and Transparency v. Commission on Elections, G.R. No. 177508, August 7, 2009. At issue in that case was the sufficiency of the title of Republic Act No. 9369. The title of the law is An Act Amending Republic Act No. 8436, Entitled 273 An Act Authorizing the Commission on Elections to Use an Automated Election System in the May 11, 1998 National or Local Elections and in Subsequent National and Local Electoral Exercises, to Encourage Transparency, Credibility, Fairness and Accuracy of Elections, Amending for the Purpose Batas Pambansa Blg. 881, as Amended, Republic Act No. 7166 and other Related Election Laws, Providing Funds Therefor and for other Purposes . The Supreme Court held that the subject matter of Republic Act No. 9369 covers the amendments to Republic Act No. 8436, Batas Pambansa Blg. 881, Republic Act No. 7166, and other related election laws to achieve its purpose of promoting transparency, credibility, fairness, and accuracy in the elections. The provisions of Republic Act No. 9369 assailed by petitioner deal with amendments to specific provisions of Republic Act No. 7166 and Batas Pambansa Blg. 881. The Court concluded that the assailed provisions are germane to the subject matter of Republic Act No. 9369 which is to amend Republic Act No. 7166 and Batas Pambansa Blg. 881, among others.

65 G.R. No. 115455, October 30, 1995.

> *with amendments*" but also to "*propose amendments*." It would be to violate the coequality of legislative power of the two houses of Congress and in fact make the House superior to the Senate.
>
> The contention that the constitutional design is to limit the Senate's power in respect of revenue bills in order to compensate for the grant to the Senate of the treaty-ratifying power and thereby equalize its powers and those of the House overlooks the fact that the powers being compared are different. We are dealing here with the legislative power, which under the Constitution is vested not in any particular chamber but in the Congress of the Philippines, consisting of "a Senate and a House of Representatives." The exercise of the treaty-ratifying power is not the exercise of legislative power. It is the exercise of a check on the executive power. There is, therefore, no justification for comparing the legislative powers of the House and of the Senate on the basis of the possession of such non-legislative power by the Senate. The possession of a similar power by the U.S. Senate has never been thought of as giving it more legislative powers than the House of Representatives.

NO AMENDMENT RULE

Article VI, Section 26 (2) of the Constitution, states:

> No bill passed by either House shall become a law unless it has passed three readings on separate days, and printed copies thereof in its final form have been distributed to its Members three days before its passage, except when the President certifies to the necessity of its immediate enactment to meet a public calamity or emergency. Upon the last reading of a bill, no amendment thereto shall be allowed, and the vote thereon shall be taken immediately thereafter, and the yeas and nays entered in the Journal.

The validity of Republic Act No. 9337 was the issue in *Abakada Guro Party-List v. Executive Secretary.*[66] Among other issues, the petitioners argued that the practice where a bicameral conference committee is allowed to add or delete provisions in the House bill and the Senate bill after these had passed three readings is in effect a circumvention of the "no amendment rule."

66 G.R. No. 168056, September 1, 2005.

The Supreme Court disagreed and said that the "no amendment rule" refers only to the procedure to be followed by each house of Congress with regard to bills initiated in each of the respective houses, before the bill is transmitted to the other house for its concurrence or amendment. The provision does not proscribe any further changes to a bill after one house had voted on it. That interpretation would lead to absurdity because it would mean that the other house of Congress would be deprived of its constitutional power to amend or introduce changes to a bill. Article VI, Section 26 (2) of the Constitution cannot be taken to mean that the introduction by the Bicameral Conference Committee of amendments and modifications to disagreeing provisions in bills that have been acted upon by both houses of Congress is prohibited.

UNIFORM, EQUITABLE AND PROGRESSIVE SYSTEM OF TAXATION

Article VI, Section 28 of the Constitution provides: "The rule of taxation shall be uniform and equitable. The Congress shall evolve a progressive system of taxation."

Equality and uniformity of taxation mean that all taxable articles or property of the same class must be taxed at the same rate. To satisfy this requirement, it is enough that the statute or ordinance applies equally to all persons, forms and corporations placed in a similar situation.[67]

The power to tax is an incident of sovereignty and is unlimited in its range, acknowledging in its very nature no limits, so that security against its abuse is to be found only in the responsibility of the legislature, which imposes the tax on the constituency that has to pay it. Nevertheless, limitations may be imposed by the people through their Constitutions. Our Constitution, for instance, provides that the rule of taxation shall be uniform and equitable and Congress shall evolve a progressive system of taxation.[68]

In *British American Tobacco v. Camacho*, the Court explained that:

> [R]egressivity is not a negative standard for courts to enforce. What Congress is required by the Constitution to do is to "evolve a progressive system of taxation." This is a directive to Congress, just like the directive to it to give priority to the enactment of laws for the enhancement of human

67 Tolentino v. Secretary of Finance, G.R. No. 115455, October 30, 1995.

68 Const., Article VI, § 28 (1).

> dignity and the reduction of social, economic and political inequalities [Art. XIII, Section 1] or for the promotion of the right to "quality education" [Art. XIV, Section 1]. These provisions are put in the Constitution as moral incentives to legislation, not as judicially enforceable rights.[69]

APPELLATE JURISDICTION OF THE SUPREME COURT

According to Article VI, Section 30 of the 1987 Constitution:

> "No law shall be passed increasing the appellate jurisdiction of the Supreme Court as provided in this Constitution without its advice and consent."

In *Fabian v. Desierto*,[70] the Supreme Court found that Section 27 of Republic Act No. 6770 violated the constitutional proscription against a law that increased the appellate jurisdiction of the Court. In *First Lepanto Ceramics, Inc. v. Court of Appeals*,[71] the Court clarified that this constitutional provision is intended to give the Supreme Court a measure of control over cases placed under its appellate jurisdiction. However, it seeks to avoid the indiscriminate enactment of legislation enlarging its appellate jurisdiction that can unnecessarily burden the Court and undermine its essential function of expounding the law in its most profound national aspects.[72]

LEGISLATIVE VETOES

Once a law is enacted and approved, the legislative function is deemed accomplished and complete. The legislative function may go back to Congress only if that body deems it proper to review, amend and revise the law, but certainly not to approve, review, revise and amend the implementing rules and regulations.[73] Any provision of law that empowers Congress or its members to play any role in the implementation of the law violates the principle of separation of powers and is unconstitutional. A provision that requires Congress or its members to approve the

69 G.R. No. 163583, April 15, 2009, *citing* Tolentino v. Secretary of Finance, G.R. No. 115455, August 25, 1994.

70 G.R. No. 129742, September 16, 1998.

71 G.R. No. 110571, October 7, 1994.

72 *Id.*

73 Macalintal v. Commission on Elections, G.R. No. 157013, July 10, 2003.

implementing rules of a law after it has already taken effect is unconstitutional. This is also true for any provision that allows Congress or its members to overturn any directive or ruling made by the members of the executive branch charged with the implementation of the law.[74]

Any post-enactment congressional measure should be limited to the following:

1. Scrutiny based primarily on Congress' power of appropriation and the budget hearings conducted in connection with it, its power to ask heads of departments to appear before and be heard by either of its Houses on any matter pertaining to their departments and its power of confirmation; and

2. Investigation and monitoring of the implementation of laws pursuant to the power of Congress to conduct inquiries in aid of legislation.[75]

Any action beyond these functions, such as the enactment of legislative vetoes, undermines the separation of powers guaranteed by the Constitution. A legislative veto is a statutory provision requiring the President or an administrative agency to present proposed implementing rules and regulations of a law to Congress, which by itself or through a committee formed by it retains a "right" or "power" to approve or disapprove such regulations before they take effect. A legislative veto in the form of a congressional oversight committee is designed to attach a leash (other than through scrutiny and investigation) to an agency to which Congress has by law initially delegated powers. It gives Congress a direct role in enforcing, applying or implementing its own laws. Congress may not pass upon the legality of administrative regulations by subjecting them to its approval because this would be an arrogation of judicial power.[76]

It must be clarified that since the restriction pertains only to "any role in the implementation or enforcement of the law," Congress may exercise its oversight function, which is a mechanism of checks and balances that the Constitution itself allows. But Congress' role must be confined to mere oversight. Any post-enactment measure allowing legislative participation beyond oversight has no constitutional basis and hence, is tantamount to impermissible interference and/or assumption of executive functions.[77]

74 Abakada Guro Party-List v. Purisima, G.R. No. 166715, August 14, 2008.

75 *Id.*

76 *Id.*

77 Belgica v. Executive Secretary, G.R. No. 208566, November 19, 2013.

The Supreme Court has held that post-enactment measures after the passing of the General Appropriations Act, which would allow legislators to participate in project identification, fund release, and fund realignment, are not related to functions of congressional oversight. The provisions allow legislators to intervene and/or assume duties that properly belong to the sphere of budget execution.[78] The Court declared the provisions in the 2013 General Appropriations Act and all other provisions of law that allowed legislators to wield any form of post-enactment authority in the implementation or enforcement of the budget, unrelated to congressional oversight, as unconstitutional violations of the principle of separation of powers.[79]

DELEGATION OF LEGISLATIVE POWERS

A corollary to the doctrine of separation of powers is the principle of non-delegation of powers, which provides that "what has been delegated cannot be delegated." This doctrine is based on the principle that delegated power constitutes not only a right but a duty to be performed by the delegate through the instrumentality of its own judgment and not through the intervening mind of another.[80]

Congress cannot delegate powers that are strictly, or inherently and exclusively, legislative. This includes the authority to make a complete law and to determine the expediency of its enactment. Courts can strike down a law as an unconstitutional delegation of legislative power if the power involved is purely legislative in nature or one "appertaining exclusively to the legislative department."[81] It is the nature of the power, and not the manner of its exercise, that determines the validity of its delegation.

The general rule barring delegation of legislative powers is subject to the following exceptions:

1. Delegation of tariff powers to the President under Section 28 (2) of Article VI of the Constitution;
2. Delegation of emergency powers to the President under Section 23 (2) of Article VI of the Constitution;
3. Delegation to the people at large;

78 *Id.*

79 *Id.*

80 Abakada Guro Party List Officers v. Ermita, G.R. No. 168056, September 1, 2005.

81 *Id.*

4. Delegation to local governments; and

5. Delegation to administrative bodies.

A delegation of legislative power is valid if the law: (a) is complete in itself by setting forth the policy to be executed, carried out, or implemented by the delegate; and (b) fixes a standard or "the limits of which are sufficiently determinate and determinable" to which the delegate must conform in the performance of his functions. A sufficient standard is one that defines legislative policy, marks its limits, maps out its boundaries and specifies the public agency to apply it. It indicates the circumstances under which the legislative command is to be accomplished. The tests are intended to prevent a total transference of legislative authority to the delegate, who is not allowed to exercise a power essentially legislative.[82]

The law gives administrative bodies the power to promulgate implementing rules and regulations because they have expertise in specific matters within the purview of their respective jurisdictions.[83] All that is required for the valid exercise of subordinate legislation is that the regulation must be germane to the objects and purposes of the law; and that the regulation be not in contradiction to, but in conformity with, the standards prescribed by the law.[84]

The grant of quasi-legislative powers in administrative bodies is not unconstitutional. The growing complexity of modern society has made it necessary to create more and more administrative bodies to help in the regulation of its activities. Because these bodies specialize in the particular field assigned to them, they can deal with the problems with greater expertise and dispatch than can be expected from the legislature or the courts.[85]

The delegation is typically made to a single agency. The Anti-Bullying Act of 2013, for example, delegates the power to the Department of Education.[86] The Department of Education is also tasked with providing the rules for the Rural Farm Schools Act.[87] The Department of Trade and Industry promulgated the rules for the Toy and Game Safety Labeling Act of 2013.[88] Delegation can also be made to more

82 *Id. See also* Vivas v. The Monetary Board of the Bangko Sentral ng Pilipinas, G.R. No. 191414, August 7, 2013.

83 Francisco v. Toll Regulatory Board, G.R. No. 166910, October 19, 2010.

84 Equi-Asia Placement Inc. v. Department of Foreign Affairs, G.R. No. 152214, September 19, 2006.

85 Philippine Association of Service Exporters, Inc. v. Torres, G.R. No. 101279, August 6, 1992.

86 Republic Act No. 10627 (2013), section 7.

87 Republic Act No. 10618 (2013).

88 Republic Act No. 10620 (2013).

than one agency. The Department of Agriculture and the Department of Health jointly issued the rules for the Food Safety Act of 2013,[89] and the Commission on Higher Education, the Technical Education and Skills Development Authority (TESDA), and the Department of Education wrote the rules for the "Ladderized Education Act of 2014."[90]

In at least one law, the rule-making power was delegated to two separate entities. The Comprehensive Dangerous Drugs Act of 2002[91] was amended in 2014[92] to include this provision:

> SEC. 2. *Implementing Rules and Regulations (IRR).* – To implement effectively the provisions of Section 21, the Philippine Drug Enforcement Agency (PDEA) shall issue the necessary guidelines on the IRR for the purpose in consultation with the Department of Justice (DOJ) and relevant sectors to curb increasing drug cases.

The original law vested the rule-making power to the Dangerous Drugs Board. The Dangerous Drugs Board is a seventeen-person Board which includes the Director General of the Philippine Drug Enforcement Agency:

> Section 94. *Implementing Rules and Regulations.* – The present Board in consultation with the DOH, DILG, DOJ, DepEd, DSWD, DOLE, PNP, NBI, PAGCOR and the PCSO and all other concerned government agencies shall promulgate within sixty (60) days the Implementing Rules and Regulations that shall be necessary to implement the provisions of this Act.[93]

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89 Republic Act No. 10611 (2013).

90 Republic Act No. 10647 (2014). The Youth Entrepreneurship Act (Republic Act No. 10679), enacted in 2015, provides under section 11 that the Secretary of the Department of Education, the Chairperson of the CHED, the Director General of the TESDA, and the Secretary of the DTI shall promulgate rules and regulations necessary for the proper implementation of the Act.

91 Republic Act No. 9165 (2002).

92 Republic Act No. 10649 (2014).

93 Republic Act No. 9165 (2002), section 77 provides:

> Section 77. *The Dangerous Drugs Board.* The Board shall be the policy-making and strategy-formulating body in the planning and formulation of policies and programs

Evidently, implementing rules may be delegated to two separate agencies, to implement separate sections of the same law.

CLASSES OF REGULATIONS

An administrative regulation may be a legislative rule, an interpretative rule, or a contingent rule. The Supreme Court explained the differences in this way:

1. Legislative rules are in the nature of subordinate legislation and designed to implement a primary legislation by providing the details for the law. They usually implement existing law, imposing general, extra-statutory obligations pursuant to authority properly delegated by Congress and effect a change in existing law or policy which affects individual rights and obligations.

2. Interpretative rules are intended to interpret, clarify or explain existing statutory regulations under which the administrative body operates. Their purpose is merely to construe the statute being administered and purport to do no more than interpret the statute. Simply, they try to say what the statute means and refer to no single person or party in particular but concern all those belonging to the same class which may be covered by the said rules.

3. Contingent rules are those issued by an administrative authority based on the existence of certain facts or things upon which the enforcement of the law depends.[94]

PUBLICATIONS OF REGULATIONS

In general, an administrative regulation needs to comply with the requirements on prior notice, hearing and publication in order to be valid and binding, except when the same is merely an interpretative rule. This is because "[w]hen an administrative rule is merely interpretative in nature, its applicability needs nothing further than its bare issuance, for it gives no real consequence more than what the law itself has already prescribed. But when the administrative rule substantially increases the

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on drug prevention and control. It shall develop and adopt a comprehensive, integrated, unified and balanced national drug abuse prevention and control strategy. It shall be under the Office of the President.

94 Republic of the Philippines v. Drugmaker s Laboratories, Inc., G.R. No. 190837, March 5, 2014.

burden of those governed, the agency should accord at least those directly affected a chance to be heard, and thereafter to be duly informed, before that new issuance is given the force and effect of law."[95]

Policy and Procedural Guidelines No. 171-03 (PPG No. 171-03) dated March 24, 2003 issued by the GSIS President and General Manager and subsequently approved by the GSIS Board of Trustees in Resolution No. 90, dated April 2, 2003, are "legislative issuances" necessitating publication to become effective. Since it is undisputed that they were not published they must be struck down for being unconstitutional.[96]

RULES AND REGULATIONS ARE LAWS

Rules and regulations issued by administrative agencies are laws. In *Balmaceda v. Corominas & Company, Inc.*,[97] the Supreme Court explained that:

> A "rule (or a 'regulation' — a term used interchangeably with 'rule') is the product of rule-making, and rule-making is the part of the administrative process that resembles a legislature's enactment of a statute. In this jurisdiction, administrative authorities are vested with the power to promulgate rules and regulations to implement a given statute and to effectuate its policies and when promulgated, such administrative rules or regulations become laws.

In *Victorias Milling Co., Inc. v. The Office of the Presidential Assistant for Legal Affairs,*[98] the Court said that administrative rules and regulations issued in accordance with law have the force and effect of law and are binding on all persons dealing with that body. Rules and regulations partake of the nature of a statute and are just as binding as if they have been written in the statute itself. They enjoy the presumption

95 *Id.*

96 Government Service Insurance System v. Daymiel, G.R. No. 218097, March 11, 2019.

97 G.R. No. L-21971, September 5, 1975, citing Macailing v. Andrada, G.R. No. L-21607, January 30, 1970.

98 G.R. No. 73705, August 27, 1987.

of constitutionality and legality until they are set aside with finality in an appropriate case by a competent court.[99]

The rules, guidelines and policies regarding the Order of National Artists, jointly issued by the Cultural Center of the Philippines Board of Trustees and the National Commission for Culture and the Arts, for example, have the force and effect of law. Until set aside, they are binding upon executive and administrative agencies, including the President as chief executor of laws.[100]

This is not to say that implementing rules are of the same caliber as an enactment of Congress. While rules and regulation issued by the administrative bodies have the force and effect of law and are entitled to great respect, courts interpret administrative regulations in harmony with the law that authorized them and avoid as much as possible any construction that would annul them as an invalid exercise of legislative power.[101] It is a cardinal rule in statutory construction that statutory provisions control the rules and regulations that may be issued pursuant thereto. Such rules and regulations must be consistent with and must not defeat the purpose of the statute.[102] There is a hierarchy of laws, and regulations cannot be inconsistent with either the Constitution or the enactments of the legislature. As the Court has explained:

> The rule-making power of a public administrative body is a delegated legislative power, which it may not use either to abridge the authority given it by Congress or the Constitution or to enlarge its power beyond the scope intended. Constitutional and statutory provisions control what rules and regulations may be promulgated by such a body, as well as with respect to what fields are subject to regulation by it. It may not make rules and regulations which are inconsistent with the provisions of the Constitution or a statute, particularly the statute it is administering or which created it, or which are in derogation of, or defeat, the purpose of a statute.[103]

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99 Abakada Guro Party-List v. Purisima, G.R. No. 166715, August 14, 2008.

100 *Id. See also* Cawad v. Abad, G.R. No. 207145, July 28, 2015.

101 Land Bank of the Philippines v. Obias, G.R. No. 184406, March 14, 2012.

102 Philippine International Trading Corporation v. Commission on Audit, G.R. No. 152688, November 19, 2003.

103 United BF Homeowner s Association and Home Insurance and Guaranty Corporation v. BF Homes, Inc., G.R. No. 124873, July 14, 1999.

Administrative regulations are intended to supplement the law and cannot prevail over the law itself.

> It is axiomatic that the delegate, in exercising the power to promulgate implementing regulations, cannot contradict the law from which the regulations derive their very existence. The courts, for their part, interpret the administrative regulations in harmony with the law that authorized them in the first place and avoid as much as possible any construction that would annul them as an invalid exercise of legislative power.[104]

Rules and regulations cannot supersede statutes, not only in what they command but also in what they omit. In the hierarchy of legal norms, rules and standards definitely occupy an inferior status.[105] Administrative regulations must be in harmony with the provisions of the law. In case of discrepancy between the basic law and an implementing rule or regulation, the former prevails.[106] In one case, the Supreme Court explained that:

> The rules and regulations that administrative agencies promulgate, which are the product of a delegated legislative power to create new and additional legal provisions that have the effect of law, should be within the scope of the statutory authority granted by the legislature to the administrative agency. It is required that the regulation be germane to the objects and purposes of the law, and be not in contradiction to, but in conformity with, the standards prescribed by law. They must conform to and be consistent with the provisions of the enabling statute in order for such rule or regulation to be valid. Constitutional and statutory provisions control with respect to what rules and regulations may be promulgated by an administrative body, as well as with respect to what fields are subject to regulation by it. It may not make rules and regulations which are inconsistent with the provisions of the Constitution or a statute, particularly the statute it is administering or which created it, or which are in derogation of, or defeat, the purpose of

104 Granger Associates v. Microwave Systems, Inc. G.R. No. 79987, September 14, 1990.

105 Villegas v. Subido, G.R. No. L-26534, November 28, 1969.

106 Philippine Petroleum Corporation v. Municipality of Pililia, G.R. No. 90776, June 3, 1991, citing Shell Philippines, Inc. v. Central Bank of the Philippines, G.R. No. L-51353, June 27, 1988.

> a statute. In case of conflict between a statute and an administrative order, the former must prevail.[107]

In implementing tax amnesty laws, the Commissioner of Internal Revenue cannot insert an exception where there is none under the law. The rule-making power of administrative agencies cannot be extended to amend or expand statutory requirements or to embrace matters not originally encompassed by the law. Administrative regulations should always be in accord with the provisions of the statute they seek to implement, and any resulting inconsistency shall be resolved in favor of the basic law.[108]

If an implementing rule or regulation has a provision that was not expressly stated or contained in the statute, it does not necessarily contradict the statute. All that is required is that the regulation should be germane to the objects and purposes of the law; that the regulation be not in contradiction to but in conformity with the standards prescribed by the law.[109]

SUNSET CLAUSE OR PROVISION

A sunset clause is a text in a law that sets a termination date after which the law automatically becomes ineffective. The government would then have the option to reenact the law after each sunset if a program worked as desired.[110] Sunset laws contain provisions for the periodic review of regulatory programs, with possible

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107 Smart Communications, Inc. v. National Telecommunications Commission, G.R. No. 151908, August 12, 2003. In Lokin v. Commission on Elections (G.R. No. 179431-32, June 22, 2010) the Court held that:

> The rules and regulations adopted and promulgated must not, however, subvert or be contrary to existing statutes. The function of promulgating IRRs may be legitimately exercised only for the purpose of carrying out the provisions of a law. The power of administrative agencies is confined to implementing the law or putting it into effect. Corollary to this is that administrative regulation cannot extend the law and amend a legislative enactment. It is axiomatic that the clear letter of the law is controlling and cannot be amended by a mere administrative rule issued for its implementation. Indeed, administrative or executive acts shall be valid only when they are not contrary to the laws or the Constitution.

108 Commissioner of Internal Revenue v. Transfield Philippines, Inc., G.R. No. 211449, January 16, 2019.

109 Holy Spirit Homeowners Association, Inc. v. Defensor, G.R. No. 163980, August 3, 2006.

110 Justin L. Bernstein, *Controlling Medicare with Lessons from Endowment Effect Experiments*, 49 Cal. W. L. Rev. 169, 180 (2013).

termination if they are not renewed by Congress.[111] They are clauses "that cause legislation to expire by its own terms."[112] John E. Finn provides an elaborate explanation of sunset clauses:

> Strictly speaking, a sunset clause refers to a statutory provision that at a certain time "ceases to have effect unless it is reauthorized." Often, however, the term is used to describe a wide variety of statutory mechanisms that impose constraints of time, including, for example, statutory provisions that automatically trigger a review of the provision at a given time, or that endure unless they are repealed at a set time. In addition, there are different kinds of sunset clauses. We might, for example, distinguish between statutory sunsets and constitutional sunsets: the former typically require a legislative vote on whether to extend or expire the provisions in question, whereas the latter may "dictate the change of status of rules from entrenched to disentrenched." We might also distinguish between "reflexive" sunset clauses, where the clause is included in the rule to expire, and "irreflexive" sunset clauses, where the clause is outside the provision it governs.[113]

Sunsets, Finn continues, improve or advance democratic deliberation in two ways:

1. They improve legislative oversight because they force legislators to reassess public policy on a periodic basis and with superior information. This periodic review provides incentives for collecting data and information about the underlying policy problem and the efficiency of governmental efforts to deal with it. They increase both the opportunities for legislative decision-making and the quality of decisional resources.[114]
2. They improve public policy by focusing public attention on important and contentious policy choices, or by calling for a type of "public conversation."[115]

111 Roberta Romano, *The Sarbanes-Oxley Act and the Making of Quack Corporate Governance,* 114 Yale L. J. 1521, 1600 (2005).

112 Rebecca M. Kysar, *Lasting Legislation,* 159 U. Pa. L. Rev. 1007, 1009 n.4 (2011).

113 John E. Finn, *Sunset Clauses and Democratic Deliberation: Assessing the Significance of Sunset Provisions in Antiterrorism Legislation,* 48 Colum. J. Transnat'l L. 442, 445 (2010).

114 *Id.* at 449-450.

115 *Id.*

Other uses of sunset provisions have been identified: a sunset clause can be used to quiet protests against laws that are perceived to be too harsh. The U.S. Congress used sunset clauses when it enacted the US Patriot Act a few weeks after terrorist attacks on the World Trade Center in New York City. Although the Act was approved with almost no dissent, the law was still set to expire in 2005 to address criticisms that the Act excessively weakened the protection of civil liberties.[116] In other words, these clauses are used to ensure that a law is not frozen into place.[117] As such, it frees future legislatures from being constrained even by the existence of a law. The new legislature, in essence, gets to decide anew how to proceed on a particular issue.[118]

In the Philippines, Congress uses a "sunset clause" as a way to end the operation of a law or a part thereof or to mandate a review of a law. This precludes the need to amend or repeal a law by enacting another statute because the law itself contains the provisions that can end the operation of a law. The Municipal Telephone Act of 1989[119] contains a simple example. Section 12 of that law provides:

> SECTION 12. *Sunset Clause.* — The Projects Office shall not have a life exceeding ten (10) years from the date of the approval of this Act and may only be extended by act of Congress. At the option of the provincial government, the systems, operating in each province shall be turned over to it, except those operating under Section 5 thereof.

Congress enacted the Human Rights Victims Reparation and Recognition Act of 2013[120] which provides a similar provision:

> Section 29. *Work Period; Sunset Clause.* —The [Human Rights Victims' Claims Board] shall complete its work within two (2) years from the effectivity of the IRR promulgated by it. After such period, it shall become *functus officio*.

116 Emanuela Carbonara, et al., *Unjust Laws and Illegal Norms,* 32 Int'l Rev. L. & Econ. 285, 294-295 (2012).

117 Neal Katyal, *Sunsetting Judicial Opinions,* 79 Notre Dame L. Rev. 1237 (2004).

118 John C. Roberts & Erwin Chemerinsky, *Entrenchment of Ordinary Legislation: A Response to Professors Posner and Vermeule,* 91 Cal. L. Rev. 1773, 1784-1785 (2003).

119 Republic Act No. 6849 (1989).

120 Republic Act No. 10368 (2013).

The provision provides a limited period for the Board to entertain claims for human rights violations. Claims can be made until the board becomes *functus officio* and there is no person or body that can perform the tasks of the board.[121]

Congress can nullify the sunset clause by extending the life of the law. To prevent the sunset clause from operating, this provision was amended to read as follows:

> SEC. 29. *Work Period; Sunset Clause.* – The Board shall complete its work within four (4) years from May 12, 2014. After such period, it shall become *functus officio*.[122]

In the case of the National Diabetes Act of 1996,[123] Congress spelled out the effects of the operation of the "sunset clause" this way:

> SECTION 12. *Sunset Provision.* — The Oversight Committee for the Prevention and Control of Diabetes provided in Section 10 hereof shall cease to exist five (5) years after its organization. Its functions, duties and responsibilities together with all of its records, assets and obligations shall devolve to the DOH.

"Sunset clauses" are also used to mandate the periodic evaluation of laws. Section 19 of Republic Act No. 10349[124] defines sunset review as "a systematic evaluation of the accomplishments and impact of this Act, as well as the performance and organizational structure of its implementing agencies, for purposes of determining remedial legislation."

A broad explanation of the sunset clause is found in the Comprehensive and Integrated Shelter Financing Act of 1994[125] which provides:

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121 *Functus officio* means that having fulfilled the function, discharged the office, or accomplished the purpose, and therefore of no further force or authority. *Functus officio*, Black's Law Dictionary (Revised 4th ed. 1968).

122 Republic Act No. 10766 (2016).

123 Republic Act No. 8191 (1996).

124 Republic Act No. 10349, An Act Amending Republic Act No. 7898, Establishing the Revised AFP Modernization Program and for Other Purposes (2012).

125 Republic Act No. 8041 (1995).

> SECTION 14. *Sunset Review.* — As the need arises, the Congress shall conduct a sunset review of the accomplishments and impact of the National Shelter Program as well as the performance of its implementing agencies for purposes of determining whether or not the programs and the corresponding appropriations mentioned in this Act deserve to be continued based on a cost-benefit analysis thereof. If the result of the review is unfavorable to any program or its appropriate implementing program, then the Committee of Congress that has legislative jurisdiction over such entity shall not report favorably any bill or resolution, which authorizes the enactment of a new budget authority on such entity.

For purposes of this Act, the term "sunset review" shall mean, with respect to any government program, a systematic evaluation by the committees of the Senate and House of Representatives which have legislative jurisdiction over such programs, with the assistance of appropriate agencies and congressional support agencies, to determine the merits of the program, justify its continuation rather than termination or its continuation at a level less than, equal to, or greater than the existing level. Such review shall be undertaken in the scope and the detail the committee having jurisdiction deems appropriate and shall include, but not limited to, an assessment of the degree to which the original objective of the program has been achieved, of the problem it was intended to address, and the costs and benefits of the program.

Another example is Republic Act No. 7742 (amending the Home Development Mutual Fund Law of 1980), which provides as follows:

> SEC. 6. *Sunset Provision.* – Every three (3) years after the effectivity of this Act, the Congress shall conduct a "sunset review" of the Fund which shall entail a systematic evaluation of the Fund to determine whether or not the Fund's performance, impact or accomplishments with respect to its objectives or goals, the Fund merits continued existence. Such review shall be undertaken by the Committees of the Senate and the House of Representatives, which have legislative jurisdiction over the Fund.

A sunset clause is, however, strictly speaking unnecessary if the objective is merely to mandate review. The power to review laws is inherent in Congress because it has "the authority, under the Constitution, to make laws, and to alter and repeal them."[126]

126 See Review Center Association of the Philippines v. Executive Secretary, G.R. No. 180046, April 2, 2009.

CHAPTER 12

Statutory Construction

Statutes, rules and regulations may sometimes be vague. In such instances, courts are called upon to construe these laws.

CONSTRUCTION DEFINED

Statutory construction is the art or process of "discovering and expounding the meaning and intention of the authors of the law with respect to its application to a given case, where that intention is rendered doubtful, amongst others, by reason of the fact that the given case is not explicitly provided for in the law."[1] It is a basic rule of statutory construction that a statute clear and unambiguous on its face need not be interpreted. The rule is that only statutes with an ambiguous or doubtful meaning may be the subject of statutory construction.[2] If the intent of the law can be discerned from a reading of the law, the rules of construction give way to such intent.[3]

If a statute is free from ambiguity, it must be given its literal meaning and applied without attempted interpretation. Only statutes with an ambiguous or doubtful meaning may be the subject of statutory construction.[4] The plain meaning rule or *verba legis*, derived from the maxim *index animo sermo est* (speech is the index of intention), rests on the presumption that the words employed by the legislature in a statute correctly express its intent by the use of such words as are found in the

1 Caltex v. Palomar, G.R. No. L-19650, September 29, 1966.
2 Daoang v. Municipal Judge, G.R. No. L-34568, March 28, 1988.
3 Montelibano v. Ferrer, G.R. No. L-7899, June 23, 1955.
4 Miramar Fish Co., Inc. v. Commissioner of Internal Revenue, G.R. No. 185432, June 4, 2014.

statute.[5] This rule is in deference to the plenary power of Congress to make, alter and repeal laws as this power is an embodiment of the People's sovereign will. Accordingly, when the words of a statute are clear and unambiguous, courts cannot deviate from the text of the law and resort to interpretation lest they end up betraying their solemn duty to uphold the law and worse, violating the constitutional principle of separation of powers.[6]

Every presumption should be made in favor of constitutionality and courts, in considering the validity of the statute, should give it such reasonable construction so as to bring it within the fundamental law.[7] When it is possible to interpret a statute in a manner that is free from constitutional infirmity or in a way that taints it with such defect, the former is to be preferred.[8] The rule is expressed by the maxim "*interpretatio fienda est ut res magis valeat quam pereat*," which means that a law should be interpreted with a view to upholding rather than destroying it.[9] The established rule is that "constitutional provisions are to be construed as mandatory, unless by express provision or by necessary implication, a different intention is manifest." The difference between a mandatory and a directory provision is often determined on grounds of expediency, the reason being that less injury results to the general public by disregarding, rather than by enforcing the letter of the law.[10]

DEFINITION, CONCEPT, AND PURPOSE

Black's Interpretation of Law[11] defines construction as:

> [T]he art or process of discovering and expounding the meaning and intention of the authors of the law with respect to its application to a given case, where that intention is rendered doubtful, amongst others, by reason of the fact that the given case is not explicitly provided for in the law.

5 Social Security System v. Favila, G.R. No. 170195, March 28, 2011.

6 H. Villarica Pawnshop, Inc. v. Social Security Commission, G.R. No. 228087, January 24, 2018.

7 Carpio v. Executive Secretary, G.R. No. 96409, February 14, 1992.

8 De la Cruz v. Paras, G.R. Nos. L-42571-72, July 25, 1983.

9 People v. Derilo, G.R. No. 117818, April 18, 1997.

10 Marcelino v. Cruz, G.R. No. L-42428, March 18, 1983.

11 Henry Campbell Black, Handbook on the Construction and Interpretation of the Laws 1 (1911), *cited* in Caltex v. Palomar, G.R. No. L-19650, September 29, 1966.

In *Caltex v. Palomar,*[12] the Court construed the anti-lottery provisions of the Postal Law when in 1960, Caltex Philippines organized a promotional scheme for its oil products. Seeing the extensive use of the mails for the contest, representations were made by Caltex with the postal authorities for the contest to be cleared in advance for mailing. The Postmaster General declined to grant the requested clearance, holding that the contest violated the anti-lottery provisions of the Postal Law under the Revised Administrative Code as it involved consideration, or that, if it did not, it was nevertheless a gift enterprise that was equally banned by the Postal Law. Caltex then filed a petition for declaratory relief against the Postmaster General. The latter argued that there was no question of construction because it simply applied the clear provisions of the law to a given set of facts as embodied in the rules of the contest.

The Court ruled that the scheme proposed by Caltex was within the coverage of the prohibitive provisions of the Postal Law and that the issue inescapably required an inquiry into the intended meaning of the words used and was thus a question of construction or interpretation. The Court concluded that, although no breach of the Postal Law had as yet been committed, the disagreement over its construction was no longer nebulous or contingent and was already susceptible of immediate resolution.

In *General v. Barrameda*,[13] the Development Bank of the Philippines foreclosed on the land owned by Leoncio Barrameda due to the latter's failure to pay his loan. Rodolfo General and Carmen Gontang then bought the land in an auction sale. Barrameda sought to redeem the land, claiming that his offer to pay and his deposit of the payment was well within the one-year period of redemption. The trial court ruled for Barrameda but its decision was reversed by the Court of Appeals.

In resolving the controversy, the Supreme Court ruled on the proper interpretation of Section 31 of Commonwealth Act No. 459. The section provided that redemption could be made *within one year from the date of the auction sale.* The issue was whether the start of the one-year period was from the date of the auction sale or from that of the registration of the sale with the registry of deeds. The Court determined that the purpose and objective of the law was to give mortgagors a period of redemption of their foreclosed properties, and as such, the period should start to run

12 G.R. No. L-19650, September 29, 1966.

13 G.R. No. 29906, January 30, 1976.

from the registration of the property. It cited *Salazar v. Meneses*[14] where the Court declared that registration was the operative act to transfer title and a notice to the whole world that a transaction involving the same had taken place.

The propriety of construction arises if the words of the law seem to be of doubtful import, and thus it may become necessary to look beyond them in order to ascertain what was in the legislative mind at the time the law was enacted. *Molina v. Rafferty*[15] identified the following means in determining legislative intent: the circumstances under which the action was taken; what evil, if any, was meant to be redressed; and contemporaneous construction which is, although not conclusive, entitled to great respect.

In that case, Molina contended that the fish produced by him were to be regarded as an "agricultural product" within the meaning of that term as used in Act No. 2339, the tax law in force when the disputed tax was levied, and that he was therefore exempt from the percentage tax on merchants' sales being levied by the Commissioner of Internal Revenue. In deciding for the plaintiff, the Supreme Court cited Judge Cooley's work on taxation and ruled that the purpose of the legislature was to levy the merchant's tax upon all persons engaged in making a profit upon goods produced by others, but to exempt from the tax all persons directly producing goods from the land, such as the plaintiff.

POWER TO CONSTRUE LAWS AND ITS LIMITATIONS

In the United States, it has been suggested that judicial review, as currently practiced by the judiciary, is "of recent vintage" and inconsistent with the Constitution's original design. Larry Kramer writes that "American constitutionalism assigned ordinary citizens a central and pivotal role in implementing their Constitution." He argues that the final interpretative authority rested with the people themselves and both their elected representatives and courts were subordinate to their judgments.[16]

On the other hand, Mark Tushnet argues that constitutional interpretation is a function shared by all branches of government and not the exclusive domain of courts.[17]

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14 G.R. No. 15378, July 31, 1963.

15 G.R. No. 11988, April 4, 1918.

16 *See* Larry D. Kramer, Popular Constitutionalism and Judicial Review (2004).

17 *See* Mark V. Tushnet, Taking the Constitution Away from the Courts 129-153 (1999).

In the Philippines, there is no debate as to the authority that interprets the Constitution. The act of defining and interpreting the law is a judicial function and the legislative branch may not limit or restrict the power granted to the courts by the Constitution. The legislature cannot, upon passing a law that violates a constitutional provision, validate it, by a declaration that it shall be so construed as not to violate the constitutional inhibition.[18] Thus, when Congress promulgated Republic Act No. 590, authorizing the collection of income tax on the salaries of judicial officers, by expressly declaring in Section 13 thereof that the payment of income tax is not construed to be a diminution of compensation fixed by the Constitution or by law, the Court held Republic Act No. 590 unconstitutional for violating the fundamental principle of separation of powers.[19] It held that it was an act of interpreting the Constitution or a part thereof by the Legislature, and was thus an invasion of the well-defined and established province and jurisdiction of the Judiciary.

The judicial function of interpreting the Constitution arises from the principle of separation of powers. The Supreme Court has advanced the separation of powers as a fundamental principle in our system of government, which is obtained, it said, not through express provision but by actual division in the Constitution. As such, each department of the government has exclusive cognizance of matters within its jurisdiction and is supreme within its own sphere. The Court went further and recognized that the Constitution itself has provided for the instrumentality of the Judiciary as determiner of the nature, scope, and extent of powers provided for in the Constitution. Nonetheless, the Court made it clear that in exercising the power of judicial review, it does not assert any superiority over the other departments; but only asserts the solemn and sacred obligation assigned to it by the Constitution to determine conflicting claims of authority under the Constitution and to establish for the parties in an actual controversy the rights which that instrument secures and guarantees to them.[20]

In *Angara v. Electoral Commission*,[21] the then National Assembly had, by Resolution No. 8 of December 3, 1935, confirmed the election of petitioner Angara to the said body. On the other hand, the Electoral Commission had, by resolution adopted on December 9, 1935, fixed the date as the last day for filing of protests against the election, returns and qualifications of members of the National Assembly,

18 Endencia v. David, G.R. No. L-6355-56, August 31, 1953.

19 *Id.*

20 Angara v. Electoral Commission, G.R. No. L-45081, July 15, 1936.

21 G.R. No. L-45081, July 15, 1936.

notwithstanding the previous confirmation made by the National Assembly. Respondent Ynsua filed an election protest against Angara before the Electoral Commission on December 8, 1935. Angara lodged a Motion to Dismiss the Protest before the Commission, contending that the resolution of the National Assembly had the effect of cutting off the power of the Electoral Commission to entertain protests against the election, returns and qualifications of members of the National Assembly submitted after December 3, 1935, and that the resolution of the Electoral Commission of December 9, 1935 had no effect. Angara argued that the Commission had exclusive jurisdiction solely as regards the merits of contested elections to the National Assembly, and not the power to regulate the proceedings of election contests, which power was reserved to the National Assembly. Ynsua, meanwhile, posited that the Electoral Commission was exercising a power impliedly conferred upon it by the Constitution by reason of its quasi-judicial attributes.

The Supreme Court ruled that the grant of power to the Electoral Commission to judge all contests relating to the election, returns and qualifications of members of the National Assembly was intended to be as complete and unimpaired as if it had remained originally in the legislature. And that the express lodging of the power in the Electoral Commission was an implied denial of the exercise of that power by the National Assembly.

CHAPTER 13

Aids to Construction

There are many secondary aids that can help in the interpretation of statutes. These may be classified as either intrinsic or extrinsic aids.[1] Intrinsic aids are derived from the statute that is being interpreted. These include the title, the preamble (which sets out the purposes of the law), headings, and punctuation. Extrinsic aids refer to sources outside the law itself. Judges have looked at dictionaries, earlier statutes, or the records and journals of Congress.[2]

INTRINSIC AIDS

PARTS OF A STATUTE

Laws have to be correctly interpreted to determine whether they apply to the case at hand. The meaning of a statute and its application can be derived from an examination of the text of the parts of the statute. These parts can shed light on the manner and conditions attending the enactment of the law and can help determine whether they were meant to apply to a case pending before a court.

Administrative regulations, for example, do not apply to criminal cases. This is illustrated by the case of *Ebarle v. Sucaldito*.[3] In that case, the Anti-Graft League of the Philippines, Inc. filed before the City Fiscal of Pagadian City several complaints for violation of the provisions of the Anti-Graft Law as well as that of the Revised Penal Code against Ebarle, the Provincial Governor of Zamboanga. The complaints

1 Gary Slapper & David Kelly, The English Legal System 202 (7th edition, 2004).
2 *Id.* at 202-205.
3 G.R. No. L-33628, December 29, 1987.

stemmed from alleged irregularities in the conduct of public bidding for the supply of gravel and sand to the province, appointment of relatives to government positions, and falsification of public documents. Ebarle attempted to have the complaints dismissed, claiming that the City Fiscal and the Anti-Graft League failed to comply with the provisions of Executive Order No. 264, which outlined the procedure by which complainants may charge government officials and employees with commission of irregularities.

The Court held that the text of the Executive Order showed that it applied exclusively to administrative, not criminal, complaints. The Court noted that (1) the very title spoke of "commission of irregularities"; and (2) there was no express or implied mention of criminal "offenses" or "crimes". While "crimes" amount to "irregularities", the Executive Order could have very well referred to the more specific term had it intended to make itself applicable thereto, the Court explained. Finally, the Court found it significant that the Executive Order made specific reference to "erring officials or employees... removed or otherwise vindicated" and did not employ such technical terms in criminal prosecutions as "accused," "convicted," or "acquitted."

The title of a statute as an aid in interpretation is an unsafe criterion and is not entitled to much weight.[4] The wiser course of action would seem to be to examine other parts of the statute.

Where there is ambiguity in a statute, courts may resort to the explanatory note to clarify the ambiguity and to ascertain the purpose and intent of the statute.[5]

An explanatory note usually accompanies a bill. It presents the issue that the bill seeks to address and proposes the steps to address that issue. In many cases, the explanatory note can shed light on what the authors intended to accomplish with the proposed measure.

Following is an example of an explanatory note:

4 Commissioner of Customs v. Relunta, G.R. No. L-11860, May 29, 1959.

5 Municipality of Nueva Era v. Municipality of Marcos, G.R. No. 169435, February 27, 2008.

Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City

This measure was filed in the House of Representatives. A parallel version is usually filed in the Senate.

FIFTEENTH CONGRESS
First Regular Session

HOUSE BILL No. 4631

House bills receive a number when they are filed.

Introduced by Reps. TEDDY A. CASIÑO, NERI JAVIER COLMENARES, LUZVIMINDA C. ILAGAN, RAFAEL V. MARIANO, RAYMOND V. PALATINO, ANTONIO L. TINIO and EMMI A. DE JESUS

These are the authors of the bill.

EXPLANATORY NOTE

The note explains the prevailing situation and why there is a need to enact the proposed measure.

For most people, the importance of communication is usually taken for granted. But for individuals constrained by hearing or faced with audiological impairment, the insufficiency of communication systems and the lack of support can cause great injustice and disparity. For instance, data from the Philippine Deaf Resource Center (PDRC) show that one out of three deaf women is a victim of rape while 65 to 70% of deaf children are molested. Of the 82 cases they monitored, 67% of deaf complainants lodged rape complaints while 32% of deaf respondents were accused of theft.

With the high incidence of criminal cases involving deaf persons, there is an unquestionable need for interpreters during investigative and judicial proceedings. Unfortunately, the current system does not have a clear procedure for such. Oftentimes, the deaf individual is left to find and pay a suitable interpreter. Without a proper system, finding an interpreter may also delay proceedings.

The note specifies the solution to the problem that the bill proposes.

The proposed bill addresses all of these problems. It is the responsibility of the State to provide for interpreters during any government

> proceeding, be it for police investigations, court or public hearings. Hired interpreters are also entitled to sufficient payment and rest.
>
> In view of the foregoing, immediate approval thereof is highly recommended.

In *People v. Purisima*,[6] several defendants were charged with "illegal possession of deadly weapon" in violation of Presidential Decree No. 9. The lower courts issued orders quashing or dismissing the informations on the ground that they did not allege facts that constituted the offense penalized by Presidential Decree No. 9. All of the informations failed to state one element of the crime: that the defendants carried a bladed, pointed or blunt weapon outside their residence in furtherance or on the occasion of, connected with or related to subversion, insurrection, or rebellion, organized lawlessness or public disorder. The Government, in trying to prevent the dismissal of the cases, argued that the law did not require that the prohibited acts be related to subversive activities and that the act proscribed was essentially a *malum prohibitum* penalized for reasons of public policy.

Guided by the principle that penal statutes are to be construed and applied liberally in favor of the accused and strictly against the state, the Supreme Court ruled that the simple act of carrying any of the weapons described in the presidential decree was not a criminal offense in itself, and what made the act criminal or punishable under the decree was the motivation behind it. The Court explained that in the construction or interpretation of a legislative measure, the primary rule is to search for and determine the intent and spirit of the law. The Court then noted that certain aids were available in ascertaining the intent for Presidential Decree No. 9, namely: the presence of events that led to or precipitated the enactment of Presidential Decree No. 9 as clearly spelled out in the preamble or the "whereas" clauses of the decree. It reasoned that while the preamble of a statute is not strictly a part thereof, it may, when the statute is in itself ambiguous and difficult to interpret, be used to determine the intent of the law, but not to create a doubt or uncertainty which otherwise does not exist.[7] Additionally, the Court stated that the result or effects of

6 G.R. Nos. L-42050-66, November 20, 1978.

7 In another case, the Supreme Court explained that a preamble is really not an integral part of a law and that it is merely an introduction to show its intent. It cannot be the origin of rights and obligations. If the meaning of a statute is clear, the preamble cannot expand or restrict its operation, or prevail over its text. Echegaray v. Secretary of Justice, G.R. No. 132601, January 19, 1999.

the Presidential Decree must be within its reason or intent. In this case, it considered that it was only that act of carrying a blunt or bladed weapon with a motivation connected with or related to the aforementioned desired result of Proclamation No. 1081 that was within the intent of Presidential Decree No. 9, and nothing else.

The resolution of a case sometimes turns on the analyses of several provisions of the same law, as illustrated in the case of *Commissioner of Internal Revenue v. TMX Sales, Inc.*,[8] where the Court ruled that courts must give effect to the general legislative intent that can be discovered from the four corners of the statute. In order to discover the intent, the whole statute, and not only a particular provision thereof, should be considered. Every section, provision, or clause of the statute must be expounded by reference to another in order to arrive at the effect contemplated by the legislature.

In that case, TMX Sales, Inc. filed its quarterly income tax return for the first quarter of 1981, declaring a quarterly income and consequently paying the income tax on May 15, 1981. During subsequent semesters, TMX Sales, Inc. suffered losses so that when it filed its Annual Income Tax Return on April 15, 1982 for the year 1981, it declared a net loss. The Commissioner of Internal Revenue failed to act on TMX Sales' claim for refund. When TMX Sales brought its claim before the Court of Tax Appeals, the Commissioner invoked Section 292 of the Tax Code and claimed that TMX Sales was already barred from claiming the refund considering that more than two years had already elapsed between the payment (May 15, 1981) and the filing of the claim in Court (March 14, 1984). The Tax Court, in granting the petition, viewed the quarterly income tax paid as a portion or installment of the total annual income tax due, explaining that in contemplation of tax laws, there is no payment until the whole or entire tax liability is completely paid. Thus, the court added, payment of a part or portion thereof could not operate to start the commencement of the statute of limitations.

In affirming the Court of Tax Appeals' decision, the Supreme Court held that Section 292 of the National Internal Revenue Code should be interpreted in relation to the other provisions of the Tax Code in order to give effect to legislative intent and to avoid an application of the law which may lead to inconvenience and absurdity. The Court highlighted that courts must give effect to the general legislative intent that can be discovered from the four corners of the statute, and in order to discover the intent, the whole statute, and not only a particular provision should be

8 G.R. No. 83736, January 15, 1992.

considered. Every section, provision, or clause of the statute must be expounded by reference to each other in order to arrive at the effect contemplated by the legislature. Thus, in resolving the case, the Court harmonized Section 292 and other provisions of the Tax Code, particularly Sections 84, 85, 86 and 87 on Quarterly Corporate Income Tax Payment, and Section 321 on keeping of books of accounts, in arriving at the conclusion that it is only when the (Final) Adjustment Return, covering the whole year, was filed that the taxpayer would know whether a tax is still due or a refund could be claimed based on the adjusted and audited figures. Hence it is only then that the statute of limitation starts to commence.

Other parts of a statute include the epigraph, or heading, of a section. The Supreme Court treats the epigraph as nothing more than an index to the contents of the provision, and it cannot have the effect of limiting the operative words contained in the body of the text.[9]

The resolution of a case can also depend on the use of punctuation marks. In *Aquino III v. Commission on Elections*,[10] for example, the petitioners challenged the constitutionality of Republic Act No. 9716 because it allegedly violated a constitutional provision that mandated a minimum population of two hundred fifty thousand for the creation of a legislative district. The Court disagreed and held:

> The second sentence of Section 5 (3), Article VI of the Constitution, succinctly provides: "*Each city with a population of at least two hundred fifty thousand, or each province, shall have at least one representative.*"
>
> The provision draws a plain and clear distinction between the entitlement of a city to a district on one hand, and the entitlement of a province to a district on the other. For while a province is entitled to at least a representative, with nothing mentioned about population, a city must first meet a population minimum of 250,000 in order to be similarly entitled.
>
> The use by the subject provision of a comma to separate the phrase "each city with a population of at least two hundred fifty thousand" from the phrase "or each province" point to no other conclusion than that the 250,000 minimum population is only required for a city, but not for a province.

9 *In re* Johnson, G.R. No. 16727, November 16, 1918.

10 G.R. No. 189793, April 7, 2010.

> Plainly read, Section 5 (3) of the Constitution requires a 250,000 minimum population only for a city to be entitled to a representative, but not so for a province.

Commas also played an important role in the question of whether the party-list system[11] is reserved only for marginalized and underrepresented groups. The Supreme Court reversed an earlier ruling[12] and held:

> Section 5 (1), Article VI of the Constitution is crystal-clear that there shall be "a party-list system of registered national, regional, and sectoral parties or organizations." The commas after the words "national[,]" and "regional[,]" separate national and regional parties from sectoral parties. Had the framers of the 1987 Constitution intended national and regional parties to be at the same time sectoral, they would have stated "national and regional sectoral parties." They did not, precisely because it was never their intention to make the party-list system exclusively sectoral.

What the framers intended, and what they expressly wrote in Section 5 (1), could not be any clearer: the party-list system is composed of three different groups, and the sectoral parties belong to only one of the three groups. The text of Section 5

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11 Under this system, any national, regional or sectoral party or organization registered with the Commission on Elections may participate in the election of party-list representatives who, upon their election and proclamation, shall sit in the House of Representatives as regular members. Voters are given two votes for the House one for a district Representative and another for a party-list representative. *See* Veterans Federation Party v. Commission on Elections, G.R. Nos. 136781, 136786, 136795, October 6, 2000. Congress enacted Republic Act No. 7941 to implement the constitution's mandate.

12 In Ang Bagong Bayani-OFW v. COMELEC (G.R. Nos. 147589, 147613, June 26, 2001) the Court held:

> It was for [the marginalized and underrepresented] that the party-list system was enacted to give them not only genuine hope, but genuine power; to give them the opportunity to be elected and to represent the specific concerns of their constituencies; and simply to give them a direct voice in Congress and in the larger affairs of the State. In its noblest sense, the party-list system truly empowers the masses and ushers a new hope for genuine change. Verily, it invites those marginalized and underrepresented in the past the farm hands, the fisher folk, the urban poor, even those in the underground movement to come out and participate, as indeed many of them came out and participated during the last elections. The State cannot now disappoint and frustrate them by disabling and desecrating this social justice vehicle.

(1) leaves no room for any doubt that national and regional parties are separate from sectoral parties.[13]

Thus, according to the Court, the party-list system is composed of three different groups: (1) national parties or organizations; (2) regional parties or organizations; and (3) sectoral parties or organizations. National and regional parties or organizations are different from sectoral parties or organizations. National and regional parties or organizations need not be organized along sectoral lines and need not represent any particular sector.[14]

On occasion, the Court resorts to the spirit of the law to resolve legal issues. In *Hidalgo v. Hidalgo*,[15] Policarpio Hidalgo sold his two parcels of agricultural land in Batangas. Hilario Aguila and Adela Hidalgo, as share tenants, sought to redeem the land by executing a deed of sale for the two parcels of land in their favor. They contended that the vendor failed to give them a 90-day notice of intention to sell the lands for the exercise of the right of pre-emption, as prescribed by the Agricultural Land Reform Code. The Court of Agrarian Relations dismissed both petitions, concluding that the right of redemption granted by Section 12 of the Land Reform Code is available to leasehold tenants only but not to share tenants because the provision "clearly, definitely, and unequivocally grants said right to the 'agricultural lessee,' and to nobody else."

The Supreme Court held that where the true intent of the law is clear, such intent or spirit must prevail over the letter thereof, for whatever is within the spirit of a statute is within the statute, since adherence to the letter would result in absurdity, injustice and contradictions and would defeat the plain and vital purpose of the statute. Section 11 of the Land Reform Code, providing for the "agricultural lessee's" preferential right to buy the land he cultivates, provides expressly that "the entire landholding offered for sale must be pre-empted by the Land Authority if the landowner so desires, unless the majority of the lessees object to such acquisition," presumably for being beyond their capabilities. The Court held that taken together with the other provisions of the Code, the Code's intent, policy and objective is to give both agricultural lessees and farmers who transitionally continue to be share tenants, notwithstanding the Code's enactment, the same priority and preferential rights over the lands under their cultivation, in the event of acquisition of the lands,

13 Atong Paglaum, Inc. v. Commission on Elections, G.R. No. 203766, April 2, 2013.

14 *Id.*

15 G.R. No. L-25326, May 29, 1970.

by expropriation or voluntary sale, for distribution or resale that may be initiated by the Land Authority or the National Land Reform Council.

STATUTORY DIRECTIVES

Statutes often provide directives on their proper interpretation. Many of these provisions are short, single-line guides for courts to follow in the event that interpretation is required in the future. For example, the Philippine Respiratory Therapy Act of 2009[16] provides in Section 38 that "[n]othing in this Act shall be construed to effect or prevent the practice of any other legally recognized profession." Section 3 of the Pre-need Code of the Philippines[17] provides that "[a]ny doubt in the interpretation and implementation of any provision in this Code shall be interpreted in favor of the rights and interests of the plan holder." Article 126 of the Cooperative Code of the Philippines[18] provides that "[i]n case of doubt as to the meaning of any provision of this Code or the regulations issued in pursuance thereof, the same shall be resolved liberally in favor of the cooperatives and their members." The Electronic Commerce Act,[19] on the other hand, provides as follows:

> SECTION 37. *Statutory Interpretation.* — Unless otherwise expressly provided for, the interpretation of this Act shall give due regard to its international origin and the need to promote uniformity in its application and the observance of good faith in international trade relations. The generally accepted principles of international law and convention on electronic commerce shall likewise be considered.

Over the years, however, Congress has begun to adopt more sophisticated rules of interpretation. The Local Government Code of 1991[20] contains several directives on interpretation. Section 5 of the law provides:

16 Republic Act No. 10024 (2009).
17 Republic Act No. 9829 (2009).
18 Republic Act No. 6938 (1990).
19 Republic Act No. 8792 (2000).
20 Republic Act No. 7160 (1991).

SECTION 5. Rules of Interpretation. — In the interpretation of the provisions of this Code, the following rules shall apply:

(a) Any provision on a power of a local government unit shall be liberally interpreted in its favor, and in case of doubt, any question thereon shall be resolved in favor of devolution of powers and of the lower local government unit. Any fair and reasonable doubt as to the existence of the power shall be interpreted in favor of the local government unit concerned;

(b) In case of doubt, any tax ordinance or revenue measure shall be construed strictly against the local government unit enacting it, and liberally in favor of the taxpayer. Any tax exemption, incentive or relief granted by any local government unit pursuant to the provisions of this Code shall be construed strictly against the person claiming it.

(c) The general welfare provisions in this Code shall be liberally interpreted to give more powers to local government units in accelerating economic development and upgrading the quality of life for the people in the community;

(d) Rights and obligations existing on the date of effectivity of this Code and arising out of contracts or any other source of presentation involving a local government unit shall be governed by the original terms and conditions of said contracts or the law in force at the time such rights were vested; and

(e) In the resolution of controversies arising under this Code where no legal provision or jurisprudence applies, resort may be had to the customs and traditions in the place where the controversies take place.

An examination of paragraph (a) contains three rules of interpretation:

1. Any provision on a power of a local government unit shall be liberally interpreted in its favor.
2. In case of doubt, any question thereon shall be resolved in favor of devolution of powers and of the lower local government unit.

3. Any fair and reasonable doubt as to the existence of the power shall be interpreted in favor of the local government unit concerned.

All of these rules are designed to ensure that the Code's objectives are attained. They are also apparently intended to abandon the rule before the Code went into effect: that the powers of municipal corporations are to be construed in *strictissimi juris* and any doubt or ambiguity must be construed against the municipality.[21]

The Alternative Dispute Resolution Act of 2004[22] has three separate provisions on interpretation:

> SECTION 8. *Application and Interpretation.* — In applying and construing the provisions of this Chapter, consideration must be given to the need to promote candor of parties and mediators through confidentiality of the mediation process, the policy of fostering prompt, economical, and amicable resolution of disputes in accordance with principles of integrity of determination by the parties, and the policy that the decision-making authority in the mediation process rests with the parties.
>
> SECTION 20. *Interpretation of Model Law.* — In interpreting the Model law, regard shall be had to its international origin and to the need for uniformity in its interpretation and resort may be made to the *travaux preparatories* and the report of the Secretary General of the United Nations Commission on International Trade Law dated 25 March 1985 entitled, "International Commercial Arbitration: Analytical Commentary on Draft Text identified by reference number a/CN. 9/264."
>
> SECTION 25. *Interpretation of the Act.* — In interpreting the Act, the court shall have due regard to the policy of the law in favor of arbitration. Where action is commenced by or against multiple parties, one or more of whom are parties to an arbitration agreement, the court shall refer to arbitration those parties who are bound by the arbitration agreement although the civil action may continue as to those who are not bound by such arbitration agreement.

21 Greater Balanga Development Corporation v. Municipality of Balanga, Baraan, G.R. No. 83987, December 24, 1997.

22 Republic Act No. 9285 (2004).

More recently, Congress expressly incorporated sources of international law as guides for interpretation. The Philippine Act on Crimes Against International Humanitarian Law, Genocide, and Other Crimes Against Humanity[23] provides:

> SECTION 15. Applicability of International Law. — In the application and interpretation of this Act, Philippine courts shall be guided by the following sources:
>
> (a) The 1948 Genocide Convention;
>
> (b) The 1949 Geneva Conventions I-IV, their 1977 Additional Protocols I and II and their 2005 Additional Protocol III;
>
> (c) The 1954 Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict, its First Protocol and its 1999 Second Protocol;
>
> (d) The 1989 Convention on the Rights of the Child and its 2000 Optional Protocol on the Involvement of Children in Armed Conflict;
>
> (e) The rules and principles of customary international law;
>
> (f) The judicial decisions of international courts and tribunals;
>
> (g) Relevant and applicable international human rights instruments;
>
> (h) Other relevant international treaties and conventions ratified or acceded to by the Republic of the Philippines; and
>
> (i) Teachings of the most highly qualified publicists and authoritative commentaries on the foregoing sources as subsidiary means for the determination of rules of international law.[24]

Statutes do not necessarily provide rules for interpretation in a separate provision. The Human Security Act of 2007[25] contains a rule of interpretation in the last paragraph of the Declaration of Policy:

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23 Republic Act No. 9851 (2009).

24 Republic Act No. 9851 (2009) or the Philippine Act on Crimes against International Humanitarian Law, Genocide, and other Crimes against Humanity.

25 Republic Act No. 9372 (2007).

> SECTION 2. *Declaration of Policy.* — It is declared a policy of the State to protect life, liberty, and property from acts of terrorism, to condemn terrorism as inimical and dangerous to the national security of the country and to the welfare of the people, and to make terrorism a crime against the Filipino people, against humanity, and against the law of nations.
>
> In the implementation of the policy stated above, the State shall uphold the basic rights and fundamental liberties of the people as enshrined in the Constitution.
>
> The State recognizes that the fight against terrorism requires a comprehensive approach, comprising political, economic, diplomatic, military, and legal means duly taking into account the root causes of terrorism without acknowledging these as justifications for terrorist and/or criminal activities. Such measures shall include conflict management and post-conflict peacebuilding, addressing the roots of conflict by building state capacity and promoting equitable economic development.
>
> Nothing in this Act shall be interpreted as a curtailment, restriction or diminution of constitutionally recognized powers of the executive branch of the government. It is to be understood, however that the exercise of the constitutionally recognized powers of the executive department of the government shall not prejudice respect for human rights which shall be absolute and protected at all times.

The same Act has inserted another rule of interpretation in Section 53 which created the Anti-Terrorism Council. At the end of the section, the law provides that:

> The Council shall formulate and adopt comprehensive, adequate, efficient, and effective anti-terrorism plans, programs, and counter-measures to suppress and eradicate terrorism in the country and to protect the people from acts of terrorism. Nothing herein shall be interpreted to empower the Anti-Terrorism Council to exercise any judicial or quasi-judicial power or authority.

Such aids in interpretations are, however, not absolute. Statutory provisions may override canons of construction. In *Commissioner of Internal Revenue v. Philippine Airlines,*[26] the Supreme Court ruled that:

> While the Court recognizes the general rule that the grant of tax exemptions is strictly construed against the taxpayer and in favor of the taxing power, Section 13 of the franchise of respondent leaves no room for interpretation. Its franchise exempts it from paying any tax other than the option it chooses: either the "basic corporate income tax" or the two percent gross revenue tax.[27]

EXTRINSIC AIDS

A statute is "ambiguous," and so open to explanation by extrinsic aids, not only when its abstract meaning or the connotation of its terms is uncertain, but also when it is uncertain in its application to, or effect upon, the fact-situation of the case at bar.[28]

The history of the enactment of the statute and purpose of the legislature in employing a clause or provision[29] and the records of the constitutional convention[30] are examples of extrinsic aids. The history of events that transpired during the process of enacting a law, from its introduction in the legislature to its final validation, has generally been the first extrinsic aid to which courts turn in construing an ambiguous act.[31] Courts may also have to "look at another statute to disentangle doubts."[32]

The use of extrinsic aids, like the records of the constitutional convention, is unwarranted if the language of the law is plain and unambiguous.[33]

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26 G.R. No. 160528, October 9, 2006.

27 *Id.*

28 Del Mar v. Philippine Amusement and Gaming Association, G.R. No. 138298, November 29, 2000.

29 Commissioner of Customs v. Esso Standard Eastern, Inc., G.R. No. L-28329, August 7, 1975.

30 People v. Muñoz, G.R. No. 38969-70, February 9, 1989.

31 People v. Degamo, G.R. No. 121211, April 30, 2003.

32 Alhambra Cigar & Cigarette Manufacturing Company v. Securities and Exchange Commission, G.R. No. L-23606, July 29, 1968.

33 Republic of the Philippines v. Court of Appeals, G.R. No. 103882, November 25, 1998.

To be clear, the records of the constitutional conventions or commissions are not binding on courts. Properly recorded statements during the debates and proceedings of the Convention deserve weight, like those of any other delegate. However, that the proceedings of the Convention "are less conclusive of the proper construction of the instrument than are legislative proceedings of the proper construction of a statute … since in the latter case it is the intent of the legislature we seek, while in the former we are endeavoring to arrive at the intent of the people through the discussions and deliberations of their representatives."[34] Their writings (of the delegates) commenting or explaining that instrument, published shortly thereafter, may, like the book of Delegate Aruego, and of others—have persuasive force.[35]

Furthermore, courts are allowed to consult the debates and proceedings of the constitutional convention in order to determine the meaning of the Constitution only when other guides fail. This is because the proceedings cannot vary the terms of the Constitution when the meaning is clear. Debates in the constitutional convention "are of value as showing the views of the individual members, and as indicating the reasons for their votes, but they give us no light as to the views of the large majority who did not talk, much less of the mass of our fellow citizens whose votes at the polls gave that instrument the force of fundamental law." The Court instead construes the Constitution "from what appears upon its face."[36]

Another concern that arises with the use of deliberations is that "it is easy to selectively cite passages, sometimes out of their proper context, in order to assert a misleading interpretation." Minority or solitary views and anecdotes may acquire the mantle of legislative intent by virtue of their publication in the authoritative congressional record.[37]

LEGISLATIVE HISTORY

The history of events that transpired during the process of enacting a law, from its introduction in the legislature to its final validation has generally been the first extrinsic aid to which courts turn to construe an ambiguous act.[38] When such

34 Vera v. Avelino, G.R. No. L-543, August 31, 1946.

35 *Id.*

36 Civil Liberties Union v. Executive Secretary, G.R. No. 83896, February 22, 1991.

37 Southern Cross Cement Corporation v. Philippine Cement Manufacturers Corp., G.R. No. 158540, July 8. 2004.

38 People v. Degamo, G.R. No. 121211, April 30, 2003.

occasions arise, courts may take judicial notice of the origin and history of the law, the deliberations during the enactment, and prior laws on the same subject matter to ascertain the true intent or spirit of the law.[39] In cases involving penal statutes, courts must take heed as to language, legislative history, and purpose in order to strictly determine the extent of the conduct that the law forbids.[40] It may also consider the implementing rules and regulations and pertinent executive issuances in the nature of executive and/or legislative construction.[41]

The Supreme Court, in the case of *Office of the Ombudsman v. Court of Appeals*,[42] used the legislative history of Section 21 of Republic Act No. 6770 to show that the Office of the Ombudsman was intended to possess full administrative, disciplinary authority, including the power to impose the penalty of removal. The Court also used the legislative history of Republic Act No. 7924 (which created the Metropolitan Manila Development Authority) to conclude that the MMDA is not a local government unit or public corporation endowed with legislative powers.[43]

The same approach was used in *Song Kiat Chocolate Factory v. Central Bank*[44] where the Court noted a change of legislative policy, not a declaration or clarification of previous congressional purpose, in the approval of House Bill No. 2576 to become Republic Act No. 1197, exempting "cocoa beans" instead of chocolate, from the tax with a view to favoring local manufacturers of chocolate products.

Changes in statutory language may also indicate the changes in legislative intent. The Court in *Francisco v. Bosier*[45] settled the conflicting jurisprudence on the commencement of the 30-day period for redemption under Article 1623 of the Civil Code: whether it commences from the actual knowledge of the redemptioner or from the date of the notice from the vendor. The Court held that Article 1623 of the Civil Code was clear in requiring that the written notification should come from the vendor or prospective vendor, not from any other person. There is, therefore, no room for construction. It explained that the principal difference between Article 1524 of

39 Commissioner of Internal Revenue v. SM Prime Holdings, Inc., G.R. No. 183505, February 26, 2010.

40 Laurel v. Abrogar, G.R. No. 155076, February 27, 2006.

41 Navarro v. Executive Secretary, G.R. No. 180050, April 12, 2011.

42 G.R. No. 160675, June 16, 2006. See also Deputy Ombudsman for the Visayas v. Abugan, G.R. No. 168892, March 24, 2008.

43 *See* Metropolitan Manila Development Authority v. Garin, G.R. No. 130230, April 15, 2005.

44 G.R. No. L-8888, November 29, 1957.

45 G.R. No. 137677, May 31, 2000.

the Old Civil Code and the present Article 1623 is that the former did not specify who must give the notice, whereas the present one expressly says the notice must be given by the vendor. Thus, effect must be given to the change in statutory language.

In the case of *Buenaseda v. Flavier*,[46] the National Center for Mental Health Nurses Association filed against petitioners, officers and employees of the NCMH, an administrative complaint for violation of the Anti-Graft and Corrupt Practices Act. Upon recommendation of its investigators, the Office of the Ombudsman issued an order directing the preventive suspension of the petitioners. Petitioners sought to nullify the order, arguing that the phrase "suspend any officer or employee under his authority" in Section 24 of Republic Act No. 6770 meant that the Ombudsman could only suspend government officials or employees connected with his office, and as such, he could only recommend to the heads of the departments and other agencies the preventive suspension of officials and employees facing administrative investigation conducted by his office. Respondents argued that the power of preventive suspension given the Ombudsman under Section 24 of Republic Act No. 6770 was contemplated by Section 13 (8) of Article XI of the 1987 Constitution, which provides that the Ombudsman shall exercise such other power or perform such functions or duties as may be provided by law.

The Supreme Court traced the legislative origin of the phrase "suspend any officer or employee under his authority" in Section 24 of the Ombudsman Law. Section 694 of the Revised Administrative Code authorizes the chief of a bureau or office to "suspend any subordinate or employee in his bureau or under his authority pending an investigation." Section 34 of the Civil Service Act of 1959 also authorized the chief of a bureau or office to "suspend any subordinate officer or employees, in his bureau or under his authority." However, when the power to discipline government officials and employees was extended to the Civil Service Commission by the Civil Service Law of 1975, concurrently with the President, the Department Secretaries, and the heads of bureaus and offices, the phrase "subordinate officer and employee in his bureau" was deleted, leaving the phrase "under his authority." Therefore, Section 41 of said law only mentions that the proper disciplining authority may preventively suspend "any subordinate officer or employee under his authority pending an investigation." The Administrative Code of 1987 also gave the proper disciplining authority the power of preventive suspension. The Ombudsman Law deleted the words "subordinate" and "in his bureau," leaving the phrase to read: "suspend any

46 G.R. No. 106719, September 21, 1993.

officer or employee under his authority pending an investigation." The Court thus concluded that with the deletion of the word "subordinate" before, and the words "in his bureau" after "officer or employee," the Congress intended to empower the Ombudsman to preventively suspend all officials and employees under investigation by his office, irrespective of whether they are employed "in his office" or in other offices of the government. The moment a criminal or administrative complaint is filed with the Ombudsman, the respondent is deemed to be "in his authority" and he can proceed to determine whether such respondent should be placed under preventive suspension.

People v. Yadao,[47] on the other hand, construed Section 1 of Republic Act No. 145 which penalizes "[a]ny person assisting a claimant in the preparation, presentation and prosecution of his claim for benefits under the laws of the United States administered by the United States Veterans Administration, who shall, directly or indirectly, solicit, contract, for charge, or receive, or who shall attempt to solicit, contract for, charge, or receive any fee or compensation exceeding twenty pesos in any one claim, or who shall collect his fee before the claim is actually paid to a beneficiary or claimant." When an information for violation of said law was filed against respondent Yadao, alleging that Yadao offered to assist Floverto Jazmin in the prosecution of his legitimate claim for war veteran benefits, and charged as fee or compensation the sum of eight hundred pesos, the Supreme Court found that the information failed to aver that the defendants assisted or were assisting the claimant for veterans benefits. The Court explained that one who offers to assist, but does not assist, is not included within the penal prohibition, which by its nature must be strictly construed against the government. Although there was an attempt to commit the offense, the Court noted that said statute does not expressly punish attempts to commit the offense, and the provisions of the Penal Code about attempts do not apply. Additionally, the Court did not apply the ruling in *Sanchez vs. U.S.*, to wit: "[a] showing that an excessive fee was solicited… will support a conviction of violation of fee limitation for assistance in such application regardless of whether such assistance was in fact rendered." It held that the same is not applicable considering that, while the statute punishes "any person who shall directly or indirectly contract for, charge or receive, or who shall attempt to solicit, contract for excessive compensation," the section does not contain the phrase "assisting a claimant" after the words "any

47 G.R. No. L-6835, March 30, 1954.

person" and before the words "who shall act." That phrase conditions each and every violation of Section 1 of Republic Act No. 145.

Courts do not usually give decisive weight to one legislator's opinion as expressed in Congressional debates concerning the application of existing laws.[48] Legislative debates are expressive of the views and motives of individual members and are not always safe guides in ascertaining the meaning and purpose of the lawmaking body.[49] As the Supreme Court explained,

> It is impossible to determine with certainty what construction was put upon an act by the members of the legislative body that passed the bill, by resorting to the speeches of the members thereof. Those who did not speak, may not have agreed with those who did; and those who spoke, might differ from each other.[50]

Thus, the legislative record should be approached with extreme caution, as legislative debates and proceedings are powerless to vary the terms of the statute when the meaning is clear.[51]

CONTEMPORARY CONSTRUCTION

As an interpretation of a law by the implementing administrative agency, the contemporaneous construction of a statute by the executive officers of the government, whose duty it is to execute it, is accorded great respect by courts.[52] This principle was adopted soon after the United States took control of the Philippines. The Supreme Court adopted United States case law, saying that it was entitled to be given weight and should ordinarily control the construction of the statute by the courts. Thus, the principle of contemporary construction was held to be "so firmly embedded in our jurisprudence that no authorities need be cited to support it."[53]

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48 Song Kiat Chocolate Factory v. Central Bank of the Phil., G.R. No. L-8888, November 29, 1957.

49 Nilo v. Court of Appeals, G.R. No. L-34586, L-36625, April 2, 1984.

50 Nilo v. Court of Appeals, G.R. No. L-34586, L-36625, April 2, 1984.

51 Southern Cross Cement Corp. v. Philippine Cement Manufacturers Corp., G.R. No. 158540, July 08, 2004.

52 AFP General Insurance Corporation v. Molina, G.R. No. 151133, June 30, 2008.

53 *In re* Frank Stanley Allen, G.R. No. 1455, October 29, 1903.

Such interpretation, however, is not controlling upon courts. When an administrative agency renders an opinion or issues a statement of policy, it merely interprets a pre-existing law and the administrative interpretation is at best advisory for it is the courts that finally determine what the law means. Contemporaneous construction by an administrative agency may be set aside by courts if there is "an error of law, abuse of power, lack of jurisdiction or grave abuse of discretion clearly conflicting with the letter and spirit of the law."[54] It will be struck down if such construction is erroneous, in conflict with the governing statute or the Constitution or other laws. "It is the role of the Judiciary to refine and, when necessary, correct constitutional (or statutory) interpretation, in the context of the interactions of the three branches of the government."[55]

The courts may disregard contemporaneous construction where there is no ambiguity in the law, where the construction is clearly erroneous, where a strong reason exists to the contrary, and where the courts have previously given the statute a different interpretation.[56]

The rationale for the rule of contemporaneous construction relates not only to the multifarious needs of a modern society and the establishment of diverse administrative agencies for addressing and satisfying those needs; it also relates to accumulation of experience and growth of specialized capabilities by an administrative agency charged with implementing a particular statute. Executive officials are presumed to have familiarized themselves with all the considerations pertinent to the meaning and purpose of the law, and to have formed an independent, conscientious, and competent expert opinion thereon. The courts give much weight to contemporaneous construction because of the respect due the government agency or officials charged with the implementation of the law, their competence, expertness, experience, and informed judgment, and the fact that they frequently are the drafters of the law they interpret.[57]

In *Nestle Philippines Inc. v. Court of Appeals*,[58] Nestle filed a letter with the Securities and Exchange Commission (SEC) seeking exemption of its proposed issuance of additional shares to its existing principal shareholders, from the registration

54 Energy Regulatory Board v. Court of Appeals, G.R. No. 113079, April 20, 2001.

55 Philippine Scout Veterans Security & Investigation Agency, Inc. v. National Labor Relations Commission, G.R. No. 99859, September 20, 1996.

56 Bank of Commerce v. Planters Development Bank, G.R. No.154470-71, September 24, 1996.

57 Nestle Philippines Inc. v. Court of Appeals, G.R. No. 86738, November 13, 1991.

58 G.R. No. 86738, November 13, 1991.

requirement of Section 4 of the Revised Securities Act and from payment of the fee referred to in Section 6 (c) of the same Act. It averred that the exempt transaction under Section 6 (a) (4) of the Act embraced "not only an increase in the authorized capital stock but also the issuance of additional shares to existing stockholders of the unissued portion of the unissued capital stock." Nestle theorized that if the intention of the legal provision were to limit the exemption to subscription to proposed increases in the authorized capital stock of a corporation, it should have mentioned "increase in the authorized capital stock of the corporation" rather than merely the expression "the issuance of additional capital stock." The Commission responded adversely and ruled that the proposed issuance of shares did not fall under Section 6 (a) (4) of the Act, since the same is applicable only where there is an increase in the authorized capital stock of a corporation.

The Supreme Court upheld the ruling of the SEC. It held that the construction given to a statute by an administrative agency charged with the interpretation and application of that statute is entitled to respect and should be accorded great weight by the courts, unless such construction is clearly shown to be in sharp conflict with the governing statute or the Constitution and other laws.

The Court may also strike down administrative decisions, as in *Philippine Scout Veterans Security & Investigation Agency Inc. (PSVSAI) v. National Labor Relations Commission.*[59] Porping Regalado worked for petitioner PSVSAI as a security guard from 1963 until his retirement at the age of 60 in 1989. He formally requested petitioner for payment of his retirement pay, but the latter refused. He then filed a complaint for non-payment of retirement benefits against petitioner before the NLRC. PSVSAI claimed that Regalado was not entitled to retirement pay since there was no company policy that provided for or any collective bargaining agreement granting it. The Labor Arbiter ruled in favor of Regalado, noting that, although there is no collective bargaining agreement or company policy granting such retirement benefits, it would be unjust that some financial assistance is provided for employees who are dismissed from their jobs and who can presumably still find other work and continue to earn a livelihood, and yet, an employee who retires and ironically whose company does not have any collective bargaining agreement or policy providing for retirement pay will not receive any retirement pay for him to augment and supply his needs during his old age. Upon appeal, the NLRC affirmed the ruling of the Labor Arbiter. It reasoned that the entitlement to retirement benefits even in the absence

59 G.R. No. 99859, September 20, 1996.

of a company retirement plan or collective bargaining agreement is the import of Article 287 of the Labor Code, as amended, and implemented by Sections 13 and 14, Rule I, Book V of the Rules Implementing the Labor Code.

The Supreme Court found that there was no contractual or statutory basis for the grant of retirement pay, hence, held the award improper. It stated that although the Arbiter's ruling "exudes wisdom," it lacked legal basis. The Court explained that the NLRC mistakenly construed Sections 13 and 14 (a) of Rule I, Book VI of the Implementing Rules, in relation to Article 287, as basis for the grant of retirement benefits to Regalado. It clarified that Article 287 does not itself purport to impose any obligation upon employers to set up a retirement scheme for their employees over and above that already established under existing laws.

While contemporaneous interpretation or construction by the officers charged with the enforcement of the rules and regulations they promulgate is entitled to great weight by the court, such a construction is not necessarily controlling or binding. Equally settled is the rule that courts may disregard contemporaneous construction in instances where the law or rule construed possesses no ambiguity, where the construction is clearly erroneous, where strong reason to the contrary exists, and where the court has previously given the statute a different interpretation. If through misapprehension of law or a rule, an executive or administrative officer called upon to implement it has erroneously applied or executed it, the error may be corrected when the true construction is ascertained. If a contemporaneous construction is found to be erroneous, it must be declared null and void.[60]

In the case of *Adasa v. Abalos*,[61] two complaint-affidavits were filed by Abalos before the Office of the City Prosecutor of Iligan City against Adasa for Estafa. The city prosecutor found probable cause and ordered the filing of two separate informations for Estafa Thru Falsification of Commercial Document by a Private Individual. However, after the criminal cases were filed, the court directed the city prosecutor to conduct a reinvestigation upon motion of Adasa. The city prosecutor maintained its finding of probable cause. During arraignment, Adasa entered an unconditional plea of not guilty, but thereafter filed a Petition for Review before the Department of Justice (DOJ), contesting the finding of probable cause. The Department of Justice reversed and set aside the city prosecutor's ruling and directed said office to withdraw the information. Complainant Abalos filed a motion for

60 Adasa v. Abalos, G.R. No. 168617, February 19, 2007.

61 G.R. No. 168617, February 19, 2007.

reconsideration of said resolution, arguing that the DOJ should have dismissed outright the petition for review since Section 7 of Circular No. 70 of the Department of Justice mandates that when an accused has already been arraigned and the aggrieved party files a petition for review before the Department, the Secretary of Justice cannot take cognizance of the petition. The DOJ denied the motion, opining that under Section 12, in relation to Section 7, of Circular No. 70, the Secretary of Justice is not precluded from entertaining any appeal taken to him even where the accused has already been arraigned in court due to the permissive language "may" utilized in Section 12. Upon appeal, the Court of Appeals reversed the ruling of the DOJ, stating, among others, that the same should not be given weight since it was erroneous. Petitioner Adasa invoked, *inter alia*, the rule that the contemporaneous construction of a statute or regulation by the officers who enforce it should be given weight. The Supreme Court found petitioner's reliance on the principle of contemporary construction unpersuasive. If a contemporaneous construction is found to be erroneous, the same must be declared null and void.

DICTIONARIES

Courts often use dictionaries to determine "the ordinary meaning" of words used in either the Constitution or statutes.[62] This approach is criticized because dictionary definitions are "acontextual" and do not consider the context of the laws that are under examination. Dictionary definitions could, ironically, expand the definition of terms which the "ordinary meaning" rule is intended to curtail.[63] Dictionaries can be useful aids in statutory interpretation, but they are not substitutes for close analysis of what words mean as used in a particular statutory context.[64]

In light of this observation, it might be a better rule to say that courts should ascertain the meaning of a word based on the manner in which it is used in the law. Dictionaries can aid in this task but not bind courts. In *Flores v. People of the Philippines,*[65] the Supreme Court held that the term "recruit" or "recruitment" in the

62 *See* Mustang Lumber, Inc. v. Court of Appeals, G.R. No. 123784, June 18, 1996; Domingo v. Commission on Audit, G.R. No. 112371, October 7, 1998; Schmid & Oberly, Inc. v. RJL Martinez Fishing Corporation, G.R. No. 75198, October 18, 1988; and Gallego v. Sandiganbayan, G.R. No. L-57841, July 30, 1982.

63 Pamela Hobbs, *Defining the Law: (Mis)using the Dictionary to Decide Cases,* 13:3 Discourse Studies 327 347 (2011).

64 *Id.*

65 G.R. Nos. 93411-12, July 20, 1992.

Labor Code of the Philippines "must be understood in the light of what the law contemplates and not how a dictionary defines it."

Illustrative cases

Valderrama v. National Labor Relations Commission[66] ruled that to get the true intent and meaning of a decision, no specific portion thereof should be resorted to but the same must be considered in its entirety.

In that case, Maria Andrea Saavedra filed a complaint against the COMMODEX (Phils.), Inc., Consuelo Valderrama as owner, Tranquilino Valderrama as executive vice-president, and Jose Ma. Togle as vice-president and general manager, for reinstatement and back wages. The decision of the Labor Arbiter found private respondent to have been illegally dismissed and held respondent COMMODEX liable. A writ of execution was granted, but it was returned unsatisfied for COMMODEX had ceased operations, while the individual officers, who were correspondents in the case, took the position that the writ could not be enforced against them on the ground that the dispositive portion of the decision mentioned only COMMODEX.

The Supreme Court held petitioners personally liable, which it declared eminently just and proper considering that, although the dispositive portion of the decision mentioned only the "respondent company," the text repeatedly mentions "respondents" in assessing liability for the illegal dismissal of private respondent. The mere happenstance that only the company was mentioned should not be allowed to obscure the fact that in the text of the decision, petitioner and her correspondents were found guilty of having illegally dismissed private respondent.

In *Greater Balanga Development Corporation v. Balanga*,[67] Greater Balanga Development Corporation, a domestic corporation, assailed by way of *certiorari*, prohibition and *mandamus* the revocation of its mayor's permit to operate a public market. The Mayor's act of revoking the permit was on the ground of having applied for two businesses in one permit. The Court found that Greater Balanga left blank the statement of the type of business it was applying for. The statement that it was applying for the businesses of real estate and the operation of a public market appeared for the first time in the Mayor's permit itself and not in the application.

66 G.R. No. 98239, April 25, 1996.

67 G.R. No. 83987, December 27, 1994.

The Court, in ruling for the petitioner, drew attention to the construction that the law does not expressly require two permits for the conduct of two or more businesses in one place, but only that separate fees be paid for each business. The Court pronounced that even granting arguendo that separate permits were required, the application form did not contain an entry requiring the statement of the number of businesses for which a permit is applied.

In construing the Local Government Code, the Court had ruled that the general welfare provisions of the Code direct local councils to enact ordinances for the general welfare of the municipality and its inhabitants, among which are those for the protection of the environment and the maintenance of a balanced ecology. In *Tano v. Socrates*,[68] Tano assailed the validity of ordinances and resolutions of the Sangguniang Panlungsod of Puerto Princesa City that involved the protection of marine coral dwelling aquatic organisms, directed inspections on cargoes, and prohibited the acts of catching, gathering, possessing, buying, selling and shipment of live organisms. The Court ruled that the Constitution did not primarily aim to confer preferential rights to subsistence fisherfolk but to lay stress on the duty of the State to protect, develop and conserve the nation's marine wealth. The Court stated that the rights of subsistence fisherfolk were not absolute but subject to the Regalian doctrine, mandated preservation and conservation local laws, and the provisions of the Local Government Code.

68 G.R. No. 110249, August 21, 1997.

CHAPTER 14

Interpretation of Words and Phrases

THE CANONS OF CONSTRUCTION

The "canons of construction" are a set of background norms and conventions that are widely used by courts when interpreting statutes. They serve as rules of thumb or presumptions that help extract substantive meaning from, among other things, the language, context, structure, and subject matter of a statute.[1] They have been used "since antiquity, and their general contours have been remarkably stable over time." In Anglo-American law, courts and legal commentators have relied on canons since at least 1584, which now enjoy ascendancy among judges and legal scholars.[2]

Courts invoke canons of construction to avoid declaring a law unconstitutional. A literal interpretation of the law is avoided if it will render a law void. According to the Supreme Court, it is the duty of the courts in construing a statute "not to give it a construction which would be repugnant to an act of Congress, if the language of the statute is fairly susceptible of another construction not in conflict with the higher law."[3]

Despite the existence of canons, there is no unanimity regarding the manner of using them. There are three leading theories of how statutes may be interpreted: intentionalist theory, new textualist theory, and pragmatic theory that are summarized below:

1. Intentionalist theories work under the premise that the aim of statutory interpretation is the realization of legislative intent. Statutes are the product of representative democracy, and the will of the legislative

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1 Jacob Scott, *Codified Canons and the Common Law of Interpretation,* 99 Geo. L.J. 341, 344 (2010).

2 *Id.*

3 Yu Cong Eng v. Trinidad, G.R. No. 20479, February 6, 1925.

body is what constitutes "intent." Since it is difficult to ascertain the singular intent of hundreds of representatives, intentionalists view extrinsic legislative sources as legitimate sources of authority, insofar as it provides evidence of legislative intent. Intentionalists also consider the legislature's general purpose in construing a statute.

2. New textualists rely on the statutory language itself as the last best evidence of legislative intent. New textualism discards legislative history as an illegitimate source of authority because it does not pass through the legislative process. As a consequence, the new textualist view conceives this aspect of statutory interpretation as constitutionally mandated. The new textualists embrace a less strict vision of textualism in which absurd results are discarded along with legislative history, and statutory text is examined in context. The new textualists will consider other provisions of the same statute or similar provisions in the code, examine how borrowed statutes are interpreted, and consult contemporary dictionaries.
3. Pragmatism relies on multiple supporting arguments rather than any conclusive single argument. The authoritative sources associated with pragmatic theories, therefore, are eclectic and there is no single authoritative source. A judge will make arguments based on multiple factors and weigh competing arguments against each other.[4]

SUBSTANTIVE AND LINGUISTIC CANONS

Canons of interpretation are rules of construction that courts apply in the interpretation of statutes. They are classified either as linguistic or substantive. Linguistic canons apply rules of syntax to statutes. A classic example is "*inclusio unius est exclusio alterius*" which means "inclusion of the one is exclusion of the other."[5] The purpose of linguistic canons is to decipher the legislature's intent. Substantive canons, by contrast, can challenge legislative supremacy insofar as their purpose is to promote policies external to a statute.[6] Substantive canons "reflect judicially-based concerns,

4 *Id.* at 347-8.

5 Amy Coney Barrett, Substantive Canons and Faithful Agency, 90 B.U.L. Rev. 109 (2010).

6 *Id.*

grounded in the courts' understanding of how to treat statutory text with reference to judicially perceived constitutional priorities, pre-enactment common law practices, or specific statutorily based policies."[7] Linguistic or language canons determine the intent of the legislature "based on its choice of certain words rather than others, or its grammatical configuration of those words in a given sentence, or the relationship between those words and text found in other parts of the same statute or in similar statutes."[8]

Substantive canons are rules of interpretation inspired by values drawn from common law, statutes, and the Constitution.[9] Unlike linguistic canons, which rely on rules of grammar and syntax to aid courts in interpreting statutes,

> ....substantive canons "are not policy neutral" but rather "represent value choices by the Court." They usually take the form of clear statement rules or background presumptions that can only be overcome by clear evidence in the statutory text that Congress so intended. To give a few examples, courts will interpret legislation to avoid interfering with state sovereignty or limiting federal jurisdiction unless Congress has been "unmistakably clear" on those questions. Although clear statement rules are not new, courts have deployed them with increasing frequency over the past few decades.[10]

CANONS AND INDETERMINACY

Unfortunately, canons of construction, which evolved as a way to help resolve legal issues, are themselves the sources of indeterminacy. Scholars point out that for every canon there is an equal and opposite canon.[11] Over six decades ago, it was already pointed out that there are two opposing canons on almost every point.[12]

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7 Richard L. Hasen, *The Democracy Canon,* 62 Stan. L. Rev. 69, 92 (2009).

8 *Id.*

9 Amanda Frost, *Congress in Court,* 59 UCLA L. Rev. 914. 926-927 (2012).

10 *Id.* For an extended discussion of substantive canons, *see* William N. Eskridge, et al., Legislation and Statutory Interpretation 329-374 (2000).

11 Richard A. Posner, Statutory Interpretation in the Classroom and in the Courtroom, 50 U. Chi. L. Rev. 800, 806 (1983).

12 Karl L. Llewellyn, Remarks in the Theory of Appellate Decision and the Rules or Cannons About How Statutes are to be Construed, 3 Vand. L. Rev. 395, 401 (1950).

Because of the contradictory nature of some of these canons, the courts' reliance on these principles can sometimes engender disagreement within a collegial court. In *De Castro v. Judicial and Bar Council*,[13] the Supreme Court allowed the President to appointment the Chief Justice despite a ban on appointments during an election period. The dissent of Justice Carpio-Morales complained that "all rules of statutory construction revolt against the interpretation arrived at by the *ponencia*." Yet, the majority in the same case likewise invoked rules of interpretation in arriving at its conclusion. At one point, the majority held that:

> [I]t is axiomatic in statutory construction that the ascertainment of the purpose of the enactment is a step in the process of ascertaining the intent or meaning of the enactment, because the reason for the enactment must necessarily shed considerable light on "the law of the statute," i.e., the intent; hence, the enactment should be construed with reference to its intended scope and purpose, and the court should seek to carry out this purpose rather than to defeat it.[14]

De Castro illustrates the dilemma in interpretation. While purporting to be a set of objective standards, the fact that canons come in "opposite pairs" allows courts to invoke objectivity while justifying completely opposite conclusions. The canons of construction, therefore, are not divine directives but tools that can aid in interpretation. They can, because they contradict each other, be abused. As an aid to judicial function, a canon will "always be trumped by express statutory language or by clear evidence of legislative intent to the contrary" from the statutory environment or legislative history.[15]

Scholars develop theories on how to address this inconsistency. One view suggests that courts should give doctrines of statutory interpretation *stare decisis* effect. In this approach, "lower courts should be strictly bound by higher-court precedent, and the Supreme Court should be bound to follow its precedent unless there is a "special justification" for departing from precedent recognized by the Court's *stare decisis* doctrine."[16]

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13 G.R. No. 191002, March 17, 2010.

14 *Id.*

15 Michael Sinclair, *Only a Sith Thinks Like That : Llewellyn's Dueling Canons, Pairs Thirteen to Sixteen*, 53 N.Y.L. Sch. L .Rev. 953, 954 (2008).

16 Sydney Foster, Should Courts Give *Stare decisis* Effect to Statutory Interpretation Methodology?, 96 Geo. L.J. 1863 (2008).

Another view argues that the concept of the substantive canon[17] should be revitalized and expanded. This proposal suggests that judges "ought to develop a set of substantive canons, based on their own jurisprudential view, for each significant doctrinal area with which they regularly deal." These canons could provide legislators concrete guidance on how particular judges will interpret particular kinds of statutes and thus enable legislators to write statutes in such a way as to produce the results the legislators' desire. "These canons will also serve as the source of the extrinsic legal principles needed to resolve problems of ambiguity in hard statutory interpretation cases … Thus, they will serve as the necessary default rules for the cases in which the traditional sources of statutory interpretation fail to yield a determinate answer."[18]

LATIN MAXIMS

In Medieval England, Latin was the language of the church and education. At the beginning of the eighteenth century, Latin became the language of court records and led to the use of words like "versus" and "in re" in case titles. Lawyers then needed to have a working understanding of Latin because pleadings and records were written in that language, although English courts stopped using it over 200 years ago. The 2004 edition of Black's Law Dictionary listed between 2000 to 3000 Latin maxims. The use of Latin is in decline as English equivalents find their way to pleadings—but it is still used not to explain technical concepts but to lend an air of erudition to one's writing.[19]

Statutory construction is usually associated with certain rules that are expressed in Latin maxims. They are often regarded as "rules" although this may not be accurate. Graham presents an approach to the use of these maxims:

> The maxims of statutory interpretation are handy interpretative guidelines that are usually expressed in Latin phrases. Each of these Latin phrases

17 Andrew C. Spiropoulos, *Making Laws Moral: A Defense of Substantive Canons of Construction*, 2001 Utah L. Rev. 915, 934 (2001). Substantive canons establish policy rules and presumptions in interpreting statutes. An example of a substantive canon is the use of the rule of lenity in interpreting penal statutes. The rule provides that if a criminal statute is subject to different interpretations, a judge must choose the interpretation that is most lenient to the accused. Another example is the clear statement rule that requires a legislature to state its intentions clearly. Otherwise, the court will retain the status quo.

18 *Id.*

19 Peter M. Tiersma, *Some Myths About Legal Language*, 2 Law, Culture & Humanities 32-33 (2008).

> refers to a specific principle of statutory construction that can help courts interpret legislation. From a certain perspective, the maxims form a code of "statutory grammar" that helps us understand patterns of language in legislative texts. The maxims are unlike many of the standard rules of grammar, however, in that the maxims are not hard and fast rules of universal application. The maxims are more akin to rules of statistical probability than to prescriptive rules of grammar that apply in all cases. While maxims *often* describe the result that ought to be reached when particular problems of interpretation arise, they differ from true grammatical rules in that the court is free to ignore the maxims whenever it deems reliance on a maxim inappropriate. Rather than binding a court and forcing it to reach a pre-ordained construction of a legislative passage, the maxims simply describe what drafters *probably* meant through the use of specific patterns of language. For this reason, it is best to regard the maxims as sources of argument rather than as binding rules that force the court to render particular decisions.[20]

There are hundreds of Latin maxims that are applied not only to guide judges in construing statutes but also in construing legal instruments. Some maxims lay down rules for the appreciation of evidence or the determination of liability. Many concepts familiar to students of law had Latin origins at some point. For example:

1. *Leges posteriores priores abrogant.* Subsequent laws repeal former ones.
2. *Magis de bono quam de malo lex intendit.* The law favors a good rather than of a bad construction. If in a contract the words used are capable of two constructions, the one in conformity with, and the other against the law, the former is adopted.
3. *Quoties in verbis nulla est ambiguitas, ibi nulla expositio contra verba fienda est.* When there is no ambiguity in the language of an instrument, no interpretation is to be made contrary to the words.
4. *Statuta pro publico commode late interpretantur.* This means that statutes passed for the public good should be construed literally.[21]

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20 R. N. Graham, *In Defense of Maxims*, 22 Statute Law Review 45, 46 (2001).

21 John N. Cotterell, A Collection of Latin Maxims & Phrases (3rd. Ed., 1913). The full text of the book may be accessed at http://archive.org/stream/cu31924021688670/cu31924021688670_djvu.txt.

GENERAL AND PARTICULAR USES OF WORDS

A statute is not rendered uncertain and void merely because it used general terms, or it failed to define words that were used. There is no positive constitutional or statutory command requiring the legislature to define each and every word in an enactment. Congress is not restricted in the form of expression of its will, and its inability to so define the words employed in a statute will not necessarily result in the vagueness or ambiguity of the law so long as the legislative will is clear, or at least, can be gathered from the whole act.[22] The Court said in another case that lawmakers "have no positive constitutional or statutory duty to define each and every word in an enactment, as long as the legislative will is clear, or at least, can be gathered from the whole act, which is distinctly expressed in [Batas Pambansa Blg. 33], as amended."[23]

In the construction of statutes, the terms used are generally to be given their ordinary meaning, that is, such meaning which is ascribed to them when they are commonly used, to the end that absurdity in the law must be avoided. And when the interpretation of a statute according to the exact and literal import of its words would lead to absurdity, it should be construed according to the spirit and reason, disregarding if necessary the letter of the law. This principle is demonstrated in the case of *Matuguina Integrated Wood Products, Inc. (MIWPI) v. Court of Appeals.*[24]

Milagros Matuguina, who was then doing business under the name of Matuguina Logging Enterprises (MLE), a sole proprietorship venture, was a grantee of a Provisional Timber License. She and petitioner MIWPI executed a Deed of Transfer, transferring all of the former's rights, interests, ownership, and participation in Provincial Timber License to the latter for and in consideration of shares of stocks in MIWPI. Pending approval of the transfer, DAVENCOR complained to the District Forester at Mati, Davao Oriental that Milagros Matuguina/MLE had encroached into and was conducting logging operations in DAVENCOR's timber concession. The Investigating Committee and the Director of Forest Development both found in favor of DAVENCOR and held MLE liable. Upon appeal, the Minister of Natural Resources affirmed the Director's ruling. The Minister then issued a writ of execution against "MLE and/or MIWPI." MIWPI then filed an action for Prohibition, Damages and Injunction, in order to prevent the Minister

22 Estrada v. Sandiganbayan, G.R. No. 148560, November 19, 2001.

23 Perez v. LPG Refillers Association of the Philippines, G.R. No. 159149, August 28, 2007.

24 G.R. No. 98310, October 24, 1996.

of Natural Resources from enforcing its Order of Execution against it. It argued that MIWPI has a distinct and separate personality of its own under the law, and was never a party to the case between DAVENCOR and MLE. The respondents, meanwhile, cite Section 61 of Presidential Decree No. 705 to establish MIWPI's succession to the liability of Milagros Matuguina/MLE. The said section, in part, provides: "The licensee, lessee, or permittee shall be allowed to transfer or convey his license agreement, license, lease, or permit… and the transferee shall assume all the obligations of the transferor."

The Supreme Court held that even if it is mandated in Section 61 that "the transferee shall assume all the obligations of the transferor," this does not mean that all obligations are assumed, indiscriminately. The term "obligations" as used in the final clause of the second paragraph of Section 61 of the law is construed to mean those obligations incurred by the transferor in the ordinary course of business. It cannot be construed to mean those obligations or liabilities incurred by the transferor as a result of transgressions of the law, as these are personal obligations of the transferor, and could not have been included in the term "obligations" absent any modifying provision to that effect.

The general rule in construing words and phrases used in a statute is that in the absence of legislative intent to the contrary, they should be given their plain, ordinary, and common usage meaning. A literal interpretation of a statute is to be rejected, however, if it will operate unjustly, lead to absurd results, or contract the evident meaning of the statute taken as a whole. Statutes should receive a sensible construction, such as will give effect to the legislative intention and so as to avoid an unjust or an absurd conclusion. Indeed, courts are not to give words meanings that would lead to absurd or unreasonable consequences. [25]

In *Tan v. People*,[26] the Supreme Court held that "lumber is included in the term timber" because the Forestry Reform Code uses the term lumber in its ordinary or common usage. When Forest Guards intercepted and confiscated two dump trucks, one of which was loaded with narra and white lauan lumber, while the other with tanguile lumber, the owner of the vehicles, Alejandro Tan, was charged with a violation of Section 68, Presidential Decree No. 705, as amended by Executive Order No. 277. The law expressly provides that the cutting, gathering, collecting and/or possession, without license, of timber and other forest products are prohibited. Tan argued

25 Secretary of Justice v. Koruga, G.R. No. 166199, April 24, 2009.

26 G.R. No. 115507, May 19, 1998.

that the Forestry Reform Code and the laws and regulations of the Department of Environment and Natural Resources distinguish between timber and lumber and between lumber and other forest products. He then averred that possession of manufactured lumber is not punishable under the Forestry Reform Code.

The Supreme Court cited its ruling in *Mustang Lumber, Inc. v. Court of Appeals*,[27] in which it expressly ruled that "lumber is included in the term timber" because it observed that the Code uses the term lumber in its ordinary or common usage. Section 68 of Presidential Decree No. 705, as amended, made no distinction between raw or processed timber, and thus the Court also did not, invoking *ubi lex non distinguit nec nos distinguire debemus*.

On the other hand, the Court, in *Bernardo v. Bernardo,*[28] differentiated between the meaning of "actual" and "bona fide" occupants as used in Commonwealth Act No. 359.

In 1947, the Republic of the Philippines purchased from the Roman Catholic Church the estate known as the "Capelania de Tambobong" under the provisions of Section 1 of Commonwealth Act No. 539. Said Act authorizes the expropriation or purchase of private lands and that lands acquired thereunder should be subdivided into lots, for resale at reasonable prices to "their bona fide tenants or occupants." Disputing the right of preference to the acquisition of the lot were Crisostomo Bernardo, who is the owner of the house standing on said lot since 1944 and who has held the land in lawful tenancy since 1912, paying rents and taxes thereon; and Enrique Bernardo, who was allowed by the former, out of deference and charity, to gratuitously occupy the lot and live there since 1918. The latter sought to justify his stand by claiming that the policy of the government, ever since the start of the American sovereignty, had been to acquire the landed estates for the benefit of their "actual occupants," as allegedly exemplified in Acts 1170 and 1933 (Friar Lands' Acts), and Commonwealth Acts Nos. 20, 260, 378, and 539 (Homesite Acts); that the words "bona fide occupants" employed in the Commonwealth Acts are equivalent to "actual" occupants.

The Court ruled that the term "bona fide occupant" has been defined as "one who supposes he has a good title and knows of no adverse claim;" or "one who not only honestly supposes himself to be vested with true title but is ignorant that the title is contested by any other person claiming a superior right to it." As such, the

27 G.R. No. 123784, June 18, 1996.

28 G.R. No. L-5872, November 29, 1954.

essence of the bona fide or good faith lies in the honest belief in the validity of one's right, ignorance of a superior claim, and absence of intention to over each other. The Court found petitioner Enrique Bernardo fell short of this standard because of the precarious nature of his occupancy, as mere licensee of respondents, duty bound to protect and restore that possession to its real and legitimate holders upon demand; and since 1945, even before the Government's purchase, he had been required to vacate. Thus he was bereft of all stable interest in the land. The Court reasoned that Section 7 of Act No. 1170 of the old Philippine Legislature employs the terms "actual bona fide settlers and occupants," plainly indicating that "actual" and "bona fide" are not synonymous, while the Commonwealth Acts deleted the term "actual" and solely used the words "bona fide occupant," thereby emphasizing the requirement that the prospective beneficiaries of the acts should be endowed with legitimate tenure.

In *Malanyaon v. Lising,*[29] the Court distinguished between the terms "acquittal" and "dismissal" in interpreting Section 13 of the Anti-Graft and Corrupt Practices Act which allows payment of salaries corresponding to the period of suspension of officers who had been acquitted of the offense. The Court held that when the statute speaks of the suspended officer being "acquitted," it means that after due hearing and consideration of the evidence against him, the court is of the opinion that his guilt has not been proved beyond reasonable doubt. Dismissal of the case against the suspended officer will not suffice because dismissal does not amount to acquittal. The Court cited the case of *People v. Salico*[30] where it was ruled that, to wit: "Acquittal is always based on the merits, that is, the defendant is acquitted because the evidence does not show that defendant's guilt is beyond a reasonable doubt; but dismissal does not decide the case on the merits or that the defendant is not guilty… Dismissal terminates the proceeding, either because the court is not a court of competent jurisdiction, or the evidence does not show that the offense was committed within the territorial jurisdiction of the court, or the complaint or information is not valid or sufficient in form and substance, etc.… The only case in which the word dismissal is commonly but not correctly used, instead of the proper term acquittal, is when, after the prosecution has presented all its evidence, the defendant moves for the dismissal and the court dismisses the case on the ground that the evidence fails to show beyond a reasonable doubt that the defendant is guilty; for in such case the dismissal is in reality an acquittal because the case is decided on the merits."

29 G.R. No. L-56028, July 30, 1981.

30 G.R. No. L-1567, October 13, 1949.

ASSOCIATED WORDS

NOSCITUR A SOCIIS

Under the principle of *noscitur a sociis*, when a particular word or phrase is ambiguous in itself or is equally susceptible of various meanings, its correct construction may be made clear and specific by considering the company of words in which it is found or with which it is associated.[31] Every meaning to be given to each word or phrase must be ascertained from the context of the body of the statute since a word or phrase in a statute is always used in association with other words or phrases, and its meaning may be modified or restricted by the latter.[32]

In *People v. Delantar,*[33] the defendant was found guilty of violating Section 5 of Republic Act No. 7610, but another issue that arose was whether the maximum penalty should be imposed. According to Section 31 (c) of the same law, relationship is an ordinary generic aggravating circumstance, which, although not alleged in the information, can be taken into account in fixing the penalty for the crime because it was proven. Section 31 (c) contains a list of the circumstances of relationship between the perpetrator and the victim, which justifies the imposition of the maximum penalty, namely when the perpetrator is an "*ascendant, parent, guardian, stepparent or collateral relative within the second degree of consanguinity or affinity.*" The Court found that the words with which "guardian" are associated all denote a legal relationship. It concluded that "the guardian envisioned by law is a person who has a legal relationship with a ward." Since the defendant was neither the victim's biological parent nor the adoptive father, he is not the "guardian" contemplated by law.

In *Aisporna v. Court of Appeals*,[34] the Supreme Court maintained that the definition of an insurance agent as found in the *second* paragraph of Section 189 of the Insurance Act is intended to define the word "agent" mentioned in the *first* and *second* paragraphs of the aforesaid section, noting that it is even explicitly provided in the second paragraph that the definition of an insurance agent is within the intent of Section 189, to wit: "Any person who for compensation… shall be an insurance agent within the intent of this section." The Court held that legislative intent must be ascertained from a consideration of the statute as a whole, and that the particular

31 Coca-Cola Bottlers Phils., Inc. v. Gomez, G.R. No. 154491, November 14, 2008.

32 Chavez v. Judicial and Bar Council, G.R. No. 202242, July 17, 2012.

33 G.R. No. 169143, February 2, 2007.

34 G.R. No. L-39419, April 12, 1982.

words, clauses and phrases should not be studied as detached and isolated expressions, but the whole and every part of the statute must be considered in fixing the meaning of any of its parts and in order to produce harmonious whole. The doctrine of associated words provides that where a particular word or phrase in a statement is ambiguous in itself or is equally susceptible of various meanings, its true meaning may be made clear and specific by considering the company in which it is found or with which it is associated. Thus, Aisporna was acquitted from the charge of violation of Section 189 of the Insurance Act for allegedly soliciting the insurance application of Eugenio Isidro, for and in behalf of Perla Compania de Seguros, without having first secured a certificate of authority to act as such agent from the office of the Insurance Commissioner. The Court upheld Aisporna's defense that the information filed against her failed to allege that she received compensation for acting as an agent.

In defining the jurisdiction of the Labor Arbiter in *Dai-Chi Electronics Manufacturing Corporation v. Villarama, Jr.*,[35] the Supreme Court ruled that while paragraph 3 of Article 217 of the Labor Code refers to "all money claims of workers," it is not necessary to suppose that the entire universe of money claims that might be asserted by workers against their employers has been absorbed into the original and exclusive jurisdiction of labor arbiters. The Court gave three reasons. First, paragraph 3 should be read not in isolation from but rather within the context formed by paragraph 1 (relating to unfair labor practices), paragraph 2 (relating to claims concerning terms and conditions of employment), paragraph 4 (claims relating to household services, a particular species of employer-employee relations), and paragraph 5 (relating to certain activities prohibited to employees or to employers). The unifying element, which runs through paragraphs 1 to 5 is that they all refer to cases or disputes arising out of or in connection with an employer-employee relationship. Thus, *noscitur a sociis* may be usefully invoked in clarifying the scope of paragraph 3, and any other paragraph of Article 217 of the Labor Code, as amended. Therefore, the "money claims of workers" referred to in paragraph 3 of Article 217 embraces money claims, which arise out of or in connection with the employer-employee relationship or some aspect or incident of some relationship. Put a little differently, that money claims of workers, which now fall within the original and exclusive jurisdiction of labor arbiters, are those money claims which have some reasonable causal connection with the employer-employee relationship. The regional trial court thus erred in dismissing

35 G.R. No. 112940, November 21, 1994.

the complaint for damages filed by Dai-chi Electronics against Adonis Limjuco, its former employee, on the ground that it had no jurisdiction over the alleged violation of paragraph five of their Contract of Employment which prohibited the latter for a period of two years after termination of service from being "connected and/or employed" in any manner with or being a consultant for any business firm, entity or undertaking engaged in a business similar to or in competition with that of Dai-chi Electronics.

EJUSDEM GENERIS

Under the principle of *ejusdem generis*, where a statute describes things of a particular class or kind accompanied by words of a generic character, the generic word is usually limited to things of a similar nature with those particularly enumerated, unless there be something in the context of the statute that would repel such inference.[36] Stated otherwise,

> [W]here general words follow an enumeration of persons or things, by words of a particular and specific meaning, such general words are not to be construed in their widest extent, but are to be held as applying only to persons or things of the same general kind or class as those specifically mentioned. But this rule must be discarded where the legislative intention is plain to the contrary.[37]

The words "gambling and other prohibited games of chance," which local government units are permitted to prevent or suppress under Section 458 of the Local Government Code, have been limited by the Court to illegal gambling. The Court explained that the provision excludes games of chance, which are not prohibited but are in fact permitted by law. Under the rule of *noscitur a sociis*, a word or phrase should be interpreted in relation to, or given the same meaning of, words with which it is associated. From this, the Court distinguished between legal and illegal gambling. Since the word "gambling" is associated with "and other prohibited games

36 Benguet State University v. Commission on Audit, G.R. No. 169637, June 8, 2007.

37 Guzman v. Commission on Elections, G.R. No. 182380, August 28, 2009.

of chance," the word should be read as referring to only illegal gambling which, like the other prohibited games of chance, must be prevented or suppressed.[38]

In *Philippine Basketball Association (PBA) v. Court of Appeals*,[39] the PBA received an assessment letter from the Commissioner of Internal Revenue for the payment of deficiency amusement tax. Citing the Bureau of Internal Revenue's Memorandum Circular No. 49-73, PBA contended that Presidential Decree No. 231 (Local Tax Code of 1973) transferred the power and authority to levy and collect amusement taxes from the sale of admission tickets to places of amusement from the national government to the local governments. Section 13 of the Local Tax Code provided: "The province shall impose a tax on admission to be collected from the proprietors, lessees, or operators of theaters, cinematographs, concert halls, circuses and other places of amusement."

The Supreme Court held that Section 13 indicates that the province can only impose a tax on admission from the proprietors, lessees, or operators of theaters, cinematographs, concert halls, circuses and other places of amusement, and that the authority to tax professional basketball games is not therein included, as the same is expressly embraced in Presidential Decree No. 1959, which provided that the "proprietor, lessee or operator of…professional basketball games" is required to pay an amusement tax equivalent to fifteen per centum (15%) of their gross receipts to the Bureau of Internal Revenue, and the said payment of amusement tax is in lieu of all other percentage taxes of whatever nature and description. The principle of *ejusdem generis* states that where general words follow an enumeration of persons or things by words of a particular and specific meaning, such general words are not to be construed in their widest extent, but are to be held as applying only to persons or things of the same kind or class as those specifically mentioned. Thus, in determining the meaning of the phrase "other places of amusement," one must refer to the prior enumeration of theaters, cinematographs, concert halls and circuses with artistic expression as their common characteristic. Professional basketball games do not fall under the same category as theaters, cinematographs, concert halls and circuses as the latter basically belong to artistic forms of entertainment, while the former caters to sports and gaming.

38 Magtajas v. Pryce Properties Corporation, Inc., G.R. No. 111097, July 20, 1994.

39 G.R. No. 119122, August 8, 2000.

The case of *Republic v. Santua*[40] qualified Section 3 (f) of Republic Act No. 26, which allows the presentation of "any other document which, in the judgment of the court, is sufficient and proper basis for reconstituting the lost or destroyed certificate of title." The Court, following the principle of *ejusdem generis* in statutory construction, ruled that "any document" mentioned in Section 3 should be interpreted to refer to documents similar to those previously enumerated therein. First, the documents enumerated in Section 3 (a), (b), (c), (d) and (e) are documents that had been issued or are on file with the Register of Deeds, thus, highly credible. Second, they are documents from which the particulars of the certificate of title or the circumstances which brought about its issuance could readily be ascertained. Therefore, the tax declaration, survey plan, and technical description of the respective lots filed by Dominador Santua were held insufficient as self-serving and devoid of factual support.

EXPRESSIO UNIUS EST EXCLUSIO ALTERIUS

The express mention of one person, thing, act, or consequence excludes all others.[41] A statute expressly limited to certain matters by its own terms may not, by interpretation or construction, be extended to others. The rule is based on the presumption that the legislature would not have made specified enumerations in a statute had the intention been not to restrict its meaning and to confine its terms to those expressly mentioned.[42]

The principle of *expressio unius est exclusio alterius* does not apply where other circumstances indicate that the enumeration in the law was not intended to be exclusive, or where the enumeration is listed only to show examples. The maxim should be applied only as a means of discovering legislative intent, which is not otherwise clear.[43]

The rule was applied in the case of *Catu v. Rellosa*.[44] There, the Supreme Court held that the Local Government Code partially limits governors, mayors, provincial board members and councilors from practicing their professions, or engaging in

40 G.R. No. 155703, September 8, 2008.

41 Nasipit Integrated Arrastre and Stevedoring Services, Inc. v. Nasipit Employees Labor Union, G.R. No. 162411, June 27, 2008.

42 Dazon v. Yap and People of the Philippines, G.R. No. 157095, January 15, 2010.

43 Sterling Selections Corporation v. Laguna Lake Development Authority, G.R. No. 171427, March 30, 2011.

44 A.C. No. 5738, February 19, 2008.

any occupation, but there is no such limit placed on the *punong barangay* and the members of the *sangguniang barangay*. Since they are excluded from any prohibition, the presumption is that they are allowed to practice their profession. The barangay officials, after all, are not mandated to serve full time but are required to hold regular sessions only twice a month.

In *Centeno v. Villalon-Pornillos,*[45] the Supreme Court declared that where a statute, by its terms, is expressly limited to certain matters, it may not, by interpretation or construction, be extended to others. The legislature would not have made specified enumerations in a statute had the intention been not to restrict its meaning and to confine its terms to those expressly mentioned. In ruling in favor of the tax exemption of the fund drive held by Samahang Katandaan ng Nayon ng Tikay for the renovation of the chapel of Barrio Tikay, Malolos, Bulacan, the Court noted that the 1987 Constitution, as well as several other statutes, treated the words "charitable" and "religious" separately and independently of each other. The word "charitable" is only one of three descriptive words used in Section 28 (3), Article VI of the Constitution, which provides that "charitable institutions, churches and personages… and all lands, buildings, and improvements, actually, directly, and exclusively used for religious, charitable, or educational purposes shall be exempt from taxation." The Court also said that Sections 26 (e) and 28 (8) (E) of the National Internal Revenue Code; Section 88 of the Corporation Code; and Section 234 (b) of the Local Government Code specifically spelled out "charitable" and "religious" in an enumeration, whereas Presidential Decree No. 1564 (Solicitation Permit Law) merely stated "charitable or public welfare purposes," which goes to show that the framers of the law in question never intended to include solicitations for religious purposes within its coverage. Otherwise, there is no reason why it would not have so stated expressly. The Court further explained that "religious purpose" is not interchangeable with the expression "charitable purpose." Although all religious purposes are also charitable, there may be a "charitable" purpose which is not "religious" in the legal sense of the term because the former is a broader term.

Penalties for election offenses under Batas Pambansa Blg. 881 have also been limited by the Court in ruling that, while Section 232 categorically states that it is unlawful for the persons referred therein to enter the canvassing room, this act is not one of the election offenses criminally punishable under Sections 261 and 262. The act involved in Section 232 is not punishable as a criminal election offense. The

45 G.R. No. 113092, September 1, 1994.

express mention of one person, thing, or consequence implies the exclusion of all others. Where a statute, by its terms, is expressly limited to certain matters, it may not, by interpretation or construction, be extended to other matters. The principle proceeds from the premise that the legislature would not have made a specified enumeration in a statute had the intention been not to restrict its meaning and confine its terms to those expressly mentioned.[46]

The Supreme Court in the case of *San Pablo Manufacturing Corporation v. Commissioner of Internal Revenue*[47] ruled that tax exemptions must not be so enlarged by construction since the reasonable presumption is that the State has granted in express terms all it intended to grant and that, unless the privilege is limited to the very terms of the statute, the favor would be intended beyond what was meant. Where the law enumerates the subject or condition upon which it applies, it is to be construed as excluding from its effects all those not expressly mentioned. *Expressio unius est exclusio alterius*. Anything that is not included in the enumeration is excluded and a meaning that does not appear nor is intended or reflected in the very language of the statute cannot be placed therein. The rule proceeds from the premise that the legislature would not have made specific enumerations in a statute if it had the intention not to restrict its meaning and confine its terms to those expressly mentioned.

In that case, the Commissioner of Internal Revenue imposed deficiency miller's tax on San Pablo Manufacturing Corporation's (SPMC) sales of crude oil to United Coconut Chemicals, Inc. for the taxable year 1987. SPMC maintained that it was not liable for the 3% miller's tax because Section 168 of the 1987 Tax Code contemplates two exemptions from the miller's tax: (a) the milled products in their original state were actually exported by the miller himself or by another person, and (b) the milled products sold by the miller were actually exported as an ingredient or part of any manufactured article by the buyer or manufacturer of the milled products. SPMC believed that the exportation may be effected by the miller himself or by the buyer or manufacturer of the milled products. Thus, since UNICHEM, the buyer of SPMC's milled products, subsequently exported said products, SPMC should be exempted from the miller's tax.

The Supreme Court found the language of the exempting clause of Section 168 of the 1987 Tax Code to be clear: that the tax exemption applied only to the

46 Malinias v. Commission on Elections, G.R. No. 146943, October 4, 2002.

47 G.R. No. 147749, June 22, 2006.

exportation of "rope, coconut oil, palm oil, copra by-products and dessicated coconuts," whether in their original state or as an ingredient or part of any manufactured article or products, by the proprietor or operator of the factory or by the miller himself. According to the Court, nowhere is it provided that the exportation made by the purchaser of the materials enumerated in the exempting clause or the manufacturer of products utilizing the said materials was covered by the exemption. Thus, since SPMC's situation was not within the ambit of the exemption, it was subject to the 3% miller's tax imposed under Section 168 of the 1987 Tax Code. SPMC's proposed interpretation unduly enlarged the scope of the exemption clause.

The Court also had the occasion to rule, on the basis of *expressio unius est exclusio alterius*, on the Rules on Summary Procedure. By way of exception, the Rules permits only a motion to dismiss on the ground of lack of jurisdiction over the subject matter and does not mention the ground of lack of jurisdiction over the person. Allegations on the matter of lack of jurisdiction over the person by reason of improper service of summons, by itself, without a convincing showing of any resulting substantive injustice, cannot be used to hinder or stop the proceedings before the Metropolitan Circuit Trial Court in an ejectment suit. With more reason, such ground should not be used to justify the violation of an express prohibition in the rules prohibiting the petition for *certiorari*.[48]

The Philippine Amusement and Gaming Corporation (PAGCOR) is now required to pay income taxes. In *PAGCOR v. Bureau of Internal Revenue*,[49] the Supreme Court interpreted the impact of Section 1 of Republic Act No. 9337 on Section 27 (c) of the National Internal Revenue Code of 1997. The Court declared that the legislative intent shown by the discussions in the Bicameral Conference Meeting was to require PAGCOR to pay corporate income tax. The Court cited the basic precept of statutory construction that the express mention of one person, thing, act, or consequence excludes all others—*expressio unius est exclusio alterius.* The express mention of government-owned or controlled corporations exempted from payment of corporate income tax excludes all others. Not being excepted, PAGCOR must be regarded as coming within the purview of the general rule that GOCCs shall pay corporate income tax.

A maxim closely related to *expressio unius est exclusio alterius* is *exceptio firmat regulam in casibus non exceptis* which means that that which is not excepted must fall within the general rule.

48 Victorias Milling Co., Inc. v. Court of Appeals, G.R. No. 168062, June 29, 2010.

49 G.R. No. 172087, March 15, 2011.

In one case, the Supreme Court observed that business registered in and operating from the Special Economic Zone in Naga, Cebu are exempt from all internal revenue taxes and the implementing rules relevant thereto, including the value-added taxes. Among others, the Court pointed out that under the Special Economic Zone Act of 1995 "no taxes, local and national, shall be imposed on business establishments operating within the ecozone." Since this law does not exclude the VAT from the prohibition, the Court reasoned, then it is deemed included—a thing not being excepted must be regarded as coming within the purview of the general rule.[50]

DISSIMILUM DISSIMILIS EST RATIO

The principle of *dissimilum dissimilis est ratio* means distinguishing when there are facts and circumstances showing that the legislature intended a distinction or qualification.[51]

The Court held that the Local Government Code sets a members' maximum age in the *Katipunan ng Kabataan* at twenty-one years only, but it gives a further qualification for elective *Sangguniang Kabataan* officials. According to the Code, elective *Sangguniang Kabataan* officials must be twenty-one years old on the day of their election; meaning, elective officials must not be more than twenty-one years old on the day of election. Consequently, the Court declared candidate for Chair, Lynette Garvida, ineligible for the position and ordered her to vacate the same.[52]

CASUS OMISUS PRO OMISSO HABENDUS EST

A corollary to *expressio unius est exclusio alterius* is the doctrine of *casus omisus pro omisso habendus est* which provides that a person, object or thing omitted from an enumeration must be held to have been omitted intentionally.[53] The rule applies only if and when the omission has been clearly established.[54]

In *Commission on Audit of the Province of Cebu v. Province of Cebu*,[55] the Court ruled that it is not its duty to supply such grant of scholarship where the legislature

50 Commissioner of Internal Revenue v. Seagate Technology (Philippines), G.R. No. 153866, February 11, 2005.

51 Garvida v. Sales, G.R. No. 124893, April 18, 1997.

52 *Id.*

53 Commission on Audit of the Province of Cebu v. Province of Cebu, G.R. No. 141386, November 29, 2001.

54 People v. Manantan, G.R. No. L-14129, July 31, 1982.

55 G.R. No. 141386, November 29, 2001.

has omitted it and where it is neither necessary nor indispensable to the operation and maintenance of public schools. In that case, the Province of Cebu charged college scholarship grants to its Special Education Fund, which the Commission on Audit disapproved. The Supreme Court held that such grants are not among the projects for which the proceeds of the Special Education Fund may be appropriated. It noted that Sections 100 (c) and 272 of the Local Government Code substantially reproduced Section 1, of Republic Act No. 5447. But unlike payment of salaries of teachers, which falls within the ambit of "establishment and maintenance of extension classes" and "operation and maintenance of public schools," the "granting of government scholarship to poor but deserving students" was omitted in Sections 100 (c) and 272 of the Local Government Code. *Casus omissus pro omisso habendus est.* A person, object, or thing omitted from an enumeration in a statute must be held to have been omitted intentionally. The doctrine of necessary implication cannot be applied inasmuch as the grant of scholarship is neither necessary nor indispensable to the operation and maintenance of public schools.

The Court also applied the rule of casus omissus in the later case of *Spouses Delfino v. St. James Hospital, Inc.*[56] The issue involved the omission of the phrase "hospital with not more than ten-bed capacity" in the new 1991 Zoning Ordinance, as opposed to the earlier 1981 Santa Rosa Municipal Zoning Ordinance regarding the construction of medical institutions within a residential zone. Respondent St. James Hospital was established in 1990 as a two-storey, ten-bed capacity hospital in Mariquita Pueblo Subdivision in Santa Rosa, Laguna. However, when it applied for a permit in 1994 with the Housing and Land Use Regulatory Board to expand its hospital into a four-storey, forty-bed capacity medical institution, the Sangguniang Panlalawigan of Laguna had already passed a resolution approving the 1991 Comprehensive Land Use Plan (CLUP) or the Comprehensive Zoning Ordinance of the Municipality of Santa Rosa, Laguna. Under the new Zoning Ordinance, hospitals have been excluded from the list of viable institutions within the residential zone of Santa Rosa, Laguna. But oblivious of the approval of the 1991 Zoning Ordinance, the Board Deputized Zoning Administrator for Santa Rosa, Laguna issued a Certificate of Zoning Compliance or Locational Clearance for the two-storey, ten-bed St. James Hospital, citing as basis the provisions of the 1981 Santa Rosa Municipal Zoning Ordinance. He also issued a Certificate of Locational Viability for a four-storey, forty-bed hospital expansion project in favor of St. James Hospital.

56 G.R. No. 166735, November 23, 2007.

Petitioner Spouses Delfino thus lodged a complaint with the Board, but the Board of Commissioners held that the establishment/expansion of the St. James Hospital is not a proscribed land use in the Mariquita Pueblo Subdivision.

The Supreme Court ruled that according to the rule of *casus omissus* in statutory construction, a thing omitted must be considered to have been omitted intentionally. Therefore, with the omission of the phrase "hospital with not more than ten capacity" in the new Zoning Ordinance, and the corresponding transfer of said allowable usage to another zone classification, the only logical conclusion is that the legislative body had intended that said use be removed from those allowed within a residential zone. Thus, the construction of medical institutions, such as St. James Hospital, within a residential zone had become prohibited under the 1991 Zoning Ordinance.

UBI LEX NON DISTINGUIT NEC NOS DISTINGUERE DEBEMUS

Where the law does not distinguish, courts should not distinguish. In *Philippine British Assurance Co., Inc. v. Intermediate Appellate Court,*[57] the Supreme Court explained that the rule derives from the principle that general words and phrases in a statute should ordinarily be accorded their natural and general significance. It requires that a general term or phrase should not be reduced into parts and one part distinguished from the other so as to justify its exclusion from the operation of the law. There should be no distinction in the application of a statute where none is indicated. Courts should administer the law, not as they think it ought to be, but as they find it and without regard to consequences. A corollary of the principle is the rule that where the law does not make any exception, courts may not make any exception, "unless there is compelling reason apparent in the law to justify it."

Act No. 1874, a law that authorized the payment of damages for the death of an employee, was applied in a case where the work rendered was temporary or occasional. As the Supreme Court explained, Act No. 1874 uses the term "employee" without any distinction between occasional or permanent employees. Unlike the Workmen's Compensation Act (Act No. 3428) which specifically excluded purely casual employment, Act No. 1874 did not. Clearly, Act No. 1874 (which applies only to mishaps in small industries and other activities in which the gross annual income is less than twenty thousand pesos) was intended to safeguard all laborers, regardless of the duration or character of their employment.[58]

57 G.R. No. 72005, May 29, 1987.

58 Daes v. We Ko, G.R. No. 48817, January 22, 1943.

Section 14 of Republic Act No. 7166 provides that "every candidate" has the obligation to file his statement of contributions and expenditures. As the law makes no distinction or qualification as to whether the candidate pursued his candidacy or withdrew the same, the term "every candidate" must be deemed to refer not only to a candidate who pursued his campaign, but also to one who withdrew his candidacy.[59]

In another case, the Court pointed out that Section 1 of Presidential Decree No. 1866 penalizes "any person who shall unlawfully manufacture, deal in, acquire, dispose, or *possess* any firearms, *part of firearm*, ammunition or machinery, tool or instrument used or intended to be used in the manufacture of any firearm or ammunition." The law makes no distinction as to serviceable or functional firearms. Indeed, the possession of even a part of a firearm is sufficient to come within the prohibitive ambit of the statute.[60]

The Supreme Court had also ruled that Section 1 of Republic Act No. 4200 clearly and unequivocally makes it illegal for any person, not authorized by all the parties to any private communication, to secretly record such communication by means of a tape recorder. The law makes no distinction as to whether the party sought to be penalized by the statute ought to be a party other than or different from those involved in the private communication. The statute's intent to penalize all persons unauthorized to make such recording is underscored by the use of the qualifier "any." Consequently, "even a (person) privy to a communication who records his private conversation with another without the knowledge of the latter (will) qualify as a violator" under Section 1 of Republic Act No. 4200.[61]

In one case, the defendant was charged with violating the Anti-Violence against Women and their Children Act of 2004.[62] He insisted, however, that the act, which resulted in physical injuries, is not covered by Republic Act No. 9262 because its proximate cause was not their dating relationship. He claimed that the offense committed was only slight physical injuries under the Revised Penal Code, which falls under the jurisdiction of the Municipal Trial Court. According to the Court:

> Nowhere in the law can such limitation be inferred. Hence, applying the rule on statutory construction that when the law does not distinguish,

59 Pilar v. Commission on Elections, G.R. No. 115245, July 11, 1995.

60 People v. Evaristo, G.R. No. 93828, December 11, 1992.

61 Ramirez v. Court of Appeals, G.R. No. 93833, September 28, 1995.

62 Republic Act No. 9262 (2004).

> neither should the courts, then, clearly, the punishable acts refer to all acts of violence against women with whom the offender has or had a sexual or dating relationship. As correctly ruled by the RTC, it is immaterial whether the relationship had ceased for as long as there is sufficient evidence showing the past or present existence of such relationship between the offender and the victim when the physical harm was committed.[63]

The same doctrine was applied in the case of *MTRCB v. ABS-CBN Broadcasting Corporation*[64] involving the jurisdiction of the Movie and Television Review and Classification Board. In that case, ABS-CBN's "Prosti-tuition," an episode of the television program "The Inside Story," depicted female students moonlighting as prostitutes to enable them to pay for their tuition fees. The Philippine Women's University (PWU) was named as the school of some of the students involved and the facade of the University's building conspicuously served as the background of the episode. The Chancellor of the University and the PWU Parents and Teachers Association filed letter-complaints with the MTRCB, alleging that the episode besmirched the name of the school and resulted in the harassment of some of its female students. The Board ordered ABS-CBN to pay a fine for non-submission of the program for review and approval of the Board, thus violating Section 74 of Presidential Decree No. 1986 and Section 3, Chapter III and Section 7, Chapter IV of the MTRCB Rules and Regulations. ABS-CBN sought exemption from the Board's review power under Section 3 of Presidential Decree. No. 1986, contending that it is excluded from the coverage of the term "television programs." ABS-CBN contended that the "The Inside Story" is a "public affairs program, news documentary and socio-political editorial" protected under Section 4, Article III of the Constitution. Section 3 (b) of Presidential Decree No. 1986 reads: "To screen, review and examine all motion pictures as herein defined, television programs…"

The Supreme Court cited its ruling in *Iglesia ni Cristo v. Court of Appeals*[65] where it held that Presidential Decree No. 1986 gives the Board "the power to screen, review and examine all television programs," emphasizing the phrase "all television programs." By the clear terms of the law, the Board has the power to 'approve, delete, and/or prohibit the exhibition and/or television broadcast of television programs.'

63 Dabalos v. Regional Trial Court, G.R. No. 193960, January 7, 2013.

64 G.R. No. 155282, January 17, 2005.

65 G.R. No. 119673, July 26, 1996.

Where the law does not make any exception, courts may not except something therefrom, unless there is compelling reason apparent in the law to justify it. *Ubi lex non distinguit nec distinguere debemus.* Thus, when the law says "all television programs," the word "all" covers all television programs, whether religious, public affairs, news documentary, etc. The principle assumes that the legislative body made no qualification in the use of general word or expression. Since "The Inside Story" is a television program, it is within the jurisdiction of the Board over which it has power of review.

With regard to labor cases, the Court held in *Tiangco v. Uniwide Sales Warehouse Club, Inc.*[66] that labor claims are included among the actions suspended upon the placing under rehabilitation of employer-corporations.

Tiangco and Manego, former employees of Uniwide Sales Warehouse Club, Inc., filed separate complaints for illegal dismissal, payment of separation pay as well as award of moral and exemplary damages in the National Labor Relations Commission. The complaints were consolidated and later considered as submitted for decision by the labor arbiter. The company filed a manifestation and motion praying that the proceedings on the consolidated cases be suspended on the ground that it had been placed in a state of suspension of payments by the Securities and Exchange Commission even before the complaints were filed, and a receivership committee had in fact been appointed. The labor arbiter acted favorably and suspended the proceedings until further orders from the Securities and Exchange Commission. Two years later, Tiangco and Manego filed a motion to reopen the case on the ground that the Commission had, at that time, already approved the second amendment to the rehabilitation plan of the company. The company opposed, arguing that the mere approval of the rehabilitation plan did not constitute a valid ground for the reopening of the cases. The arbiter granted the motion, which in turn, prompted the company to file a petition for *certiorari* in the Court of Appeals, imputing grave abuse of discretion on the part of the labor arbiter. The appellate court ruled that proceedings on the cases should remain suspended until further orders from the Securities and Exchange Commission, citing *Rubberworld (Phils.), Inc. v. NLRC*[67] and Sections 6 (b), 11 and 27, Rule 4 of the 2000 Interim Rules of Procedure on Corporate Rehabilitation.

66 G.R. No. 168697, December 14, 2009.

67 G.R. No. 126773, April 14, 1999.

The Supreme Court reiterated its ruling in *Rubberworld v. NLRC*, that labor claims are included among the actions suspended upon the placing under rehabilitation of employer-corporations. The Court explained that it is plain from section 6 (c) of Presidential Decree No. 902-A that "upon the appointment [by the Commission] of a management committee or a rehabilitation receiver," all actions for claims against the corporation pending before any court, tribunal or board shall *ipso jure* be suspended. No exception in favor of labor claims is mentioned in the law. Thus, since the law makes no distinction or exemptions, neither should court make any. *Ubi lex non distinguit nec nos distinguere debemus*. Allowing labor cases to proceed clearly defeats the purpose of the automatic stay and severely encumbers the management committee's time and resources. The said committee would need to defend against these suits, to the detriment of its primary and urgent duty to work towards rehabilitating the corporation and making it viable again.

REDDENDO SINGULA SINGULIS

The rule of *reddendo singula singulis* means "referring each to each; referring each phrase or expression to its appropriate object," or "let each be put in its proper place, that is, the words should be taken distributively."[68] In other words, words in different parts of a statute must be referred to their appropriate connection, giving to each in its place, its proper force and effect, and, if possible, rendering none of them useless or superfluous, even if strict grammatical construction demands otherwise. Where words under consideration appear in different sections or are widely dispersed throughout an act, the same principle applies.[69]

Reddendo singula singulis is best explained by example. Graham provides us with this helpful explanation:

> Consider the phrase "Men and women may become members of fraternities and sororities." This passage can be construed in several ways. On the one hand, perhaps it means that men may join both fraternities and sororities and that women may join fraternities and sororities as well. On the other hand, it could mean that men may become members of fraternities (but not sororities) and women may become members of sororities

68 People v. Tamani, G.R. Nos. L-22160-61, January 21, 1974.

69 City of Manila v. Laguio, Jr., G.R. No. 118127, April 12, 2005.

> (but not fraternities). This latter construction, which makes intuitive sense given the etymology of the terms "fraternities" and "sororities" is arrived at through the particular application of *reddendo*. *Reddendo* suggests that men should be matched with "fraternities" and women should be matched with "sororities," not because of the meaning of those words, but merely because of their placement within the relevant passage. Each grammatical subject is "referred" to its corresponding object. Thus in the phrase "police officers and judges must retire at the ages of 65 and 75," the word "respectively" is effectively tacked on to the end of the passage by *reddendo*, matching the first case mentioned (namely, police officers) with the first retirement age (65), and the second case mentioned (namely, judges) with the second retirement age (75).[70]

Reddendo was applied in *People v. Tamani*.[71] In that case, the Court of First Instance of Isabela found Teodoro Tamani guilty of murder of Jose Siyang and of attempted murder of Eduardo Domingo. A copy of the decision promulgated on February 14, 1963 was served on his counsel on February 25, 1963. On March 1, 1963, he filed a motion for reconsideration. It was denied. A copy of the order of denial was served by registered mail on July 13, 1963 on the wife of Tamani's counsel. He filed his notice of appeal only on September 10, 1963. Tamani's counsel filed a sworn statement accompanying the notice of appeal, stating that he came to know of the order only on September 7. The Solicitor General filed a motion to dismiss the appeal on the ground that the notice of appeal was forty-seven days from the promulgation of the judgment. He cited Section 6 of Rule 122 of the Rules Court, which provides: "An appeal must be taken within fifteen (15) days from promulgation or notice of the judgment or order appealed from." Tamani argued, however, that from the wording of Section 6, the reglementary fifteen-day period for appeal should be computed from the date of notification and not from the date of promulgation of the decision. Thus, he averred, the fifteen days should be counted from February 25, 1963, when a copy of the decision was allegedly served on appellant's counsel by registered mail.

The Supreme Court, however, held that the appeal should be effected within fifteen days from the promulgation of the judgment. It reasoned that the word

70 R. N. Graham, *In Defense of Maxims*, 22 Statute Law Review 57 (2001).

71 G.R. No. 22160, January 21, 1974.

"promulgation" in Section 6 should be construed as referring to "judgment," while the word "notice" should be construed as referring to "order" as sanctioned by the rule of *reddendo singula singulis*: "referring each to each; referring each phrase or expression to its appropriate object," or "let each be put in its proper place, that is, the words should be taken distributively." Therefore, when the order denying Tamani's motion for reconsideration was served by registered mail on July 13 on his counsel, he had only one day within which to file his notice of appeal and not eleven days. Thus, Tamani's notice of appeal, which was filed on September 10, 1963, was fifty-eight days late.

In another case,[72] Alfredo Amadora went to Colegio de San Jose-Recoletos on April 13, 1972, and while in its auditorium was shot to death by Pablito Daffon, a classmate. Amadora's parents filed a civil action for damages under Article 2180 of the Civil Code against San Jose-Recoletos, its rector, the high school principal, the dean of boys, and the physics teacher. The trial court found the defendants liable, but the Court of Appeals reversed its finding, ruling instead that Article 2180 was not applicable as the Colegio de San Jose-Recoletos was not a school of arts and trades but an academic institution of learning.

Taking from the dissenting opinion of Justice J.B.L. Reyes in the case of *Exconde v. Capuno,*[73] the Supreme Court declared that Article 2180 should apply to all schools, academic as well as non-academic. However, the Court distinguished that, as a general rule, where the school is academic rather than technical or vocational in nature, responsibility for the tort committed by the student will attach to the teacher in charge of such student, following the first part of the provision.[74] In the case of establishments of arts and trades, it is the head thereof, and only he, who shall be held liable as an exception to the general rule. Following the canon of *reddendo singula singulis*, "teachers" should apply to the words "pupils and students" and "heads of establishments of arts and trades" to the word "apprentices."[75]

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72 Amadora v. Court of Appeals, G.R. No. L-47745, April 15, 1988.

73 G.R. No. 10134, June 29, 1957.

74 Art. 2180 of the Civil Code states:

> The obligation imposed by Article 2176 is demandable not only for one s own acts or omissions, but also for those of persons for whom one is responsible.…
>
> Lastly, teachers or heads of establishments of arts and trades shall be liable for damages caused by their pupils and students or apprentices, so long as they remain in their custody.…

75 Amadora v. Court of Appeals, G.R. No. L-47745, April 15, 1988.

DOCTRINE OF NECESSARY IMPLICATION

The doctrine of necessary implication states that every statutory grant of power, right or privilege is deemed to include all incidental power, right or privilege.[76] Every statute, explained the Court in another case, is understood, by implication, to contain all such provisions as may be necessary to effectuate its object and purpose, or to make effective rights, powers, privileges or jurisdiction which it grants, including all such collateral and subsidiary consequences as may be fairly and logically inferred from its terms.[77]

The Supreme Court explained the rationale for this doctrine in this way:

> No statute can be enacted that can provide all the details involved in its application. There is always an omission that may not meet a particular situation. What is thought, at the time of enactment, to be an all-embracing legislation may be inadequate to provide for the unfolding events of the future. So-called gaps in the law develop as the law is enforced. One of the rules of statutory construction used to fill in the gap is the doctrine of necessary implication. The doctrine states that what is implied in a statute is as much a part thereof as that which is expressed. Every statute is understood, by implication, to contain all such provisions as may be necessary to effectuate its object and purpose, or to make effective rights, powers, privileges or jurisdiction which it grants, including all such collateral and subsidiary consequences as may be fairly and logically inferred from its terms. *Ex necessitate legis*. And every statutory grant of power, right or privilege is deemed to include all incidental power, right or privilege. This is so because the greater includes the lesser, expressed in the maxim, *in eo plus sit, simper inest et minus.*[78]

For example, while Article 245 of the Labor Code does not directly prohibit confidential employees from engaging in union activities, the Supreme Court held that they are. Under the doctrine of necessary implication, the disqualification of

76 Department of Environment and Natural Resources v. United Planners Consultants, Inc., G.R. No. 212081, February 23, 2015.

77 In re Court s Financial Offices, A.M. No. 14-04-02-SC (Notice), August 12, 2014.

78 Chua v. Civil Service Commission, G.R. No. 88979, February 7, 1992.

managerial employees equally applies to confidential employees. The confidential employee rule justifies exclusion of confidential employees because in the normal course of their duties, they become aware of management policies relating to labor relations. When the employee does not have access to confidential labor relations information, there is no legal prohibition against confidential employees from forming, assisting, or joining a union.[79]

The same principle was applied to supervisory employees in the case of *National Association of Trade Union-Republic Planters Bank Supervisors Chapter v. Torres*.[80] The case involves a petition for certification election to determine the exclusive bargaining representative of the bank's employees occupying supervisory positions. The respondent interposed that the supposed supervisory employees were actually managerial and/or confidential employees who are ineligible to join, assist or form a union as specified by the Labor Code. The Court was tasked to determine whether or not the Department Managers, Assistant Managers, Branch Managers/Officers-in-Charge, Cashiers and Controllers of the bank are managerial and/or confidential employees.

Taking into account the evidence presented and applying the *doctrine of necessary implication*, the Court considered the rationale behind the disqualification of managerial employees from its engagement in union activities. In the case of *Bulletin Publishing Corporation v. Sanchez,*[81] managerial employees' affiliation with the union may put into question their loyalty to the union in view of evident conflict of interest. Collective bargaining can become one sided. Similarly, it has been held in the case of *Golden Farms Inc. v. Ferrer-Calleja*[82] that confidential employees have access to confidential information, which may become a source of undue advantage.

PROVISOS, EXCEPTIONS, AND SAVING CLAUSES

Provisos, Exceptions and Saving Clauses have the same effect. They qualify the effects of laws.

The general rule is that the office of a proviso is to qualify or modify only the phrase immediately preceding it or restrain or limit the generality of the clause that

79 Sugbuanon Rural Bank, Inc. v. Laguesma, G.R. No. 116194, February 2, 2000.
80 G.R. No. 93468, December 29, 1994.
81 G.R. No. 74425, October 7, 1986.
82 G.R. No. 78755, July 19, 1989.

it immediately follows. Thus, it has been held that a proviso is to be construed with reference to the immediately preceding part of the provision to which it is attached, and not to the statute itself or to other sections thereof. The only exception to this rule is where the clear legislative intent is to restrain or qualify not only the phrase immediately preceding it (the proviso) but also earlier provisions of the statute or even the statute itself as a whole.[83]

Provisos are especially useful when the government enacts measures to condone violations of the law or measures to provide for the marginalized. The Social Security Condonation Law of 2009[84] condoned the employers' failure to pay social security premiums subject to several conditions imposed by a spate of provisos:

> SECTION 3. *Installment Proposal.* — In the event that a delinquent employer chooses to submit an installment proposal, the SSS shall give due course to approve and grant the same, subject to the implementing rules and regulations as the Social Security Commission shall prescribe: *Provided,* That the employer shall remit, upon submission of the installment proposal, a downpayment of not less than five percent (5%) of its total contribution delinquency: *Provided, further,* That the employer shall remit the balance thereof in equal monthly installments within a period not exceeding forty-eight (48) months from the date of approval of the proposal: *Provided, finally,* That the installment payments shall bear an interest of three percent (3%) per annum.

Under the National Government Center (NGC) Housing and Land Utilization Act of 2003,[85] it is the policy of the State to secure the land tenure of the urban poor. The law opened lands located in the National Government Center, Quezon City for housing, socioeconomic, civic, educational, religious and other purposes. But note how the government guards against possible abuse of the law in the following section:

> SECTION 4. *Disposition of Certain Portions of the National Government Center Site for Local Government or Community Facilities, Socioeconomic, Charitable, Educational and Religious Purposes.* — Certain portions of land

83 Mercado v. National Labor Relations Commission, G.R. No. 79869, September 5, 1991.

84 Republic Act No. 9903 (2010).

85 Republic Act No. 9207 (2003).

> within the aforesaid area for local government or community facilities, socioeconomic, charitable, educational and religious institutions are hereby reserved for disposition for such purposes: *Provided,* That only those institutions already operating and with existing facilities or structures, or those occupying the land may avail of the disposition program established under the provisions of this Act: *Provided, further,* That in ascertaining the specific areas that may be disposed of in favor of these institutions, the existing site allocation shall be used as basis therefore: *Provided, finally,* That in determining the reasonable lot allocation of such institutions without specific lot allocations, the land area that may be allocated to them shall be based on the area actually used by said institutions at the time of effectivity of this Act.

Provisos can sometimes be found in the repealing clause of a law. See, for example, the repealing clause of the Revised Government Service Insurance Act of 1977[86], which actually contains provisos:

> SEC. 3. *Repealing Clause.* — All laws and any other law or parts of law specifically inconsistent herewith are hereby repealed or modified accordingly: *Provided,* That the rights under the existing laws, rules and regulations vested upon or acquired by an employee who is already in the service as of the effectivity of this Act shall remain in force and effect: *Provided, further,* That subsequent to the effectivity of this Act, a new employee or an employee who has previously retired or separated and is reemployed in the service shall be covered by the provisions of this Act.

Exceptions are strictly construed and apply only insofar as their language fairly warrants, with all doubts being resolved in favor of the general *proviso* rather than the exception.[87] Exceptions contained in constitutions are ordinarily given strict and narrow, rather than broad, constructions. They are confined to their immediate antecedents.[88]

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86 Republic Act No. 8291 (1997).

87 Benedicto v. Court of Appeals, G.R. No. 125359, September 4, 2001.

88 Chester James Antieau, Constitutional Construction 33 (1982).

In a case involving a penal statute, the Supreme Court refused to accept the "void-for-vagueness" doctrine. The doctrine is most commonly stated to the effect that a statute establishing a criminal offense must define the offense with sufficient definiteness that persons of ordinary intelligence can understand what conduct is prohibited by the statute. The Court held, however, that the doctrine can only be invoked against that specie of legislation that is utterly vague on its face, *i.e.*, that which cannot be clarified either by a saving clause or by construction.[89]

A "saving clause" limits the effect of a law. For example, an absolute repeal of a penal law normally has the effect of depriving a court of its authority to punish a person charged with violation of the old law prior to its repeal. The repeal of a penal law renders legal what had been previously illegal, such that the offense no longer exists and it is as if the person who committed it never did so. One exception is the inclusion of a saving clause in the repealing statute that provides that the repeal shall have no effect on pending actions. Another exception is where the repealing act reenacts the former statute and punishes the act previously penalized under the old law. In such instance, the act committed before the reenactment continues to be an offense in the statute books and pending cases are not affected, regardless of whether the new penalty to be imposed is more favorable to the accused. A saving clause operates to except from the effect of the repealing law what would otherwise be lost under the new law. In one case, the respective saving clauses of Circular Nos. 1318 and 1353 clearly manifest the intent to reserve the right of the State to prosecute and punish offenses for violations of the repealed Circular No. 960, where the cases are either pending or under investigation.[90]

"Saving clauses" can be found in the Local Government Code of 1991.[91] Their application, however, is seldom simple or straightforward. Section 133 prescribes the common limitations on the taxing powers of local government units:

> SEC. 133. *Common Limitations on the Taxing Power of Local Government Units.* — Unless otherwise provided herein, the exercise of the taxing powers of provinces, cities, municipalities, and barangays shall not extend to the levy of the following:

89 Estrada v. Sandiganbayan, G.R. No. 148556, November 19, 2001.

90 Benedicto v. Court of Appeals, G.R. No. 125359, September 4, 2001.

91 Republic Act No. 7160 (1991).

(a) Income tax, except when levied on banks and other financial institutions;

(b) Documentary stamp tax;

(c) Taxes on estates, inheritance, gifts, legacies and other acquisitions mortis causa, except as otherwise provided herein;

(d) Customs duties, registration fees of vessel and wharfage on wharves, tonnage dues, and all other kinds of customs fees, charges and dues except wharfage on wharves constructed and maintained by the local government unit concerned;

(e) Taxes, fees and charges and other impositions upon goods carried into or out of, or passing through, the territorial jurisdictions of local government units in the guise of charges for wharfage, tolls for bridges or otherwise, or other taxes, fees or charges in any form whatsoever upon such goods or merchandise;

(f) Taxes, fees or charges on agricultural and aquatic products when sold by marginal farmers or fishermen;

(g) Taxes on business enterprises certified to by the Board of Investments as pioneer or non-pioneer for a period of six (6) and four (4) years, respectively from the date of registration;

(h) Excise taxes on articles enumerated under the National Internal Revenue Code, as amended, and taxes, fees or charges on petroleum products;

(i) Percentage or value-added tax (VAT) on sales, barters or exchanges or similar transactions on goods or services except as otherwise provided herein;

(j) Taxes on the gross receipts of transportation contractors and persons engaged in the transportation of passengers or freight by hire and common carriers by air, land or water, except as provided in this Code;

(k) Taxes on premiums paid by way of reinsurance or retrocession;

(l) Taxes, fees or charges for the registration of motor vehicles and for the issuance of all kinds of licenses or permits for the driving thereof, except, tricycles;

(m) Taxes, fees, or other charges on Philippine products actually exported, except as otherwise provided herein;

(n) Taxes, fees, or charges, on Countryside and Barangay Business Enterprises and cooperatives duly registered under R.A. No. 6810 and Republic Act Numbered Sixty-nine hundred thirty-eight (R.A. No. 6938) otherwise known as the "Cooperatives Code of the 'Philippines' respectively; and

(o) Taxes, fees or charges of any kind on the national government, its agencies and instrumentalities, and local government units.

In one case,[92] the National Power Corporation cited Section 133 (o) which exempts government instrumentalities from taxes of any kind. Although that section appears to exempt the National Power Corporation from the payment of taxes, the Supreme Court construed Section 133 with other provisions of the Code:

> Thus, reading together Sections 133, 232, and 234 of the LGC, we conclude that as a general rule, as laid down in Section 133, the taxing power of local governments cannot extend to the levy of *inter alia*, 'taxes, fees and charges of any kind on the national government, its agencies and instrumentalities, and local government units'; however, pursuant to Section 232, provinces, cities and municipalities in the Metropolitan Manila Area may impose the real property tax except on, *inter alia*, 'real property owned by the Republic of the Philippines or any of its political subdivisions except when the beneficial use thereof has been granted for consideration or otherwise, to a taxable person as provided in the item (a) of the first paragraph of Section 12.'
>
> Section 234, in turn, provides:
>
> SEC. 234. *Exemptions from Real Property Tax.* — The following are exempted from payment of the real property tax:

92 National Power Corporation v. City of Cabanatuan, G.R. No. 149110, April 9, 2003

(a) Real property owned by the Republic of the Philippines or any of its political subdivisions except when the beneficial use thereof had been granted, for consideration or otherwise, to a taxable person;

(b) Charitable institutions, churches, parsonages or convents appurtenant thereto, mosques, non-profit or religious cemeteries and all lands, buildings and improvements actually, directly, and exclusively used for religious, charitable or educational purposes;

(c) All machineries and equipment that are actually, directly and exclusively used by local water districts and government-owned or controlled corporations engaged in the supply and distribution of water and/or generation and transmission of electric power;

(d) All real property owned by duly registered cooperatives as provided for under R.A. No. 6938; and

(e) Machinery and equipment used for pollution control and environmental protection.

Except as provided herein, any exemption from payment of real property tax previously granted to, or presently enjoyed by, all persons, whether natural or juridical, including all government-owned or controlled corporations are hereby withdrawn upon the effectivity of this Code.

In the end, it is the exception under Section 234 that sanctioned the taxes imposed on the National Power Corporation.[93]

Administrative bodies have the authority to issue regulations which are penal in nature where the law itself makes the violation of the administrative regulation punishable and provides for its penalty. Saving clauses, dictated by the need to continue the prosecution of those who had already committed acts of monetary destabilization, are not *ultra vires*.[94]

93 National Power Corporation v. City of Cabanatuan, G.R. No. 149110, April 9, 2003.

94 Marcos v. Court of Appeals, G.R. No. 126594, September 5, 1997.

Saving clauses are also expressly found in The Indigenous Peoples' Rights Act of 1997.[95]

> SECTION 81. *Saving Clause.* — This Act will not in any manner adversely affect the rights and benefits of the ICCs/IPs under other conventions, recommendations, international treaties, national laws, awards, customs and agreements.

Another example can be found in the Unified Student Financial Assistance System for Tertiary Education (UniFAST) Act which provides that:[96]

> SEC. 29. *Non-Impairment Clause.* – Nothing in this Act shall be construed as to diminish, impair, or repeal rights recognized, granted, or made available to disadvantaged, marginalized, or specific sectors under existing laws.

95 Republic Act No. 8371 (1997).

96 Republic Act No. 10687 (2015).

CHAPTER 15

Construction of Statute as a Whole

In construing a statute, "courts have to take the thought conveyed by the statute as a whole; construe the constituent parts together; ascertain the legislative intent from the whole act; consider each and every provision thereof in the light of the general purpose of the statute; and endeavor to make every part effective, harmonious and sensible."[1] A cardinal rule in statutory construction is that legislative intent must be ascertained from a consideration of the statute as a whole and not merely of a particular provision. Otherwise, a word or phrase might easily convey a meaning which is different from the one actually intended. A general provision may actually have a limited application if read together with other provisions. Hence, a consideration of the law itself in its entirety and the proceedings of both Houses of Congress may be in order.[2] A provision or section which is unclear by itself may be clarified by reading and construing it in relation to the whole statute.[3]

In interpreting the meaning and scope of a term used in the law, a careful review of the whole law involved, as well as the intendment of the law, must be made. In fact, *legislative intent must be ascertained from a consideration of the statute as a whole, and not of an isolated part or a particular provision alone*.[4]

The Court emphasized this rule in *JMM Promotions & Management, Inc. v. National Labor Relations Commission*.[5] The issue involved in the case is whether

1 Fort Bonifacio Development Corporation v. Commissioner of Internal Revenue, G.R. No. 158885, October 2, 2009.

2 Philippine Long Distance Telephone Company, Inc. v. City of Davao, G.R. No. 143867, August 22, 2001; AT&T Communications Services Phils., Inc. v. Commissioner of Internal Revenue, G.R. No. 185969, November 19, 2014.

3 Leynes v. Commission on Audit, G.R. No. 143596, December 11, 2003.

4 Alpha Investigation and Security Agency, Inc. v. National Labor Relations Commission, G.R. No. 111722, May 27, 1997.

5 G.R. No. 109835, November 22, 1993.

the total bond paid and the amount placed as escrow pursuant to the rules of the Philippine Overseas Employment Administration satisfy the appeal bond required to perfect its appeal from the decision of the Administration to the National Labor Relations Commission. The Court emphasized that in interpreting a statute, care should be given that every part thereof be given effect, on the theory that it was enacted as an integrated measure and not as a hodge-podge of conflicting provisions. Upholding petitioner's assertion that the earlier bonds and escrow money posted shall disregard the bond required by the Philippine Overseas Employment Administration's rule shall in effect nullify the said provision providing for the appeal bond as a superfluity; there is no redundancy. The rule is that a construction that would render a provision inoperative should be avoided; instead, apparently inconsistent provisions should be reconciled whenever possible as parts of a coordinated and harmonious whole.

The case of *Sajonas v. Court of Appeals*[6] also illustrates the application of the doctrine. The case involves the cancellation of the inscription of a Notice of Levy on Execution from a Certificate of Title covering a parcel of real property. The issue was whether or not the inscription of adverse claim was still in force even after more than thirty days had passed since private respondent caused the notice of levy to be registered and annotated in the title. Section 70 of Presidential Decree No. 1529 states: "The adverse claim shall be effective for a period of thirty days from the date of registration."

In construing the law aforesaid, the Supreme Court ruled that it should be read alongside the following provision: "After the lapse of said period, the annotation of adverse claim *may be cancelled* upon filing of a verified petition therefor by a party in interest." This shows that the period stipulated for the adverse claim was not restrictive. If it had been terminated by mere lapse of time, the law would not have required the party in interest to do a useless act. Construing the provision as a whole would reconcile the apparent inconsistency between the portions of the law such that the provision on the cancellation of adverse claim requiring a verified petition would serve to qualify the provision on the effectivity period.

6 G.R. No. 102377, July 5, 1996.

CHAPTER 16

Construction of Statute in Relation to other Statutes

HARMONIZING ALL LAWS

Every new statute should be construed in connection with those already existing in relation to the same subject matter and all should be made to harmonize and stand together, if they can be done by any fair and reasonable interpretation.[1] Interpreting and harmonizing laws is the best method of interpretation in order to form a uniform, complete, coherent, and intelligible system of jurisprudence, in accordance with the legal maxim *interpretare et concordare leges legibus est optimus interpretandi modus*.[2] This is because the mere fact that a later statute relates to a similar subject matter as that of an earlier statute does not result in an implied repeal of the latter.[3] Harmonization of laws can only be done when the repeal is implied, not when it is express.[4]

Instead of pitting one statute against another, courts must exert every effort to reconcile them, remembering that both laws deserve respect as the work of coordinate branches of the government. If there appears to be a conflict between statutes and rules or regulations issued by different government instrumentalities, the proper course of action is not to uphold one and annul the other, but to give effect to

1 Akbayan-Youth v. Commission on Elections, G.R. Nos. 147066 & 147179, March 26, 2001. *See also* Philippine Economic Zone Authority v. Green Asia Construction & Development Corp., G.R. No. 188866, October 19, 2011 (every statute must be so construed and harmonized with other statutes as to form a uniform system of jurisprudence) and Trade and Investment Development Corporation of the Philippines, G.R. No. 182249, March 5, 2013 (A new statute should be interpreted in connection with those already existing in relation to the same subject matter and all should be made to harmonize and stand together).

2 Pabillo v. Commission on Elections, G.R. Nos. 216098 and 216562, April 21, 2015.

3 Civil Service Commission v. Court of Appeals, G.R. No. 176162, October 9, 2012.

4 Javier v. Commission on Elections, G.R. No. 215847, January 12, 2016.

both by harmonizing them if possible. In one case,[5] the Supreme Court held that although the Department of Environment and Natural Resource (DENR) requires a Wood Recovery Permit (to gather/retrieve and dispose abandoned logs, drifted logs, sunken logs, uprooted, and fire and typhoon damaged tress, tree stumps, tops and branches), a local government unit "is not necessarily precluded from promulgating, pursuant to its power under the general welfare clause, complementary orders, rules or ordinances to monitor and regulate the transportation of salvaged forest products."

In that case, the Supreme Court held:

> While the DENR is, indeed, the primary government instrumentality charged with the mandate of promulgating rules and regulations for the protection of the environment and conservation of natural resources, it is not the only government instrumentality clothed with such authority. While the law has designated DENR as the primary agency tasked to protect the environment, it was not the intention of the law to arrogate unto the DENR the exclusive prerogative of exercising this function. Whether in ordinary or in legal parlance, the word "primary" can never be taken to be synonymous with "sole" or "exclusive." In fact, neither the pertinent provisions of PD 705 nor EO 192 suggest that the DENR, or any of its bureaus, shall exercise such authority to the exclusion of all other government instrumentalities, *i.e.*, LGUs.
>
> On the contrary, the claim of DENR's supposedly exclusive mandate is easily negated by the principle of local autonomy enshrined in the 1987 Constitution in relation to the general welfare clause under Sec. 16 of the LGC of 1991…
>
> Pursuant to the aforequoted provision, municipal governments are clothed with authority to enact such ordinances and issue such regulations as may be necessary to carry out and discharge the responsibilities conferred upon them by law, and such as shall be necessary and proper to provide for the health, safety, comfort and convenience, maintain peace and order, improve public morals, promote the prosperity and general welfare of the municipality and its inhabitants, and ensure the protection of property in the municipality.[6]

5 Ruzol v. Sandiganbayan, G.R. No. 186739-960, April 17, 2013.

6 *Id.*

In *Boracay Foundation, Inc. v. The Province of Aklan*,[7] the Court made a similar pronouncement. That case involved a challenge to the validity of a reclamation project in the Province of Aklan. The challenge was based on, among others, the failure of the project proponents to satisfy the requirements of the Local Government Code on consultations and approval of a national government project. The DENR-EMB Region VI argued that no permits and/or clearances from National Government Agencies and local governments were required pursuant to the DENR Memorandum Circular No. 2007-08.[8] The Court concluded, however, that the Local Government Code requirements of consultation and approval applied in the case saying that "a Memorandum Circular cannot prevail over the Local Government Code, which is a statute and which enjoys greater weight under our hierarchy of laws."

In *Akbayan-Youth v. Commission on Elections,*[9] the petitioners sought to compel the Commission on Elections (COMELEC) to conduct a special registration of new voters of ages 18 to 21 who failed to register on the deadline set for registration. They cited the "stand by" powers of the COMELEC in Republic Act No. 8436, which empowers it to designate other dates for certain pre-election acts. The COMELEC, in a resolution, denied the request on the ground that Section 8 of Republic Act No. 8189 explicitly provides that no registration shall be conducted during the period starting one hundred twenty days before a regular election and that the COMELEC has no more time left to accomplish all pre-election activities.

The Supreme Court ruled that Republic Act No. 8189 and Republic Act No. 8436 do not contradict one another. While the latter allows the COMELEC to designate other dates, such is in the premise that these certain "pre-election acts" are still capable of being reasonably performed vis-a-vis the remaining period before the date of election and the conduct of other related pre-election activities required under the law. COMELEC, in its comment has already expressed the "operational impossibility" of conducting a special registration; thus, the resolution was not out of order.

In *Banares II v. Balising*,[10] sixteen cases of estafa were dismissed on the ground that the cases were not referred by the *Lupong Tagapamayapa* or *Pangkat ng*

7 G.R. No. 196870, June 26, 2012.

8 The DENR-EMB RVI advanced the view that no permits and/or clearances from National Government Agencies and local government units were required pursuant to DENR Memorandum Circular No. 2007-08 (entitled Simplifying the Requirements of ECC or CNC Applications).

9 G.R. Nos. 147066 & 147179, March 26, 2001.

10 G.R. No. 132624, March 13, 2000.

Tagapagsundo, the referral of which is a condition precedent to the initiation of cases at the municipal trial court. After compliance with the requirement, the respondents filed a motion to revive the criminal cases of estafa for failure to reach an amicable settlement. The action was revived. However, the petitioners averred that the order of dismissal have long become final and executory since there has been no appeal on the dismissal within the reglementary period. The respondents interposed that the cases covered by the 1991 Revised Rules on Summary Procedure, such as criminal cases, are not covered by the rule regarding finality of decisions and orders under the Revised Rules of Court.

Applying the doctrine that every statute must be so construed and harmonized with other statutes as to form a uniform system of jurisprudence, the Supreme Court held that Section 18 of the 1991 Rules on Summary Procedure does not conflict with the prevailing rule that no judgment or order which is not appealed or made subject of a motion for reconsideration within the prescribed period attains finality. The doctrine of finality of judgments applies to both Rules of Summary Procedure and Revised Rules of Court; the objective of which is precisely to settle cases expeditiously.

The Supreme Court also included, within the scope of the doctrine herein discussed, the rule that if a thing contained in a subsequent statute be within the reason of a former statute, it shall be taken to be within the meaning of that statute, and if it can be gathered from a subsequent statute in pari materia, what meaning the legislature attached to the words of a former statute will amount to a legislative declaration of its meaning, and will govern the construction of the first statute.[11]

In the case of *Vda. de Urbano v. GSIS*,[12] two circulars of the Commission on Audit providing for exceptions to the requirement of public bidding in government-owned or controlled corporations (GOCCs) were contrasted to show the policy of the government to allow flexibility to GOCCS and to promote disposition of their non-performing assets. Circular No. 86-264 provides for wide latitude in the disposition of their assets, including foreclosed assets or collaterals acquired in the regular course of business. Circular No. 89-296 provides for two exceptions to the requirements of disposition primarily through public bidding.

11 Vda. de Urbano v. Government Service Insurance System, G.R. No. 137904, October 19, 2001.
12 G.R. No. 137904, October 19, 2001.

The Court ruled that Circular No. 89-296 should be construed to have clarified the coverage of the exception under Circular No. 86-264. Thus, the foreclosure of the property subject in the case at bar, as collateral to a loan, was done in the regular course of business. Its sale to private respondent falls within the two circulars.

EXCEPTION

An exception to the application of the doctrine is enunciated in the case of *Calingin v. Court of Appeals*[13] where the Court ruled that when two statutes apply to a particular case, that which was specially intended for the said case must prevail.

In that case, the Department of the Interior and Local Government issued a Memorandum implementing the suspension order meted out by the Office of the President against Misamis Oriental Provincial Governor Antonio Calingin. Calingin assailed validity of the Memorandum on the ground that the Resolution of the Office of the President was not yet final and executory. He invoked the Administrative Code of 1987 provision wherein decisions of the Office of the President on cases on which it exercises original jurisdiction become final and executory after fifteen days from receipt thereof and wherein the filing of a Motion for Reconsideration suspends the running of said period. He further contended that the Local Government Code provisions for immediate finality of its decisions apply only to cases where the Office of the President exercises appellate jurisdiction.

The Court found the arguments of Calingin untenable. It cited its earlier ruling in *Lapid v. Court of Appeals*[14] where it pronounced that when two statutes apply to a particular case, that which was specially intended for the said case must prevail. In a disciplinary action against an elective local official, it is the Local Government Code, which is the applicable law because it is the specific law that governs the matter. The Administrative Code is only of general application. The Court also said that since the Local Government Code was enacted much later than the Administrative Code, all parts inconsistent with the Local Government Code are repealed or modified accordingly.

13 G.R. No. 154616, July 12, 2004.

14 G.R. No. 142261, June 29, 2000.

SPECIAL AND GENERAL LAWS

The issue in *Remo v. Secretary of Foreign Affairs*[15] was whether the petitioner, who originally used her husband's surname in her expired passport, can revert to the use of her maiden name in the replacement passport, despite the subsistence of her marriage.

In that case, the Supreme Court first explained that a married woman has an option, but not a duty, to use the surname of the husband in any of the ways provided by Article 370 of the Civil Code. She is allowed to use any of the three names provided in Article 370. She may continue to use her maiden name when she marries because when a woman marries, she does not change her name but only her civil status. The Court added that in the case of renewal of passport, a married woman may either adopt her husband's surname or use her maiden name. If she adopts her husband's surname in her new passport, the Department of Foreign Affairs requires the submission of an authenticated copy of the marriage certificate. The DFA will not prohibit her from continuously using her maiden name if she prefers to do so.

Once a married woman adopts her husband's surname in her passport, she may not revert to the use of her maiden name, except in the cases enumerated in Section 5 (d) of Republic Act No. 8239. These instances are:

1. The death of the husband,
2. Divorce,
3. Annulment, or
4. Nullity of marriage.

If the marriage subsists, the wife may not resume the use of her maiden name in the replacement passport.

The Court added that even assuming that Republic Act No. 8239 conflicts with the Civil Code, the provisions of the former law, which is a special law specifically dealing with passport issuance, must prevail over the provisions of Title XIII of the Civil Code which is the general law on the use of surnames. A basic tenet in statutory construction is that a special law prevails over a general law— *generalia specialibus non derogant.*

15 G.R. No. 169202, March 5, 2010.

When there is an inconsistency between two statutes and one of the statutes is a general law, while the other is a special law, courts should not assume that Congress intended to enact a repeal of the older law. The rule that governs such a case was expressed by the Court in this way:

> Where there are two acts or provisions, one of which is special and particular and certainly includes the matter in question, and the other general, which, if standing alone, would include the same matter and thus conflict with the special act or provision, the special must be taken as intended to constitute an exception to the general act or provision, especially when such general and special acts or provisions are contemporaneous, as the Legislature is not to be presumed to have intended a conflict.
>
> It is well settled that repeals by implication are not to be favored. And where two statutes cover, in whole or in part, the same matter, and are not absolutely irreconcilable, the duty of the court — no purpose to repeal being clearly expressed or indicated — is, if possible, to give effect to both. In other words, it must not be supposed that the Legislature intended by a later statute to repeal a prior one on the same subject, unless the last statute is so broad in its terms and so clear and explicit in its words as to show that it was intended to cover the whole subject, and therefore to displace the prior statute.[16]

The Court has also held that the provisions of the Civil Code on prescription of ownership and other real rights apply in general to all types of land. The Public Land Act on the other hand, specifically governs lands of the public domain. Relative to one another, the Public Land Act may be considered a special law that must take precedence over the Civil Code.[17]

A special law prevails over a general law regardless of the dates of enactment of both laws.[18] The fact that the special law is passed before or after the general act does not change the principle. If the special law is enacted later in time, it will be regarded as an exception to, or a qualification of, the prior general act. If the general

16 Lichauco & Company, Inc. v. Apostol, G.R. No. 19628, December 4, 1922 (citations omitted).

17 Republic of the Philippines v. Herbieto, G.R. No. 156117, May 26, 2005.

18 Goldenway Merchandising Corporation v. Equitable PCI Bank, G.R. No. 195540, March 13, 2013.

act is enacted after the special law, the special statute will be construed as remaining an exception to its terms, unless repealed expressly or by necessary implication.[19]

19 Power Sector Assets and Liabilities Management Corp. v. Commissioner of Internal Revenue, G.R. No. 198146, August 8, 2017.

CHAPTER 17

Strict and Liberal Construction

Courts sometimes make decisions on whether to construe statutes strictly or liberally, a practice that invites criticism but little scholarly attention. It has been argued that applying a strict or liberal construction of a law can be a policy tool. Courts can overtly transmute strict or liberal construction into a means for imposing that court's preferences even when there is no statutory directive mandating that they do so.[1] Using strict or liberal approaches may push courts into constructions that favor a particular substantive result, making it deceptively easy to resolve some difficult cases.[2] There are justifications for the substantive feature of strict and liberal construction. Most of those justifications are linked to the use of statutory purpose or larger policies in applying statutes. Courts have always used perceived and attributed statutory purpose in resolving cases of statutory interpretation. In this sense, the substantive feature of strict and liberal construction is mainly a variation on the theme of using statutory purpose in statutory interpretation.[3]

SOCIAL JUSTICE LEGISLATION

The inflexible rule in Philippine jurisdiction is that social legislation must be liberally construed in favor of the beneficiaries.[4] The avowed policy of the State is to construe social legislations liberally in favor of the beneficiaries and to resolve all doubts in their favor.[5] The purpose of the policy is to give social legislation an

1 Morell E. Mullins, *Coming to Terms with Strict and Liberal Construction*, 64 Alb. L. Rev. 9, 87-88 (2000).

2 *Id.*

3 *Id.* at 89.

4 Government Service Insurance System (GSIS) v. De Leon (G.R. No. 186560, November 17, 2010). *See* Lawrence M. Friedman, *Social Welfare Legislation: An Introduction*, 21 Stan. L. Rev. 217 (1969) for a discussion of the definition of social welfare or social justice laws.

5 GSIS v. De Leon, G.R. No. 186560, November 17, 2010. See also Government Service Insurance System v. Court of Appeals, G.R. No. 128523, September 28, 1998. In such case, the Supreme Court identified, as a basic postulate governing employees compensation, the rule of construction that, in case of doubt in construction and interpretation of social legislation statutes, the liberality of the law in favor of the working man and woman prevails in light of the Constitution s social justice policy. See also Barrios v. Employees Compensation Commission and Government Service Insurance System (National Irrigation Administration, G.R. No.

interpretation that would achieve their humanitarian purpose[6] and to give full force and effect to their clear intent, which is to promote the economic and social stability of its beneficiaries.[7] This principle has been consistently upheld by the Supreme Court not only in labor laws,[8] but also in retirement laws[9] and agrarian laws.[10]

148089, March 24, 2006. The Court upheld the avowed policy of the State to construe social legislation liberally in favor of the beneficiaries.

6 GSIS v. De Leon, G.R. No. 186560, November 17, 2010.

7 Castillo v. Tolentino, G.R. No. 181525, March 4, 2009.

8 The case of Obra v. Social Security System (G.R. No. 147745, April 9, 2003) dealt with the claim for death benefits of a widow. Maria Obra's husband was a dump truck driver of Jollar Industrial Sales and Services Inc. who died from a heart attack while driving a dump truck inside the work compound. She filed claim under the Social Security System Law, without knowledge of the Employee's Compensation Commission benefits granted under Presidential Decree No. 626 if the spouse died while working for the company. It was not until ten years later that she learned of Presidential Decree No. 626 and filed a claim for funeral benefits. SSS and ECC denied her claim on the ground of prescription, among others. The ECC applied Article 201 of Presidential Decree No. 626 and Section 6, Rule VII of the 1987 Amended Rules on Employees Compensation that: No claim for compensation shall be given due course unless said claim is filed with the System within three years from the time the cause of action accrued. While the death of her husband occurred on June 27, 1988, she filed her claim for funeral benefits under Presidential Decree No. 626 or the Law on Employees Compensation only on April 23 1999, or more than ten years from his death. In the Supreme Court, the claim of Maria Obra was granted as an exception to the three-year prescription. The exceptions were found in Board Resolution 93-08-0068 and ECC Rules of Procedure for the Filing and Disposition of Employees Compensation Claims. Board Resolution 93-08-0068 provides that any claim filed within the System for any contingency that may be held compensable under the Employee s Compensation Program (ECP) shall be considered as the EC claim itself. Section 4 (b), Rule 3 of the ECC Rules of Procedure for the Filing and Disposition of Employees Compensation Claims, on the other hand, provides that claims filed beyond the 3-year prescriptive period may still be given due course, provided that a claim for Medicare, sickness, burial, disability or death was filed within three years from the occurrence of the contingency. The Court held that Obra s claim for death benefits under the SSS law should be considered as the Employees Compensation claim itself because it is of the same nature as her claim before the ECC and SSS is the same agency with which Employees Compensation claims are filed. Therefore, when she filed her claim for death benefits under the SSS law, her claim for the same benefits under the Employees Compensation Law should be considered as filed. The Court ratiocinated: It is the avowed policy of the State to construe social legislations liberally in favor of the beneficiaries. This Court has time and again upheld the policy of liberality of the law in favor of labor. Particularly, the policy of liberality in deciding claims for compensability was given emphasis by this Court in the case of Employees Compensation Commission v. Court of Appeals (G.R. No. 115858, June 28, 1996) where it held that a humanitarian impulse, dictated by no less than the Constitution itself under the social justice policy, calls for a liberal and sympathetic approach to legitimate appeals of disabled public servants; or that all doubts to the right to compensation must be resolved in favor of the employee or laborer. Hence, claims falling under the Employees Compensation Act should be liberally resolved to fulfill its essence as a social legislation designed to afford relief to the working man and woman in our society.

9 GSIS v. De Leon, G.R. No. 186560, November 17, 2010.

10 In Castillo v. Tolentino (G.R. No. 181525, March 4, 2009), the Court recognized the liberal policy in favor of social legislation but emphasized that the policy of social justice is not intended to countenance wrongdoing simply because it is committed by the underprivileged. The Court explained that Republic Act Nos. 3844 and 6389, being social legislations, were designed to promote economic and social stability and must be interpreted liberally to give full force and

Laws on agrarian reform are in the nature of social welfare legislation. As a rule, they are liberally construed in favor of the intended beneficiaries. The Supreme Court laid down this rule to ensure the realization of the constitutional mandate on the promotion of social justice in promoting the well-being and economic security of the people.[11] Social justice is the adoption of the Government "of measures calculated to insure economic stability of all component elements of society, through the maintenance of a proper economic and social equilibrium in the inter-relations of the members of the community."[12] In the consideration of social welfare legislation, the Supreme Court "is guided by more than just an inquiry into the literal meaning of the law… [It] will not ignore the truth that the broad considerations bearing upon the proper interpretation of tenancy and labor legislations are the ultimate resolution of doubts in favor of the tenant or worker."[13]

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effect to their clear intent, not only in favor of the tenant-farmers but also of landowners. Compassion for the poor is an imperative of every humane society but only when the recipient is not a rascal claiming an undeserved privilege. This ruling arose from the construction of a concrete water reservoir within the land of Tolentino by his agricultural lessee, Castillo, without his consent and over his objection. The Supreme Court found the construction to be improper, being done without complying with Section 32 of Republic Act No. 3844, which requires notice to and consent of the agricultural lessor before the agricultural lessee may embark upon the construction of a permanent irrigation system. While Castillo invoked social justice, the Court found him to have gone against the very grain and purpose of agrarian laws and ruled against his favor. The Court recognized the liberality of agrarian laws to its beneficiaries, that agrarian laws were enacted to help small farmers uplift their economic status by providing them with a modest standard of living sufficient to meet their needs for food, clothing, shelter and other basic necessities and providing the answer to the urgent need to alleviate the lives of the vast number of poor farmers in our country. The Court went on to explain that while the agrarian reform laws significantly favor tenants, farmworkers and other beneficiaries, it cannot allow pernicious practices that result in the oppression of ordinary landowners as to deprive them of their land, especially when these practices are committed by the very beneficiaries of these laws. Social justice was not meant to perpetrate an injustice against the landowner. Republic Act No. 3844 did not operate to take away every landowner s rights to his land and did not authorize the agricultural lessee to act in an abusive manner in derogation of the landowner s rights. See also Torres v. Leon Ventura, G.R. No. 86044, July 2, 1990. The Court ruled that in the execution of agrarian laws, it is the farmer-beneficiary s interest that must be primarily served. This also holds that agrarian laws are to be liberally construed in favor of the farmer-beneficiary. *See also* Francisco Estolas v. Adolfo Mabalot, G.R. No. 133706, May 7, 2002. There, the Court emphasized that it has always ruled that agrarian laws must be interpreted liberally in favor of the grantees in order to give full force and effect to the clear intent of such laws: to achieve a dignified existence for the small farmers; and to make them more independent, self-reliant and responsible citizens, and a source of genuine strength in our democratic society.

11 Ruben Agpalo, Statutory Construction 223 (1986).

12 Victoriano v. Elizalde Rope Workers Union, G.R. No. L-25246, September 12, 1974, *citing* Calalang v. Williams, G.R. No. 47800, December 2, 1940.

13 Vda. de Santos v. Garcia, G.R. No. L-16894, May 31, 1963. See also De Ramas v. Court of Agrarian Relations, G.R. No. L-19555, May 29, 1964.

The Supreme Court interpreted the Agricultural Tenancy Act of the Philippines[14] in *Alfanta v. Noel*,[15] stating that:

> Viewed within the context of the constitutional mandate and obvious legislative intent, the provisions of the law should be construed to further their purpose of redeeming the tenant from his bondage of misery, want and oppression arising from the onerous terms of his tenancy and to uplift his social and financial status.[16]

In *Posadas v. Court of Appeals*,[17] it was held that the Agricultural Land Reform Code "is a social legislation designed and enacted to solve the agrarian unrest, one of the country's most pernicious problems that have strangled the economic growth of the nation… [T]he liberal interpretation of its provisions is imperative to give full force and effect to its clear intent."

Presidential Decree No. 27 has also been interpreted in a similar fashion. The Supreme Court once declared:

> This case serves to remind those who are involved in the execution of agrarian laws that it is the farmer-beneficiary's interest that must be primarily served. This also holds that agrarian laws are to be liberally construed in favor of the farmer-beneficiary. Anyone who wishes to contest the rights of the farmer to land given to him by the government in accordance with our agrarian laws has the burden of proving that the farmer does not deserve the government grant.[18]

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14 Republic Act No. 1199 (1954).

15 G.R. No. 32362, September 19, 1973. *See also* Hidalgo v. Hidalgo (G.R. No. L-25326, May 29, 1970) where the Supreme Court held that in the interpretation of tenancy and labor legislation, it will be guided by more than just an inquiry into the letter of the law as against its spirit and will ultimately resolve grave doubts in favor of the tenant and worker.

16 *Id.*

17 G.R. No. 35927, March 31, 1978. *See also* David v. Court of Appeals, G.R. Nos. 57719-21, May 6, 1988; De Jesus v. Intermediate Appellate Court, G.R. No. 72282, July 24, 1989; Catorce v. Court of Appeals, G.R. No. 59762, May 11, 1984; and Posadas v. Court of Appeals, G.R. No. 35927, March 31, 1978. There are cases when laws on agrarian reform are also construed to favor the landowner. See Santiago v. Court of Appeals, G.R. No. 48518, November 8, 1989; Cabatan v. Court of Appeals, G.R. No. 44375, January 22, 1980; Feliciano v. Court of Agrarian Relations, G.R. No. 14573, May 18, 1962; and De Tanedo v. De la Cruz, G.R. No. 27667, March 25, 1970.

18 Torres v. Ventura, G.R. No. 86044, July 2, 1990. See also De Chavez v. Zobel, G.R. No. L-28609, January 17, 1974.

ELECTION LAWS

Election cases are also among the cases for which liberal construction is applied to express the will of the people. In the case of *Peña v. House of Representatives Electoral Tribunal,*[19] the petitioner contests the election of its opponent as Congressman of the second district of Palawan as it was allegedly tainted with massive fraud, widespread vote buying, intimidation and other irregularities. He, however, failed to allege which precincts were referred to in the first protest and the amended protest was submitted beyond the prescribed period.

The Court dismissed the complaint, holding that the allegations have not been supported by even the faintest whisper of authority in fact and law. Further, while it is conceded that statutes providing for election contests are to be liberally construed to the end that the will of the people in the choice of public officers may not be defeated by mere technical questions, the rule likewise stands that in an election protest, the protestant must stand or fall upon the issues he had raised in his original or amended pleading filed prior to the lapse of the statutory period for the filing of protest.

Election laws may be divided into three parts for purposes of applying the rules of statutory construction. The first part refers to the provisions for the conduct of elections that election officials are required to follow; these provisions are merely directory. The second part covers those provisions that candidates for office are required to comply with and are necessarily mandatory. The last part embraces those procedural rules designed to ascertain, in case of dispute, the actual winner in the elections; this requires liberal construction.[20] The Supreme Court explained that while provisions relating to certificates of candidacy are mandatory, it is an established rule of interpretation as regards election laws that "mandatory provisions requiring certain steps before elections will be construed as directory after the elections, to give effect to the will of the people."[21]

The COMELEC Rules of Procedure are subject to liberal construction. The COMELEC may liberally construe or even suspend its rules of procedure in the interest of justice, including obtaining a speedy disposition of all matters pending

19 G.R. No. 123037, March 21, 1997.

20 Liberal Party v. Commission on Elections, G.R. No. 191771, May 6, 2010.

21 See Maquiling v. Commission on Elections, G.R. No.195649, April 16, 2013.

before the COMELEC.[22] Laws prescribing qualifications for and disqualifications from office are construed in favor of eligibility; where a candidate has received popular mandate, all possible doubts should be resolved in favor of the candidate's eligibility, for to rule otherwise is to defeat the will of the people.[23]

TAX LAWS

A statute will not be construed as imposing a tax unless it does so clearly, expressly, and unambiguously. A tax cannot be imposed without clear and express words for that purpose.[24] While the interpretation of the Commissioner of Internal Revenue may raise revenues for the government, "such noble objective must yield to the clear provisions of the law, particularly since, in this case, the terms of the said law are clear and leave no room for interpretation."[25]

Taxes, as burdens which must be endured by the taxpayer, should not be presumed to go beyond what the law expressly and clearly declares and should be construed strictly against the State.[26] Tax laws providing for the prescription of tax collection are also liberally construed in favor of taxpayers, as was held in *Commissioner of Internal Revenue v. B.F. Goodrich Phils., Inc.*[27]

The case involved multiple tax assessments on the respondent, which are beyond the five-year period. The Court ruled that any assessment done beyond the statute of limitations should only be validly justified if the grounds raised are of fraud, irregularity and mistake, not falsity. The statute of limitations in the collection of taxes is intended to safeguard taxpayers from any unreasonable examination, investigation or assessment. In order to afford such protection, the law on prescription, as a remedial

22 Violago, Sr. v. Commission on Elections, G.R. No. 194143, October 4, 2011.

23 Amora, Jr. v. Commission on Elections, G.R. No. 192280, January 25, 2011. Laws governing the suspension or removal of public officers, especially those chosen by the direct vote of the people, must be strictly construed in their favor. See Hebron v. Reyes, G.R. No. L-9124, July 28, 1924.

24 See Commissioner of Internal Revenue v. San Miguel Corporation, G.R. No. 184428, November 23, 2011.

25 Commissioner of Internal Revenue v. San Miguel Corporation, G.R. No. 184428, November 23, 2011.

26 Philacor Credit Corporation v. Commissioner of Internal Revenue, G.R. No. 1698999, February 6, 2013.

27 G.R. No. 104171, February 24, 1999.

measure should be liberally construed. Corollarily, exceptions thereto should be strictly construed.

On the other hand, laws granting tax exemptions are strictly construed against the grantee. The rationale of the rule was discussed in P*hilex Mining Corporation v. Commissioner of Internal Revenue*.[28] In that case, Philex Mining, a domestic mining corporation, paid specific taxes for its purchase of refined and manufactured mineral oils, motor fuels, and diesel fuel oils. Pursuant to Republic Act No. 1435, it filed a claim for refund with the Commissioner of Internal Revenue, averring that the tax refund must be based on the specific taxes it actually paid.

Quoting its ruling in *Davao Gulf Lumber Corporation v. Commissioner of Internal Revenue,*[29] the Supreme Court held that the partial refund authorized under Section 5 of Republic Act No. 1435 is in the nature of a tax exemption, and so must be construed *strictissimi juris* against the grantee. Hence, Philex Mining's claim of refund on the basis of the specific taxes it actually paid must expressly be granted in a statute stated in a language too clear to be mistaken. The Court, after carefully scrutinizing Republic Act No. 1435 and the subsequent pertinent statutes, found no expression of a legislative will authorizing a refund based on the higher rates claimed by Philex Mining. It added that when the law itself does not explicitly provide that a refund under Republic Act No. 1435 may be based on higher rates, which were non-existent at the time of its enactment, the Court cannot presume otherwise, reasoning that a legislative lacuna cannot be filled by judicial fiat.[30]

Taxation is the rule and tax exemption the exception. Tax exemptions should be granted only by clear and unequivocal provision of law on the basis of language too plain to be misunderstood.[31] The burden of proof rests upon the party claiming exemption to prove that it is covered by the exemption. As a rule, tax exemptions are construed strongly against the claimant. Such exemptions must be shown to exist clearly and categorically in the legal provision.[32] In another case, the Supreme Court rephrased these principles thus: statutes granting tax exemptions are construed

28 G.R. No. 120324, April 21, 1999.

29 G.R. No. 117359, July 23, 1998.

30 *See also* Davao Gulf Lumber Corporation v. Commissioner of Internal Revenue, G.R. No. 117359, July 23, 1998; Province of Tarlac v. Alcantara, G.R. No. 65230, December 23, 1992; and Philippine Petroleum Corporation v. Municipality of Pililia, Rizal, G.R. No. 90776, June 3, 1991.

31 Bureau of Internal Revenue v. Manila Home Textile, Inc., G.R. No. 203057, June 6, 2016.

32 Philippine Amusement and Gaming Corporation v. Bureau of Internal Revenue, G.R. No. 172087, March 15, 2011.

strictissimi juris against the taxpayer and liberally in favor of the taxing authority.… A claim of refund or exemption from tax payments must be clearly shown and be based on language in the law too plain to be mistaken."[33] A tax refund is in the nature of a claim for exemption, and the law is construed in *strictissimi juris* against the taxpayer.[34]

The canon has exceptions, one of which is when the taxpayer falls within the purview of the exemption by clear legislative intent.[35]

A tax *amnesty* must be construed strictly against the taxpayer and liberally in favor of the taxing authority.[36]

LABOR LAWS

Planters Association of Southern Negros Inc. v. Ponferrada[37] illustrates the liberal application of labor laws. The law involved was Section 12 of Republic Act No. 6982, which provided, thus: "All liens and other forms of production sharing in favor of the workers in the sugar industry under Republic Act No. 809 and Presidential Decree No. 621, as amended, are hereby substituted by the benefits under this Act." Section 14 of the same law, meanwhile, provided that "the provisions of Section 12 hereof notwithstanding, nothing in this Act shall be construed to reduce any benefit, interest, right or participation enjoyed by the workers at the time of the enactment of this Act." The Planters Association insists that the word "substitution" in Section 12 should be taken in its literal sense and theorized that whatever monetary rewards previously granted to the sugar farm workers under Republic Act No. 809 and Presidential Decree No. 621 were deemed totally abrogated and/or superseded. Meanwhile, respondents believe that the benefits conferred by Republic Act No. 6982 should complement those granted by Republic Act No. 809 because Section 14 thereof prohibits diminution of benefits.

33 Atlas Consolidated Mining and Development Corporation v. Commissioner of Internal Revenue, G.R. No. 159471, January 26, 2011.

34 KEPCO Philippines Corporation v. Commissioner of Internal Revenue, G.R. No. 179961, January 31, 2011.

35 Soriano v. Secretary of Finance, G.R. Nos. 184450, 184508, 184538 & 185234, January 24, 2017.

36 Commissioner of Internal Revenue v. Transfield Philippines, Inc., G.R. No. 211449, January 16, 2019.

37 G.R. No. 114087, October 26, 1999.

The Supreme Court ruled that each provision of law should be construed in connection with every other part so as to produce a harmonious whole and every meaning to be given to each word or phrase is ascertained from the context of the body of the statute. *Ut magis valeat quam pereat.* Consequently, laws are given a reasonable construction such that apparently conflicting provisions are allowed to stand and given effect by reconciling them, reference being had to the moving spirit behind the enactment of the statute. It then held that Section 12 of Republic Act No. 6982, which apparently mandates a total substitution by Republic Act No. 6982 of all the benefits under Republic Act No. 809 and Presidential Decree No. 621 existing at the time of the effectivity of Republic Act No. 6982, cannot be construed apart from Section 14 which prohibits such substitution if the effect thereof would be to reduce any benefit, interest, right or participation enjoyed by the worker at the time R.A. No. 6982 took effect. Citing Section 1 of the Act, the Court stressed that the primordial objective behind the enactment of Republic Act No. 6982 was to augment the income of sugar workers by establishing a social amelioration program in cases where sugar farm workers had none, and at the same time, to improve whatever amelioration schemes already existing. In addition, the Court also held that limiting the application of the non-diminution principle only to pending claims would be repulsive not only to the policy of the Act but also to the salutory provisions of the Constitution. It reasoned that the evolution of legislation in the sugar industry had always had for its foremost concern the advancement of the lot of the sugar farm worker. Hence, through the years every law or decree enacted pursuant thereto had always provided for an increase in wages and benefits. The reason is obvious. Amidst the rapidly changing, if not worsening, economic conditions prevalent in the industry, the sugar worker can hardly cope with his meager income to lean on.

It is a familiar and fundamental doctrine in labor law that the Collective Bargaining Agreement (CBA) is the law between the parties. If the terms of a CBA are clear and there is no doubt as to the intention of the contracting parties, the literal meaning of its stipulations shall prevail. The CBA must be construed liberally rather than narrowly and technically, and the Court must place a practical and realistic construction upon it. Any doubt in the interpretation of any law or provision affecting labor should be resolved in favor of labor.[38]

38 Supreme Steel Corporation v. Nagkakaisang Manggagawa ng Supreme Independent Union, G.R. No. 185556, March 28, 2011.

THE RULES OF COURT

Courts may relax procedural rules of even the most mandatory character to reconcile the need to put an end to litigation and the parties' right to due process. In numerous cases, the Court has allowed the liberal construction of the rules when it would serve the demands of substantial justice and equity.[39] A liberal construction of the procedural rules is proper where the lapse in the literal observance of a rule of procedure has not prejudiced the adverse party and has not deprived the court of its authority. Section 6, Rule 1 of the Rules of Court provides that the Rules should be liberally construed in order to promote their objective of securing a just, speedy and inexpensive disposition of every action and proceeding. Rules of procedure are tools designed to facilitate the attainment of justice, and courts must avoid a rigid application that would result in technicalities that frustrate rather than promote substantial justice.[40] It is settled that liberal construction of the rules may be invoked in situations where there may be some excusable formal deficiency or error in a pleading, provided that the same does not subvert the essence of the proceeding and connotes at least a reasonable attempt at compliance with the rules. After all, rules of procedure are not to be applied in a very rigid, technical sense; they are used only to help secure substantial justice.[41]

But while the Court may have excused strict compliance in the past, it did so only on sufficient and justifiable grounds that compelled a liberal approach while avoiding the effective negation of the intent of the rule on non-forum shopping. In other words, the rule for the submission of a certificate of non-forum shopping, *proper in form and substance,* remains to be a strict and mandatory rule; any liberal application has to be justified by ample and sufficient reasons that maintain the integrity of, and do not detract from, the mandatory character of the rule.[42]

It has long been recognized that strict compliance with the Rules of Court is indispensable for the prevention of needless delays and for the orderly and expeditious dispatch of judicial business. Procedural rules are not to be disdained as mere technicalities that may be ignored at will to suit the convenience of a party. Adjective law is important in ensuring the effective enforcement of substantive rights through

39 Ong Lim Sing, Jr. v. FEB Leasing and Finance Corporation, G.R. No. 168115, June 8, 2007.
40 Preysler, Jr. v. Manila South Coast Development Corporation, G.R. No. 171872, June 28, 2010.
41 Mediserv, Inc. v. Court of Appeals, G.R. No. 161368, April 5, 2010.
42 Bank of the Philippine Islands v. Court of Appeals, G.R. No. 168313, October 6, 2010.

the orderly and speedy administration of justice. These rules are not intended to hamper litigants or complicate litigation but, indeed to provide for a system under which a suitor may be heard in the correct form and manner and at the prescribed time in a peaceful confrontation before a judge whose authority they acknowledge. It cannot be overemphasized that procedural rules have their own wholesome rationale in the orderly administration of justice. Justice has to be administered according to the Rules in order to obviate arbitrariness, caprice, or whimsicality.[43]

PENAL STATUTES

In all criminal prosecutions, the existence of criminal liability for which the accused is made answerable must be clear and certain. Penal statutes are construed strictly against the State and liberally in favor of the accused. When there is doubt on the interpretation of criminal laws, all must be resolved in favor of the accused. Penal laws should not be applied mechanically and the Court must determine whether their application is consistent with the purpose and reason of the law.

Intimately related to the *in dubio pro reo* (when in doubt, rule for the accused) principle is the rule of lenity. This rule applies when the court is faced with two possible interpretations of a penal statute: one that is prejudicial to the accused and another that is favorable to him. The rule calls for the adoption of an interpretation that is more lenient to the accused.[44]

Another illustrative case is *Elvira Yu Oh v. Court of Appeals*[45] where penal statutes are held to be liberally construed in favor of the accused. In this case, petitioner Yu Oh issued ten checks for the payment of the pieces of jewelry she purchased from Solid Gold International traders, Inc. Private respondent deposited the checks on their respective due dates but were subsequently dishonored for the reason "Account Closed." Dishonor slips were issued for each check returned to respondent. Ten information charging Yu Oh with violation of Batas Pambansa Blg. 22 or the Bouncing Checks Law was filed with the Regional Trial Court. Yu Oh claimed that the court had no jurisdiction over the offense because no notice of dishonor had been given to the private respondent as drawer of the dishonored checks. She alleged that the reason of "closed account" for the dishonor of the ten checks in these cases is

43 Republic of the Philippines v. Hernandez, G.R. No. 117209, February 9, 1996.

44 Ient v. Tullett Prebon (Philippines), Inc., G.R. Nos. 189158 & 189530, January 11, 2017.

45 G.R. No. 125297, June 6, 2003.

not a statutory cause to warrant prosecution. Most importantly, Yu Oh insisted that penal statutes must be strictly construed and where there is any reasonable doubt, it must always be resolved in favor of the accused.

The Supreme Court acquitted Yu Oh on the ground that the private respondent was not able to prove that she was given the requisite notice of dishonor; it is essential for the maker or drawer to be notified of the dishonor of the check. Absent a clear showing that petitioner actually knew of the dishonor of her checks and was given the opportunity to make arrangements for payment, there could be no moral certainty that she is liable for violation of Batas Pambansa Blg. 22.

CHAPTER 18

Mandatory and Directory Statutes

Courts are sometimes required to determine whether a statute is mandatory or merely directory. The Supreme Court has developed certain conventions to help courts in taking on this function. The words "may" and "shall" are used as guides in ascertaining the mandatory or directory character of statutory provisions.[1] Where the provision reads "may," this word shows that it is not mandatory but discretionary. It is an auxiliary verb indicating liberty, opportunity, permission and possibility. The use of the word "may" in a statute denotes that it is directory in nature and generally permissive only.[2] "May" denotes discretion and cannot be construed as having mandatory effect.[3]

When statutes use prohibitive or negative words, they can rarely, if ever, be directory. There is only one way to obey the command "*thou shall not*," and that is "to completely refrain from doing the forbidden act, subject to certain exceptions stated in the law itself."[4]

While the general rule is that the words "shall," "must," "ought," or "should" are of mandatory character in common parlance, this is not an absolute rule or inflexible criterion.[5]

A law is mandatory because it contains words of positive prohibition and is couched in the negative terms importing that the act required shall not be done otherwise than designated. A provision that is directory can only be given operation

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1 Social Security Commission v. Court of Appeals, G.R. No. 152058, September 27, 2004.

2 Buklod nang Magbubukid sa Lupaing Ramos, Inc. v. E.M. Ramos & Sons, Inc., G.R. No. 131481, March 16, 2011.

3 Bayan Muna v. Beltran, G.R. No. 159618, February 1, 2011.

4 Lokin, Jr. v. Commission on Elections, G.R. No. 179431-32, June 22, 2010.

5 Lexber Inc. v. Spouses Dalman, G.R. No. 183587, April 20, 2015.

if it does not conflict with the mandatory provisions.[6] The word "must" in a statute, like "shall," is not always imperative. In the Philippines, the tendency has been to interpret "shall" as the context of the statute in which it is used requires. This is also true for the word "must." If the language of a statute considered as a whole and with due regard to its nature and object reveals that the legislature intended to use the words "shall" and "must" to be directory, they should be given that meaning.[7]

Similarly, the word "may" is to be construed as mandatory and imposing a duty, or as permissive and conferring discretion, depending on the apparent intention of the statute as gathered from the context, as well as from the language of the particular provision. "The question in each case is whether, taken as a whole and viewed in the light of surrounding circumstances, it can be said that a purpose existed on the part of the legislator to enact a law mandatory in its character."[8]

In one case, the Supreme Court did not order the dismissal of an election protest despite exceeding the six-month period provided in the law. According to the Court, to dismiss the suit would "defeat the purposes of the due process of law and would make the administration of justice in election contests an aleatory process where the litigants, irrespective of the merits of their respective claims, will be gambling for a deadline." There was nothing in the law that imposed a mandatory duty upon the court to dismiss a protest not decided within the fixed period.[9]

The Supreme Court provided a guideline on the determination of whether a law or rule is discretionary or mandatory in the case of *Philippine Consumers Foundation, Inc. v. National Telecommunications Commission*.[10] In that case, the National Telecommunications Commission promulgated a decision interpreting the rule-making authority delegated in Section 2 of Presidential Decree No. 217 to the then Department of Public Works, Transportation and Communication as mandatory. This was not supported by the phraseology of the provision. The Court ruled that the word used in the law must be given its ordinary meaning unless a contrary intent is manifest from the law itself. The phrase "may be promulgated" should not be interpreted to mean "shall" or "must." Presidential Decree No. 217 does not command the National Telecommunications Commission to promulgate rules. It is

6 In Re: Mira, G.R. No. L-18566, September 30, 1966.

7 Loyola Grand Villas Homeowners (South) Association, Inc. v. Court of Appeals, G.R. No. 117188, August 7, 1997.

8 In Re: Guariña, G.R. No. 1179, January 08, 1913.

9 Cachola v. Cordero, G.R. No. L-5780, February 28, 1953.

10 G.R. No. L-63318, August 18, 1984.

only permissive or discretionary on the part of the delegate; it can function under existing rules.

In *Director of Lands v. Court of Appeals,*[11] the Court dealt with Section 23 of Presidential Decree No. 1529, which provides the publication requirement for the registration of land title. The petitioner argued that the notice of initial hearing shall be published both in the Official Gazette and in a newspaper of general circulation, and thus necessary to confer jurisdiction upon the trial court. The Court of Appeals held that it was merely procedural and that the failure to cause such publication did not deprive the trial court of its authority to grant application. The Supreme Court agreed with the petitioner. The law is unambiguous and its rationale clear; the law used the term "shall" in prescribing the work to be done by the Commissioner of Land Registration upon the latter's receipt of the court order setting the time for initial hearing, denoting the imperative and mandatory character of the statute.

The Court in *Philippine Registered Electrical Practitioners, Inc. v. Francia, Jr.*[12] found the resolution of the Board of Electrical Engineering to be directory. In that case, a resolution was issued by the Board of Electrical Engineering, adopting guidelines for implementation of the Continuing Professional Education (CPE) Program for electrical engineers, which included the requirement of earning credit units of CPE before renewal of license of electrical engineers. This included the application for accreditation with the Institute of Integrated Electrical Engineers of the Philippines. Petitioners aver that such resolution was violative of the equal protection and due process clauses of the Constitution, the prohibition against bill of attainder and ex post facto laws, and the mandate for protection of rights of workers.

The Court found that the resolution adopted by the Board was primarily to upgrade the knowledge and skills of electrical engineers. In the language of the resolution, the word used is "may." The ocular inspections were merely directory not mandatory. This was its way to ensure compliance with laws and rules relative to the professional practice of electrical engineering.

The Rules of Court have both mandatory and directory provisions. In *Gonzales v. Pe,*[13] the Supreme Court held that the payment of docket fees under Rule 41, Section 2 of the Rules of Court is mandatory:

11 G.R. No. 102858, July 28, 1997.

12 G.R. No. 87134, January 20, 2000.

13 G.R. No. 167398, August 9, 2011.

> An ordinary appeal from a decision or final order of the RTC to the CA must be made within 15 days from notice. And within this period, the full amount of the appellate court docket and other lawful fees must be paid to the clerk of the court, which rendered the judgment or final order appealed from. The requirement of paying the full amount of the appellate docket fees within the prescribed period is not a mere technicality of law or procedure. The payment of docket fees within the prescribed period is mandatory for the perfection of an appeal. Without such payment, the appeal is not perfected. The appellate court does not acquire jurisdiction over the subject matter of the action and the Decision sought to be appealed from becomes final and executory.[14]

In another case, the Court held that the grounds for dismissing an appeal under Rule 50, Section 1 of the Rules of Court were discretionary upon the Court of Appeals.[15] The Court based its ruling on the language of the Rules which uses the word *may* instead of *shall*. Citing previous decisions, the Court held that Section 1, Rule 50, which provides specific grounds for dismissal of appeal, manifestly "confers a power and does not impose a duty…Moreover, it is directory, not mandatory." With the exception of Section 1 (b), the grounds for the dismissal of an appeal are directory and not mandatory, and it is not the ministerial duty of the court to dismiss the appeal.

14 *Id.*

15 University of Mindanao, Inc. v. Court of Appeals, G.R. No. 181201, February 21, 2011.

CHAPTER 19

Prospective and Retroactive Operation of Statutes

PUBLICATION

Article 2 of the Civil Code (as amended by Executive Order No. 200) provides:

> Article 2. Laws shall take effect after fifteen days following the completion of their publication either in the Official Gazette or in a newspaper of general circulation in the Philippines, unless it is otherwise provided…

Rules on the effectivity and interpretation of laws may also be found in Book I of the Administrative Code of 1987,[1] which provides:

> CHAPTER 5
>
> Operation and Effect of Laws
>
> SECTION 18. *When Laws Take Effect.* — Laws shall take effect after fifteen (15) days following the completion of their publication in the Official Gazette or in a newspaper of general circulation, unless it is otherwise provided.
>
> SECTION 19. *Prospectivity.* — Laws shall have prospective effect unless the contrary is expressly provided.

1 Executive Order No. 292 (1987).

SECTION 20. *Interpretation of Laws and Administrative Issuances.* — In the interpretation of a law or administrative issuance promulgated in all the official languages, the English text shall control, unless otherwise specifically provided. In case of ambiguity, omission or mistake, the other texts may be consulted.

SECTION 21. *No Implied Revival of Repealed Law.*— When a law which expressly repeals a prior law is itself repealed, the law first repealed shall not be thereby revived unless expressly so provided.

SECTION 22. *Revival of Law Impliedly Repealed.*— When a law which impliedly repeals a prior law is itself repealed, the prior law shall thereby be revived, unless the repealing law provides otherwise.

SECTION 23. *Ignorance of the Law.* — Ignorance of the law excuses no one from compliance therewith.

Publication is a basic requirement of procedural due process. Publication informs the public of the contents of the laws which govern them and regulate their activities.[2] Article 2 of the Civil Code, as amended by Section 1 of Executive Order No. 200, states that "[l]aws shall take effect after fifteen days following the completion of their publication either in the Official Gazette or in a newspaper of

2 Association of Southern Tagalog Electric Cooperatives, Inc. v. Energy Regulatory Commission, G.R. No.192117, September 18, 2012. The Administrative Code of 1987 (Chapter 2, Book VII) also provides:

> Section 3. Filing. (1) Every agency shall file with the University of the Philippines Law Center, three (3) certified copies of every rule adopted by it. Rules in force on the date of effectivity of this Code, which are not filed within three (3) months, shall not thereafter be the basis of any sanction against any party or persons.
>
> Section 4. Effectivity. In addition to other rule-making requirements provided by law not inconsistent with this Book, each rule shall become effective fifteen (15) days from the date of filing as above provided unless a different date is fixed by law, or specified in the rule in cases of imminent danger to public health, safety and welfare, the existence of which must be expressed in a statement accompanying the rule. The agency shall take appropriate measures to make emergency rules known to persons who may be affected by them.

Administrative issuances which are not published or filed with the Office of the National Administrative Register are ineffective and may not be enforced. See GMA Network, Inc. v. Movie and Television Review and Classification Board, G.R. No. 148579, February 5, 2007. To be clear, not all rules and regulations adopted by every government agency are to be filed with the UP Law Center. Only those of general or of permanent character are to be filed. *See* The Board of Trustees of the Government Service Insurance System v. Velasco, G.R. No. 170463, February 2, 2011.

general circulation in the Philippines, unless it is otherwise provided." Section 18, Chapter 5, Book I of Executive Order No. 292 or the Administrative Code of 1987 similarly provides that "[l]aws shall take effect after fifteen (15) days following the completion of their publication in the Official Gazette or in a newspaper of general circulation, unless it is otherwise provided."[3]

The Administrative Code of 1987 explains what matters shall be published in the Official Gazette:

> CHAPTER 6
>
> *Official Gazette*
>
> SECTION 24. *Contents.* — There shall be published in the *Official Gazette* all legislative acts and resolutions of a public nature; all executive and administrative issuances of general application; decisions or abstracts of decisions of the Supreme Court and the Court of Appeals, or other courts of similar rank, as may be deemed by the said courts of sufficient importance to be so published; such documents or classes of documents as may be required so to be published by law; and such documents or classes of documents as the President shall determine from time to time to have general application or which he may authorize so to be published.
>
> The publication of any law, resolution or other official documents in the *Official Gazette* shall be *prima facie* evidence of its authority.

The publication of materials in the online version of the Official Gazette is not intended to satisfy the publication requirements found in the Civil Code and the Administrative Code. The online version of the Official Gazette provides:

> Please note that the posting of laws and issuances in this website is for information dissemination. The effectivity of laws, regulations, and issuances start 15 days, unless otherwise provided in the document, after their publication in the Official Gazette print version or in two newspapers of general circulation as mandated by the Administrative Code of 1987 and Executive Order No. 200, s. 1987.[4]

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3 Association of Southern Tagalog Electric Cooperatives, Inc. v. Energy Regulatory Commission, G.R. No. 192117, September 18, 2012.

4 URL for Official Gazette

EXCEPTIONS TO PUBLICATION REQUIREMENT

The following are exceptions to the requirement of publication.

1. An interpretative regulation does not require publication in order to be effective. The applicability of an interpretative regulation "needs nothing further than its bare issuance for it gives no real consequence more than what the law itself has already prescribed." It "add[s] nothing to the law" and "does not affect the substantial rights of any person."
2. A regulation that is merely internal in nature does not require publication for its effectivity. It seeks to regulate only the personnel of the administrative agency and not the general public.
3. A letter of instruction issued by an administrative agency concerning rules or guidelines to be followed by subordinates in the performance of their duties does not require publication in order to be effective.[5]

In *Tañada vs. Tuvera*,[6] the Supreme Court held that:

> [T]he clause "unless it is otherwise provided" refers to the date of effectivity and not to the requirement of publication itself, which cannot in any event be omitted. This clause does not mean that the legislator may make the law effective immediately upon approval, or on any other date without its previous publication.
>
> Publication is indispensable in every case, but the legislature may in its discretion provide that the usual fifteen-day period shall be shortened or extended…

A handwritten annotation by President Marcos that was not published in the Official Gazette has no force and effect.[7]

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5 *Id.*

6 G.R. No. L-63915, December 29, 1986.

7 Nagkakaisang Maralita ng Sitio Masigasig, Inc. v. Military Shrine Services Philippine Veterans Affairs Office, Department of National Defense, G.R. No. 187587, June 5, 2013. In that case, the Supreme Court held that under the Administrative Code, [t]he publication

PROSPECTIVE APPLICATION OF LAWS

Statutes are prospective and not retroactive in their operation, they being the formulation of rules for the future, not the past. Hence, the legal maxim *lex de futuro, judex de praeterito* — the law provides for the future, the judge for the past, which is articulated in Article 4 of the Civil Code: "Laws shall have no retroactive effect, unless the contrary is provided." The reason for the rule is the tendency of retroactive legislation to be unjust and oppressive on account of its liability to unsettle vested rights or disturb the legal effect of prior transactions.[8]

Retroactivity of laws is a matter of civil law, not of constitutional law, as its governing law is the Civil Code, not the Constitution. Article 4 of the Civil Code provides that laws shall have no retroactive effect unless the contrary is provided. The application of the Civil Code is of course self-explanatory: laws enacted by Congress may permissibly provide that they shall have retroactive effect. The Civil Code established a statutory norm, not a constitutional standard.

The closest that the issue of retroactivity of laws can get to a genuine constitutional issue is if a law's retroactive application will impair vested rights. Otherwise stated, if a right has already vested in an individual and a subsequent law effectively takes it away, a genuine due process issue may arise. What should be involved, however, is a vested right to life, liberty or property, as these are the ones that may be considered protected by the due process clause of the Constitution.[9]

Since the retroactive application of a law usually divests rights that have already become vested, the rule in statutory construction is that all statutes are to be construed as having only a prospective operation "unless the purpose and intention of the legislature to give them a retrospective effect is expressly declared or is necessarily implied from the language used."[10] In *Civil Service Commission v. Pililla Water District*,[11] the Supreme Court pointed out that Republic Act No. 9286 amended

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of any law, resolution or other official documents in the Official Gazette shall be prima facie evidence of its authority. Courts may not speculate as to the probable intent of the legislature apart from the words appearing in the law and cannot rule that a word appears in the law when, evidently, there is none.

8 *In re* Petition for Assistance in the Liquidation of Intercity Savings and Loan Bank, Inc., G.R. No. 181556, December 14, 2009.

9 Commission on Elections v. Co, et al., G.R. No. 186616, November 20, 2009.

10 Quirog v. Aumentado, G.R. No. 163443, November 11, 2008.

11 G.R. No. 190147, March 5, 2013.

Section 23 of Presidential Decree No. 198 and now provides that the General Manager of a water district shall not be removed from office except for a cause and after due process. That law, however, cannot be retroactively applied to preclude the Board of Directors from terminating its General Manager at the time the governing law was still the Presidential Decree.

Contracts are protected by the principle that laws are generally construed as having only prospective operation. Only laws existing at the time of the execution of a contract are applicable thereto and not later statutes, unless the latter are specifically intended to have retroactive effect. A later law, which enlarges, abridges, or in any manner changes the intent of the parties to the contract necessarily impairs the contract itself and cannot be given retroactive effect without violating the constitutional prohibition against impairment of contracts.[12]

APPLICATION OF RULE TO SUPREME COURT DECISIONS

Supreme Court decisions are also subject to Article 4 of the Civil Code, which provides that "laws shall have no retroactive effect unless the contrary is provided." When the Court adopts a new doctrine, it should be applied prospectively and should not apply to parties who had relied on the old doctrine and acted on the faith thereof.[13] Judicial decisions, as part of the law they interpret, are covered by the rule on the prospective application of statutes. Retroactivity is, however, permissible if the decision does not: (1) overrule a previous doctrine; (2) adopt a different view; or (3) reverse an old construction.[14]

APPLICATION OF RULE TO ADMINISTRATIVE RULINGS

Administrative rulings also have prospective application. The Supreme Court cited the following examples in *Co v. Court of Appeals*:[15] that in A*BS-CBN Broadcasting Corporation v. Court of Tax Appeals*,[16] the Court held that a circular or ruling of the Commissioner of Internal Revenue may not be given retroactive effect adversely to a taxpayer, and in *Romualdez v. Civil Service Commission*,[17] it was ruled that Civil

12 Ortigas & Co. Ltd. v. Court of Appeals, G.R. No. 126120, December 4, 2000.
13 Spouses Gauvain v. Court of Appeals, G.R. No. 97973, January 27, 1992.
14 Heirs of Banaag v. AMS Farming Corporation, G.R. No.187801, September 13, 2012.
15 G.R. No. 100776, October 28, 1993.
16 G.R. No. 52306, October 12, 1981.
17 G.R. Nos. 94878-94881, May 15, 1991.

Service Commission Memorandum Circular No. 29, series of 1989 cannot be given retrospective effect so as to entitle to permanent appointment an employee whose temporary appointment had expired before the Circular was issued.

RETROACTIVE APPLICATION OF LAWS

The foregoing principles recognize certain exceptions. One involves police power. A law enacted in the exercise of police power to regulate or govern certain activities or transactions could be given retroactive effect and may reasonably impair vested rights or contracts. Police power legislation is applicable not only to future contracts, but equally to those already in existence. Non-impairment of contracts or vested rights clauses will have to yield to the superior and legitimate exercise by the state of police power to promote the health, morals, peace, education, good order, safety, and general welfare of the people. Moreover, statutes in exercise of valid police power must be read into every contract. [18]

By their nature, curative statutes may be given retroactive effect, unless it will impair vested rights. Republic Act No. 7641 has retroactive effect to include in its coverage the employees' services to an employer rendered prior to its effectivity. It applies to employees in the employ of employers at the time the law took effect and who are eligible for benefits under that statute.[19]

Penal laws operate retroactively by legislative command.[20] Article 22 of the Revised Penal Code provides that "[p]enal laws shall have a retroactive effect insofar as they favor the person guilty of a felony, who is not a habitual criminal." A penal law, if *clearly* favorable to the accused, applies retroactively.[21] With the enactment of Republic Act No. 9346 (An Act Prohibiting the Imposition of Death Penalty in the Philippines) on June 24, 2006, the death penalty could no longer be imposed.

18 Ortigas & Co. Ltd. v. Court of Appeals, G.R. No. 126120, December 4, 2000.

19 Manuel L. Quezon University v. National Labor Relations Commission, G.R. No. 141673, October 17, 2001. Curative statutes cure defects in a prior law or validate legal proceedings, which would otherwise be void for want of conformity with certain legal requirements. They are intended to supply defects, abridge superfluities, and curb certain evils. They make valid that which, before the enactment of the statute, was inval*Id.* Their function is to give validity to acts done that would have been invalid under existing laws, as if existing laws have been complied with. By their very essence curative statutes are retroactive. See Narzoles v. NLRC, G.R. No. 141959, September 29, 2000.

20 People v. Delos Santos, G.R. No. 121906, April 5, 2000.

21 People v. Nepomuceno, Jr., G.R. No. 130800, June 29, 1999.

The law may then be applied retroactively because it is favorable to the accused.[22] In another case, the Supreme Court explained that while the crime of illegal possession of firearms was committed on June 13, 1993, the Court applied Republic Act No. 8294 retroactively because it considers the use of an unlicensed firearm in the killing of the victim as a mere aggravating circumstance. The change in the law was advantageous to the accused-appellant.[23]

The "penal laws" mentioned in Article 22 of the Revised Penal Code refer to *substantive* laws, not procedural rules. [24]

Article 22 applies to Republic Act No. 10592[25] because it is a penal law. It does not define a crime or offense or prescribe a penalty (it addresses the rehabilitation component of the correctional system), but its provisions have the purpose and effect of diminishing the punishment attached to the crime. The further reduction on the length of the penalty of imprisonment is beneficial to the detention and convicted prisoners alike and warrants the application of Article 22. [26]

The prospective application of the beneficial provisions of Republic Act No. 10592 precludes the decrease in the penalty attached to their respective crimes and lengthens their prison stay; thus, making more onerous the punishment for the crimes they committed. Depriving them of time off to which they are justly entitled as a practical matter results in extending their sentence and increasing their punishment. This transgresses the mandate of Article 22.[27]

Social legislation sometimes applies retroactively only upon fulfillment of certain conditions. Republic Act No. 7641 has a conditional retroactive application. It can only apply retroactively if: (1) the claimant for retirement benefits was still in the employ of the employer at the time the statute took effect (January 7, 1993); and (2) the claimant had complied with the requirements for eligibility for such retirement benefits under the statute.[28] In *Universal Robina Sugar Milling Corp. v. Caballeda*,[29] the Court said:

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22 People v. Buado, Jr., G.R. No. 170634, January 8, 2013.

23 People v. Samonte, G.R. No. 126048, September 29, 2000.

24 Inmates of the New Bilibid Prison v. De Lima, G.R. Nos. 212719 & 214637, June 25, 2019.

25 Rep. Act No. 10592, An Act Amending Articles 29, 94, 97, 98 And 99 of Act No. 3815, As Amended, Otherwise Known As The Revised Penal Code (2013).

26 Inmates of the New Bilibid Prison v. De Lima, G.R. Nos. 212719 & 214637, June 25, 2019.

27 *Id.*

28 Universal Robina Sugar Milling Corp. v. Caballeda G.R. No. 156644, July 28, 2008 .

29 G.R. No. 156644, July 28, 2008.

> R.A. 7641 is undoubtedly a social legislation. The law has been enacted as a labor protection measure and as a curative statute that — absent a retirement plan devised by, an agreement with, or a voluntary grant from, an employer — can respond, in part at least, to the financial well-being of workers during their twilight years soon following their life of labor. There should be little doubt about the fact that the law can apply to labor contracts still existing at the time the statute has taken effect, and that its benefits can be reckoned not only from the date of the law's enactment but retroactively to the time said employment contracts have started.[30]

On the other hand, the case of *Subido, Jr. v. Honorable Sandiganbayan*[31] differentiated curative and procedural statutes from penal laws and applied it retroactively. In the case, former Commissioner of the Bureau of Immigration and Deportation, Bayani Subido, Jr., and former Special Agent Rene Parina were charged for arbitrary detention before the Sandiganbayan. Both the accused posited that the Sandiganbayan had no jurisdiction over their persons since at the time the criminal action was instituted, Subido was already a private individual, while Parina's salary grade was below Salary Grade 27. Subido and Parina urged the Court to apply Republic Act No. 7975 prospectively, asserting that it was a penal law.

The Court clarified that Republic Act No. 7975 provides that the reckoning point for the assumption of jurisdiction is the time of the commission of the crime. When the accused allegedly committed the offense charged, Subido was still the Commissioner. Therefore, he fell under the jurisdiction of the Sandiganbayan. While Parina was admittedly below Salary Grade 27, he still fell under the jurisdiction of the Sandiganbayan since he was being charged as a co-conspirator of principal accused Subido, who was above Salary Grade 27. The Court further declared that Republic Act No. 7975 is not a penal law, which must be applied prospectively. Republic Act No. 7975 is a procedural law amending the Sandiganbayan's jurisdiction, mode of appeal, and other procedural matters. It is also a curative law. As both

30 The cases of Rufina Patis Factory v. Alusitain (G.R. No. 146202, July 14, 2004), J.V. Angeles Construction Corporation v. National Labor Relations Commission (G.R. No. 126888, April 14, 1999), and Philippine Scout Veterans Security and Investigation Agency v. National Labor Relations Commission (G.R. No. 115019, April 14, 1997) reiterated the doctrine but did not apply the law retroactively because of the absence of the first condition, that the claimant was still employed at the time of the effectivity of Republic Act No. 7641.

31 G.R. No. 122641, January 20, 1997.

a procedural and curative statute, the Court held that Republic Act No. 7975 can be applied retroactively without impairing vested and contractual rights.

The Code of Muslim Personal Laws of the Philippines[32] took effect on February 4, 1977, and it cannot retroactively override the Civil Code. This is clear from the Code itself:

> Art. 186. (1). *Effect of code on past acts.* — Acts executed prior to the effectivity of this Code shall be governed by the laws in force at the time of their execution, and nothing herein except as otherwise specifically provided, shall affect their validity or legality or operate to extinguish any right acquired or liability incurred thereby.

The Court explained that the provision is consistent with the principle that all laws operate prospectively, unless the contrary appears or is clearly, plainly and unequivocally expressed or necessarily implied. Article 186 enunciates the general rule of the Muslim Code to have its provisions applied prospectively, and implicitly upholds the force and effect of a pre-existing law, specifically, the Civil Code, with respect to civil acts that took place before the Muslim Code's enactment.[33] An example of the retroactive application of the Muslim Code is Article 186 (2), which provides:

> A marriage contracted by a Muslim male prior to the effectivity of this Code in accordance with non-Muslim law shall be considered as one contracted under Muslim law provided the spouses register their mutual desire to this effect.

THE RULES OF COURT

Rules of procedure apply even to actions already pending at the time of their promulgation. The fact that procedural statutes may somehow affect the litigants' rights does not preclude their retroactive application to pending actions. The

32 Presidential Decree No. 1083 (1977).

33 Julliano-Llave v. Republic of the Philippines, G.R. No. 169766, March 30, 2011.

retroactive application of procedural laws does not violate any right of a person who may feel that he is adversely affected, nor is it constitutionally objectionable. The reason for this is that, as a general rule, no vested right may attach to, nor arise from, procedural laws.[34]

The 1997 Revised Rules of Procedure should not be given retroactive effect if it will result in great injustice. In one case, the petitioner followed the procedural rule then existing, as well as the decisions of this Court governing the reckoning date of the period of redemption, when he redeemed the subject lot. Unfortunately, the rule was changed by the 1997 Revised Rules of Procedure, which if applied retroactively would deny the petitioner the right to redeem the lot. The Court said that "[i]t is difficult to reconcile the retroactive application of this procedural rule with the rule of fairness."[35]

Another example of the retroactive effectivity of procedural rules is *Zulueta v. Asia Brewery.*[36] Asia Brewery filed a complaint before the Iloilo Regional Trial Court against its former dealer, Perla Zulueta, for breach of contract. Zulueta filed a later complaint with the Makati Regional Trial Court against Asia Brewery for collection of a sum of money. The cases were ordered consolidated by the Makati Court but Asia Brewery filed a Petition for *Certiorari* before the Court of Appeals against this consolidation. The appellate court found for Asia Brewery, but Zulueta criticized it on the ground that the date of filing of the petition for *certiorari* was made beyond the 60-day reglementary period provided for in the new Rules of Procedure.

The Supreme Court ruled in favor of Zulueta anent the issue of retroactivity of the 60-day reglementary period. It is true that the case was already pending before the courts when the new Rules came into effect. The reduction of the 90-day reglementary period to 60 days did not cause the impairment of any right. The Court explained that the 90-day period was merely a discretionary prerogative of courts and parties have no entitlement to it as a matter of right. The Court reiterated the rule that statutes regulating the procedure of the courts will be applied retroactively on actions undetermined at the time of their effectivity.

The case of *Republic of the Philippines v. Court of Appeals*[37] reiterated the doctrine. In that case, a complaint for expropriation against Fe Manuel and Metrobank

34 Cheng v. Spouses Sy, G.R. No. 174238, July 7, 2009. *See also* Republic v. National Centennial Commission, G.R. No. 141530, March 18, 2003.

35 Tan v. Court of Appeals, G.R. No. 136368, January 16, 2002.

36 G.R. No. 138137, March 8, 2001.

37 G.R. No. 141530, March 18, 2003.

was filed by the National Centennial Commission. However, this complaint was dismissed on the ground of lack of cause of action. A Petition for *Certiorari* was filed before the Court of Appeals, but this was dismissed for having been filed out of time. The appellate court ruled that the petition should have been filed 60 days after the receipt of the assailed decision, order or resolution of the court a quo pursuant to Section 4, Rule 65 of the 1997 Rules of Civil Procedure. At the time when the matter was brought before the Supreme Court, the rule was amended under Administrative Matter No. 00-2-03-SC, wherein the 60-day period was reckoned from the receipt of the order denying the motion for reconsideration.

The Court found no error in the dismissal of the earlier petition since the appellate court did so in accordance with the procedural rules effective at that time. However, in light of the recent amendment, the Court granted the instant petition. The Court ruled that the amendment is procedural or remedial in character and that "it does not create new or remove vested rights but only operates in furtherance of the remedy or confirmation of rights already existing." The Court explained that procedural laws may be retroactively applied to actions pending and undetermined at the time of their passage. It then made an enumeration of recent cases wherein it ordered the retroactive application of A.M. 00-2-03-SC. It finally resolved that the petition before the appellate court was filed on time.

CHAPTER 20

Amendment, Revision, Codification and Repeal

Article 7 of the Civil Code of the Philippines provides that "Laws are repealed only by subsequent ones and their violation or non-observance shall not be excused by disuse, or custom or practice to the contrary." As such, only a law can repeal another law.[1]

Repeals may be express or implied. An express repeal is one wherein a statute declares, usually in its repealing clause, that a particular and specific law, identified by its number or title, is repealed. An implied repeal, on the other hand, transpires when there is a substantial conflict between the new and prior laws. In the absence of an express repeal, a subsequent law cannot be construed as repealing a prior law unless an irreconcilable inconsistency and repugnancy exist in the terms of the new and the old laws.[2]

A law that has been expressly repealed ceases to exist and becomes inoperative from the moment the repealing law becomes effective.[3]

Repeals by implication are not favored because laws are presumed to be passed with deliberation and full knowledge of all laws existing pertaining to the subject. An implied repeal is predicated upon the condition that a substantial conflict or repugnancy is found between the new and prior laws. A subsequent law cannot be construed as repealing a prior law unless an irreconcilable inconsistency and repugnancy exists in the terms of the new and old laws.[4]

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1 Palanca v. Court of Appeals, G.R. No. 106685, December 2, 1994.

2 Javier v. Commission on Elections, G.R. No. 215847, January 12, 2016.

3 *Id.*

4 Advocates for Truth in Lending, Inc. v. Bangko Sentral Monetary Board, G.R. No. 192986, January 15, 2013.

By the revision or codification of laws, all parts and provisions of the old laws that are omitted in the revised statute or code are deemed repealed, unless the statute or code provides otherwise.[5] For example, the law on barangay conciliation created by Presidential Decree No. 1508 was deemed repealed by codification by the Local Government Code of 1991.[6]

In *Government Service Insurance System v. Commission on Audit,*[7] the Supreme Court said that, unless the intention to revoke is clear and manifest, the abrogation or repeal of a law cannot be assumed. In that case, the Court explained that the repealing clause in Republic Act No. 8291 is not an express repealing clause because it fails to identify or designate the statutes that are intended to be repealed. It is a clause which predicated the intended repeal upon the condition that a substantial conflict must be found in existing and prior laws. The failure to add a specific repealing clause in Republic Act No. 8291 indicates that the intent was not to repeal any existing law, unless an irreconcilable inconsistency and repugnancy exists in the terms of the new and old laws.[8]

In the same case, the Court also refused to accommodate the argument that there was repeal by implication. It said that it is a well-settled rule that to bring about an implied repeal, the two laws must be absolutely incompatible and clearly repugnant that the later law cannot exist without nullifying the prior law.[9] Repeal by implication is not favored and the intention of the legislature to repeal must by clear. As was held in *Mecano v. Commission on Audit*,[10] the repeal of laws must be based on the clear intent of the legislature and that repeals by implication are not favored.[11]

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5 Manlangit v. Sandiganbayan, G.R. No. 158014, August 28, 2007.

6 Zamora v. Heirs of Izquierdo, G.R. No. 146195, November 18, 2004. The enactment of Republic Act No. 9337 on 1 November 2005 which elevated provisions of RR 7-95 into law merely codified into law administrative regulations that already had the force and effect of law. Such codification does not mean that prior to the codification the administrative regulations were not enforceable. See Microsoft Philippines, Inc. v. Commissioner of Internal Revenue, G.R. No. 180173, April 6, 2011.

7 G.R. No. 162372, October 19, 2011.

8 Remman Enterprises, Inc. v. Professional Regulatory Board of Real Estate Service, G.R. No. 197676, February 4, 2014.

9 Zamora v. Heirs of Izquierdo, G.R. No. 146195, November 18, 2004. See also Martinez v. Villanueva, G.R. No. 169196, July 6, 2011.

10 G.R. No. 103982, December 11, 1992.

11 A later law, general in terms and not expressly repealing or amending a prior special law, will not ordinarily affect the special provisions of such earlier statute. Commissioner of Internal Revenue v. Philippine Airlines, Inc., G.R. Nos. 212536-37, August 27, 2014.

In that case, Antonio Mecano, Director II of the National Bureau of Investigation, was claiming reimbursement for his hospital expenses under Section 699 of the Revised Administrative Code of 1917. However, his claim was denied by the Commission on Audit reasoning that Section 699 has been repealed by the Administrative Code of 1987, the latter not reenacting the contents of the said provision.

The Supreme Court categorized the repealing provision in the Administrative Code of 1987 as an implied repeal. It explained that there are two kinds of repeal by implication: (1) where provisions in the two acts on the same subject matter are in an irreconcilable conflict; and (2) where the later act covers the whole subject of the earlier one and is clearly intended as substitute. The Court compared the two Codes and found that the new one does not cover the entire subject matter of the old Code. There was also no proof that the provisions of the two Codes on the subject matter of claims are in irreconcilable conflict.[12]

The same rule was followed in *Berces v. Guingona*.[13] In that case, Mayor Naomi Corral of Tiwi Albay was convicted by the Sangguniang Panlalawigan for abuse of authority and dishonesty. Her appeal before the Office of the President was granted, and the execution of the Sanggunian's decision was stayed in accordance with Section 6 of Administrative Order No. 18. Private complainant Achilles Berces, Sr. filed a Petition for *Certiorari* before the Supreme Court positing that Administrative Order No. 18 has been repealed by Republic Act No. 7160, the latter providing that an appeal shall not prevent a decision from becoming final and executory.

The Supreme Court held that Republic Act No. 7160 did not expressly repeal Administrative Order No. 18. It pointed out that the failure of the repealing clause of Republic Act No. 7160 to identify the executive orders intended to be repealed cannot result to the repeal of Administrative Order No. 18, express or implied. The Court also noted that the two laws are not irreconcilable and may in fact be taken together. It is the construction of the Court that the reviewing authority has the discretion whether or not to stay the execution of a decision.

Another illustrative case is *Erectors Inc. v. National Labor Relations Commission*[14] where the Court ruled that laws should only be applied prospectively unless the legislative intent to give them retroactive effect is expressly declared or is necessarily

12 The Supreme Court has held that provisions of an old law that were not reproduced in the revision covering the same subject are deemed repealed and discarded. See Tung Chin Hui v. Rodriguez, G.R. No. 137571, September 21, 2000.

13 G.R. No. 112099, February 21, 1995.

14 G.R. No. 104215, May 8, 1996.

implied from the language used. The Court failed to perceive in the language of Executive Order No. 797 an intention to give it retroactive effect when Florencio Burgos, an overseas Filipino worker, filed for underpayment of wages and non-payment of overtime pay and contractual bonus against his employer, Erectors, Inc. Initially, the Labor Arbiter rendered a favorable decision for Burgos. However, Erectors disputed the jurisdiction of the Labor Arbiter over the controversy through a special civil action for *certiorari*, positing that under Executive Order No. 797, it is the Philippine Overseas Employment Administration which is vested with the original and exclusive jurisdiction over cases involving employer-employee relations arising out of contracts involving Filipino workers for overseas employment.

An illustration of a clear repeal can be found in the case of *City Government of San Pablo, Laguna v. Reyes*.[15] In that case, MERALCO, under its legislative franchise, was granted tax exemption, but it was held liable for the payment of a tax "equal to two percent of its gross receipts in lieu of all taxes and assessments of whatever nature imposed by any national or local authority on savings or income." However, upon the effectivity of the Local Government Code, the City Government of San Pablo, Laguna imposed franchise tax at a rate of "fifty percent of one percent of the gross annual receipts." MERALCO paid such taxes under protest but filed a petition for *certiorari* arguing that the Local Government Code did not expressly or impliedly repeal the tax exemption/incentive that it enjoyed under its charter.

The Court upheld the position of the City Government. It ruled that Sections 137 and 193 of the Local Government Code effectively withdrew the exemption granted to MERALCO. The language in Sections 137 and 193 is explicit, all-encompassing and clear; it manifests the legislative purpose of categorical withdrawal of the exemptions not enumerated. The Court concluded that under the Local Government Code, local government units may now impose local taxes within its territorial jurisdiction, and within the rate limits provided for in the Code.

In addition, the Court ruled in *Juan v. People of the Philippines*[16] that Republic Act No. 3019 was amended by Batas Pambansa Blg. 195. In that case, Rogelio Juan, Pedro De Jesus, Delfin Carreon and Antonio Galguerra were criminally charged for violation of Section 261 (o) of the Omnibus Election Code due to their alleged use of barangay property for election campaign purposes and other partisan political activities during their incumbency as barangay officials. The trial court preventively

15 G.R. No. 127708, March 25, 1999.

16 G.R. No. 132378, January 18, 2000.

suspended them for service for sixty days. The accused, in a petition for review, assailed the propriety of the preventive suspension. They argued that they cannot be preventively suspended under Republic Act No. 3019 or the Anti-Graft and Corrupt Practices Act since the offense for which they were charged was under the Omnibus Election Code.

The Supreme Court ruled that before the amendment, only public officers charged with violation of Republic Act No. 3019 or those covered by the Revised Penal Code provision on bribery may be preventively suspended. Batas Pambansa Blg. 195, when it amended Republic Act No. 3019, expanded the preventive suspension provision. Under the amendment, public officers may likewise be suspended if they are charged with offenses under Title 7, Book II of the Revised Penal Code, or with any other form of fraud involving government funds or property. The Court categorized the charges against the accused as constituent of fraud involving government funds or property. While the accused had been charged under the Omnibus Election Code, the Code must be read with complementing law. The Court posited that charges are not uni-dimensional, hence, are covered by Section 13 of Republic Act No. 3019. It upheld the validity of the preventive suspension.

REPEALING CLAUSES

Repealing clauses are usually straightforward statements reproduced in countless statutes. A general repealing clause reads like this:

> SECTION 3. *Repealing Clause.* — All laws, decrees, orders, rules and regulations or parts thereof inconsistent with any of the provisions of this Act are hereby repealed, amended or modified accordingly.[17]

Other laws, such as the Philippine Cooperative Code of 2008,[18] specify the laws and administrative issuances that are repealed.

17 Republic Act No. 10150 (2011).

18 Republic Act No. 9520 (2009).

> ART. 143. *Repealing Clause.* — Except as expressly provided by this Code, Presidential Decree No. 175 and all other laws, or parts thereof, inconsistent with any provision of this Code shall be deemed repealed: Provided, That the provisions of Sections 3, 5, and 7 of Presidential Decree No. 1645, Executive Order No. 623, series of 2007, Revenue Regulation No. 20-2001, and all laws, decrees, executive orders, implementing rules and regulations, BIR circulars, memorandum orders, letters of instruction, local government ordinances, or parts thereof inconsistent with any of the provisions of this Act are hereby repealed, amended or modified accordingly.

Another example, the "Graphic Health Warnings Law,"[19] provides:

> SEC. 20. *Repealing Clause.* – Section 13 on Warning on Cigarette Packages of Republic Act No. 9211, DOH Administrative Order No. 2010-0013 and BIR Revenue Regulations No. 3-2006, Sections 18(e) and 23(a)(1)(b) are hereby repealed. All other laws, decrees, executive orders and other administrative issuances and parts thereof which are inconsistent with the provisions of this Act are hereby modified, superseded or repealed accordingly.

The Environmental Planning Act of 2013[20] contains the following repealing clause:

> SECTION 42. — Presidential Decree No. 1308 is hereby repealed. All other laws, orders, rules and regulations or resolutions or parts thereof inconsistent with the provisions of this Act are hereby repealed or amended accordingly.

In the case of this law, however, the title of the act made the intent to repeal Presidential Decree No. 1308 clear:

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19 Republic Act No. 10643 (2014).

20 Republic Act No. 10587 (2013).

> AN ACT REGULATING THE PRACTICE OF ENVIRONMENTAL PLANNING, REPEALING FOR THE PURPOSE PRESIDENTIAL DECREE NUMBERED ONE THOUSAND THREE HUNDRED AND EIGHT, ENTITLED "LAW REGULATING THE ENVIRONMENTAL PLANNING PROFESSION IN THE PHILIPPINES", AND FOR OTHER PURPOSES

However, repeals of existing laws are not always evident in the title of the law. *Giron v. Commission on Elections,*[21] involved a challenge to the constitutionality of the repealing clause of the Fair Elections Act.[22] The petitioners argued that it violated Section 26 (1), Article VI of the 1987 Constitution, or the "one subject-one title" rule. The Supreme Court upheld the statute:

> …we find that the assailed Section 12 (Substitution of Candidates) and Section 14 (Repealing Clause) are indeed germane to the subject expressed in the title of R.A. 9006: An Act to Enhance the Holding of Free, Orderly, Honest, Peaceful and Credible Elections through Fair Election Practices. The title was worded broadly enough to include the measures embodied in the assailed sections. Consequently, we dismiss the Petition and the petitions-in-intervention for failure to establish a clear breach of the Constitution.[23]

In the grant of a franchise, repealing clauses appear different:

> SECTION 14. *Repealing Clause.* — This franchise shall be subject to amendment, alteration, or repeal by the Congress of the Philippines when the public interest so requires and shall not be interpreted as an exclusive grant of the privileges herein provided for.[24]

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21 G.R. No. 188179, January 22, 2013.

22 Republic Act No. 9006 (2001).

23 *Id.*

24 Republic Act No. 7847 (1994).

Congress may spell out the impact of laws on other existing laws to foreclose the possibility of confusion in its implementation. The Fair Elections Act[25] goes so far as to state the impact of its repealing clause on other legislation:

> SECTION 14. *Repealing Clause.* — Sections 67 and 85 of the Omnibus Election Code (Batas Pambansa Blg. 881) and Sections 10 and 11 of Republic Act No. 6646 are hereby repealed. As a consequence, the first proviso in the third paragraph of Section 11 of Republic Act No. 8436 is rendered ineffective. All laws, presidential decrees, executive orders, rules and regulations, or any part thereof inconsistent with the provisions of this Act are hereby repealed or modified or amended accordingly.

Occasionally, repealing clauses can contain more information. The Revised Government Service Insurance Act of 1977[26] actually contains provisos:

> SEC. 3 *Repealing Clause.* — All laws and any other law or parts of law specifically inconsistent herewith are hereby repealed or modified accordingly: Provided, That the rights under the existing laws, rules and regulations vested upon or acquired by an employee who is already in the service as of the effectivity of this Act shall remain in force and effect: Provided, further, That subsequent to the effectivity of this Act, a new employee or an employee who has previously retired or separated and is reemployed in the service shall be covered by the provisions of this Act.

25 Republic Act No. 9006 (2001).
26 Republic Act No. 8291 (1997).

CHAPTER 21

Applying Legal Method

At this point, the student should be sufficiently equipped with skills in legal method and able to apply them to resolve concrete legal issues. In this chapter, we will show how these skills can be applied to help resolve a legal controversy that involves the interpretation of the "Philippine Midwifery Act of 1992."[1]

Although this law was enacted years ago, it continues to generate controversy. The controversy stems from the ambiguity in Section 23. Some midwives understand Section 23 as allowing the administration of oxytocin[2] only after the delivery of a child. They are apprehensive that they could face sanctions if they administer the drug before the delivery of a baby.

Section 23 of the Act provides:

> SECTION 23. *Practice of Midwifery Defined*. — The practice of midwifery consist in performing or rendering, or offering to perform or render, for a fee, salary, or other reward or compensation, services requiring an understanding of the principles and application of procedures and techniques in the supervision and care of women during pregnancy, labor and puerperium management of normal deliveries, including the performance of internal examination during labor except when patient is with antenatal bleeding; health education of the patient, family and community; primary health care services in the community, including nutrition and family

1 Republic Act No. 7392 (1992).

2 Oxytocin is a commercial form of this substance, obtained from beef and hog pituitary glands or especially by synthesis, and used chiefly in obstetrics to induce labor and to control postnatal hemorrhage. *Oxytocin*, Dictionary.com, http://dictionary.reference.com/ browse/ oxytocin (last visited Apr. 28, 2015).

> planning in carrying out the written order of physicians with regard to antenatal, intra-natal and post-natal care of the normal pregnant mother in giving immunization, *including oral and parenteral dispensing of oxytocic drug after delivery of placenta*, suturing perenial lacerations to control bleeding, to give intravenous fluid during obstetrical emergencies provided they have been trained for that purpose; and may inject Vitamin K to the newborn: *Provided, however,* That this provision shall not apply to students in midwifery schools who perform midwifery service under the supervision of their instructors, nor to emergency cases. (italics supplied)

The problem arises because the phrase "including oral and parenteral dispensing of oxytocic drug after delivery of placenta" suggests that the oxytocin should be used only *after* the birth of a child.

The question is: Does the law allow the midwife to use oxytocin at any time other than after the birth of a child? No midwife wants to risk sanctions brought about by the incorrect interpretation of the law. A problem could also arise from the perspective of the Department of Health, which is the agency that must prepare the rules and regulations implementing the law.

The services of a lawyer are required and she must now apply the skills honed in her Legal Method class to examine every aspect of the relevant law.

Let us assume that a person M administered oxytocin to induce labor of her patient. Assume further that M is charged criminally for doing so. She hires a lawyer to prepare her defense. The lawyer then has to make the argument that M cannot be held liable under the provisions of Republic Act No. 7392.

On the other hand, the DOH may be uncertain about the intent of the framers of the law, and so engages legal services to determine the parameters of the Act. The lawyer then analyzes the same law and makes recommendations as to the contents of the proposed regulations.

In both instances, the skills learned by a law student need to be applied to resolve the question of whether a midwife can be held liable for administering oxytocin before a child is born. It involves the correct interpretation of Republic Act No. 7392.

There is no single approach to this problem. The lawyer can apply as many of the rules of statutory interpretation as she deems relevant. She will begin, however, with

an analysis of the statute itself. She can later examine extrinsic aids, and look into laws that were enacted before and after the enactment of the Philippine Midwifery Act of 1992.

1. Use of headings

The first thing the lawyer can do is identify and analyze the pertinent provision of the law. Section 23 contains the heading "*Practice of Midwifery Defined.*" Headings and headnotes operate as ready reference to the content of the provision to which they are prefixed and may thus be consulted to facilitate interpretation.[3] When a statute is divided into separate articles having appropriate headings, it must be presumed that the provisions of each article conform to the heading and operate as a general rule for settling questions as are embraced by its subject.[4] In this case, the heading of Section 23 denotes that the provision defines the practice of midwifery and designates the acts constituting its practice. It may be argued that the provision does *not* define criminal offenses. We must take note, however, that the heading of a provision is but a supporting argument. The Supreme Court does not generally give import to headings. According to the Court, "headings prefixed to the titles, chapters, and sections of a statute or code may be consulted in aid of the interpretation, in case of doubt or ambiguity; but inferences drawn from such headings are entitled to very little weight, and they can never control the plain terms of the enacting clauses."[5]

2. Analyzing the text of the law.

Aside from the heading, we can look at the text of Section 23. We can examine the tricky clause: "including oral and parenteral dispensing of oxytocic drug after delivery of placenta." An argument one can make has to do with the meaning of the word "including." One can argue that the use of "including" means that Congress simply enumerated ways midwifery may be practiced, and that the list is not exclusive. To make this argument, one needs to define "include."

The dictionary defines the word "include" as follows:

a. to have (someone or something) as part of a group or total: to contain (someone or something) in a group or as a part of something

3 *In Re* Estate of Johnson, G.R. No. L-12767, November 16, 1918.

4 Kare v. Platon, G.R. No. L-35902, October 28, 1931.

5 Kare v. Platon, G.R. No. L-35902, October 28, 1931.

b. to make (someone or something) a part of something.[6]

By definition, "including" is meant to indicate that the words that follow are part of a larger group. There is nothing here to suggest that the enumeration is exclusive or is a complete listing — it merely contains examples of the many ways to practice midwifery — including, possibly, the administration of oxytocin before the birth of a child.

The text of Section 23 also shows that Congress did not intend to limit the possibility of administering oxytocin in all cases. It provides that Section 23 "shall not apply to students in midwifery schools who perform midwifery service under the supervision of their instructors, or to emergency cases." It can be argued that there is no absolute ban on the use of oxytocin and it can be administered, at the very least, during an emergency

3. Analyzing the penal clause of the law.

The researcher may also look at other parts of the law to support the view that it does not bar the use of oxytocin. If the researcher is concerned with punishable acts, she should look at Section 27, which provides:

> SECTION 27. *Penal Provision.* — Any person who shall practice midwifery in the Philippines within the meaning of this Act without a certificate of registration issued in accordance herewith, or any person presenting or using as his/her own certificate of registration of another, or any person giving any false or forged evidence to the Professional Regulation Commission in order to secure a certificate of registration, or any person using a revoked or suspended certificate of registration or any person assuming, using or advertising, as a registered midwife or a registered nurse-midwife or appending to his/her name the letters "R.M." without having been conferred such title by the Professional Regulation Commission or advertising any title description tending to convey the impression that he/she is a registered midwife, shall be guilty of misdemeanor and shall, upon conviction, be sentenced to a fine of not less than Ten thousand pesos (P10,000.00) nor more than Thirty thousand pesos (P30,000.00), or to suffer imprisonment

6 *Include*, Merriam-Webster, http://www.merriam-webster.com/dictionary/include (last visited Apr. 28, 2015).

for a period of not less than two (2) years nor more than seven (7) years, or both such fine and imprisonment at the discretion of the court.

The aforementioned penalty shall likewise be imposed upon any person found guilty of violation of any rule and regulation issued pursuant to the provisions of this Act.

An examination of Section 27 shows that it lists and penalizes the following acts:

a. Practicing without a certificate of registration;

b. Presenting or using as his/her own certificate of registration of another;

c. Giving any false or forged evidence to the Professional Regulation Commission in order to secure a certificate of registration;

d. Using a revoked or suspended certificate of registration;

e. Assuming, using or advertising, as a registered midwife or a registered nurse-midwife or appending to his/her name the letters "R.M." without having been conferred such title by the Professional Regulation Commission or advertising any title description tending to convey the impression that he/she is a registered midwife.

There is a common feature in all the acts that are penalized by the law. All these acts have to do with the unauthorized practice of midwifery. The list does not extend to any other acts. The way it is written also suggests that the penal offenses listed under Section 27 are exclusive; that is, these are the only acts that may be punished under the law. They are not to be extended or enlarged by implication, intendment, analogy, or similar considerations. They are not to be strained by construction to give rise to a new offense, enlarge the field of crime or multiply felonies.[7] Had the legislature intended to penalize the administration of oxytocic drugs during delivery, it would have expressly provided so among the offenses. Hence, the administration of oxytocin, which is, in and of itself, innocent and lawful, cannot be held to be criminal unless there is a clear and unequivocal expression of the legislative intent to make it such.

One may also consider the well-entrenched rule that penal laws and provisions are construed strictly against the State and liberally in favor of the accused. In the

7 Centeno v. Villalon-Pornillos, G.R. No. 113092, September 1, 1994.

interpretation of a penal statute, the tendency is to subject it to careful scrutiny and to construe it with such strictness as to safeguard the rights of the accused. The purpose of strict construction is to provide a precise definition of forbidden acts.[8] It would be improper then to extend the penal provisions to cover acts which are clearly excluded by the Act.

The restrictive interpretation of the penal provisions is consistent with the purpose of Republic Act No. 7392 —which is merely to regulate the practice of midwifery and to penalize acts pertaining to its unauthorized practice.

4. Analyzing intent by comparing the law with previous laws.

The researcher can also examine the intent of Republic Act No. 7392 by comparing it with the older law. Republic Act No. 7392 by looking at the preceding law, Republic Act No. 2644, otherwise known as "An Act Regulating Midwifery Training and Practice." The parallel provision of the preceding law is Section 24 which also defined the practice of midwifery:

> Sec. 24. *Practice of Midwifery Defined.* — A person shall be deemed to be practicing midwifery within the meaning and intent of this Act, who shall, for a fee, salary, or other reward or compensation, perform services requiring an understanding of the principles and applications of procedures and techniques applicable to the care of normal child-bearing women from the beginning of pregnancy until the end of puericulture and the care of their normal infants during the neonatal period: *Provided, however*, That these provisions shall not apply to students in midwifery schools who perform midwifery services under the supervision of their instructors, nor to cases of emergency.

Midwifery, under Republic Act No. 2644, pertains to services requiring an understanding of the principles and application of procedures and techniques "applicable to the care of normal child-bearing women from the beginning of pregnancy until the end of puericulture and the care of their normal infants during the neonatal period." On the other hand, under Republic Act No. 7392, midwifery pertains to the following specific services:

8 Centeno v. Villalon-Pornillos, G.R. No. 113092, September 1, 1994.

a. supervision and care of women during pregnancy;

b. labor and puerperium management of normal deliveries;

c. health education of the patient, family and community; and

d. primary health care services in the community.

Evidently, there has been a modification in the language used in defining the practice of midwifery. Both laws lay down the meaning of midwifery, albeit in different ways. A comparison of these provisions shows that the revised definition is broader. As can be gleaned from the former law, the practice of midwifery encompassed all services relating to the care of pregnant women and infants performed within a specified period—that is from the beginning of pregnancy until neonatal period. It did not specify the kinds of services that constitute the profession. The revised definition of midwifery, however, lists examples of services that fall under the practice of midwifery. It may be argued that the intent of Republic Act No. 7392 is to explain in some detail the broad definition found in the prior law. It merely clarifies, by way of specific examples, the earlier definition in Republic Act No. 2644.

5. Examining subsequent laws

The researcher should next look at laws enacted after 1992 which could have amended Republic Act No. 7392. A survey of these laws will point to the "Responsible Parenthood and Reproductive Health Act of 2012" or Republic Act No. 10354, the one law that makes an express reference to "oxytocin."

Republic Act No. 10354 allows midwives to administer oxytocin under certain circumstances. Section 5 of the law provides:

> SECTION 5. *Hiring of Skilled Health Professionals for Maternal Health Care and Skilled Birth Attendance.* — The LGUs shall endeavor to hire an adequate number of nurses, midwives and other skilled health professionals for maternal health care and skilled birth attendance to achieve an ideal skilled health professional-to-patient ratio taking into consideration DOH targets: *Provided,* That people in geographically isolated or highly populated and depressed areas shall be provided the same level of access to health care: *Provided, further*, That the national government shall provide

additional and necessary funding and other necessary assistance for the effective implementation of this provision.

For the purposes of this Act, midwives and nurses shall be allowed to administer lifesaving drugs such as, but not limited to, oxytocin and magnesium sulphate, in accordance with the guidelines set by the DOH, under emergency conditions and when there are no physicians available: Provided, That they are properly trained and certified to administer these lifesaving drugs.

Under the Act, therefore, the use of oxytocin is allowed:

a. in accordance with the guidelines set by the DOH,

b. under emergency conditions and when there are no physicians available

c. *Provided*, That they are properly trained and certified to administer these lifesaving drugs.

The implementing rules of the Act are also consistent on this point:

SECTION 4.11. *Provision of Life-Saving Drugs During Maternal Care Emergencies.* — Midwives and nurses shall be allowed to administer life-saving drugs, such as but not limited to oxytocin and magnesium sulfate, in accordance with the guidelines set by the DOH, under emergency conditions and when there are no physicians available: *Provided, That* they are properly trained and certified to administer these life-saving drugs.

SECTION 4.12. *Policies on Administration of Life-Saving Drugs.* — Properly trained and certified midwives and nurses shall be allowed to administer intravenous fluids, oxytocin, magnesium sulfate, or other life-saving drugs in emergency situations and when there are no physicians available. The certification shall be issued by DOH-recognized training centers upon satisfactory completion of a training course. The curriculum for this training course shall be developed by the DOH in consultation with the relevant societies of skilled health professionals.

> Within sixty (60) days from effectivity of these Rules, the DOH shall develop guidelines for the implementation of this provision. The guidelines shall include provisions for immediate referral and transport of the patient upon administration of these life-saving drugs.

The repealing clause of Republic Act No. 10354 impliedly repeals inconsistent provisions of Republic Act No. 7392:

> SECTION 29. *Repealing Clause.* — Except for prevailing laws against abortion, any law, presidential decree or issuance, executive order, letter of instruction, administrative order, rule or regulation contrary to or is inconsistent with the provisions of this Act including Republic Act No. 7392, otherwise known as the Midwifery Act, is hereby repealed, modified or amended accordingly.

Clearly, there is no prohibition on the use of oxytocin; its use depends on the training received by midwives. Any doubt as to whether midwives may allow the administration of oxytocin should be settled by the enactment of Republic Act No. 10354.

6. Updating sources.

At this point, there are steps to be taken to support the argument that the use of oxytocin before the delivery of a child is not an act that can be punished under Republic Act No. 7392. The researcher should check if her primary sources are still good law. She should check if Republic Act Nos. 7392 and 10354 have been amended or repealed. She should also check if the implementing rules of these laws have been amended as well.

Another source to be consulted would be case law research. The Supreme Court, for example, ruled on the constitutionality of Republic Act No. 10354 and found some of its provisions to be invalid.[9] Fortunately, the Supreme Court in that case did not touch on the pertinent sections of the Act.

9 Imbong v. Ochoa, G.R. No. 204819, April 8, 2014.

7. Legislative history

The researcher may choose to strengthen her arguments by citing the legislative history of the law or the deliberations of Congress, but she should remember the limits of its persuasiveness.

Courts do not usually give decisive weight to one legislator's opinion as expressed in Congressional debates concerning the application of existing laws.[10] Use the legislative record with caution, as legislative debates and proceedings are powerless to vary the terms of the statute when the meaning is clear.[11] Legislative debates are expressive of the views and motives of individual members alone and are not always safe guides in ascertaining the meaning and purpose of the lawmaking body.[12] As the Supreme Court explained,

> It is impossible to determine with certainty what construction was put upon an act by the members of the legislative body that passed the bill, by resorting to the speeches of the members thereof. Those who did not speak, may not have agreed with those who did; and those who spoke, might differ from each other.[13]

She may also argue that the texts of the laws are clear and there is really no need to examine the history of the enactment of these laws. Republic Act No. 7392 does not penalize the use of oxytocin during the delivery of a baby.

8. Proposed legislation

Although not compelling, one may use Congress' attempts to amend Republic Act No. 7392 to argue that the law should be read to allow midwives to use oxytocin under certain circumstances.

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10 Song Kiat Chocolate Factory v. Central Bank of the Phil., G.R. No. L-8888, November 29, 1957.

11 Southern Cross Cement Corp. v. Philippine Cement Manufacturers Corp., G.R. No. 158540, July 08, 2004.

12 Nilo v. Court of Appeals, G.R. Nos. L-34586 & L-36625, April 2, 1984.

13 Nilo v. Court of Appeals, G.R. Nos. L-34586 & L-36625, April 2, 1984. In another case, the Supreme Court held that the individual statements made by Senators on the floor of the Senate do not necessarily reflect the view of the Senate. Much less do they indicate the intent of the House of Representatives. See Casco Phil. Chem. Co., Inc. v. Gimenez, G.R. No. L-17931, February 28, 1963; Resins, Inc. v. Auditor General, G.R. No. L-17888, October 29, 1968.

In 2012, the House of Representatives approved on third and final reading House Bill No. 6343 which sought to amend the Philippine Midwifery Act of 1992. In 2013, Senator Antonio F. Trillanes IV filed Senate Bill No. 1179 which also endeavors to strengthen and expand the scope of the midwifery profession, with the end in view of reducing maternal and prenatal morbidity and mortality.

Both bills grant additional powers, as well as enhance the general welfare and commitment to service and professionalism of midwives. Among the significant modifications advanced by these bills is the authorization given to midwives to administer life-saving drugs such as magnesium sulphate, oxytocin, steroids and oral antibiotics when no physician is available, provided they are appropriately trained for such purpose.[14]

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14 Section 1 of House Bill No. 6343 and Senate Bill No. 1179 provides:

> Article III. Section 23 of Republic Act No, 7392 is hereby amended to read as follows:
>
> SEC 23. Practice of Midwifery Defined. - The practice of midwifery consist in performing or rendering or ordering to perform or render, for a fee, salary, or other reward or compensation, services requiring an understanding of the principles and application of procedures and techniques in the supervision and care of women during pregnancy, labor and puerperium management of normal deliveries, including the performance of internal examination during labor except when patient is with antenatal bleeding: health education of the patient, family and community: primary health care services in the community, including nutrition and family planning in carrying out the written order of physicians with regard to antenatal, intra-natal and post-natal care of the normal pregnant mother in giving immunization, including oral and parenteral dispersing of oxytoxic drug after delivery of placenta, suturing pereunial lacerations to control bleeding, to give intravenous fluid during obstetrical emergencies, ADMINISTER LIFE-SAVING DRUGS SUCH AS MAGNESIUM SULPHATE, OXYTOCIN, STEROIDS AND ORAL ANTIBIOTICS WHEN NO PHYSICIAN IS AVAILABLE, provided they [have been] ARE APPROPRIATELY trained for that purpose [:] AND CERTIFIED PROFICIENT TO PERFORM THE NECESSARY CARE AND SERVICES TO PREVENT MATERNAL DEATHS, MIDWIVES ARE ALSO HEREBY ALLOWED TO ADMINISTER ESSENTIAL NEWBORN CARE INCLUDING, BUT NOT LIMITED TO IMMUNIZATION and [may inject] INJECTING Vitamin K to the newborn. Provided however. That this provision shall not apply to students in midwifery schools who perform midwifery service[s] under the supervision of the instructors [, nor to emergency cases].
>
> THE DEPARTMENT OF HEALTH (DOH) SHALL ISSUE GUIDELINES ON THE ACCREDITATION OF MIDWIVES TO PERFORM EMERGENCY OBSTETRIC AND NEONATAL CARE (E/EmONC), ALL PRACTICING MIDWIVES WHO INTEND TO PERFORM E/EmONC MUST APPLY FOR AND ACQUIRE ACCREDITATION FROM THE DOH AFTER NECESSARY TRAININGS AND EXAMINATION AND COMPLIANCE OF OTHER REQUIREMENTS AS MAY BE DETERMINED BY THE DOH.

The proposed amendments show that the administration of oxytocin will be allowed when no physician is available. That life-saving drugs such as oxytocin may be dispensed before, during or after delivery is palpable from the fact that no qualification was made by Congress as to when these substances are to be administered. The only precondition imposed under the proposed measures is that there should be "appropriate training" for the midwives. This demonstrates that there is clear legislative intent allowing the administration of oxytocin before or during delivery. Hence, the suggested amendments bolster the construction that midwives have long been sanctioned by law to dispense oxytocin even before or during the delivery of the placenta.

The lawyer should be alert to the inherent weakness of speculating on congressional intent in filed, but not enacted, measures. This argument could backfire if courts interpret the proposed measures to suggest that new laws are needed to allow the use of oxytocin at any time precisely because no such authority is granted under the extant laws.

When the researcher is satisfied that her research is current, she can reduce her work in the form of a legal memorandum.

CHAPTER 22

The Memorandum of Law

The lessons learned in legal method are applied in preparing a memorandum of law. First year law students are typically given a legal problem to analyze by using the skills they have developed. This analysis is done through a legal memorandum. This skill is carried over to one's practice and writing memoranda is also among the basic skills a paralegal or lawyer is expected to have mastered.

A legal memorandum is a document written to convey information within a law firm or other organization. It is a written analysis of a legal problem that evaluates the strengths and weakness of each party's arguments.[1] The legal memorandum will become the basis for the advice which law offices will give to their clients.[2]

KINDS OF MEMORANDA OF LAW[3]

There are two kinds of memoranda of law:

a. The Interoffice memorandum of law

    1. This memo is an internal document and the main audience here is your supervisor or someone in your office.

    2. The goal is to analyze the law in order to predict how a court or other tribunal will resolve the dispute in the client's case.

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1 Helene S. Shapo et al., Writing and Analysis in the Law 141 (Fourth Edition 2003).

2 John C. Dernbach and Richard V. Singleton, A Practical Guide to Legal Writing and Legal Method 70 (1981).

3 William P. Statsky, Introduction to Paralegalism: Perspectives, Problems, and Skills 633 (6th ed. 2003). The rest of the chapter adopts the suggestions from Statsky. In some cases, his text has been adopted for the Philippine context.

3. This memo should present the strengths and weaknesses of the client's case. The supervisor will make decisions based on your work and she should have a realistic picture of the law is.

4. The writer must write arguments in favor of both sides of the dispute. This ability to look at both sides of the issue is an attribute of a professional.[4]

b. External or Advocacy Memorandum of Law.

1. The audience is someone outside the office a judge or officer of a tribunal.

2. The goal is to convince the reader to side with your client.

3. The writer highlights the strengths of the client s case and the weaknesses of the opponent's position.[5]

STRUCTURE OF AN INTEROFFICE MEMORANDUM OF LAW

Determine the format preferred by your supervisor. Otherwise, Statsky suggests the following:

1. Heading

The heading of the memo contains information about the writer and the nature of the memo:

a. A caption of memorandum centered at the top of the page stating what kind of document it is.

b. The name of the person to whom the memo is addressed.

c. The name of the author.

d. The date the memo was completed and submitted.

e. The name of the case the name of the client and the opponent if any.

4 *Id.*
5 *Id.*

f. The office file number.

g. The court docket number (if suit is already filed).

h. A very brief summary of the subject matter of the memo following the notation RE: meaning in the matter of or concerning [6]

Example

Interoffice Memorandum of Law

FOR: Aurora de Dios, Esq.
FROM: Manuel Borja
CASE: Hildawa v. Galindo
OFFICE FILE NUMBER: 12345
DOCKET NUMBER:

RE: Constitutionality of Republic Act No. 112344

The Subject matter description is needed for two reasons:

a. Law offices have a large number of files with several memoranda. The heading makes it easier to locate in the client s file.

b. The memo might be examined sometime in the future. Many offices catalogue old memos by subject matter. The heading will facilitate the filing of your memo. [7]

2. Statement of the Assignment

The author should write out what she was asked to do. She should state the parameters of the assignment and include limitations given by the supervisor.[8] For example:

6 *Id.* at 634.
7 *Id.*
8 *Id.* at 635.

- You asked me not to analyze the issue of damages.
- You asked me not to spend more than four hours on the assignment.
- List the assumptions you were asked to make.[9] For example:
- The writer was asked to assume that the impeachment case does not violate the one-year ban in the Constitution.
- You asked me to write a memorandum of law on whether the Secretary of Justice can lawfully prevent former President Arroyo from leaving the country limited to the latter s constitutional right to travel.
- You asked me to write a memorandum of law on whether the Secretary of Justice can lawfully prevent former President Arroyo from leaving the country solely on whether the Supreme Court's temporary restraining order was officially received by the Department of Justice under the Rules of Court.

3. Issues

There are two critical components of an issue. These are (a) a brief quote from the element of the law in contention, and (b) several of the important facts relevant to that contention.[10]

Let us use facts from the case of *Yambot v. Tuquero*[11] as an example. On May 26, 1996, the Philippine Daily Inquirer (PDI) printed an article headlined *Judge Mauled Me, Says Court Employee*, written by Volt Contreras. The article reported an alleged mauling incident that took place between respondent Makati Regional Trial Court (RTC) Judge Escolastico U. Cruz, Jr. and Robert Mendoza, an administrative officer assigned at the Office of the Clerk of Court of the Makati RTC.

Judge Cruz filed a Complaint for libel with the City Prosecutor of Makati claiming that the article was false and malicious. Judge Cruz protested the following sentence in said article:

9 *Id.*

10 *Id.*

11 G.R. No. 169895, March 23, 2011.

> According to Mendoza, Cruz still has a pending case of sexual harassment filed with the Supreme Court by Fiscal Maria Lourdes Garcia, also of the Makati Regional Trial Court.

The writer of the memorandum should examine the law on libel. From both a reading of the Revised Penal Code and pertinent literature, she would find that libel is defined as a public and malicious imputation of a crime, or of a vice or defect, real or imaginary, or any act, omission, condition, status or circumstance tending to discredit or cause the dishonor or contempt of a natural or juridical person, or to blacken the memory of one who is dead. The following elements constitute libel: (a) imputation of a discreditable act or condition to another; (b) publication of the imputation; (c) identity of the person defamed; and, (d) existence of malice.

The issue in this case might be written this way:

> Whether Contreras made a public and malicious imputation of a crime, or of a vice or defect when he wrote that [Judge] Cruz still has a pending case of sexual harassment filed with the Supreme Court.

The issue is made up of a quote from the element in contention and facts that are relevant to that element Volt Contreras statement that there was a pending case against the judge.

4. Short Answer

This section presents succinct responses to the issues that were identified.[12] There is no single rule for the length of a short answer although a single sentence explanation should suffice. In our example above, the researcher might write No. The element of malice is not present in the case. More complicated issues may require longer explanations but these should ideally be limited to a single paragraph.[13]

12 Roger LeRoy Miller & Mary Meizinger Urisko, West's Paralegal Today: The Essentials 287 (2nd ed. 2000).

13 *Id.*

5. Facts

The statement of facts is one of the most important components of the memorandum. Make sure that it is concise, accurate and organized. Statsky explains these characteristics:

Conciseness — An unduly long statement of facts frustrates the reader. A writer can trim the facts down after writing the issue. A review of the facts after writing them will help identify the facts that are not pertinent to the case. In the same way, facts that are not discussed in the analysis of the memo may be discarded as they would seem to be superfluous.[14]

Accuracy — If the case is at its beginnings, there may be no record of facts yet. Do not assume that disputed facts will be resolved in your client s favor. Assess the legal implications of facts that are both favorable and unfavorable. If the facts are unknown, conduct an investigation if time allows.[15]

Organization — A disorganized statement of facts not only prevents the reader from understanding the events in question but also interferes with the understanding of your analyses. When the facts are long, a one or two sentence summary might be in order. For example:

> Facts: During the 12 years of employment at Sinclair Chemicals, Inc. Mary Reyes was subjected to numerous instances of sexual harassment. When she began work there in 1990, she…

At this point, the writer may introduce a chronological statement of the detailed facts.[16]

6. Discussion or Analysis

Present the law and explain how they apply to the facts. It is at this point that you answer the question raised in the issue. Interpretation or construction of the law may become necessary at this point. Give opposing views for the elements in contention. Anticipate how the

14 Statsky *supra* note 3 at 636.

15 *Id.*

16 *Id.*

other side will interpret these elements. Provide an analysis of the case from the other perspective.[17]

7. Conclusion

   Give your opinion as to which side has better arguments. Do not state any new arguments simply state your view on the strengths and weaknesses of your arguments.[18]

8. Recommendations

   State recommendations you think are appropriate in view of the analyses and conclusions you provided. You may want to recommend further investigation of the facts or whether correspondence should be made to any person regarding the case.[19]

9. Appendix

   Include special items, if any, that you referred to in the memo such as photographs, statistical tables, or the full text of statutes.[20]

UPDATING THE LAW

When researching a topic or point of law, consider whether a court decision, statute or regulation is still valid. A case decided a few months ago may be bad law if it has been reversed or modified on appeal. Statutes are amended or repealed so a researcher should never assume that the law on a specific issue is the same today as it was last month.[21]

17 *Id.* at 637.
18 *Id.* at 638.
19 *Id.*
20 *Id.*
21 Miller & Urisko, *supra* note 12 at 276.

CHAPTER *23*

Legal Method and the Rule of Law

In the introduction of this book, it was suggested that legal method enables society to gauge its commitment to the rule of law. The fact is that our laws are imperfectly written and they can be interpreted by stakeholders in any number of ways. Government officials and private citizens, lawyers and lay persons can examine the same text of the law and disagree on its meaning. Our system of government with its many actors (both State and non-State) does not preclude alternative interpretations of the law.

At best, the system channels legal arguments to certain venues for resolution. Administrative agencies and courts can settle legal issues. The system can define when a Supreme Court decision is final but in truth, even the Court's decisions are impermanent. They are subject to reconsideration by the Court itself especially when its membership changes or when social circumstances warrant a reexamination of its rulings.[1] They are subject to the People's will, and the People, as the sovereign, could amend the Constitution to overturn the Court's rulings. There is also nothing to keep the People themselves from changing their minds and amending the Constitution yet again.

The legal system has evolved in a way where decision-making bodies adhere to certain conventions. We adopt constitutions so we can lay down the rules by which our government will operate and protect our most fundamental rights. We adhere to the separation of powers and the concept of checks and balances to prevent abuse of power by any single branch of government. We develop the idea of judicial supremacy to provide for the idea of a final arbiter for our legal disputes. We adopt

1 In truth, the members of the Court can simply change their minds on an issue and in a close vote it can take one member of the Court to reverse the Court's ruling. In *Maliksi v. Commission on Elections* (G.R. No. 203302), the Supreme Court reversed its ruling in March 12, 2013 a month later.

stare decisis as a way to stabilize the decision making process and to make it fair and predictable. We adopt canons of construction so stakeholders can be guided by rules that can make predictable outcomes. These are among the lessons learned in legal method.

These constructs, imperfect as they are, allow us to operate as a society. We believe in a system where at the very least, all members of society are equal before the law. No person can flout the law rich and poor, citizen and alien, man or woman, parent or child. Despite all our differences in our politics, religion, sexual orientation, race, or wealth we cooperate with the system because it promises fairness.

When our conventions are ignored, we are alerted to the possible misuse of power. For example, when the Supreme Court abandons precedents, citizens examine whether the Court's reasons are sound. If the Court engages in the wholesale abandonment of its own doctrines or disregards the clear text of the law then our faith in the system falters. We think the worst that our judges have betrayed the public trust. Executive or Legislative officials acts can also erode our trust. Presidents and lawmakers have been charged and/or convicted of crimes. The Executive branch in particular can pursue policies that are not supported by law. Often, government actors pretend to abide by the law by invoking the law itself interpreted in a way that would justify their actions. In such cases, legal method is often misused to justify unlawful acts or to commit human rights violations.

One example of how legal method was used to disregard human rights can be found in the United States. When terrorists attacked the United States in 2001, the US retaliated by authorizing the President to use all necessary and appropriate force against those nations, organizations, or persons he determines planned, authorized, committed, or aided the terrorist attack… in order to prevent any future acts of international terrorism against the United States by such nations, organizations or persons.[2] Acting pursuant to this authority, and having determined that the Taliban regime had supported Al Qaeda, the President ordered the Armed Forces of the United States to invade Afghanistan. As a result, hundreds of individuals were captured and detained at Guantánamo Bay, Cuba within a month after the assault began.[3]

The Administration of George W. Bush wanted a legal basis for the use of torture when interrogating its prisoners. On August 1, 2002, in response to a request from White House Counsel Alberto Gonzales, the Office of Legal Counsel (OLC)

2 Authorization for Use of Military Force (AUMF), Pub. L. No. 107-40, 115 Stat. 224 (2001).

3 See Hamdan v. Rumsfeld, 548 U.S. 557, 567 (2006).

issued a memorandum entitled Standards of Conduct for Interrogation Under 18 U.S.C. §§ 2340-2430(A). [4] This Torture Memo sparked outrage in legal circles and the public[5] after it was leaked almost two years later by the Washington Post. The OLC, responding to immense political pressure and engaging in shockingly poor legal technique, gave incorrect legal advice to interrogators.[6]

The OLC claimed that although torture is a crime, the law does not prohibit cruel and inhumane treatment of the detainees. The OLC then defined torture very narrowly only the most extreme acts that are specifically intended to inflict severe mental or physical pain and suffering.[7] According to the OLC, even if interrogation techniques did constitute torture, the rules proscribing torture would be unconstitutional as infringing on the President's inherent powers.[8] Finally, the OLC claimed that the President could claim either self-defense or necessity to justify the use of torture.[9] The outrage was also fueled by the fact that the OLC is one of the most elite groups of lawyers in the federal government charged to serve as the primary legal advisor to the executive branch. It is peopled by the brightest minds of the legal profession and its reputation has always been stellar and unimpeachable.[10] Critics of the torture memo suggested that the lawyers who developed it acted unethically and can face sanctions as war criminals.[11]

Pressure from bar associations and the academe, among others, succeeded in forcing the Office of Legal Counsel to abandon its Torture Memorandum. Even former OLC lawyers jumped into the fray by proposing guidelines to depoliticize their office in an effort to refurbish its reputation.[12]

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4 The legal memorandum is available online at http://www.washingtonpost.com/wp-srv/nation/documents/dojinterrogationmemo20020801.pdf.

5 Milan Markovic, *Can Lawyers be War Criminals*?, 20 Geo. J. Legal Ethics 347 (2007).

6 Daniel Kanstroom, *On Waterboarding : Legal Interpretation and the Continuing Struggle for Human Rights*, 32 B.C. Int l & Comp. L. Rev. 203, 206 (2009).

7 Marisa Lopez, *Professional Responsibility: Tortured Independence in the Office of Legal Counsel*, 57 Fla. L. Rev. 686 (2005).

8 *Id.*

9 *Id.*

10 David Luban, *Liberalism, Torture, and the Ticking Bomb*, in The Torture Debate in America 35, 83 (K. J. Greenberg ed. 2006).

11 *See* Kathleen Clark, *Ethical Issues Raised by the OLC Torture Memorandum,* 1 J. Nat l. Sec. L. & Pol'y 455, 472 (2005).

12 Julian Ku, *Accountability for the Torture Memo: The Wrongheaded and Dangerous Campaign to Criminalize Good Faith Legal Advice*, 42 Case W. Res. J. Int l L. 449, 450 (2009). Ku argues against the attempt to prosecute the OLC lawyers. *See also* Carrie L. Flores, *Unfounded*

This case shows the crucial role of the legal method in policy formulation. It is an illustration, unfortunately, of how legal method can be misused. The Bush administration needed a legal basis for the extreme measures it wanted to employ in the extraction of information from those suspected of involvement in terrorism. Since the law did not support these techniques, the OLC wrote a document that was slanted to say the least. The use of torture is one of the darkest moments in US history and it all happened because there was a document that sanctioned the abuse of prisoners. This document disregarded conventions on the interpretation of law and by issuing it the OLC tarnished its otherwise pristine image to attain a political end.

The other important lesson of this episode is that stakeholders members of the bar in particular did not sit idly by and let the President continue with what they believed were clear violations of the law. Apart from the cases that were filed to question the validity of the detention of prisoners, they also mounted a campaign to overturn the OLC's position. Alert to the OLC's departure from the rules of interpretation, they produced a massive body of criticism, however unpopular at that time, to correct the OLC's position on the use of torture.

The more aware we are of the law and the manner in which the system operates, the quicker we detect departures from conventions. As the sovereign Filipino people, we should object to show our commitment to the rule of law. Lawyers, paralegals, law students and other members of the legal community are aided in this endeavor in large measure by their training. However, legal method is not a skill only lawyers can master. Many of the doctrines discussed in this book were studied sometimes as early as high school. Citizens also have a duty to educate themselves on social issues so they can exercise their prerogatives to speak, assemble, engage their officials, and to sanction them when they stray from the rule of law or when they forget their place in the schema of government.

Allegations that John Yoo Violated his Ethical Obligations as a Lawyer: A Critical Analysis of the Torture Memo, 25 BYU J. Pub. L. 1 (2011).

APPENDIX

A.M. No. 10-4-20-SC

THE INTERNAL RULES OF THE SUPREME COURT

RULE 1

THE INTERNAL RULES

SECTION 1. *The Internal Rules.* – These Rules shall govern the internal operations of the Supreme Court and guide its exercise of judicial and administrative functions. They shall be cited as *The Internal Rules of the Supreme Court*.

SEC. 2. *Interpretation.* – The *Internal Rules of the Supreme Court* shall be interpreted in accordance with the mandates of the Supreme Court under the Constitution, applicable laws, and the Rules of Court to ensure a just, fair and efficient administration of justice. Nothing in these Rules shall be interpreted to preclude or limit the exercise of the power and authority of the Court as provided in the Constitution, the applicable laws, and the Rules of Court.

SEC. 3. *Committee on Internal Rules.* –

(a) A permanent Committee on Internal Rules of the Supreme Court shall ensure, through appropriate recommendation to the Court *en banc*, that these Rules are kept current and responsive to the needs of the Court and the public it serves;

(b) The Committee, composed mainly of Members of the Court, shall include the Clerk of the Supreme Court and the Chief Attorney as permanent members, and may include other court officials as may be needed;

(c) The Committee shall collate relevant materials from laws, the Rules of Court, and Resolutions of the Court at the end of every year and submit to the Court *en banc* an update of the Rules the following January. It shall likewise recommend to the Court *en banc* the amendment, revision or deletion of any of these Rules to reflect and achieve the objectives of justice, fairness and efficiency;

(d) These Rules shall be posted on the Supreme Court website.

SEC. 4. Amendment or suspension of the Rules. – In the interest of sound and efficient administration of justice, and upon a majority vote of the Court en banc, any provision of these Rules may be amended, revised, deleted, suspended or dispensed with in particular cases, upon such terms as the Court en banc may decide to be just, fair and proper.

RULE 2

THE OPERATING STRUCTURES

SECTION 1. *Exercise of judicial and administrative functions.* – The Court exercises its judicial functions and its powers of administrative supervision over all courts and their personnel through the Court *en banc* or its Divisions. It administers its activities under the leadership of the Chief Justice, who may, for this purpose, constitute supervisory or special committees headed by individual Members of the Court or working committees of court officials and personnel.

SEC. 2. *Quorum of the Court en banc.* – Eight Members shall constitute a quorum of the Court. In the absence of the Chief Justice, the most senior Associate Justice present shall chair the sessions of the Court.

SEC. 3. *Court en banc matters and cases.* – The Court en banc shall act on the following matters and cases:

(a) cases in which the constitutionality of any treaty, international or executive agreement, law, executive order, presidential decree, proclamation, order, instruction, ordinance, or regulation is in question;[1]

(b) cases raising novel questions of law;

(c) cases affecting ambassadors, other public ministers, and consuls;

(d) cases involving decisions, resolutions, and orders of the Commission on Elections and the Commission on Audit;[2]

(e) cases where the penalty recommended or to be imposed is the dismissal of a judge, official or personnel of the Judiciary, the disbarment of a lawyer, the suspension of any of them for a period of more than one year, or a fine exceeding forty thousand pesos;[3]

(f) cases covered by the preceding paragraph involving the reinstatement in the judiciary of a dismissed judge, the reinstatement of a lawyer in the roll of attorneys, or the lifting of a judge's suspension or a lawyer's suspension from the practice of law;

(g) cases involving the discipline of a Member of the Court, or a Presiding Justice, or any Associate Justice of the collegial appellate courts;

(h) cases where a doctrine or principle laid down by the Court en banc or by a Division may be modified or reversed;

(i) cases involving conflicting decisions of two or more divisions;

(j) cases where three votes in a Division cannot be obtained;

(k) Division cases where the subject matter has a huge financial impact on businesses or affects the welfare of a community;

(l) subject to Section 11 (b) of this rule, other division cases that, in the opinion of at least three Members of the Division who are voting and present, are appropriate for transfer to the Court en banc;

(m) cases that the Court en banc deems of sufficient importance to merit its attention; and

1 As amended on July 1, 2012 and September 18, 2012.

2 As amended on August 3, 2010.

3 As amended on June 18, 2013.

(n) all matters involving policy decisions in the administrative supervision of all courts and their personnel.

SEC 4. *Division cases.* – All cases and matters under the jurisdiction of the Court not otherwise provided for by law, by the Rules of Court or by these Internal Rules to be cognizable by the Court en banc shall be cognizable by the Divisions.

SEC 5. *Composition and quorum of a Division.* – Unless the Court en banc decrees otherwise, a quorum shall consist of a majority of all Members of the Division, and an absent or a non-participating regular Member of a Division may be replaced at the request of the regular Members by a Member designated from another Division in order to constitute a quorum.

SEC 6. *Resolutions of motions for reconsideration or clarification of an unsigned resolution or a minute resolution and all other motions and incidents subsequently filed.* – Motions for reconsideration or clarification of an unsigned resolution or a minute resolution and all other motions and incidents subsequently filed in the case shall be acted upon by the regular Division to which the ponente belongs. The *ponente* is the Member to whom the Court, after its deliberation on the merits of a case, assigns the writing of its decision or resolution in the case.[4]

SEC 7. *Resolutions of motions for reconsideration or clarification of decisions or signed resolutions and all other motions and incidents subsequently filed; creation of a Special Division.* – Motions for reconsideration or clarification of a decision or of a signed resolution and all other motions and incidents subsequently filed in the case shall be acted upon by the *ponente* and the other Members of the Division who participated in the rendition of the decision or signed resolution.

If the *ponente* has retired, is no longer a Member of the Court, is disqualified, or has inhibited himself or herself from acting on the motion for reconsideration or clarification, he or she shall be replaced through raffle by a new *ponente* who shall be chosen among the new Members of the Division who participated in the rendition of the decision or signed the resolution or who concurred therein. If only

4 As amended on August 3, 2010.

one Member of the Court who participated and concurred in the rendition of the decision or singed the resolution remains, he or she shall be designated as the new *ponente.*

If a member (not the *ponente*) of the Division which rendered the decision or signed resolution has retired, is no longer a Member of the Court, is disqualified, or has inhibited himself or herself from acting on the motion for reconsideration or clarification, he or she shall be replaced through raffle by a replacement Member who shall be chosen from the other Divisions until a new Justice is appointed as replacement for the retired Justice. Upon the appointment of a new Justice, he or she shall replace the designated Justice as replacement Member of the Special Division.

Any vacancy or vacancies in the Special Division shall be filled by raffle from among the other Members of the Court to constitute a Special Division of five (5) Members.

If the *ponente* and all the Members of the Division that rendered the Decision or signed Resolution are no longer Members of the Court, the case shall be raffled to any Member of the Court and the motion shall be acted upon by him or her with the participation of the other Members of the Division to which he or she belongs.

If there are pleadings, motions or incidents subsequent to the denial of the motion for reconsideration or clarification, the case shall be acted upon by the ponente on record with the participation of other Members of the Division to which he or she belongs at the time said pleading, motion or incident is taken up by the Court.[5]

SEC 8. *Composition and reorganization of a Division.* – The composition of each Division shall be based on seniority as follows:

(a) First Division – Chief Justice, the fourth in seniority as working chairperson, the seventh in seniority, the tenth in seniority, and the thirteenth in seniority.

(b) Second Division – the second in seniority as Chairperson, the fifth in seniority, the the eighth in seniority the eleventh in seniority, and the fourteenth in seniority.

5 As amended on August 3, 2010.

(c) Third Division – the third in seniority as Chairperson, the sixth in seniority, the ninth in seniority, the twelfth in seniority, and the fifteenth in seniority.

(d) The Chief Justice may, however, consider factors other than seniority in Division assignments. The appointment of a new Member of the Court shall necessitate the reorganization of Divisions at the call of the Chief Justice.

SEC 9. *Effect of reorganization of Divisions on assigned cases.* – In the reorganization of the membership of Divisions, cases already assigned to a Member-in-Charge shall be transferred to the Division to which the Member-in-Charge moves, subject to the rule on the resolution of motions for reconsideration under Section 7 of this Rule. The Member-in-Charge is the Member given the responsibility of overseeing the progress and disposition of a case assigned by raffle.

SEC 10. *Formula for assigning cases to a new Member of the Court.* – The following rules shall be observed in assigning cases to a newly appointed Member of the Court:

(a) the average caseload of each Member shall be determined by dividing the total number of pending cases of all fifteen Members by fifteen;

(b) the newly appointed Member of the Court shall inherit the caseload of the Member being replaced, and the inherited caseload, if less that the average caseload as determined in (a), shall be equalized with the average caseload by taking the difference from the caseload of the incumbent Members divided among them in equal number;

(c) cases submitted for decision within the last twelve months preceding the appointment of the new Member of the Court may be unloaded to him or her.

The case load shall take into account only cases and matters for adjudication.[6]

SEC. 11. *Actions on cases referred to the Court en banc.* – The referral of a Division case to the Court en banc shall be subject to the following rules:

6 As amended on August 3, 2010.

(a) the resolution of a Division denying a motion for referral to the Court *en banc* shall be final and shall not be appealable to the Court *en banc*.

(b) The Court en banc may, in the absence of sufficiently important reasons, decline to take cognizance of a case referred to it and return the case to the Division; and

(c) No motion for reconsideration of a resolution of the Court *en banc* declining cognizance of a referral by a Division shall be entertained.

SEC 12. *Committees.* – (a) The Court shall have the following permanent Committees, whose members shall be designated by the Chief Justice:

(i) Committee on the Revision of the Rules of Court;

(ii) Committee on Computerization and Library;

(iii) Committee on Security;

(iv) Bids and Awards Committees;

(v) Committee on Administrative Concerns;

(vi) Legislative-Executive Relations Committee;

(vii) Committee on Publication of the Court Systems Journal;

(viii) Committee on Continuing Legal Education and Bar Matters;[7]

(ix) Committee on Retirement Program

(x) Committee on Public Information

(xi) Judicial Reform Support Project Management Committee;

(xii) Committee on Publication of the Advanced Syllabi;

(xiii) Committee on Foreign Travel;

(xiv) Committee on Justice on Wheels; and

(xv) Committee on Gender Responsiveness in the Judidicary.

The Court may create other Committees as may be necessary with the Chief Justice designating the Committee Chairperson and Members.

7 As amended on January 17, 2012.

(b) Subcommittees may be created by the Chief Justice upon the recommendation of the Committee Chairperson.

(c) *Ad Hoc* committees shall be created as the need arises.

SEC 13. *Ethics Committee.* – In addition to the above, a permanent Committee on Ethics and Ethical Standards shall be established and chaired by the Chief Justice, with the following membership:

(a) a working Vice-Chair appointed by the Chief Justice;

(b) three (3) members chosen among themselves by the Court *en banc* by secret vote; and

(c) a retired Supreme Court Justice chosen by the Chief Justice as a non-voting observer-consultant.

The Vice-Chair, the Members and the retired Supreme Court Justice shall serve for a term of one (1) year, with the election in the case of elected Members to be held at the call of the Chief Justice.

The Committee shall have the task of preliminarily investigating all complaints involving graft and corruption and violations of ethical standards, including anonymous complaints, filed against Members of the Court, and of submitting findings and recommendations to the Court en banc. All proceedings shall be completely confidential. The Committee shall also monitor and report to the Court the progress of the investigation of similar complaints against Supreme Court officials and employees, and handle the annual update of the Court's ethical rules and standards for submission to the Court *en banc*.

SEC 14. *Per curiam* decisions. – Unless otherwise requested by the Member assigned to write the opinion of the Court, the decision or resolution shall be rendered per curiam

(a) where the penalty imposed is dismissal from service, disbarment, or indefinite suspension in administrative cases; or

(b) in any other case by agreement of the majority of the Members or upon request of a Member.

SEC 15. *Form of resolution on motion for reconsideration in cases where the vote of Members of the Court is divided.* – The resolution of motions for reconsideration of decisions or signed resolutions, in case the opinion of the Court en banc or Division is divided, may be by minute resolution specifying the respective votes of the Members.[8]

SEC 16. *Filling up of Court positions in Senate and House Electoral Tribunals.* – Positions for Members of the Court in the Senate Electoral Tribunal and the House of Representatives Electoral Tribunal shall be designated by the Chief Justice among the Members of the Court in the order of seniority. The most senior Member shall serve as chairperson of the tribunal.

RULE 3

THE EXERCISE OF JUDICIAL FUNCTION

SECTION 1. *The Supreme Court a court of law.* – The Court is a court of law. Its primary task is to resolve and decide cases and issues presented by litigants according to law. However, it may apply equity where the court is unable to arrive at a conclusion or judgment strictly on the basis of law due to a gap, silence, obscurity or vagueness of the law that the Court can still legitimately remedy, and the special circumstances of the case.

SEC. 2. *The Court not a trier of facts.* – The Court is not a trier of facts; its role is to decide cases based on the findings of fact before it. Where the Constitution, the law or the Court itself, in the exercise of its discretion, decides to receive evidence, the reception of evidence may be delegated to a Member of the Court, to either the Clerk of Court or one of the Division Clerks of Court, or to one of the appellate courts or its justices who shall submit to the Court a report and recommendation on the basis of the evidence presented.

SEC. 3. *Advisory opinions proscribed.* – The Court cannot issue advisory opinions on the state and meaning of laws, or take cognizance of moot and academic questions, subject only to notable exceptions involving constitutional issues.

8 As amended on August 3, 2010.

SEC 4. *Cases when the Court may determine factual issues.* – The Court shall respect the factual findings of lower courts, unless any of the following situations is present:

(a) the conclusion is a finding grounded entirely on speculation, surmise and conjecture;

(b) the inference made is manifestly mistaken;

(c) there is grave abuse of discretion;

(d) the judgment is based on a misapprehension of facts;

(e) the findings of fact are conflicting;

(f) the collegial appellate courts went beyond the issues of the case, and their findings are contrary to the admissions of both appellant and appellee;

(g) the findings of fact of the collegial appellate courts are contrary to those of the trial court;

(h) said findings of fact are conclusions without citation of specific evidence on which they are based;

(i) the facts set forth in the petition as well as in the petitioner's main and reply briefs are not disputed by the respondents;

(j) the findings of fact of the collegial appellate courts are premised on the supposed evidence, but are contradicted by the evidence on record; and

(k) all other similar and exceptional cases warranting a review of the lower courts' findings of fact.

RULE 4

THE EXERCISE OF ADMINISTRATIVE FUNCTION

SECTION 1. *Disciplinary cases against Court personnel.* – Administrative supervision of courts and court personnel shall be undertaken by the Court *en banc*, provided that, in appropriate cases, such function may be undertaken by the Divisions.

SEC. 2. *Assisting offices in the exercise of administrative function.* – In the discharge of its administrative functions, the Court shall be assisted by the Office of the Clerk of Court in administrative matters and cases involving the Court and the collegial appellate courts. Whenever necessary, the Court shall also be assisted by the Office of the Court Administrator in said matters and in administrative matters and cases involving lower court.[9]

SEC 3. *Administrative functions of the Court.* – The administrative functions of the Court, whether en banc or in division, consist of, but are not limited to, the following:

(a) disciplinary and administrative matters involving justices, judges and court personnel;

(b) the temporary assignment of judges to other stations as public interest may require;

(c) the designation of judges from another administrative jurisdiction in the absence of judges that can be designated to hear and decide inhibited cases;

(d) the request of judges for extension of time within which to decide cases submitted for decision;

(e) the transfer of cases, from one court, administrative area or judicial region, to another, or the transfer of venue of the trial of cases to avoid miscarriage of justice;

(f) the amendment, modification or revocation of administrative orders and circulars issued by the Court;

(g) the policy consideration and determination of matters and issues;

(h) matters involving the Judicial and Bar Council (JBC) or the Philippine Judicial Academy (PHILJA) in the exercise of the Court's supervisory authority over them; and

(i) other matters similar or analogous to the foregoing.[10]

9 As amended on August 3, 2010.

10 As amended on August 3, 2010.

RULE 5

PRECEDENCE AND PROTOCOL

SECTION 1. Concept. – The Chief Justice enjoys precedence over all other Members of the Court in all official functions. The Associate Justices shall have precedence according to the order of their appointments as officially transmitted to the Supreme Court.

SEC. 2. When rule on precedence is applicable. – The rule on precedence shall be applied in the following instances:

(a) in the determination of the Chairpersonship of the Division;

(b) in the seating arrangement of the Justices in all official functions; and

(c) in the choice of office space, facilities, equipment, transportation, and cottages.

SEC. 3. *When rule on precedence is not applicable.* – Precedence in rank shall not be observed in social and other non-official functions or be used to justify discrimination in the assignment of cases, amount of compensation, allowances or other forms of remuneration.

PART II

RULE 6

FILING, RECEIVING, AND PROCESSING OF INITIATORY PLEADINGS AND APPEALS

SECTION 1. *Governing rules of procedure in appeals or petitions filed in the Supreme Court.* – All appeals or petitions and pleadings that initiate an application

for relief shall be filed with the Court only in accordance with the procedure provided by the Rules of Court and other issuances of the Court.

SEC. 2. *Reception of pleadings and other documents.* – All appeals and petitions in all types of cases, and original records in criminal cases shall be filed with and received by the Receiving Section of the Docket Division of the Judicial Records Office during office hours.

SEC. 3. *Assessment and payment.* – An initiatory pleading shall be processed pursuant to the pertinent provisions of the Rules of Court and issuances of the Court. The corresponding legal fees shall then be assessed and paid.

SEC. 4. *Docket number and entry in logbook.* – An initiatory pleading properly filed shall be assigned a docket or G.R. (General Register) number, which shall identify the case for record purposes until its termination under the Rules of Court. Any case for which no docket fee has been paid shall be assigned an undocketed or UDK number. All initiatory pleadings shall be entered in the logbook of the Receiving Section.

SEC. 5. *Case Administration System.* – Pleadings, letters, resolutions, decisions, entry of judgment, and all the relevant information regarding any particular case identified by a G.R. number or a UDK number shall be encoded in the Case Administration System (CAS).

SEC. 6. *Indexing and transmittal to Docket Division.* – After the recording in the logbook and encoding in the CAS by the Receiving Section, the initiatory pleading shall be indexed on a card that shall indicate such information as court of origin, the lower court case number(s), the nature of the case, the names of the counsel(s) for the litigants, and the date and time of transmittal to the Docket Division of the Judicial Records Office. The indexing of cases shall serve as a backup record of the receipt of a case by the Court. Thereafter, the initiatory pleading shall be transmitted to the Docket Division.

SEC. 7. *Classification of cases.* – A court attorney in the Docket Division shall preliminarily classify the petitions and appeals filed as en banc or as Division cases in accordance with law.

SEC. 8. *Recording of cases in the main docket book.* – The case shall be recorded in the main docket book of the Docket Division, where all pleadings, motions, communications, resolutions, the decision, the entry of judgment, and all relevant information on a particular case shall be recorded by handwriting. The personnel charged with making entries in the main docket book of the said pleadings and other information shall affix his or her initials after such entries.

SEC. 9. *The rollo for each case.* – All original pleadings and other documents filed under the same docket number shall be encased in a folder or *rollo* with a Court *en banc*-approved, color-coded *cartolina* cover indicating the G.R. or UDK number, the title of the case, the date of filing, the date of submission for decision, and the nature of the case. The pages of the pleadings and other documents shall be consecutively numbered and attached to the *rollo* preferably by stitching or any method that ensures the integrity of the contents of the *rollo.*

SEC. 10. Processing. – A court attorney at the Docket Division of the Judicial Records Office shall accomplish the processing slips for all initiatory pleadings, including motions for extension of time to file petition. The processing slip shall serve as the checklist of the requirements of the Rules of Court for filing a case, and shall inform the Court of compliance or non-compliance by the appellant or petitioner with such requirements, as gathered from the initiatory pleading filed. Information provided by the processing slip shall be reported in the initial agenda item on the case.

SEC. 11. *Transmittal of rollo from the Receiving Section to the Office of the Clerk of Court or the Division Clerk of Court.* – The Judicial Records Office shall transmit all *rollos* to the Office of the Clerk of Court or Division Clerk of Court within three working days from receipt of pleadings, documents or papers attached to them, unless immediate transmittal is demanded by the nature of the case. Copies of

pleadings, documents, or papers not attached to the rollo shall be distributed by said Offices to all Members of the Court en banc or of the Division.[11]

RULE 7

RAFFLE OF CASES

SECTION 1. *Raffle of cases.* – Every initiatory pleading already identified by a G.R. or a UDK number shall be raffled among the Members of the Court. The Member-in-Charge to whom a case is raffled, whether such case is to be taken up by the Court en banc or by a Division, shall oversee its progress and disposition unless for valid reason, such as inhibition, the case has to be re-raffled, unloaded or assigned to another Member.

SEC. 2. *Raffle Committee.* – Two Raffle Committees one for the en banc and the other for Division cases, each to be composed of a Chairperson and two members shall be designated by the Chief Justice from among the Members of the Court on the basis of seniority.

SEC. 3. *Raffle Committee Secretariat.* – The Clerk of Court shall serve as the Secretary of the Raffle Committee. He or she shall be assisted by a court attorney, duly designated by the Chief Justice from either the Office of the Chief Justice or the Office of the Clerk of Court, who shall be responsible for (a) recording the raffle proceedings and (b) submitting the minutes thereon to the Chief Justice. The Clerk of Court shall make the result of the raffle available to the parties and their counsels or to their duly authorized representatives, except the raffle of (a) bar matters; (b) administrative cases; and (c) criminal cases where the penalty imposed by the lower court is life imprisonment, and which shall be treated with strict confidentiality.

SEC. 4. *Classification of cases for raffle.* – The initiatory pleadings duly docketed at the Judicial Records Office shall be classified into *en banc* and Division cases

11 As Amended on August 3, 2010.

for purposes of the raffle. The Clerk of Court shall forthwith make a report on the classified cases to the Chief Justice.

SEC. 5. *Schedule of regular raffle.* – Regular raffle of en banc and Division cases shall be held on Mondays and Wednesdays, respectively.

SEC. 6.[12] *Procedure in the Raffle of Cases.* – The following rules shall be observed in the raffle of cases:

(a) For Division cases, the Chief Justice is exempt for three (3) rounds while the Chairpersons (including the Working Chairperson of the First Division) are exempt for two (2) rounds;

(b) For *En Banc* cases, the Chief Justice is exempt for two (2) rounds while the Chairpersons (including the Working Chairperson of the First Division) are exempt from one (1) round;

(c) Members who are on wellness leave or who are on vacation or sick leave, for at least fifteen (15) continuous calendar days, shall be exempt from raffle. Retiring Members shall also be excluded from raffle three (3) months prior to date of retirement.[13]

SEC. 7. *Special raffle of cases.* – Should an initiatory pleading pray for the issuance of a temporary restraining order or an urgent and extraordinary writ such as the writ of habeas corpus or of *amparo*, and the case cannot be included in the regular raffle, the Clerk of Court shall immediately call the attention of the Chief Justice or, in the latter s absence, the most senior Member of the Court present. The Chief Justice or the Senior Member of the Court may direct the conduct of a special raffle, in accordance with the following procedure:

(a) Upon receipt of an initiatory pleading containing a motion for the conduct of a special raffle, the Judicial Records Office shall immediately (i) process the pleading and (ii) transmit a copy of it to the Office of the Clerk of Court.

12 The former Section 6 is renumbered as Section 7, Section 7 is renumbered as Section 8 and Section 8 is renumbered as Section 9.

13 As amended on September 18, 2012.

(b) The Judicial Records Office shall inform the Clerk of Court in writing of the motion for special raffle, and the Clerk of Court shall forthwith seek authority to conduct special raffle from the Chief Justice or substitute Senior Member, as the case may be.

(c) The special raffle shall be conducted immediately.

(d) The Clerk of Court shall furnish the Member-in-Charge to whom the case is raffled, the Judicial Records Office, and the Rollo Room at the Office of the Chief Justice, copies of the result of the special raffle in an envelope marked RUSH. The Member-in-Charge shall also be furnished a copy of the pleading. If the case is classified as a Division case, the Clerk of Court shall furnish the same copies to the Office of the Clerk of Court of the Division to which the same Member-in-Charge belongs and to the Division Chairperson

(e) Upon receipt of the special raffle result, the Judicial Records Office shall immediately forward the rollo to the Division concerned, with the word RUSH clearly indicated on the rollo cover.

(f) Upon receipt of the rollo, the Clerk of Court or, should the case be classified as a Division case, the Division Clerk of Court shall immediately (i) prepare the agenda item on the specially raffled case; and (ii) forward the rollo and a copy of the supplemental agenda to the Rollo Room, which shall transmit the rollo to the Member-in-Charge and distribute the supplemental agenda to the Chief Justice and the Members of the Court or to the Chairperson and Members of the Division, as the case may be.[14]

(g) When the Court is in recess and the urgency of the case requires immediate action, the Clerk of Court or the Division Clerk of Court shall personally transmit the rollo to the Chief Justice or the Division Chairperson for his or her action.

SEC. 8. *Conduct of the raffle.* – The cases included in a previously prepared list shall be raffled using a reasonably acceptable random raffle device under a system

14 As amended on August 3, 2010.

that shall ensure the fair and equitable distribution of case load among all Members of the Court.

SEC. 9. *Transfer of rollos of raffled cases.* – The *rollos* of all raffled cases shall be delivered to the Offices of the respective Clerks of Court, for inclusion in the next agenda of the Court en banc or the Division.

RULE 8

INHIBITION AND SUBSTITUTION OF MEMBERS OF THE COURT

SECTION 1. *Grounds for inhibition.* – A Member of the Court shall inhibit himself or herself from participating in the resolution of the case for any of these and similar reasons:

(a) the Member of the Court was the *ponente* of the decision or participated in the proceedings in the appellate or trial court;

(b) the Member of the Court was counsel, partner or member of a law firm that is or was the counsel in the case subject to Section 3(c) of this rule;

(c) the Member of the Court or his or her spouse, parent or child is pecuniarily interested in the case;

(d) the Member of the Court is related to either party in the case within the sixth degree of consanguinity or affinity, or to an attorney or any member of a law firm who is counsel of record in the case within the fourth degree of consanguinity or affinity;

(e) the Member of the Court was executor, administrator, guardian or trustee in the case; and

(f) the Member of the Court was an official or is the spouse of an official or former official of a government agency or private entity that is a

party to the case, and the Justice or his or her spouse has reviewed or acted on any matter relating to the case.

A Member of the Court may in the exercise of his or her sound discretion, inhibited himself or herself for a just or valid reason other than any of those mentioned above.

The inhibiting Member must state the precise reason for the inhibition.

SEC. 2. *Motion to inhibit a Division or a Member of the Court.* – A motion for inhibition must be in writing and under oath and shall state the grounds therefore.

No motion for inhibition of a Division or a Member of the Court shall be granted after a decision on the merits or substance of the case has been rendered or issued by any Division, except for a valid or just reason such as an allegation of a graft and corrupt practice or a ground not earlier apparent.[15]

SEC. 3. *Effects of inhibition.* – The consequences of an inhibition of a Member of the Court shall be governed by these rules:

(a) Whenever a Member-in-Charge of a case in a Division inhibits himself for a just and valid reason, the case shall be returned to the Raffle Committee for re-raffling among the Members of the other two (2) Divisions of the Court.[16]

(b) Whenever a Member of the Division, other than the Member-in-Charge of a case, inhibits on any of the grounds specified in Section 1, except paragraph (b), the case shall be decided by the four remaining Members of the Division and another Member of the two other Divisions chosen by raffle to act on the case.

(c) When a Member of the Division, other than the Member-in-Charge of a case, was counsel or partner or member of a law firm that is or was counsel in the case before the Division, such Member shall inhibit himself or herself, unless the Member was no longer a partner or member of the law firm when it was engaged as counsel in the case and the Member votes against the client of such firm. In any event, the

15 As amended on August 3, 2010.

16 As amended on August 3, 2010.

mandatory inhibition shall cease after the lapse of ten years from the resignation or withdrawal of the Member from the law firm, unless the Member personally handled the case when he or she was a partner or member of the law firm.

(d) Whenever two or more Members of the Division, other than the Member-in-Charge of a case, inhibit themselves from a case, they shall be replaced by raffle by Members of the other Divisions.

(e) A Member of the Court who inhibits, on the grounds specified in Section 1, shall be assigned an additional case at the next raffle of Division cases.

SEC. 4. *Substitution of Member.* – When a Member of the Court is on leave or a vacancy occurs in a Division, another Member from the other Divisions shall be designated by the Chief Justice by rotation, according to a reverse order of seniority, to act as Member of the Division until the regular Member reports back to work or a newly appointed Member assumes office, as the case may be.

RULE 9

FOLDER OF PLEADINGS, COMMUNICATIONS, DOCUMENTS AND OTHER PAPERS IN A CASE

SECTION 1. *The rollo of a case.* – The original of all pleadings, communications, documents, and other papers filed by the parties shall be encased in a *rollo,* which shall serve as their official repository for purposes of the case. The *rollo* shall be properly and sequentially paginated by the docketing office concerned to prevent intercalation or detachment of a page.

To ensure that all such pleadings, communications, documents and other papers are attached to the *rollos*, including official copies of resolutions, orders and decisions as well as proofs of service thereof on the parties, the *rollos* of cases reported in the court agenda, except cases submitted for decision or resolution, shall be returned to

the Office of the Clerk of Court or of the Division Clerk of Court within twenty-four (24) hours after the session.[17]

SEC. 2. *Repository of rollos.* – All *rollos* of cases submitted for decision shall be kept in the *Rollo* Room in the Office of the Chief Justice, except when taken out for delivery to any of the following: (1) the Judicial Records Office for attachment of a pleading, communication, document or other papers filed; (2) the Office of the Clerk of Court or the Office of the Division Clerk of Court, for the preparation of the agenda and of the minutes of a court session, as well as for the attachment of the decisions or resolutions to the rollo; (3) the Office of the Member-in-Charge or the Office of the ponente or writer of the decision or resolution and (4) any Office or official charged with the study of the case.

All personnel charged with the safekeeping and distribution of *rollos* shall be bound by strict confidentiality on the identity of the Member-in-Charge or the *ponente*, as well as on the integrity of the *rollos*, under pain of administrative sanction and criminal prosecution for any breach thereof.[18]

SEC. 3. *The expediente.* – The Office of the Clerk of Court or of the Division Clerk of Court shall provide copies of all pleadings, communications, documents, and other papers of a case to the Offices of the Members of the Court for the constitution of an expediente to facilitate access and easy reference to a case.

SEC. 4. *Confidentiality of identity of Member-in-Charge or ponente and of Court actions.* – Personnel assigned to the Rollo Room and all other Court personnel handling documents relating to the raffling of cases are bound by strict confidentiality on the identity of the Member-in-Charge or ponente and on the actions taken on the case.

Rollo Room personnel may release a rollo only upon an official written request from the Chief Judicial Staff head or the Chief of Office of the requesting Office. The rollo room personnel may release a *rollo* only to an authorized personnel named in the official written request. All personnel handling the *rollos* are bound by the same strict confidentiality rules.

17 As amended on September 10, 2013.

18 As amended on August 3, 2010.

SEC. 5. *Consolidation of cases.* – The Court may order the consolidation of cases involving common questions of law or of fact. The Chief Justice shall assign the consolidated cases to the Member-in-Charge to whom the case having the lower or lowest docket number has been raffled, subject to equalization of case load by raffle, *provided* that the controlling title shall be the title of the case with the lowest docket number unless otherwise decided by the Court *en banc* upon recommendation of the Member-in-Charge.

The Judicial Records Office shall see to it that (a) the *rollos* of the consolidated cases are joined together to prevent the loss, misplacement or detachment of any of them; and (b) the cover of each *rollo* indicated the G.R. or UDK number of the case with which the former is consolidated.

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